

Court No. - 29

Case :- MISC. COMPANY APPLICATION No. - 4 of 1997

Petitioner :- In The Matter Of M/S U.P.State Cement Corporation Ltd.

Petitioner Counsel :- O.L.B.K.L.Srivastava,A.K. Pandey,Anil Mehrotra,Ashok Mehta,Rajesh Kumar Singh,S.K. Singh,Saral Srivastava,Vipalav Sharma

Respondent Counsel :- Shiv Nath Singh,A.K. Gupta,A.K. Srivastava,A.K.Mehrotra,A.P. Singh,Ajal Krishna,Ajay Kumar Pandey,Amit Chaudhary,Amit Saxena,Anil Mehrotra,Anurag Khanna,Ashok Mehta,Ashutosh Pandey,B.D.Mandhyan,B.K. Mishra,B.N. Singh,C.B. Gupta,C.B. Srivastava,C.B.Gupta,C.L. Pandey,C.S.C.,D.K. Srivastava,Devendra Singh,Govind Saran,H.N. Sharma,H.P. Dubey,J. Nagar,J.N. Pandey,J.P.Mathur,Jayant Bannerji,K.C. Vishwakarma,K.K. Srivastava,Kush Saxena,L.K.Tiwari,L.P.Tiwari,Manoj Kumar,Manoj Srivastava,N.K. Gupta,N.K. Verma,Narendra Mohan,Navin Sinha,O.P.Misra,P.K. Dalmiya (In Person),P.N.Tripathi,R.P. Agarwal,R.P. Srivastava,R.P. Tiwari,Rajesh Kumar Pathak,S.C.,S.D.N.Singh,S.K. Yadav,S.M. Dayal,S.P. Shukla,S.R. Yadav,S.S. Chauhan,S.S.Srivastava,Sandeep Agarwal,Sanjai Srivastava,Sanjay Om,Saumitra Singh,Somesh Khare,Sudhir Agarwal,U.N. Sharma,U.P. Singh,V.K.S. Chaudhary,Vinod Misra,Vivek Singh,W.A. Siddiqui,Yashwant Verma,Z.K. Hasan

Hon'ble Sunil Ambwani,J.

Present Shri Ashok Mehta and Shri V.K. Kain, the Company Prosecutor. Shri H.P. Dubey appears for U.P. Power Corporation. On the request of the parties, to complete the instructions with regard to clarification, list again on 27th August, 2009 to be taken up in chambers at 3.30 p.m.

Order Date :- 6.8.2009

SP/

Court No. 29

MISC.COMPANY APPLICATION NO. 4 OF 1997
In the matter of
Ms/ U.P. State Cement Corporation Ltd. (In Liq.)

Hon'ble Sunil Ambwani, J.

Present Shri Ashok Mehta for the Official Liquidator; Shri H.P. Dube for U.P. Power Corporation Ltd.; Shri M.S. Pipersania, Standing Counsel for State of U.P. representing the District Administration, Police Department and the Judiciary and Shri Yashwant Varma for Jaiprakash Associates Ltd. (JAL).

Shri Ashok Mehta and Shri Yashwant Varma state that all the ex-workmen (4404) of the U.P. State Cement Corporation Ltd. (In Liq.) have vacated the accommodations of the company (in liq.) in Chunar; Dalla; Gurma and Churk, and that not a single workman is occupying any accommodation of the company (in liquidation).

Shri H.P. Dube, appearing for U.P. Power Corporation Ltd., states that 132 K.V. Sub Station, Dalla and 25 residential quarters were made by the UP State Electricity Board on the land, which belongs to the U.P. State Electricity Board. Out of these, 16 quarters have been taken over illegally by the JAL, as they were lying vacant. In the nine houses the employees of the UP Power Corporation Ltd. are residing. He submits that the design of these quarters are entirely different than the design of the quarters of the company (in liquidation) and that although he has raised protest and is filing an affidavit today, he may be allowed some time to file the documents with regard to the ownership of the land and the houses.

Shri H.P. Dube submits that apart from the townships, the 132 K.V. Sub Station is also supplying the electricity to Obera, Chopan and nearby areas and that it is absolutely essential that the Sub Station continues to operate with the employees living in the quarters at the sub station.

Shri Yashwant Varma appearing for JAL submits that the Sub Station and the quarters are constructed over plot No. 933 Kha, which is part of the sale certificate dated 9.4.2009 executed by the Official Liquidator. The entire land and the constructions were part of the assets of UP State Cement Corporation (In Liq.) and now belong to JAL. The company has applied for permanent disconnection of the electricity in May, 2009 but, the U.P. Power

Corporation Ltd. is sitting over the application and has not passed any order. He submits that the JAL will not require the Sub Station and the electricity as it proposes to generate the electricity.

Shri H.P. Dube is allowed one month's time to file the documents and correspondence, if any, of constructions of the Sub Station and 25 quarters. In the meantime, the 16 quarters taken over by JAL will continue in their possession. The Official Liquidator and JAL will not insist on taking over possession of the land and building of Sub Station and nine houses.

Shri M.S. Pipersania, Standing Counsel appearing for State states that in pursuance to the orders of the Court the District Magistrate has negotiated with the JAL and that there is almost an agreement that the accommodations in occupation of the District Administration will be vacated by **31st January, 2010**, when the constructions of the accommodations of the District Administration is likely to be completed. So far as the Police and Judiciary are concerned, it is not possible to complete the constructions of the houses, even upto 31.12.2010. He further submits that 361 families living in 'Jhuggi Jhopari' over plot Nos. 179 and 173 have been given notices to vacate. They were offered alternative land. The District Magistrate will continue to look for offering alternative land to them. The occupants of 'Jhuggi Jhopari', however, have not so far agreed to shift. Shri M.S. Pipersania submits that since the matter of removal of 'Jhuggi Jhopari' relates to people living in extreme poverty, the District Magistrate would like to find out some alternative accommodation before they are asked to vacate the area.

Shri Yashwant Varma submits that the JAL has communicated its acceptance of offer to the District Magistrate to vacate the houses in possession of the District Administration by **31.1.2010**. So far as police and judiciary are concerned, the JAL agrees to give them time provided they vacate the accommodation by **31.7.1010**.

Let the Police Department and Judiciary continue to negotiate with JAL on reasonable terms with an understanding that they will have to vacate the accommodations owned by the company (in liquidation) purchased by JAL, at some point of time. The Police and Judiciary should expedite the constructions of their houses. They will continue to negotiate with JAL for reasonable time to vacate the houses.

So far as re-location of the settlers of 'Jhuggi Jhopari' is concerned, Shri Yashwant Varma has given an offer on behalf of JAL that if they agree

to leave the plots, the JAL will construct two rooms multi-storied accommodation to settle these 361 families living in 'Jhuggi Jhopari'. The District Magistrate has identified 8 bighas of land in Dalla market.

Let the District Magistrate identify these 361 families with head of the family and number of family members of each family on the basis of ration cards or other documents and prepare triplicate identity-cum-entitlement cards. One of the cards for the purposes of occupation of alternative site or accommodation will be given to these families and the other will be retained by the District Magistrate. The third copy will be given to JAL. The District Magistrate will thereafter make efforts to identify the land near Dalla market. If the District Magistrate identifies the land and proposes the same to be allotted for 'Jhuggi Jhopari', the JAL may propose constructions to be raised for them. The Court will be informed with the developments on the next date of hearing.

It is stated by Shri Ashok Mehta that now since all the ex-workmen have vacated the company accommodation and that the entire plant and factory and buildings have been handed over to JAL, the Official Liquidator may be permitted to withdraw the security.

The Official Liquidator will forthwith withdraw the security deployed for the purposes of securing the assets of the company and will stop all expenditure of security, watch and ward of the properties of the company (in liq.).

Shri C.N. Tripathi has filed a supplementary affidavit of Shri Digvijay Nath Dwivedi annexing therewith an appointment letter of Shri G.S. Rai dated 11.9.2000. The Official Liquidator will file a reply to this affidavit.

Shri Narendra Mohan representing some of the workmen has made claim for some payments. Let him give the details of their claims to the Official Liquidator to verify whether they are covered by the order dated 3.3.2009.

Shri Ashok Mehta has informed the Court that a number of workmen have died after the dividend was deposited in their accounts. The banks are not allowing the heirs to operate the accounts. He submits that if each workman applies for succession certificate, the process and the cost involved will substantially affect them and will take away sizable amount of the payment of compensation to them. Let the Official Liquidator collect all such claims along with names and addresses of the heirs. The Official Liquidator

will thereafter advertise in local newspapers inviting objections from the persons, to the names of the successors. It is made clear that no claim on the basis of Will, will be entertained and for that purpose the claimants will have to apply for either Probate or for Letters of Administration. The objections will be invited within one month and thereafter all the applications should be placed for orders.

List on **15.9.2009 at 03.00 PM.**

Dt.11.8.2009

RKP/-

Court No. - 30

Case :- MISC. COMPANY APPLICATION No. - 4 of 1997

Petitioner :- In The Matter Of M/S U.P.State Cement Corporation Ltd.

Petitioner Counsel :- O.L.B.K.L.Srivastava,A.K. Pandey,Anil Mehrotra,Ashok Mehta,S.K. Singh,Saral Srivastava,Vipalav Sharma

Respondent Counsel :- Shiv Nath Singh,A.K. Gupta,A.K. Srivastava,A.K.Mehrotra,A.P. Singh,Ajal Krishna,Ajay Kumar Pandey,Amit Chaudhary,Amit Saxena,Anil Mehrotra,Anurag Khanna,Ashok Mehta,Ashutosh Pandey,B.D.Mandhyan,B.K. Mishra,B.N. Singh,C.B. Srivastava,C.B.Gupta,C.L. Pandey,C.S.C.,D.K. Srivastava,Devendra Singh,Govind Saran,H.N. Sharma,H.P. Dubey,I.S.Tomar,J. Nagar,J.N. Pandey,J.P.Mathur,Jayant Bannerji,K.C. Vishwakarma,K.K. Srivastava,Kush Saxena,L.K.Tiwari,L.P.Tiwari,Manoj Kumar,Manoj Srivastava,N.K. Gupta,N.K. Verma,Narendra Mohan,Navin Sinha,O.P.Misra,P.K. Dalmiya (In Person),P.N.Tripathi,R.P. Agarwal,R.P. Srivastava,R.P. Tiwari,Rajesh Kumar Pathak,Rajesh Kumar Singh,S.C.,S.D.N.Singh,S.F. Ahmad,S.K. Yadav,S.M. Dayal,S.P. Shukla,S.R. Yadav,S.S. Chauhan,S.S.Srivastava,Sandeep Agarwal,Sanjai Srivastava,Sanjay Om,Saumitra Singh,Somesh Khare,Sudhir Agarwal,U.N. Sharma,U.P. Singh,V.K.S. Chaudhary,Vinod Misra,Vivek Singh,W.A. Siddiqui,Yashwant Verma,Z.K. Hasan

Hon'ble Bharati Sapru,J.

List before Hon'ble Sunil Ambwani, J in the next cause list.

Order Date :- 4.9.2009

S.P.

Court No. - 35

Case :- MISC. COMPANY APPLICATION No. - 4 of 1997

Petitioner :- In The Matter Of M/S U.P.State Cement Corporation Ltd.

Petitioner Counsel :- O.L.B.K.L.Srivastava,A.K. Pandey,Anil Mehrotra,Ashok Mehta,S.K. Singh,Saral Srivastava,Vipalav Sharma

Respondent Counsel :- Shiv Nath Singh,A.K. Gupta,A.K. Srivastava,A.K.Mehrotra,A.P. Singh,Ajal Krishna,Ajay Kumar Pandey,Amit Chaudhary,Amit Saxena,Anil Mehrotra,Anurag Khanna,Ashok Mehta,Ashutosh Pandey,B.D.Mandhyan,B.K. Mishra,B.N. Singh,C.B. Srivastava,C.B.Gupta,C.L. Pandey,C.S.C.,D.K. Srivastava,Devendra Singh,Govind Saran,H.N. Sharma,H.P. Dubey,I.S.Tomar,J. Nagar,J.N. Pandey,J.P.Mathur,Jayant Bannerji,K.C. Vishwakarma,K.K. Srivastava,Kush Saxena,L.K.Tiwari,L.P.Tiwari,Manoj Kumar,Manoj Srivastava,N.K. Gupta,N.K. Verma,Narendra Mohan,Navin Sinha,O.P.Misra,P.K. Dalmiya (In Person),P.N.Tripathi,R.P. Agarwal,R.P. Srivastava,R.P. Tiwari,Rajesh Kumar Pathak,Rajesh Kumar Singh,S.C.,S.D.N.Singh,S.F. Ahmad,S.K. Yadav,S.M. Dayal,S.P. Shukla,S.R. Yadav,S.S. Chauhan,S.S.Srivastava,Sandeep Agarwal,Sanjai Srivastava,Sanjay Om,Saumitra Singh,Somesh Khare,Sudhir Agarwal,U.N. Sharma,U.P. Singh,V.K.S. Chaudhary,Vinod Misra,Vivek Singh,W.A. Siddiqui,Yashwant Verma,Z.K. Hasan

Hon'ble Sunil Ambwani,J.

Heard Shri Ashok Mehta, learned counsel appearing for the Official Liquidator. Shri Yashwant Verma appears for Jaiprakash Associates Limited (JAL).

Shri Yashwant Verma has pointed out that there are three issues at present, which needs to be settled by the Court. It is stated by him that building of six primary schools except at Chunar have not been handed over to JAL as purchaser of the entire assets of the Company (In Liq.); the 361 families squatting in front of the factory gate without any authority have not been evicted, and that the U.P. Power Corporation has not vacated the residential houses near sub station.

So far as primary schools are concerned, Shri Ashok Mehta appearing for the Official Liquidator has given statement that the Official Liquidator is ready to hand over the six school buildings to JAL within a period of fortnight. Let these buildings be handed over to JAL within 15 days.

So far as unauthorised occupation of company land near the factory gate by 361 families is concerned, the District Magistrate has submitted a report dated 14.9.2009 in compliance with the order dated 11.8.2009. The District Magistrate constituted a committee of Sub Divisional Magistrate, Sadar, Sonbhadra; Circle Officer (Police), Sonbhadra and Shri Sudhir Misra, JAL Dala. The Committee has identified 218 families out of 361 on the basis of the ration cards and other documents. The 50 families could not be identified for which time has been given to them to produce the documents. Out of 361, 78 families were not found present in the cluster, and that 15 families were found to be living jointly. In this manner there are only 268 families, which are required to be

rehabilitated. The District Magistrate further reported that on the orders of the District Magistrate, Sonbhadra the Gaon Sabha land is proposed to be allotted by the Land Management Committee vide its resolution dated 12.9.2009. The Sub Divisional Magistrate, Sadar, Sonbhadra has given approval to the proposal on 12.9.2009 and thus the proceedings to search out alternate land for accommodating (rehabilitating) these families has been completed. The District Magistrate then reports that the Committee was informed by 128 out of 218 families that instead of accepting the constructed houses offered by JAL, Dala, to be built on allotted Gaon Sabha land, they are willing to accept the cash compensation so that they can make constructions on the land allotted by the State Government according to their own specifications and needs.

Let the District Magistrate complete the report with regard to remaining 50 families within next one month. In the meantime, JAL may provide a bank guarantee for the amount, which will be required for the construction of houses. The District Magistrate will thereafter give notice to the families and fix a time within a period of two months to vacate the land and the jhuggis occupied by them, immediately after receiving the amount for making constructions of the house. Shri Yashwant Verma states that the JAL is prepared to deposit Rs.1 lac per family. Let the District Magistrate submit a detailed report in this regard. The JAL will also produce proof of producing bank guarantee for Rs.1 lac for each family identified by the District Magistrate within a period of one month.

So far as houses near sub station of the U.P. Power Corporation is concerned, Shri H.P. Dubey is not present. These two matters will be considered again on 18th December, 2009.

In the matter of Smt. Nahid Sultana

A positive order was passed on 14.7.2009 directing that the entire arrears of salary shall be paid to her positively within one month. It is stated by her that the salary for the period 17.7.2007 to 10.7.2007, when she was working as Daftari in the Government Girls Intermediate College, Chunar has not been paid. Let the State through the Chief Standing Counsel get the order implemented. A copy of this order along with copy of the order dated 14.7.2009 shall be served upon the Chief Standing Counsel. List this matter again on 11th December, 2009.

Order Date :- 6.11.2009

SP/

Court No. - 35

Case :- MISC. COMPANY APPLICATION No. - 4 of 1997

Petitioner :- In The Matter Of M/S U.P.State Cement Corporation Ltd.

Petitioner Counsel :- O.L.B.K.L.Srivastava,A.K. Pandey,Anil Mehrotra,Ashok Mehta,S.K. Singh,Saral Srivastava,Vipalav Sharma

Respondent Counsel :- Shiv Nath Singh,A.K. Gupta,A.K. Srivastava,A.K.Mehrotra,A.P. Singh,Ajal Krishna,Ajay Kumar Pandey,Amit Chaudhary,Amit Saxena,Anil Mehrotra,Anurag Khanna,Ashok Mehta,Ashutosh Pandey,B.D.Mandhyan,B.K. Mishra,B.N. Singh,C.B. Srivastava,C.B.Gupta,C.L. Pandey,C.S.C.,D.K. Srivastava,Devendra Singh,Govind Saran,H.N. Sharma,H.P. Dubey,I.S.Tomar,J. Nagar,J.N. Pandey,J.P.Mathur,Jayant Bannerji,K.C. Vishwakarma,K.K. Srivastava,Kush Saxena,L.K.Tiwari,L.P.Tiwari,Manoj Kumar,Manoj Srivastava,N.K. Gupta,N.K. Verma,Narendra Mohan,Navin Sinha,O.P.Misra,P.K. Dalmiya (In Person),P.N.Tripathi,R.P. Agarwal,R.P. Srivastava,R.P. Tiwari,Rajesh Kumar Pathak,Rajesh Kumar Singh,S.C.,S.D.N.Singh,S.F. Ahmad,S.K. Yadav,S.M. Dayal,S.P. Shukla,S.R. Yadav,S.S. Chauhan,S.S.Srivastava,Sandeep Agarwal,Sanjai Srivastava,Sanjay Om,Saumitra Singh,Somesh Khare,Sudhir Agarwal,U.N. Sharma,U.P. Singh,V.K.S. Chaudhary,Vinod Misra,Vivek Singh,W.A. Siddiqui,Yashwant Verma,Z.K. Hasan

Hon'ble Sunil Ambwani,J.

(1). Order on Misc. Application No. 217841 of 2009
Smt. Nahid Sultana Applicant

Order dated 6.11.2009 in the matter of Smt. Nahid Sultana stand corrected as follows:-

In the third and fourth line of the order, the period "17.7.2007 to 10.7.2007" shall be read as "**1.7.2007 to 31.7.2009**". The applicant Smt. Nahid Sultana is permitted to serve this correction order also on the Principal of the College to be forwarded to the District Inspector of Schools.

Order Date :- 11.12.2009
nethra

(2). Order on Misc. Application No. 331779 of 2009
Smt. Mehrun Nisha Applicant

Heard Sri Arvind Srivastava, learned counsel for the applicant.

Final orders for absorption of the petitioner have been passed.

As a Company Judge, looking after the liquidation of the Company, no further orders can be passed in the matter. In case the petitioner has not been allowed to join or paid salary, she may pursue her remedies, as it may be opened to her, in accordance with law.

The application is disposed of accordingly.

Order Date :- 11.12.2009

nethra

Court No. 35

MISC. COMPANY APPLICATION NO. 4 OF 1997

In the matter of
M/s U.P. State Cement Corporation Ltd.(In Liq.)

Hon'ble Sunil Ambwani, J.

Present Shri Ashok Mehta, learned counsel for Official Liquidator; Shri Navin Sinha, Senior Advocate assisted by Shri Yashwant Verma for M/s Jaiprakash Associates Limited (JAL).

Shri Navin Sinha, Senior Advocate, learned counsel appearing for JAL submits that in the matter of directions to remove the unauthorised occupation of the land at the factory gate by 361 families in compliance with the directions issued on 6.11.2009, the District Magistrate found that in fact there are only 268 families and has identified 218, out of the 268 families. The remaining 50 have not been identified so far. The JAL has submitted a bank guarantee on 2,68,00,000/- @ Rs. 1 lac to each family for construction of a house for which the Gaon Sabha land for allotment by way of rehabilitation has also been identified. The District Magistrate has not carried out the orders for identifying the remaining families and for their evacuation and rehabilitation. As soon as these families are evacuated, the JAL will simultaneously pay an amount of Rs. 1 lac to each identified family.

Shri Ashok Kumar Chaubey has filed an application on behalf of 179 persons of Village Kota, Pargana Angori, Tehsil Robertsganj, District Sonebhadra. The copy of the application has not been given to any counsels. Let a copy of this application, praying for directions in the nature of mandamus not to harass and disturb the applicants in their peaceful possession over the land in dispute i.e. Gata No. 113 (area 19.740 hectare) and 179 (area 13.231 hectare) located at Malin Basti, Village Kota (Dala) Pargana Agori, Tehsil Robertsganj, District Sonebhadra, be given to both the Official Liquidator as well as Shri Yashwant Verma. The matter will again be taken up in **January, 2010**. The District Magistrate will carry out the directions to identify the remaining families by that time.

In the meantime, the District Magistrate may offer to evacuation and resettlement of the families, who are willing to shift. The District Magistrate will allot the Gaon Sabha land to such persons by identifying the land with measurements and issue directions for execution of lease deeds. As soon as

the families, which are willing to shift, vacate the Malin Basti, the JAL will simultaneously pay them Rs. 1 lac each. The District Magistrate will advertise inviting offers from the families, who want to shift voluntarily within one week.

POSSESSION OF THE SCHOOL BUILDINGS
(There were seven educational institutions)

On the sale of the assets of the company (in liquidation) to JAL, the JAL was requested to run the schools. The JAL did not accept the offer as it has its own policy of running schools in factories through a trust under CBSC pattern. It was thus decided that the teachers and staff of the schools may be accommodated in the Government schools and that the teaching may continue only till academic session 2007-08.

Shri Ashok Mehta, appearing for Official Liquidator, informs that all the teachers and staff have been accommodated in Government schools and are receiving their salaries. The teaching was stopped after the academic session 2007-08. The Principal of these institutions, however, did not hand over the possession to the Official Liquidator to be given to the JAL.

It is reported that out of 7 educational institutions, the possession of one school building and campus at Chunar has been handed over except three rooms in which the primary section was functioning. The possession of one school building at Churk has been handed over to JAL. As of now the possession of the school building at Chunar, three schools at Dalla, two schools at Churk and one school at Ghurma has not been given to JAL. It is reported by Shri Ashok Mehta that the Principals are not cooperating and that the possession can be handed over only through the help of the district administration and the police. The notices sent to the Principals have not resulted into any positive response.

The Official Liquidator is directed to inform the District Magistrates Mirzapur and Sonebhadra to depute a Sub Divisional Magistrate and Circle Officer to hand over the possession of these schools to the Official Liquidator to be delivered simultaneously to the JAL. The possession shall be given within one month, with atleast two week's prior information to the Principals of the schools. The information will be sent by the Official Liquidator along with copy of this order through registered post.

U.P. POWER CORPORATION

Shri H.P. Dube is not present. The matter with regard to the houses near Sub Station of U.P. Power Corporation and the remaining payment of electricity dues to U.P. Power Corporation shall be considered on the next date.

Shri Yashwant Verma has filed an application, the copy of which has been given to Standing Counsel today for remaining encroachments existing on the company's (in liq.) properties from before the date of sale and for which the Official Liquidator is required to take steps and to hand over possession to the JAL. The details of the encroachments, constructions and the area has been given in paragraphs 5 and 6 supported with annexures A and B. The Official Liquidator and the State will identify and verify these properties and file a reply within three weeks.

The OL's Report No. (Jud)/213 of 2009 (Dividend for Remaining Workmen)

The Official Liquidator has filed a report No. (Judl.)213 of 2009. He has accepted the report of the Liquidation Claims Committee in three parts. In the **first** part the report of the Claims Committee with regard to payment of gratuity payable to late Shri Ram Narain Singh to his widow Smt. Naurangi Devi has been accepted for a total claim of Rs.38709/- and pari passu dividend at Rs.30868/-. She has given her account number of the State Bank of India, Dala, Sonbhadra. The first part of report is allowed. Let the claim be directly remitted to her account in the State Bank of India, Branch Dala, Sonbhadra.

The **second** part of report relates to 24 workmen, who had filed their claims in pursuance to the award of the Industrial Tribunal being Adjudication Case No.119 of 1986. Their claims were allowed by the Industrial Tribunal. The writ petitions were dismissed. The Court had issued directions on 27.4.2007 to consider their claims. Para 43 (5) of the directions, are quoted as below:-

“5. Award in Adjudication Case No.119 of 1986 by Industrial Tribunal presided over by Justice B.P. Mathur dated 5.1.1991

awarding claim of 404 workmen to be treated as permanent when they completed three years of service. A Writ Petition No.30260 of 1991 was filed against the award in which the stay order was granted on 6.8.1996. The writ petition was dismissed on 24.9.2004. Recall application dated 29.7.2005 filed by the OL is still pending.”

The Liquidation Claims Committee has worked out their entitlement on the basis of the award. The arrears are payable to them between Rs.1,22,000/- to Rs.1,32,000/- for each workman after working out pari pasu dividend. A total amount of Rs.33,31,679/- has been worked out to be paid to these 24 workmen. The report of the Liquidation Claims Committee accepted by the Official Liquidator is approved. Let the payment be made to them by directly transferring it to their bank account. Wherever the account numbers are not given, the Official Liquidator will ask these workmen to provide their account numbers.

The **third** part of the report relates to difference of dividend to be paid to 12 workmen. These claims were delayed under the directions of the Court. They were required to be adjudicated. The Liquidation Claims Committee has adjudicated these claims and found that the dividend of Rs.1,37,159/- is payable to each of these workmen totalling Rs.16,45,904/-. The report of the Liquidation Claims Committee accepted by the Official Liquidator is approved. Let the payments be made to them by directly transferring the dividend to their bank accounts.

The fourth and last part of report of the Official Liquidator deals with payment to two workmen namely Shri Buddh Nath son of Late Rama Nand (C-20) and Sri Bal Kishan son of Chottan (C-37) of the Churk unit. They were also beneficiary of award No.119/86. The award has already been accepted and their pari pasu dividend has been worked out to be payable at Rs.250145/- and Rs.233933/-. The report of the Liquidation Claims Committee accepted by the Official Liquidator is approved. Let the payment be made by directly transferring the amount to their bank accounts.

Shri Ashok Mehta informs the Court that about 138 more applications are pending. Let the office prepare a list of these applications giving the number, applicant's name and counsel's name. The entire list shall be printed in the cause list and that all the applications shall be listed for orders on **22nd January, 2010.**

Dt.18.12.2009

RKP/-

Court No. - 19

Case :- MISC. COMPANY APPLICATION No. - 4 of 1997

Petitioner :- In The Matter Of M/S U.P.State Cement Corporation Ltd.

Petitioner Counsel :- O.L.B.K.L.Srivastava,A.K. Pandey,Anil Mehrotra,Ashok Mehta,S.K. Singh,Saral Srivastava,Vipalav Sharma

Respondent Counsel :- Shiv Nath Singh,A.K. Gupta,A.K. Srivastava,A.K.Mehrotra,A.P. Singh,Ajal Krishna,Ajay Kumar Pandey,Amit Chaudhary,Amit Saxena,Anil Mehrotra,Anurag Khanna,Ashok Mehta,Ashutosh Pandey,B.D.Mandhyan,B.K. Mishra,B.N. Singh,C.B. Srivastava,C.B.Gupta,C.L. Pandey,C.S.C.,D.K. Srivastava,Devendra Singh,Govind Saran,H.N. Sharma,H.P. Dubey,I.S.Tomar,J. Nagar,J.N. Pandey,J.P.Mathur,Jayant Bannerji,K.C. Vishwakarma,K.K. Srivastava,Kush Saxena,L.K.Tiwari,L.P.Tiwari,Manoj Kumar,Manoj Srivastava,N.K. Gupta,N.K. Verma,Narendra Mohan,Navin Sinha,O.P.Misra,P.K. Dalmiya (In Person),P.N.Tripathi,R.P. Agarwal,R.P. Srivastava,R.P. Tiwari,Rajesh Kumar Pathak,Rajesh Kumar Singh,S.C.,S.D.N.Singh,S.F. Ahmad,S.K. Yadav,S.M. Dayal,S.P. Shukla,S.R. Yadav,S.S. Chauhan,S.S.Srivastava,Sandeep Agarwal,Sanjai Srivastava,Sanjay Om,Saumitra Singh,Somesh Khare,Sudhir Agarwal,U.N. Sharma,U.P. Singh,V.K.S. Chaudhary,Vinod Misra,Vivek Singh,W.A. Siddiqui,Yashwant Verma,Z.K. Hasan

Hon'ble Sunil Ambwani,J.

Order on Civil Misc. Application No. 18317 of 2010

No one appears for the applicants. Learned Standing Counsel appears for District Magistrate, Sonebhadra.

I have passed detailed orders with regard to vacating the land in Gata Nos. 13 and 179 in Malin Basti Village Kota (Dala) Pargana Agori, Tehsil Robertsganj, District Sonebhadra, on a proposal made by the District Magistrate, and the offer made by the Company (JAL) that only those families, who have been allotted Gaon Sabha land and in whose favour Rs. 1 lacs has been deposited by the Company (JAL) for their rehabilitation, will be asked to vacate the land in their occupation.

In this application filed by 251 persons, it is alleged that they are being dispossessed illegally and that the district administration in collusion with the authorities of JAL is trying to dispossess them.

As an interim measure, it is directed that the Official Liquidator, District Magistrate or the Company (JAL) shall not dispossess the applicants, except those, who have been allotted Gaon Sabha land, and in whose favour Rs. 1 lac has been deposited by the Company (JAL) for constructing the house.

List on **17.2.2010 at 03.00 PM.**

Order Date :- 25.1.2010 RKP

Case :- MISC. COMPANY APPLICATION No. - 4 of 1997

Petitioner :- In The Matter Of M/S U.P.State Cement Corporation Ltd.

Petitioner Counsel :- O.L.B.K.L.Srivastava,A.K. Pandey,Anil Mehrotra,Ashok Mehta,S.K. Singh,Saral Srivastava,Vipalav Sharma

Respondent Counsel :- Shiv Nath Singh,A.K. Gupta,A.K. Srivastava,A.K.Mehrotra,A.P. Singh,Ajal Krishna,Ajay Kumar Pandey,Amit Chaudhary,Amit Saxena,Anil Mehrotra,Anurag Khanna,Ashok Mehta,Ashutosh Pandey,B.D.Mandhyan,B.K. Mishra,B.N. Singh,C.B. Srivastava,C.B.Gupta,C.L. Pandey,C.S.C.,D.K. Srivastava,Devendra Singh,Govind Saran,H.N. Sharma,H.P. Dubey,I.S.Tomar,J. Nagar,J.N. Pandey,J.P.Mathur,Jayant Bannerji,K.C. Vishwakarma,K.K. Srivastava,Kush Saxena,L.K.Tiwari,L.P.Tiwari,Manoj Kumar,Manoj Srivastava,N.K. Gupta,N.K. Verma,Narendra Mohan,Navin Sinha,O.P.Misra,P.K. Dalmiya (In Person),P.N.Tripathi,R.P. Agarwal,R.P. Srivastava,R.P. Tiwari,Rajesh Kumar Pathak,Rajesh Kumar Singh,S.C.,S.D.N.Singh,S.F. Ahmad,S.K. Yadav,S.M. Dayal,S.P. Shukla,S.R. Yadav,S.S. Chauhan,S.S.Srivastava,Sandeep Agarwal,Sanjai Srivastava,Sanjay Om,Saumitra Singh,Somesh Khare,Sudhir Agarwal,U.N. Sharma,U.P. Singh,V.K.S. Chaudhary,Vinod Misra,Vivek Singh,W.A. Siddiqui,Yashwant Verma,Z.K. Hasan

Hon'ble Sunil Ambwani,J.

1) Order on Civil Misc. Application No. 18317 of 2010

Shri S.N. Singh appearing for 251 applicants is not able to clarify whether these applicants were included in the list of 268 persons sought to be rehabilitated by providing allotment of Gaon Sabha land and Rs. 1 lac each to a family.

Shri Yashwant Verma appearing for JAL states that he will provide Shri S.N. Singh a copy of list so that the matter may be verified. If any family has been left from enlistment, Shri S.N. Singh will provide sufficient details of their identification including the voter's list and ration cards for correction of the list. The District Magistrate, Sonebhadra will ensure to keep his assurance by providing allotment of gaon sabha land to the identified families for which the amount Rs. 2.68 crores has been @ Rs. 1 lac each, has been deposited.

Shri Yashwant Verma has also filed an application today for removing encroachment existing on the plot Nos. 113 and 179 Village Kota, Pargana Agori, District Sonebhadra, and also to take action against 78 persons identified to be living on these plots, who have already received their dues from the liquidation fund, a list of which has been annexed as Annexure-4 to the application. By prayer No. (C), he has offered on behalf of JAL to take over

the possession of the Primary School at Dala, Sector-A, and also to evict its occupants with the assistance of the district administration. By prayer No. (D), he prays that the electricity connection given in the houses of plots No. 113 and 179 be disconnected for their rehabilitation.

So far prayers Nos. (A), (B) and (D) are concerned, the matter has to wait till application No. 339019/2009 by 179 applicants and this application No. 18317/2010 by 251 applicants are decided. With regard to prayer No. (C) the Official Liquidator will submit a report.

2) Application No. 5494/2010 filed by Official Liquidator, U.P. at Allahabad

Shri Ashok Mehta appearing for Official Liquidator has filed this application for clarifying his statement in para-3 of second page of the order dated 18.12.2009. Shri Ashok Mehta states that so far first part of his statement regarding appointments of teachers and staff in Government schools is concerned, the statement related to Intermediate Colleges, for which a Government Order has also been issued by the State Government. With regard to the stoppage of teaching after academic session 2007-08, the statement was given in respect of primary schools. The possession of only one Primary School in Dala Sector-A has not been taken over by the Official Liquidator so far, as the Principal of the School is living in the premises along with his family. The teaching was stopped in all the Primary Schools w.e.f. April, 2008.

Shri Yashwant Verma points out that there are still encroachments on the free hold land and in the mines. These encroachments have been identified with the help of the district administration. The District Magistrate, Sonbhadra will issue individual notice and public notice to these persons to vacate the properties. A list of the persons in occupation of encroached properties will be supplied by the JAL to District Magistrate, Sonbhadra. He will get these encroachments verified before initiating any action.

The application for clarification will be considered on the next date.

List on **11.3.2010 at 02.00 PM.**

Order Date :- 17.2.2010
RKP

**Misc. Company Application No. 4 of 1997
In the matter of
M/s. U.P. State Cement Corporation Ltd (In Liq.)
and in the Matter of
(orders on applications/objections/appeals of workmen, secured
creditors, unsecured creditors and others)**

=====

Hon. Sunil Ambwani, J.

1. Order on the application No. 103728 of 2010 filed by Shanker and others.

By this application, the applicants have prayed for directions to the State Government to adjust the teachers and staff of the Primary Schools earlier run by the Corporation in State-owned educational institutions, and/or to pass such other or further order as this Hon'ble Court deems just and proper.

The Court has limited jurisdiction in the proceedings of the liquidation of a Company. Earlier directions were given for adjusting the employees of the Company in the State Government Department and in others Companies owned and controlled by the State Government, and the employees (teaching and non-teaching) of the Schools run by the Company (In Liquidation) in the Education Department of the State Government.

The Court does not ordinarily issue further orders in such matter to implement the earlier orders.

The application is **disposed of** with the liberty to the applicants to pursue their remedies in the Department or to seek appropriate orders from the competent court.

2. Order on the application No. 177058 of 2007 filed by IDBI Ltd.

The interim dividend for 99 % of the amount available in the liquidation fund was declared on 27.4.2007. This application is for a direction to the Official Liquidator to make interim disbursement of about 65 % of the sale proceed to the applicant and other secured creditors

The application has since after 27.4.2007, become infructuous, and it is accordingly **dismissed**.

3. Order on the application No. 40340 of 2008 filed by Durgesh

Kumar Pandey.

No one appears for the applicant.

This is an application to correct Form-66. The Form-66 was accompanied with an affidavit in which it has been stated that the petitioner's salary was due from 12.7.98 to 31.7.98. Applicant has not given any material to quantify the amount of salary.

The application is **rejected**.

4. **Order on the Civil Misc. Appeal No. 45178 of 2008 filed by Shafi Ahamad Khan**

The appellant has claimed an amount of Rs.42,30,593 from the Official Liquidator from the assets of the Company.

The appellant claims to be supplier and is claiming unpaid bills due from the Company, as unsecured creditor of the Company.

All the claims of the unsecured creditors have been rejected vide para 140 of the order dated 27.4.2007 as no amount was left for them in the liquidation fund. Under the scheme of distribution of dividend in liquidation proceedings, the unsecured creditors do not have any preference. There was no amount left to be paid to the unsecured creditors.

The appeal is **rejected**.

5. **Order on the Civil Misc. Appeal No. 45179 of 2008 filed by Shafi Ahamad Khan**

The appellant has claimed an amount of Rs.49,51,746 from the Official Liquidator from the assets of the Company.

The appellant claims to be supplier and is claiming unpaid bills due from the Company, as unsecured creditor of the Company.

All the claims of the unsecured creditors have been rejected vide para 140 of the order dated 27.4.2007 as no amount was left for them in the liquidation fund. Under the scheme of distribution of dividend in liquidation proceedings, the unsecured creditors do not have any preference. There was no amount left to be paid to the unsecured creditors.

The appeal is **rejected**.

6. **Order on the Civil Misc. Application No. 77325 of 2008 filed by Mohd. Suhail Sultan and others**

No one appears to press this application. Sri Ashok Mehta, appears for respondent.

Mohd. Suhail Sultan and four others have prayed for directions to pay remuneration for the work of Provident Fund Account of the employees of the U.P. Cement Corporation by extending the period upto 31.5.2008.

The applicants were employees of the Company. By order dated 27.4.2007 all the claims of the employees for their salary were considered, and paid in accordance with the issues decided.

It is stated that the applicants were permitted to work from the date of liquidation till final accounts were handed over to the PF Commissioner.

The applicants were only doing the work of verification of claimants for which no special remuneration was to be paid, out of the liquidation amount.

The application is **rejected**.

7. **Order on the Civil Misc. Application No. 89821 of 2008 filed by Surendra Singh**

No one appears to press this application. Sri Ashok Mehta, appears for respondent.

The prayers made in this application are covered by para Nos. 2 to 35 of the order dated 27.4.2007. The court had relied upon the man power summary prepared by Sri Hanrendra Pandey with regard to the categories of employees and the pay scales. There was no other material document or any man power summary placed before the court.

The applicant has prayed for directions to pay the arrears/differences of salary, leave encashment and other closure benefits after making proper calculation treating his last salary drawn as Rs.19,213/-.

The applicant has not placed any cogent material on record.

The application is **rejected**.

8. **Order on the Civil Misc. Application No. 92108 of 2008 filed by Bifan Devi and others**

No one appears to press this application. Sri Ashok Mehta, appears for respondent.

The applicants are claiming Group Insurance amount. In the proceedings of the liquidation, the Official Liquidator is not required to settle the insurance amount. The applicants may pursue remedies with the Insurance Company.

The application is **rejected**.

9. **Order on the Civil Misc. Application No. 92113 of 2008 filed by Dev Nath**

No one appears to press this application. Sri Ashok Mehta, appears for respondent.

The claim of applicant Dev Nath was accepted and allowed in part. He is claiming a higher amount on the ground that he has completed 24 years of service. The applicant has not given the details of the last pay drawn nor any material to show that the declaration made by him and the settlements by the Official Liquidator were incorrect.

The application is **rejected**.

10. **Order on the Civil Misc. Application No. 92114 of 2008 filed by Prabhakar Tripathi**

No one appears to press this application. Sri Ashok Mehta, appears for respondent.

The claim of applicant Prabhakar Tripathi was accepted and allowed in part. He is claiming a higher amount on the ground that he has completed 24 years of service. The applicant has not given the details of the last pay drawn nor any material to show that the declaration made by him and the settlements by the Official Liquidator were incorrect.

The application is **rejected**.

11. **Order on the Civil Misc. Application No. 92116 of 2008 filed by Smt. Anar Devi**

No one appears to press this application. Sri Ashok Mehta, appears for respondent.

The applicant has challenged the correctness of the settlement of

the claim by the Official Liquidator.

There is no material to support her allegations that she was also entitled to any amount other than the amount settled with her.

The application is **rejected**.

12. **Order on the Civil Misc. Appeal No. 92119 of 2008 filed by Shiv Shankar Lal**

Heard learned counsel for the appellant. Sri Ashok Mehta, appears for Official Liquidator.

The claims of the workman in the liquidation proceedings were allowed and twice the Office Liquidator had gone through the claims and supporting material, with the help of the Liquidation Claims Committee.

No fresh material has been placed on record to revise or reconsider his claim.

The application is **rejected**.

13. **Order on the Civil Misc. Application No. 93159 of 2008 filed by Ram Pratap Dubey**

No one appears to press this application. Sri Ashok Mehta, appears for Official Liquidator.

The claims of the workman in the liquidation proceedings were allowed and twice the Office Liquidator had gone through the claims and supporting material, with the help of the Liquidation Claims Committee.

No fresh material has been placed on record to revise or reconsider his claim.

The application is **rejected**.

14. **Order on the Civil Misc. Application No. 93182 of 2008 filed by Tribhuvan Singh**

No one appears to press this application. Sri Ashok Mehta, appears for Official Liquidator.

The claims of the workman in the liquidation proceedings were allowed and twice the Office Liquidator had gone through the claims and supporting material, with the help of the Liquidation Claims Committee.

No fresh material has been placed on record to revise or reconsider his claim.

The application is **rejected**.

15. **Order on the Civil Misc. Application No. 98681 of 2008 filed by Manik Chand**

No one appears to press this application. Sri Ashok Mehta, appears for Official Liquidator.

The claims of the workman in the liquidation proceedings were allowed and twice the Office Liquidator had gone through the claims and supporting material, with the help of the Liquidation Claims Committee.

No fresh material has been placed on record to revise or reconsider his claim.

The application is **rejected**.

16. **Order on the Civil Misc. Application No. 100124 of 2008 filed by Dharam Shah**

No one appears to press this application. Sri Ashok Mehta, appears for Official Liquidator.

The claims of the workman in the liquidation proceedings were allowed and twice the Office Liquidator had gone through the claims and supporting material, with the help of the Liquidation Claims Committee.

No fresh material has been placed on record to revise or reconsider his claim.

The application is **rejected**.

17. **Order on the Civil Misc. Application No. 102888 of 2008 filed by Ram Lakhan and others**

No one appears to press this application. Sri Ashok Mehta, appears for Official Liquidator.

The claims of the workmen in the liquidation proceedings were allowed and twice the Office Liquidator had gone through the claims and supporting material, with the help of the Liquidation Claims Committee.

No fresh material has been placed on record to revise or reconsider their claim.

The application is **rejected**.

18. **Order on the Civil Misc. Application No. 105142 of 2008 filed by Ram Dhari and others**

No one appears to press this application. Sri Ashok Mehta,

appears for Official Liquidator.

The claims of the workmen in the liquidation proceedings were allowed and twice the Office Liquidator had gone through the claims and supporting material, with the help of the Liquidation Claims Committee.

No fresh material has been placed on record to revise or reconsider their claim.

The application is **rejected**.

19. **Order on the Civil Misc. Appeal No. 106726 of 2008 filed by M/s. Arti Traders**

No one appears to press this appeal. Sri Ashok Mehta, appears for Official Liquidator.

The appellant claims to be supplier and is claiming unpaid bills due from the Company. The appellant is the unsecured creditor of the Company.

All the claims of the unsecured creditors have been rejected vide para 140 of the order dated 27.4.2007 after adjudication of all the claims. Under the scheme of distribution of dividend in the liquidation proceedings, the unsecured creditors do not have any preference. There was no amount left to be paid to the unsecured creditors.

The appeal is **rejected**.

20. **Order on the Civil Misc. Appeal No. 106724 of 2008 filed by M/s. Arti Traders**

No one appears to press this appeal. Sri Ashok Mehta, appears for Official Liquidator.

The appellant claims to be supplier and is claiming unpaid bills due from the Company. The appellant is the unsecured creditor of the Company.

All the claims of the unsecured creditors have been rejected vide para 140 of the order dated 27.4.2007 after adjudication of all the claims. Under the scheme of distribution of dividend in the liquidation proceedings, the unsecured creditors do not have any preference. There was no amount left to be paid to the unsecured creditors.

The appeal is **rejected**.

21. **Order on the Civil Misc. Appeal No. 106727 of 2008 filed by M/s. Aadi Nath Traders**

No one appears to press this appeal. Sri Ashok Mehta, appears for Official Liquidator.

The appellant claims to be supplier and is claiming unpaid bills due from the Company. The appellant is the unsecured creditor of the Company.

All the claims of the unsecured creditors have been rejected vide para 140 of the order dated 27.4.2007 after adjudication of all the claims. Under the scheme of distribution of dividend in the liquidation proceedings, the unsecured creditors do not have any preference. There was no amount left to be paid to the unsecured creditors.

The appeal is **rejected**.

22. **Order on the Civil Misc. Appeal No. 106733 of 2008 filed by M/s. Vardhaman Cement Distributors**

No one appears to press this appeal. Sri Ashok Mehta, appears for Official Liquidator.

The appellant claims to be supplier and is claiming unpaid bills due from the Company. The appellant is the unsecured creditor of the Company.

All the claims of the unsecured creditors have been rejected vide para 140 of the order dated 27.4.2007 after adjudication of all the claims. Under the scheme of distribution of dividend in the liquidation proceedings, the unsecured creditors do not have any preference. There was no amount left to be paid to the unsecured creditors.

The appeal is **rejected**.

23. **Order on the Civil Misc. Appeal No. 106734 of 2008 filed by M/s. Paras Nath Cement Ltd**

No one appears to press this appeal. Sri Ashok Mehta, appears for Official Liquidator.

The appellant claims to be supplier and is claiming unpaid bills due from the Company. The appellant is the unsecured creditor of the Company.

All the claims of the unsecured creditors have been rejected vide para 140 of the order dated 27.4.2007 after adjudication of all the claims. Under the scheme of distribution of dividend in the liquidation proceedings, the unsecured creditors do not have any preference. There was no amount left to be paid to the unsecured creditors.

The appeal is **rejected**.

24. **Order on the Civil Misc. Appeal No. 106740 of 2008 filed by M/s. Puja Forwarding Agency**

No one appears to press this appeal. Sri Ashok Mehta, appears for Official Liquidator.

The appellant claims to be supplier and is claiming unpaid bills due from the Company. The appellant is the unsecured creditor of the Company.

All the claims of the unsecured creditors have been rejected vide para 140 of the order dated 27.4.2007 after adjudication of all the claims. Under the scheme of distribution of dividend in the liquidation proceedings, the unsecured creditors do not have any preference. There was no amount left to be paid to the unsecured creditors.

The appeal is **rejected**.

25. **Order on the Civil Misc. Appeal No. 106741 of 2008 filed by M/s. Puja Forwarding Agency**

No one appears to press this appeal. Sri Ashok Mehta, appears for Official Liquidator.

The appellant claims to be supplier and is claiming unpaid bills due from the Company. The appellant is the unsecured creditor of the Company.

All the claims of the unsecured creditors have been rejected vide para 140 of the order dated 27.4.2007 after adjudication of all the claims. Under the scheme of distribution of dividend in the liquidation proceedings, the unsecured creditors do not have any preference. There was no amount left to be paid to the unsecured creditors.

The appeal is **rejected**.

26. **Order on the Civil Misc. Appeal No. 113580 of 2008 filed by**

Nand Lal Vishwakarma

Heard Sri K.C. Viswakarma learned counsel for the appellant. Sri Ashok Mehta, appears for Official Liquidator.

The claims of the workman in the liquidation proceedings were allowed and twice the Office Liquidator had gone through the claims and supporting material, with the help of the Liquidation Claims Committee.

No fresh material has been placed on record to revise or reconsider his claim.

The application is **rejected**.

27. **Order on the Civil Misc. Application No. 112421 of 2008 filed by Parmeshwar and others**

No one appears to press this application. Sri Ashok Mehta, appears for Official Liquidator.

The claims of the workmen in the liquidation proceedings were allowed and twice the Office Liquidator had gone through the claims and supporting material, with the help of the Liquidation Claims Committee.

No fresh material has been placed on record to revise or reconsider their claim.

The application is **rejected**.

28. **Order on the Civil Misc. Appeal No. 114249 of 2008 filed by Chandrika Ram**

Heard Sri K.C. Viswakarma learned counsel for the appellant. Sri Ashok Mehta, appears for Official Liquidator.

The possession of the allotted accommodation/quarter has been handed over.

The appeal has become infructuous and is accordingly **dismissed**.

29. **Order on the Civil Misc. Application No. 96693 of 2008 filed by Bhola Ojha and others**

Heard Sri Yogesh Agarwal learned counsel for the applicants. Sri Ashok Mehta, appears for Official Liquidator.

The applicants are claiming to be employees of the U.P. State Cement Corporation Intermediate College, Dala, Sonebhadra. They are

claiming arrears of salary since 9.11.1980, and their adjustment.

The Official Liquidator had twice advertised inviting applications out of liquidation fund. The claims were thereafter revised and had received the attention of the Court and final orders were passed on 27.4.2007. The applicants have not submitted any claim on Form-66 prescribed under the Company Code Rules, 1959.

The application is **rejected**.

30. **Order on the Civil Misc. Application No. 100094 of 2008 filed by Deena Nath Chaubey and others**

No one appears on behalf of the applicants to press this application. Sri Ashok Mehta, appears for Official Liquidator.

The applicants had filed Civil Misc. application No. 265047 of 2007. The application was disposed of by Hon'ble Rajes Kumar, J on 13.2.2008 giving them liberty to raise the claim before the authorities concerned and get the adjudication order.

By the application, the applicants have prayed for keeping an amount of Rs.1,94,00,000/- separate till disposal of the application moved by the applicants under Section 6-H (1) of the U.P. Industrial Disputes Act before the Deputy Labour Commissioner, Sonbhadra.

The applicants do not have any right to request the Official Liquidator to keep the amount separate until their claims are adjudicated, and are allowed by the Deputy Labour Commissioner,

The application is **rejected**.

31. **Order on the Civil Misc. Application No. 121307 of 2008 filed by Raj Pati Upadhyay**

No one appears on behalf of the applicant to press this application. Sri Ashok Mehta, appears for Official Liquidator.

The applicant is claiming salary from the period December 1999 to July 2001.

The issue whether the workmen are entitled to claim wages upto 31.7.2001 when the possession of the Unit was taken over by the Official Liquidator was decided vide order dated 27.4.2007. In para 37 of the order it was held that the relevant date for distribution of the dues

is the date when the company was wound up i.e. 8.12.1999

The applicant is therefore not entitled to claim any amount after the date of winding up. He was not engaged, in protecting and preserving the assets of the Company (in liquidation) under the directions of the Official Liquidator and the Court, after the winding up.

The application is **rejected**.

32. Application Nos. 147157 of 2008 filed on behalf of Hori Lal and Kashi and 157803 of 2008 filed on behalf of Smt. Pan Pati

A request has been made to adjourn the case in the absence of Shri B.N. Singh, learned counsel for applicants.

The applications are pending for a long period of time. The prayer for adjournment is rejected.

The applicants have prayed for directions to pay the arrears/difference of salary, pension, PF, gratuity etc.

Their claims were considered twice by the Official Liquidator. Repeated advertisements were made inviting claims from the workmen. The applicants were paid the amount as detailed in para-3 of the claim petition. The applicants have not placed any further material to re-consider their claims.

The applications are **rejected**.

33. Application No. 157824 of 2008 filed on behalf of Smt. Rampatti Devi

Shri K.C. Vishwakarma appears for the applicants.

There is no averment in the application that the applicant had filed her claim under Form 66 of the Companies (Court) Rules, 1959 before the Official Liquidator.

The application is **rejected**.

34. Application No. 160523/2008 filed on behalf of Santosh Kumar Singh; 160527/2008 on behalf of Sita Ram; 160532/2008 on behalf of Shyam Lal; 160534/2008 on behalf of Ayodhya Prasad; 160539/2008 on behalf of Bhikhari

and 160544 of 2008 on behalf of Kallu

No one appears for the applicants.

The applicants have prayed for allowing the applications and directing the Official Liquidator to accept their claim.

The claims were invited twice by the Official Liquidator and after adjudication once again the advertisement was made for correction of the claims. The interim dividend for 99% of the amount available in the liquidation fund was declared on 27.4.2007.

The applications are **rejected**.

35. Application No. 164064 of 2008 filed on behalf of Chandra Pratap Singh

No one appears for the applicant.

The claim was adjudicated by the Official Liquidator and was partly admitted.

No fresh material has been placed on record to accept the claim for any further amount.

The application is **rejected**.

36. Order on application No. 196363 of 2008 filed on behalf of Sharda Prasad Srivastava

No one appears to press the application.

There is no fresh material placed before the Court to reconsider the settled claim of the workmen.

The application is **rejected**.

37. Order on application No. 198586 of 2008 filed on behalf of Amar Shah

Heard Shri C.B. Gupta, learned counsel for the applicant.

The applicant is claiming the gratuity on the length of 26 years of service. In his affidavit of proof on Form-66 the applicant had clearly

mentioned his period of service as 14 years. His claim was adjudicated on the basis of his own declaration in his affidavit.

There is no such material placed before the Court to allow the applicant to revise and thereafter to re-consider the claim.

The application is **rejected**.

38. Application No. 217444 of 2008 filed on behalf of Raghunath Singh and six others

Heard Shri S.R. Yadav, learned counsel for the applicant.

By this application, the applicant is claiming wages for the period December, 1999 to June, 2001. By order dated 27.4.2007, the question of the date, after which the claims of the workmen have to be adjudicated, was decided by the Court. The claims only upto winding up was allowed. The date of handing over possession to the Official Liquidator was not found the relevant date.

The application is **rejected**.

39. Application No. 72250 of 2010 filed on behalf of Mohd. Suhail Sultan

In this application filed by Mohd. Sohail Sultan, Board of Trustees, EPF, Ex-Secretary, Dalla Cement Factory Dalla, it is stated that in pursuance to the directions of the Court, the entire amount of the employees of both the EPF Trusts of UP State Cement Corporation (in liquidation) were handed over to the EPF Commissioner, Varanasi. He states that an amount of Rs. 26 crores is still available in the Trusts including interest to be paid to the workmen.

Shri Narendra Mohan, appearing for the applicants and Shri Ashok Mehta, appearing for the Official Liquidator, have jointly prayed that the EPF Commissioner, Varanasi may be asked to submit the accounts of both the EPF Trusts and the amount available in the trust including the interest.

Both these trusts were exempted EPF Trust. The accounts of these two trusts were handed over to the EPF Commissioner on the

orders of the Court.

The EPF Commissioner, Varanasi is directed to submit to the court the statements of accounts including the amount of EPF and interest of both the EPF Trusts to the court within one month. Shri Dhananjai Awasthi, appearing for EPF Commissioner, is directed to file accounts along with the affidavits after serving a copy on Shri Narendra Mohan and Shri Ashok Mehta. He will be informed of this order in writing.

40. Application No. 249198 of 2008 filed on behalf of Digvijai Nath Dwivedi

Heard Shri C.B. Tripathi for the applicant.

It is alleged that Shri Digvijai Nath Dwivedi, the applicant was appointed as a Medical Officer in the Hospital, Churk Cement Factory, Sonebhadra by Shri G.S. Rai, Managing Director, Cement Factory dated 11.9.2000 to provide medical facilities. It is submitted that this Court had also passed orders to maintain schools and hospital for the welfare of the employees living in the colony. By an order dated 27.4.2007, the Court allowed payment of Rs. 5000/- per month to the supervisory/managerial personnel and doctors and principals, who were looking after the assets by way of interim arrangement.

The company (in liquidation) was wound up on 8.12.1999. The Official Liquidator had taken possession in last week of July, 2001. The Court had never authorised the Official Liquidator or the Ex-Managing Director to appoint any person in the Company (in liquidation).

Shri Ashok Mehta appearing for Official Liquidator states that the Official Liquidator had never authorised any person to make payment. Shri G.S. Rai was only authorised to collect rent. He had no authority as an Ex-Managing Director to appoint any person in the company after the company was wound up, and was in liquidation.

The application is wholly misconceived and is **rejected**.

41. Application No. 223382 of 2009 filed on behalf of Shri Vivek Kumar Tiwari

Learned counsel holding brief of Shri Yogesh Agrawal states that applicant does not want to press the application.

The application is **dismissed** as not pressed with liberty to the applicant to pursue the remedies before the appropriate authority or the court of competent jurisdiction.

42. Application No. 109083 of 2009 filed on behalf of Smt. Nahid Sultana

Heard Smt. Nahid Sultana, applicant in person. She states that she has been paid arrears of salary and has been attached to Government Intermediate College, Chunar. She states that all other persons have been adjusted in the College.

The application is finally **decided** with directions to Joint Director of Education, Moradabad to consider the applicant's representation for adjustment in accordance with the law within one month from the date when she presents the application along with certified copy of the order.

Dt. 9.4.2010
nethra

Court No. - 29

Civil Misc. Application/Modification No.127075 of 2010

in

Civil Misc. Application No.109083 of 2009

in

Case :- MISC. COMPANY APPLICATION No. - 4 of 1997

Petitioner :- In The Matter Of M/S U.P.State Cement Corporation Ltd.

Petitioner Counsel :- O.L.B.K.L.Srivastava,A.K. Pandey,Anil Mehrotra,Ashok Mehta,S.K. Singh,Saral Srivastava,Vipalav Sharma

Respondent Counsel :- Shiv Nath Singh,A.K. Gupta,A.K. Srivastava,A.K.Mehrotra,A.P. Singh,Ajal Krishna,Ajay Kumar Pandey,Amit Chaudhary,Amit Saxena,Anil Mehrotra,Anurag Khanna,Ashok Mehta,Ashutosh Pandey,B.D.Mandhyan,B.K. Mishra,B.N. Singh,C.B. Srivastava,C.B.Gupta,C.L. Pandey,C.S.C.,D.K. Srivastava,Devendra Singh,Govind Saran,H.N. Sharma,H.P. Dubey,I.S.Tomar,J. Nagar,J.N. Pandey,J.P.Mathur,Jayant Bannerji,K.C. Vishwakarma,K.K. Srivastava,Kush Saxena,L.K.Tiwari,L.P.Tiwari,Manoj Kumar,Manoj Srivastava,N.K. Gupta,N.K. Verma,Narendra Mohan,Navin Sinha,O.P.Misra,P.K. Dalmiya (In Person),P.N.Tripathi,R.P. Agarwal,R.P. Srivastava,R.P. Tiwari,Rajesh Kumar Pathak,Rajesh Kumar Singh,S.C.,S.D.N.Singh,S.F. Ahmad,S.K. Yadav,S.M. Dayal,S.P. Shukla,S.R. Yadav,S.S. Chauhan,S.S.Srivastava,Sandeep Agarwal,Sanjai Srivastava,Sanjay Om,Saumitra Singh,Somesh Khare,Sudhir Agarwal,U.N. Sharma,U.P. Singh,V.K.S. Chaudhary,Vinod Misra,Vivek Singh,W.A. Siddiqui,Yashwant Verma,Z.K. Hasan

Hon'ble Sunil Ambwani,J.

Heard the applicant in person.

The applicant was serving as Daftari in the school run by the U.P. State Cement Corporation (In Liq.). Under the orders passed by the Court from time to time, the State Government had adjusted her on the post of Daftari as non-teaching staff in Misri Lal Inter College, Mavaiya, Mirzapur on 3.9.2008 and thereafter on

25.3.2009 in Basant Vidyalaya Inter College, Mirzapur. The management of both these colleges have obtained interim orders against her adjustment. The State Government thereafter vide order dated 21.1.2010 adjusted the applicant, Smt. Nahid Sultana, in Government Girls Intermediate College, Chunar. She is working in the college as 'Daftari' since 17.7.2007. Under the orders of the Court dated 6.11.2009, she has also been paid the entire arrears of salary.

Now by this application the petitioner states that the Management of the U.P. State Cement Corporation (In Liq.) had passed an order on 23.6.1993 after ensuring that her qualification of 'Muallim' (Urdu Teacher Training) is equivalent to BTC, to accommodate her as a teacher or atleast as a clerk. The orders passed by the Managing Director are quoted as below:-

"GM

Chunar

May please see and accommodate her in view of the Government Orders.

Managing Director, 23.6."

The note of the Managing Director of the Corporation (In Liq.) as aforesaid was not a direction nor is binding nor any purposive value on the Official Liquidator, who is required to liquidate the company under the Companies Act, 1956 and Companies (Court) Rules, 1959.

The petitioner has been given maximum possible relief by the Court. She is working as 'Daftari' in the Government Girls College and has been paid arrears of salary. No further relief is possible from the Company Court.

The application is accordingly **disposed of**.

Order Date :- 28.5.2010

SP/

Court No. - 32

(1) Order on Misc. Application No. 242603 of 2010 filed by Videshi and others

(2) Order on Misc. Application No. 242619 of 2010 filed by Lal Bahadur and others

In

Case :- MISC. COMPANY APPLICATION No. - 4 of 1997

Petitioner :- In The Matter Of M/S U.P.State Cement Corporation Ltd.

Petitioner Counsel :- O.L.B.K.L.Srivastava,A.K. Pandey,Anil Mehrotra,Ashok Mehta,S.K. Singh,Saral Srivastava,Vipalav Sharma

Respondent Counsel :- Shiv Nath Singh,A.K. Gupta,A.K. Srivastava,A.K.Mehrotra,A.P. Singh,Ajal Krishna,Ajay Kumar Pandey,Amit Chaudhary,Amit Saxena,Anil Mehrotra,Anurag Khanna,Ashok Mehta,Ashutosh Pandey,B.D.Mandhyan,B.K. Mishra,B.N. Singh,C.B. Srivastava,C.B.Gupta,C.L. Pandey,C.S.C.,D.K. Srivastava,Devendra Singh,Govind Saran,H.N. Sharma,H.P. Dubey,I.S.Tomar,J. Nagar,J.N. Pandey,J.P.Mathur,Jayant Bannerji,K.C. Vishwakarma,K.K. Srivastava,Kush Saxena,L.K.Tiwari,L.P.Tiwari,Manoj Kumar,Manoj Srivastava,N.K. Gupta,N.K. Verma,Narendra Mohan,Navin Sinha,O.P.Misra,P.K. Dalmiya (In Person),P.N.Tripathi,R.P. Agarwal,R.P. Srivastava,R.P. Tiwari,Rajesh Kumar Pathak,Rajesh Kumar Singh,S.C.,S.D.N.Singh,S.F. Ahmad,S.K. Yadav,S.M. Dayal,S.P. Shukla,S.R. Yadav,S.S. Chauhan,S.S.Srivastava,Sandeep Agarwal,Sanjai Srivastava,Sanjay Om,Saumitra Singh,Somesh Khare,Sudhir Agarwal,U.N. Sharma,U.P. Singh,V.K.S. Chaudhary,Vinod Misra,Vivek Singh,W.A. Siddiqui,Yashwant Verma,Z.K. Hasan

Hon'ble Sunil Ambwani,J.

Heard Sri S.R. Yadav learned counsel for the applicant. Sri Ashok Mehta appears for Official Liquidator representing the company in liquidation.

The applicants have prayed for condonation of delay in filing the claim, (form 66) of the applicants, for the dues payable

to them as workmen, from out of the sale proceeds of the assets of the company (in liquidation).

Learned counsel for the applicants states that the applicants are uneducated person. They were residing in Bihar, and thus they did not come to know about the advertisements inviting claims and the subsequent proceedings.

Sri Ashok Mehta informs that all the claims were invited in the year 2005 and were adjudicated. Repeated advertisements were made, of which last Advertisement was made in the year 2006-07 inviting claims. The appeals were decided and thereafter dividends were settled and paid to more than 5,000 workmen.

All the applicants have given their addresses of District Sonebhadra. There is nothing to show that they were not residing in the same District when the claims were decided and amount was distributed. The last advertisement was made in the year 2007.

The delay condonation application and applications for submitting the claims are **rejected**.

Order Date :- 20.8.2010
nethra

Court No. 29

MISC. COMPANY APPLICATION NO. 4 OF 1997

In the matter of

U.P. CEMENT CORPORATION (IN LIQ.)

Hon'ble Sunil Ambwani, J.

1. Civil Misc. Application No. 172559 of 2008 filed on behalf of Tarkeshwar Dhar

Heard Shri Ram Yash Pandey, counsel for applicant. Shri Ashok Mehta represents the Official Liquidator.

The applicant's claim was adjudicated by the Official Liquidator with the help of the Liquidation Claims Committee. The Official Liquidator admitted the claim of Rs. 38, 212/- against the total claim of Rs. 1, 50, 764/-.

It is stated by learned counsel for applicant that the applicant has not received the amount of Rs. 38, 212/-.

So far as the amount is concerned, no appeal has been filed. The payment has to be verified through the Official Liquidator.

Let the Official Liquidator give instructions in the matter on the next date.

2. Civil Misc. Application Nos. 232240/2008 filed on behalf of Devtanand Pandey; 232251/2008 on behalf of Jitendra Lal Srivastava; 232253/2008 on behalf of Shyam Kishor Lal Srivastava and 226228/2008 on behalf of Mata Ambar patel

In these four applications, Shri Narendra Mohan has sent illness slip.

Shri Ashok Mehta states that the claims made by the applicants as ex-employees of the U.P. State Cement Corporation (In Liq.) for

maintenance of Trusts are not maintainable. They have been paid their dues after adjudication by the Official Liquidator.

Shri Ashok Mehta also informs that the accounts of Provident Fund Trusts, namely Provident Fund Trusts at Churk, and Dalla, were provisionally handed over to Regional Provident Fund Commissioner, Varanasi.

In the hearings held earlier the Regional Provident Fund Commissioner, Varanasi had, after the audit of the accounts of the provident fund, distributed the amounts as per identification of the trusts of the fund. The interim dividend at 95% has been declared and that accounts of all the members of the provident fund have been settled.

I find substance in the request of Shri Ashok Mehta appearing for Official Liquidator that now the accounts of both the Trusts, with the Regional Provident Fund Commissioner should be finalised and closed.

The Regional Provident Fund Commissioner, Varanasi is directed to submit the audited reports of the closure of the account to the Court within three months.

3. Civil Misc. Application No. 241467 of 2009 filed on behalf of State Bank of India, MNNIT Branch, Teliyarganj

The State Bank of India has claimed service charges on transfer of the accounts. Before considering the application claiming service charge, it is necessary that the accounts of the Official Liquidator maintained by the State Bank of India, should be re-conciled with the accounts maintained by the Official Liquidator. The re-conciliatory statement will be submitted by SBI with the help of the staff of Official Liquidator within three months.

4. **Civil Misc. Application No. 148230 of 2010 filed on behalf of Rakesh Kumar**

Shri Ashok Mehta appearing for Official Liquidator will submit a reply on behalf of the Official Liquidator whether the claim of the applicant was adjudicated.

5. **Civil Misc. Application No. 157859/2010 on behalf of Randhir Singh and others; 134099/2010 on behalf of Hari Das and others and 258812 of 2010 on behalf of Smt. Shanti Devi.**

Shri Ashok Mehta appearing for Official Liquidator will submit a report on these applications.

6. **Civil Misc. Application No. 201514 of 2010 filed on behalf of D.K. Pandey**

Heard Shri Dileep Chandra Mishra, learned counsel for applicant. Shri Ashok Mehta appears for Official Liquidator.

The applicant has prayed for condonation of delay to entertain his claim for adjudication by the Official Liquidator from the assets of the company (in liq.).

The applicant Shri D.K. Pandey claims that he was appointed as Manager C & PR (Manager Marketing) with U.P. State Cement Corporation on 01.4.1974. He was posted at Churk Factory/Unit of the Company (in liq.) He applied for voluntary retirement, which was accepted on 21.1.1996 by the Managing Director of the Corporation vide his order dated 18.9.1997. The applicant was relieved after completing necessary formalities on 18.9.1997. His gratuity was,

however, not paid for having rendered 22 years and 8 months of service.

It is submitted that the applicant could not submit the claim on account of illness of his wife, who is under treatment and is suffering from ailment affecting her Kidney.

Shri Ashok Mehta states that the company was wound up on 8.12.1999 and the possession of the assets was taken over by the Official Liquidator in July, 2001. The Court has already held that all those employees and workmen, who had retired prior to 13.7.1998 when the payments were made by the State Government through the ex-gratia grants given to the Company (in liq.), are not entitled to payment of any dues including gratuity.

The application of the applicant for voluntary retirement was accepted by the company (in liq.) on 18.9.1997 by the order passed by the then Managing Director of the Company (in liq.) w.e.f. 21.1.1996. He was not in employment upto 13.7.1998. The Official Liquidator is thus not entitled to adjudicate the claim of the applicant as he was not employee of the company when the company was wound up. The past dues of the Corporation were settled by the Corporation dated 13.7.1998 after which no amount was liable to be paid by the Official Liquidation.

The application is **rejected**.

7. Civil Misc. Application No. 18317 of 2010 on behalf of Ajay Kumar Bind and 250 others.

Shri S.N. Singh and Shri Udai Prakash Deo Pandey have filed this application alleging that the applicants were forcefully evicted without allotment of Gaon Sabha land and payment of Rs. One lac each by the Company (JAL) for their rehabilitation. On 25.1.2010 the

following order was passed in favour of the applicants:-

“No one appears for the applicants. Learned Standing Counsel appears for District Magistrate, Sonebhadra.

I have passed detailed orders with regard to vacating the land in Gata Nos. 13 and 179 in Malin Basti Village Kota (Dala) Pargana Agori, Tehsil Robertsganj, District Sonebhadra, on a proposal made by the District Magistrate, and the offer made by the Company (JAL) that only those families, who have been allotted Gaon Sabha land and in whose favour Rs. 1 lacs has been deposited by the Company (JAL) for their rehabilitation, will be asked to vacate the land in their occupation.

In this application filed by 251 persons, it is alleged that they are being dispossessed illegally and that the district administration in collusion with the authorities of JAL is trying to dispossess them.

As an interim measure, it is directed that the Official Liquidator, District Magistrate or the Company (JAL) shall not dispossess the applicants, except those, who have been allotted Gaon Sabha land, and in whose favour Rs. 1 lac has been deposited by the Company (JAL) for constructing the house.

List on 17.2.2010 at 03.00 PM.”

(Gata No. 113, is incorrectly written as Gata No. 13, in the order).

Shri Navin Sinha, Senior Advocate assisted by Shri Yashwant Varma appears for Jaiprakash Associates Ltd (JAL)-the purchaser of the assets of the Company (in liq.) in the sale by the Official Liquidator confirmed by the Court. He submits that in the affidavit of Shri K.M. Abraham, Assistant Manager, Jaiprakash Associates Limited, it is stated that plot Nos. 113 and 179 in Village Kota (Dala) Pargana Agori, Tehsil Robertsganj, District Sonebhadra are situated in front of the factory gate. Some persons were occupying the land by constructing Jhuggi Jhopari. These plots of land were part of the sale, and that after issuance of the sale certificate and handing over possession by the Official Liquidator, the company's name has been recorded in the revenue records. The Court, considering the

hardships to be faced by the settlers and for their rehabilitation, passed orders on 11.8.2009, 6.11.2009, 18.12.2009, 25.1.2010 and lastly on 17.2.2010 protecting their interests. The company furnished bank guarantee of Rs. 2.68 crores with Collector, Sonebhadra at the rate of Rs. 1 lac each for 268 families, which were identified to be living on these two plots. The amount was to be disbursed to the families as a measure of ex-gratia payment for re-settlement.

The Court had asked the District Magistrate to provide the Gaon Sabha land for settlement of these families. The District Magistrate set up a Committee of three Government officers to identify the families occupying the plots. The Committee, consisting of Sub Divisional Magistrate, Sadar, Sonebhadra; the Circle Officer, Obera, and Shri Sudhir Mishra, nominee of JAL, identified 218 families on the basis of their ration cards and other documents. The details of 50 families were not verified. It is alleged that 38 more, out of 50 have been identified by the Committee. The District Magistrate made efforts to identify 2.680 hectares of the land for these 268 families. The gaon sabha land was identified in village Kota, which is not far from the factory and kept it reserved for that purpose.

An application has been filed on behalf of the District Magistrate, Sonebhadra supported with an affidavit of Shri Bhagwan Das Gupta, Tehsildar, Sadar, District Sonebhadra, stating that in compliance of the order of the Court, 218 families were identified to be living on these plots. The 50 more were given opportunity, out of which 38 families have been identified on the basis of the documents produced by them. The land in village Kota was identified, reserved and that by the resolution dated 12.9.2009 the Land Management Committee allotted the land to 19 families in arazi No. 3 area 0.190 hectares; 9 families in arazi no. 106 area 0.090 hectares; 14 families in arazi no. 505 area 0.140 hectare; 44 families in arazai no. 506 area

0.440 hectares; 11 families in arazi no. 897 area 0.110 hec.; 4 families in arazi no. 916 area 0.040 hec; 59 families in arazi no. 2576 area 0.590 hec; 59 families in arazi no. 2862 area 0.590 hectares and remaining 50 families arazi no. 2862 area 0.500 hectares. The report has been submitted by the District Magistrate, Sonebhadra and Sub Divisional Magistrate, Sadar, Sonebhadra signed by them on 14.9.2009, verifying the identification and allotment of the land for the entire 268 families, in pursuance to the orders of the Court. Out of 218 identified families, 128 have requested for payment of Rs. 1 lac each directly to them instead of construction of house by JAL for construction of house according to their own choice. The District Magistrate in the meeting dated 14.9.2009 had requested for one month's time for completing the proceedings.

Shri Navin Sinha submits that out of 268 families, 78 families are of the ex-employees, who had received compensation under Section 529-A of the Companies Act, 1956, on the condition that they will vacate the government accommodation or the properties occupied by them. These ex-employees have no right to receive any allotment or ex-gratia payment for illegally squatting on the company property, now purchased by JAL. Further 83 families have already shifted by accepting Rs. 1 lac each and in this manner out of 268, only 161 families are either not entitled or have already shifted. He submits that the claim of the applicants, that there are total 430 families, is totally exaggerated. They are misusing the orders passed by the Court for rehabilitation on the ground of compassion.

Shri Ashok Kumar Chaubey states that he is now appearing for the applicants. He has filed an application supported by the affidavit of Shri Ajit Kumar with a prayer to issue a direction directing the opposite party not to harass and disturb the applicants (179) in peaceful possession over the subject land namely, gata No. 113 (area

19.740 hec.) and 179 (area 13.231 hec.) at Malin Basti, Village Kota (Dala) Pargana Agori, Tehsil Robertsganj, District Sonbhadra. He submits that 179 applicants have been occupying the land on these plots for almost 35-40 years. Their names are recorded in the revenue records and that litigation is pending in the civil court with regard to their rights to occupy the land. He has produced some question-answer from the Civil Court alleging that some suits are pending in respect of Jhuggi-Jhopari on the land in question. In para-3 it is stated that 179 applicants are living over gata No. 113 by constructing their house/shops. The total number of families have not been identified. He submits that there are about 444 families, which are sometimes treated 361 and some times 268. The Committee set up by the District Magistrate is only functioning on paper, and that no Land Management Committee has been constituted in village Kota. The company is trying to crush the rights of the applicants residing on these two plots.

The Company was wound up on 8.12.1999. The asset of the company was put up for sale by global tender and that after repeated efforts made by the Official Liquidator for several years and long litigation, involving three valuations and deliberations by the Asset Sale Committee, including Industrial Development Commissioner, State of U.P., ultimately the assets were sold to JAL. After ascertaining and identifying the assets the entire assets have been gradually transferred to the company. During the process of the getting the property of company (in liq.) vacated from the ex-employees and unauthorised occupants, decisions were taken by the Court that employees will not be evicted unless they are paid dividend. The compensation was worked out by the Official Liquidator with the help of Liquidation Claims Committee. All the claims were decided and that all the appeals arising out of appeal

have also been decided by a long and detailed order. Thereafter several orders have been passed settling the misc. claims of the ex-workmen and other persons, who were interested in the company's properties.

In respect of the aforesaid plots in order to rehabilitate the squatters the orders were passed directing the District Magistrate to provide alternative land and ex-gratia payment.

Now it appears that the orders passed by the Court are being misused and that the unauthorised occupants over the plots are putting up variety of claims. Some of the claims such as filing the civil suits have arisen very recently apparently to grab the company property at the factory gate.

In the aforesaid circumstances, the Court finds it appropriate to rely upon the reports of the District Magistrate, Sonebhadra and Sub Divisional Magistrate, Sadar, Sonebhadra dated 14.9.2009 in which it is specifically stated that out of 268 families, 218 have been identified and 50 families were required to submit papers for identification. The 2.68 hec. of land has been allotted for constructing house by the Land Management Committee, Kota on 12.9.2009. The Company is still ready and willing to offer Rs. 1 lac each to 264 families and for which the bank guarantee has been submitted by the Committee. As soon as the District Magistrate demands the amount of Rs. One lac each to the families (identified by him), the amount will be paid within one month for rehabilitation. Out of these, 83 families have shifted after receiving compensation. The Court thus records that 78 ex-workmen and their families are not held entitled to the compensation of Rs. 1 lac.

The Court has already protected the interest of the unauthorised occupants over these two plots. In spite of the winding up of the company sale of assets, the unauthorised persons are still

occupying the two plots for years together.

Shri Ashok Kumar Chaubey states that he would like to place on record the documents by which the allotment of gaon sabha land was cancelled. He seeks adjournment of 15 days. The Court is not incline to grant any further adjournment to the applicants, who have already enjoyed the interim orders of the Court for almost one year and have refused to vacate even after allotment of alternate land and ex-gratia compensation.

Shri M.S. Pipersania, learned Standing Counsel has filed the application on behalf of the District Magistrate on 23.9.2010 along with the affidavit of Shri Bhagwan Das Gupta, Tehsildar, Sadar, District Sonebhadra. It is stated in paras 2 to 6 as follows:-

“2. That in compliance of the order of this Hon'ble Court, District Magistrate, Sonebhadra has constituted a committee for the purpose of allotment of alternative land to unauthorized occupants of plot No. 113/179 situated at Village Kota (Dalla) district Sonebhadra for which the District Magistrate was the Chairman and the other members are SDM (Sadar) and Circle Officer, Obra, Sonebhadra. The nominee of the Company namely M/s Jaiprakash Associates Ltd., Sh. Sudhir Mishra was also included in the Committee.

3. That after verification of the unauthorized persons residing over the aforesaid plots and after careful survey it has been found that total 268 persons are entitled for rehabilitation benefits in terms of orders passed by this Hon'ble Court from time to time.

4. That in compliance of the orders passed by Hon'ble Court, aforesaid committee have identified and demarcated the plots of Gaon Sabha Land situated at Village Kota (Dalla) and allotted to aforesaid persons, who are entitled for rehabilitation benefits. Minutes of allotment are being filed and marked as Annexure No.A-1.

5. After persuasion 53 people have accepted the proposal and evacuated their encroachment. Committee is in close touch with remaining people. Some of them are willing to vacate the above mentioned land after rainy season as they are not in position to construct or manage alternative shelter immediately.

6. That considering the compliance report it is expedient in the interest of justice that this Hon'ble Court may be pleased to pass appropriate order as this Hon'ble Court may deem fit and proper in the circumstances of the present case.”

In view of the aforesaid affidavit filed on behalf of District Magistrate, Sonebhadra on 23.9.2010, the prayers made by Shri Ashok Kumar Chaubey to allow him to place the documents of cancellation of the lease are hereby rejected.

The interim order dated 25.1.2010 in Civil Misc. Application No. 18317 of 2010 is hereby vacated. The District Magistrate, Sonebhadra is directed to take necessary steps to get aforesaid two plots namely Gata No. 113 and 179 in village Kota (Dalla), Pargana Angori, Tehsil Robertsganj, District Sonebhadra vacated from the unauthorised persons. As directed above, the families, who had accepted the compensation and have been allotted the gaon sabha land, will not be paid anything more. The remaining families identified by the District Magistrate, except the ex-employees will be entitled to allotment of land and Rs. 1 lac each. The entire exercise will be carried out within two months. The District Magistrate will submit a compliance report by **7th February, 2011**.

List this matter on **11th February, 2011** along with the report of the District Magistrate, Sonebhadra.

Dt.19.11.2010

RKP/

Court No. - 35

Case :- MISC. COMPANY APPLICATION No. - 4 of 1997

Petitioner :- In The Matter Of M/S U.P.State Cement Corporation Ltd.

Petitioner Counsel :- O.L.B.K.L.Srivastava,A.K. Pandey,Anil Mehrotra,Ashok Mehta,S.K. Singh,Saral Srivastava,Vipalav Sharma

Respondent Counsel :- Shiv Nath Singh,A.K. Gupta,A.K. Srivastava,A.K.Mehrotra,A.P. Singh,Ajal Krishna,Ajay Kumar Pandey,Amit Chaudhary,Amit Saxena,Anil Mehrotra,Anurag Khanna,Ashok Mehta,Ashutosh Pandey,B.D.Mandhyan,B.K. Mishra,B.N. Singh,C.B. Srivastava,C.B.Gupta,C.L. Pandey,C.S.C.,D.K. Srivastava,Devendra Singh,Govind Saran,H.N. Sharma,H.P. Dubey,I.S.Tomar,J. Nagar,J.N. Pandey,J.P.Mathur,Jayant Bannerji,K.C. Vishwakarma,K.K. Srivastava,Kush Saxena,L.K.Tiwari,L.P.Tiwari,Manoj Kumar,Manoj Srivastava,N.K. Gupta,N.K. Verma,Narendra Mohan,Navin Sinha,O.P.Misra,P.K. Dalmiya (In Person),P.N.Tripathi,R.P. Agarwal,R.P. Srivastava,R.P. Tiwari,Rajesh Kumar Pathak,Rajesh Kumar Singh,S.C.,S.D.N.Singh,S.F. Ahmad,S.K. Yadav,S.M. Dayal,S.P. Shukla,S.R. Yadav,S.S. Chauhan,S.S.Srivastava,Sandeep Agarwal,Sanjai Srivastava,Sanjay Om,Saumitra Singh,Somesh Khare,Sudhir Agarwal,U.N. Sharma,U.P. Singh,V.K.S. Chaudhary,Vinod Misra,Vivek Singh,W.A. Siddiqui,Yashwant Verma,Z.K. Hasan

Hon'ble Sunil Ambwani,J.

Let a copy of this application be served on Sri Yashwant Verma, learned counsel appearing for the Jai Prakash Associates, who will seek instructions in the matter.

Put up on 31.5.2011 at 1.45 PM in the Chamber.

Order Date :- 27.5.2011
nethra

In Chamber

Case :- MISC. COMPANY APPLICATION No. - 4 of 1997

Petitioner :- In The Matter Of M/S U.P.State Cement Corporation Ltd.

Petitioner Counsel :- O.L.B.K.L.Srivastava,A.K. Pandey,Anil Mehrotra,Ashok Mehta,S.K. Singh,Saral Srivastava,Vipalav Sharma

Respondent Counsel :- Shiv Nath Singh,A.K. Gupta,A.K. Srivastava,A.K.Mehrotra,A.P. Singh,Ajal Krishna,Ajay Kumar Pandey,Amit Chaudhary,Amit Saxena,Anil Mehrotra,Anurag Khanna,Ashok Mehta,Ashutosh Pandey,B.D.Mandhyan,B.K. Mishra,B.N. Singh,C.B. Srivastava,C.B.Gupta,C.L. Pandey,C.S.C.,D.K. Srivastava,Devendra Singh,Govind Saran,H.N. Sharma,H.P. Dubey,I.S.Tomar,J. Nagar,J.N. Pandey,J.P.Mathur,Jayant Bannerji,K.C. Vishwakarma,K.K. Srivastava,Kush Saxena,L.K.Tiwari,L.P.Tiwari,Manoj Kumar,Manoj Srivastava,N.K. Gupta,N.K. Verma,Narendra Mohan,Navin Sinha,O.P.Misra,P.K. Dalmiya (In Person),P.N.Tripathi,R.P. Agarwal,R.P. Srivastava,R.P. Tiwari,Rajesh Kumar Pathak,Rajesh Kumar Singh,S.C.,S.D.N.Singh,S.F. Ahmad,S.K. Yadav,S.M. Dayal,S.P. Shukla,S.R. Yadav,S.S. Chauhan,S.S.Srivastava,Sandeep Agarwal,Sanjai Srivastava,Sanjay Om,Saumitra Singh,Somesh Khare,Sudhir Agarwal,U.N. Sharma,U.P. Singh,V.K.S. Chaudhary,Vinod Misra,Vivek Singh,W.A. Siddiqui,Yashwant Verma,Z.K. Hasan

Hon'ble Sunil Ambwani,J.

Order on Civil Misc. Stay Application No. 162677 of 2011 filed by Shri Ashok Kumar and three others

The shops, in dispute in respect of which reliefs have been sought and for which the applicant-petitioners had withdrawn a Writ Petition No. 20592 of 2011 (Ashok Kumar and others vs. State of UP and others), and have approached the Company Court, were sold along with entire assets to M/s Jaiprakash Associates Limited. At the time of vacating the properties of which possession was to be handed over to the M/s Jaiprakash Associates Limited, the Court had passed certain orders with regard to arrangement of tenancy between the applicants and M/s Jaiprakash Associates Limited.

As of now M/s Jaiprakash Associate Limited is the owner of property purchased by them and the applicants are their tenants, the rights between them are to be governed by their contract of tenancy. If the petitioner-applicants want to claim any protection, they will have to avail their remedies in the civil court.

The application is accordingly **rejected**.

Order Date :- 31.5.2011

RKP

Court No. - 32

Case :- MISC. COMPANY APPLICATION No. - 4 of 1997

Petitioner :- In The Matter Of M/S U.P.State Cement Corporation Ltd.

Petitioner Counsel :- O.L.B.K.L.Srivastava,A.K.

Pandey,Anil Mehrotra,Ashok Kumar Chaubey,Ashok Mehta,O.L.U.S.Patole,S.K. Singh,Saral Srivastava,Vipalav Sharma

Respondent Counsel :- Shiv Nath Singh,A.K. Gupta,A.K.

Srivastava,A.K.Mehrotra,A.P. Singh,Achal Singh Vats,Ajal Krishna,Ajay Kumar Pandey,Amit Chaudhary,Amit Saxena,Anil Mehrotra,Anurag Khanna,Ashok Kumar Chaubey,Ashok Mehta,Ashutosh Pandey,B.D.Mandhyan,B.K.

Mishra,B.N. Singh,Brijesh Kumar,C.B. Srivastava,C.B.Gupta,C.L.

Pandey,C.S.C.,D.K. Srivastava,Devendra Singh,Govind Saran,H.N.

Sharma,H.P. Dubey,I.S.Tomar,J. Nagar,J.N. Pandey,J.P.Mathur,Jayant

Bannerji,K.C. Vishwakarma,K.K. Srivastava,Kush

Saxena,L.K.Tiwari,L.P.Tiwari,Lalji Pandey,Manoj Kumar,Manoj

Srivastava,N.K. Gupta,N.K. Verma,Narendra Mohan,Navin

Sinha,O.P.Misra,P.K. Dalmiya (In Person),P.N.Tripathi,R.P. Agarwal,R.P.

Srivastava,R.P. Tiwari,Rajendra Chaubey,Rajesh Kumar Pathak,Rajesh

Kumar Singh,Ram Yash Pandey,S.C.,S.D.N.Singh,S.F. Ahmad,S.K.

Yadav,S.M. Dayal,S.N. Singh,S.P. Shukla,S.R. Yadav,S.S.

Chauhan,S.S.Srivastava,Sandeep Agarwal,Sanjai Srivastava,Sanjay

Om,Saumitra Singh,Somesh Khare,Subhash Chandra Yadav,Sudhir

Agarwal,U.N. Sharma,U.P. Singh,Udai Chandani,V.K.S. Chaudhary,Vinod

Misra,Vivek Singh,W.A. Siddiqui,Yashwant Verma,Yogesh Agarwal,Z.K.

Hasan

Hon'ble Sunil Ambwani,J.

Sri Dhananjay Awasthi, learned counsel for the Regional Provident Fund Commissioner, Varanasi has filed an application dated 8.2.2011, received by the Official Liquidator on 10.3.2011, with the prayer to direct the Official Liquidator and Sri Upadhyaya to submit the records/documents so that Provident Fund Department may proceed ahead with the payments.

An application has also been filed by the persons, who were looking after the Provident Fund Accounts at Dala, through Sri Narendra Mohan, Advocate.

Sri Ashok Mehta representing the Official Liquidator states that the Official Liquidator has already filed a Report No. 85 of 2011 with regard to Provident Fund Accounts of Dala, and Report No. 86 of 2011 with regard to Provident Fund Account of Churk, and prays

for a direction to the Regional Provident Commissioner, Varanasi, to make payments subject to such observation and audit report including recovery stated in the inspection report.

Sri Ashok Mehta informs the Court that the Regional Provident Fund Commissioner, Varanasi has received substantial amount of interest from the securities and also amount remitted by the Official Liquidator in the PF Trust, which are still to be distributed to the workers.

Sri Ashok Mehta also informed that the Regional Provident Fund Commissioner had also claimed costs of maintaining funds.

All these matter can be resolved in the presence of the Regional Provident Fund Commissioner, Varanasi, or persons authorized by him, known with the facts of the case.

Let the Assistant Regional Provident Fund Commissioner, Varanasi, who is reported to be handling with the PF Account of Dala and Churk be informed, to be present along with details on 2.9.2011 at 2.00 P.M.

All the applications will be placed, to be decided on that date.

List on 2.9.2011 at 2.00 P.M.

Let Sri Ashok Mehta and Sri Narendra Mohan will give copy of this order on Sri Dhanajya Awasthi, learned counsel for the Regional Provident Fund Commissioner Varanasi and also send copy of this order to the Regional Provident Fund Commissioner, Varanasi.

Order Date :- 19.8.2011

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Court No. - 32

Case :- MISC. COMPANY APPLICATION No. - 4 of 1997

Petitioner :- In The Matter Of M/S U.P.State Cement Corporation Ltd.

Petitioner Counsel :- O.L.B.K.L.Srivastava,A.K. Pandey,Anil Mehrotra,Ashok Kumar Chaubey,Ashok Mehta,O.L.U.S.Patole,S.K. Singh,Saral Srivastava,Vipalav Sharma

Respondent Counsel :- Shiv Nath Singh,A.K. Gupta,A.K. Srivastava,A.K.Mehrotra,A.P. Singh,Achal Singh Vats,Ajal Krishna,Ajay Kumar Pandey,Amit Chaudhary,Amit Saxena,Anil Mehrotra,Anurag Khanna,Ashok Kumar Chaubey,Ashok Mehta,Ashutosh Pandey,B.D.Mandhyan,B.K. Mishra,B.N. Singh,Brijesh Kumar,C.B. Srivastava,C.B.Gupta,C.L. Pandey,C.S.C.,D.K. Srivastava,Devendra Singh,Govind Saran,H.N. Sharma,H.P. Dubey,I.S.Tomar,J. Nagar,J.N. Pandey,J.P.Mathur,Jayant Bannerji,K.C. Vishwakarma,K.K. Srivastava,Kush Saxena,L.K.Tiwari,L.P.Tiwari,Lalji Pandey,Manoj Kumar,Manoj Srivastava,N.K. Gupta,N.K. Verma,Narendra Mohan,Navin Sinha,O.P.Misra,P.K. Dalmiya (In Person),P.N.Tripathi,R.P. Agarwal,R.P. Srivastava,R.P. Tiwari,Rajendra Chaubey,Rajesh Kumar Pathak,Rajesh Kumar Singh,Ram Yash Pandey,S.C.,S.D.N.Singh,S.F. Ahmad,S.K. Yadav,S.M. Dayal,S.N. Singh,S.P. Shukla,S.R. Yadav,S.S. Chauhan,S.S.Srivastava,Sandeep Agarwal,Sanjai Srivastava,Sanjay Om,Saumitra Singh,Somesh Khare,Subhash Chandra Yadav,Sudhir Agarwal,U.N. Sharma,U.P. Singh,Udai Chandani,V.K.S. Chaudhary,Vinod Misra,Vivek Singh,W.A. Siddiqui,Yashwant Verma,Yogesh Agarwal,Z.K. Hasan

Hon'ble Sunil Ambwani,J.

(i) Order on the application dated 8.2.2011 filed by the Regional Provident Commissioner, Varanasi through Sri Dhananjay Awasthi, learned counsel.

Heard Sri Ashok Mehta, learned counsel appearing for the Official Liquidator attached to the Court; Sri Dhananjay Awasthi, learned counsel representing Regional Provident Fund Commissioner; Sri P.B. Bhattacharya, Assistant Regional Provident Commissioner, Varanasi, and Sri Narendra Mohan on behalf of Sri Suhail Ahmad, Secretary Employees' Provident Fund Trust, Dala Unit and Sri

A.K.Upadhyaya, Secretary, Employees Provident Fund Trust, Churk Unit of the Company (in liquidation).

The Court had passed detailed orders with regard to the management of the Employees Provident Fund of the Company (in liquidation) managed by the Trusts viz., Employees Provident Fund Trust Churk and Employees Provident Fund Trust, Dala, contained in paras 152 to 163 of the composite order dated 27.4.2007.

Both these Trusts are exempted Trusts. However, since the Company was wound up and large amount was accumulated, the accounts were transferred to the Regional Provident Fund Commissioner, Varanasi, and were got audited. No discrepancy was found by the Auditors, nominated by the Regional Provident Fund Commissioner, Varanasi in the accounts. The audit report was accepted by the Court.

The entire assets of the Company (in liquidation) have been sold and that 99 % of the amount realized from sale have been distributed amongst the secured creditors and workmen, for which detailed directions were given on 27.4.2007. Some of the issues are left out, and some claims, which were filed after the aforesaid directions were given, are still to be adjudicated.

The Court is informed that EPF payments have been made to 2264 employees in Churk and 2808 employees in Dala, out of which 158 employees have received some excess amount over and above their entitlement.

Sri Ashok Mehta submits that out of these employees, realization of excess amount will have to be made from only few employees, as most of them are entitled to same amount from the remaining proceeds of the EPF, which can be adjusted from the excess amount.

Both the Trusts have at present an amount of about Rs.29 Crores including the amount, which was transferred as employers share by Official Liquidator from the sale proceeds of the assets of the Company (in liquidation) about Rs.3 cores of the pension scheme under which pension is payable to the workmen, and

Rs.5.56 crores and Rs.6.83 crores received by Dala and Churk Trusts respectively, as interest from out of the investments made of the funds over and above the statutory interest payable to the workmen.

The Court is also informed that 171 claims from PF Account of the EPF Trust, Churk, and about 50 to 70 claims from the EPF Trust, Dala Unit are still pending. These claims have to be verified by the Trusts, for making payment to the claimants, by the Regional Provident Commissioner, Varanasi.

Sri Sohail Ahmad and Sri A.K. Upadhyay, Secretaries of the Trusts are present. They have requested that the entire records of these trusts available with them should now be handed over to the Official Liquidator.

The Official Liquidator steps into the shoes of the employer of the Company, after it is wound up, and is in liquidation. He has to take all the responsibility of the employer in the liquidation proceedings.

After hearing all the parties, the following directions are issued:

(i) Sri Sohail Ahmad, Secretary of the EPF Trust, Dala and Sri AK Upadhyaya, Secretary of the EPF Trust, Churk will hand over entire documents of the Trusts available with them to the Official Liquidator, within 15 days from today, after making inventory including number of pages of each register.

(ii) The Official Liquidator will receive these records issue receipt to the Secretaries of the EPF Trusts and keep them, for forwarding the applications/claims in future. He will verify to the extent of workmen's details of their employment and number of bank account. He will not be required to make verification of the amount contributed and to which the workmen is entitled. These verifications will be made and adjustment recorded by the Assistant Provident Fund Commissioner, Varanasi - both for the purposes of verification and for making payment.

(iii) The Official Liquidator will also forward the pending applications to the Assistant Provident Commissioner,

Varanasi after verification, as indicated in direction no. (ii).

This leaving some unresolved issues relating to EPF matter to be decided by the Court. The Court proposes to deal with these issues on the next date. These issues are:-

(a) Realization of extra payment made to some workmen, after adjustment of the amount, to which they are entitled.

(b) The appropriation of the accumulated amount in the EPF Trusts of Churk and Dala, from the receipts of interest on the investment, exceeding the statutory interest payable to the workmen.

(c) Payments to the Secretary and Staff of the EPF Trust from March 2009 onwards for maintaining and processing the records, which they have to handover to the Official Liquidator within 15 days.

List on 21.10.2011 at 3.00 P.M..

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(ii) Orders on the application Nos.

(1) 168406 of 2011 filed by Sri Ram Vilas

(2) 372061 of 2010 filed by Sri Bharat Lal

(3) 204514 of 2010 filed by Sri D.K. Pandey

These applications have been made claiming dividends, out of the sale proceeds of the assets of the Company (in liquidation).

The last date for receiving claims was 31.7.2006, after giving extension. Almost all the claims have been adjudicated and settled. The appeals of the claimants have also been decided.

The Court is not satisfied with the explanation for condoning the delay in filing the applications.

The applications are rejected.

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(iii) Orders on the application No.241457 of 2009 filed by State Bank of India, MNNIT Branch, Teliyarganj, Distt. Allahabad

This applications has been made claiming dividends, out of the sale proceeds of the assets of the Company (in liquidation).

The consolidated claim of the State Bank of India was adjudicated by the composite order dated 27.4.2007. When SBI has claimed consolidated amount, the claim by individual branch made after several years, cannot be entertained.

I am not satisfied with the explanation for condoning the delay in filing the application.

The application is rejected.

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(iv) Order on application No. 172559 of 2008 filed by Sri Tarkeshwar Dhar

It is stated that the claim application No. C-42 filed by the applicant on 23.12.2006 has not been decided so far.

Sri Ashok Mehta seeks three weeks further time to verify.

This application will be put up for hearing on 21.10.2011.

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(v) Order on application No. 148230 of 2010 filed by Sri Rakesh Kumar

This application has been moved claiming benefits of

arrears of salary, bonus etc., from out of the sale proceeds of the Company (in liquidation) on the ground that he was not working as visiting lecturer, but was actually employed as regular lecturer in U.P. Cement Factory Inter College, Churk District Sonbehadra.

The applicant has relied upon experience certificate given by the Principal of the Inter College dated 21.6.2007 that he was working as Assistant Teacher Hindi on regular basis w.e.f. 8.8.1994.

The Official Liquidator will file reply to the application.

It will be open to the applicant to apply to the District Inspector of Schools, Sonebhadra, for verifying that he was working in the Inter College as Assistant Teacher in Hindi on regular basis.

The District Inspector of Schools, Sonebhadra will verify the nature of employment of the applicant – Sri Rakesh Kumar from the available records and issue the requisite certificate, within two weeks from the date of making of application by the applicant.

This application will be put up for hearing on **21.10.2011.**

Order Date :- 2.9.2011

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Court No. - 32

Case :- MISC. COMPANY APPLICATION No. - 4 of 1997

Petitioner :- In The Matter Of M/S U.P.State Cement Corporation Ltd.

Petitioner Counsel :- O.L.B.K.L.Srivastava,A.K. Pandey,Anil Mehrotra,Ashok Kumar Chaubey,Ashok Mehta,O.L.U.S.Patole,S.K. Singh,Saral Srivastava,Vipalav Sharma

Respondent Counsel :- Shiv Nath Singh,A.K. Gupta,A.K. Srivastava,A.K.Mehrotra,A.P. Singh,Achal Singh Vats,Ajal Krishna,Ajay Kumar Pandey,Amit Chaudhary,Amit Saxena,Anil Mehrotra,Anurag Khanna,Ashok Kumar Chaubey,Ashok Mehta,Ashutosh Pandey,B.D.Mandhyan,B.K. Mishra,B.N. Singh,Brijesh Kumar,C.B. Srivastava,C.B.Gupta,C.L. Pandey,C.S.C.,D.K. Srivastava,Devendra Singh,Govind Saran,H.N. Sharma,H.P. Dubey,I.S.Tomar,J. Nagar,J.N. Pandey,J.P.Mathur,Jayant Bannerji,K.C. Vishwakarma,K.K. Srivastava,Kush Saxena,L.K.Tiwari,L.P.Tiwari,Lalji Pandey,Manoj Kumar,Manoj Srivastava,N.K. Gupta,N.K. Verma,Narendra Mohan,Navin Sinha,O.P.Misra,P.K. Dalmiya (In Person),P.N.Tripathi,R.P. Agarwal,R.P. Srivastava,R.P. Tiwari,Rajendra Chaubey,Rajesh Kumar Pathak,Rajesh Kumar Singh,Ram Yash Pandey,S.C.,S.D.N.Singh,S.F. Ahmad,S.K. Yadav,S.M. Dayal,S.N. Singh,S.P. Shukla,S.R. Yadav,S.S. Chauhan,S.S.Srivastava,Sandeep Agarwal,Sanjai Srivastava,Sanjay Om,Saumitra Singh,Somesh Khare,Subhash Chandra Yadav,Sudhir Agarwal,U.N. Sharma,U.P. Singh,Udai Chandani,V.K.S. Chaudhary,Vinod Misra,Vivek Singh,W.A. Siddiqui,Yashwant Verma,Yogesh Agarwal,Z.K. Hasan

Hon'ble Sunil Ambwani,J.

Civil Misc. Application No. 99385 of 2011

Notice will be served in the Office of the Chief Standing Counsel for District Magistrate, Sonbhadra and on Sri Yashwant Verma for the U.P. State Cement Corporation Ltd. to file their replies. it is expected that they will file their replies on or before 18.11.2011.

Put up on 18.11.2011.

Order Date :- 21.10.2011

Jaideep/-

Court No. - 32

Case :- MISC. COMPANY APPLICATION No. - 4 of 1997

Petitioner :- In The Matter Of M/S U.P.State Cement Corporation Ltd.

Petitioner Counsel :- O.L.B.K.L.Srivastava,A.K. Pandey,Anil Mehrotra,Ashok Kumar Chaubey,Ashok Mehta,O.L.U.S.Patole,S.K. Singh,Saral Srivastava,Vipalav Sharma

Respondent Counsel :- Shiv Nath Singh,A.K. Gupta,A.K. Srivastava,A.K.Mehrotra,A.P. Singh,Achal Singh Vats,Ajal Krishna,Ajay Kumar Pandey,Amit Chaudhary,Amit Saxena,Anil Mehrotra,Anurag Khanna,Ashok Kumar Chaubey,Ashok Mehta,Ashutosh Pandey,B.D.Mandhyan,B.K. Mishra,B.N. Singh,Brijesh Kumar,C.B. Srivastava,C.B.Gupta,C.L. Pandey,C.S.C.,D.K. Srivastava,Devendra Singh,Govind Saran,H.N. Sharma,H.P. Dubey,I.S.Tomar,J. Nagar,J.N. Pandey,J.P.Mathur,Jayant Bannerji,K.C. Vishwakarma,K.K. Srivastava,Kush Saxena,L.K.Tiwari,L.P.Tiwari,Lalji Pandey,Manoj Kumar,Manoj Srivastava,N.K. Gupta,N.K. Verma,Narendra Mohan,Navin Sinha,O.P.Misra,P.K. Dalmiya (In Person),P.N.Tripathi,R.P. Agarwal,R.P. Srivastava,R.P. Tiwari,Rajendra Chaubey,Rajesh Kumar Pathak,Rajesh Kumar Singh,Ram Yash Pandey,S.C.,S.D.N.Singh,S.F. Ahmad,S.K. Yadav,S.M. Dayal,S.N. Singh,S.P. Shukla,S.R. Yadav,S.S. Chauhan,S.S.Srivastava,Sandeep Agarwal,Sanjai Srivastava,Sanjay Om,Saumitra Singh,Somesh Khare,Subhash Chandra Yadav,Sudhir Agarwal,U.N. Sharma,U.P. Singh,Udai Chandani,V.K.S. Chaudhary,Vinod Misra,Vivek Singh,W.A. Siddiqui,Yashwant Verma,Yogesh Agarwal,Z.K. Hasan

Hon'ble Sunil Ambwani,J.

Civil Misc. Application No. NIL of 2011

Sri Ashok Mehta appearing for the Official Liquidator, states that for want of certain clarifications, the records of the Employees Provident Fund Trust, Churk and Dala, was not received by the Official Liquidator. It was expected that the records would be voluminous. The Court is informed by the Secretaries of Employees Provident Fund Trust, Churk and Dala, present in court, that the records are not very bulky.

Let the entire records of the EPF Trust, as directed by the court, be

accepted by the Official Liquidator on or before 14.11.2011.

The court is informed by the Secretaries of Employees Provident Fund Trust, Churk and Dala, present in court and by the Official Liquidator that an amount of Rs. 18 crores, as employer's share, was given to the Regional Employees Provident Fund Commissioner, Varanasi. He also received some interest, after the calculations of EPF were made. The Secretaries of the Trust present, will give fresh written statements with regard to the amounts which have been received by the EPF Commissioner, in respect of these two trusts who are exempted and the management of which were handed over to the EPF Commissioner, Varanasi by the court. The Official Liquidator will thereafter take up the matter with the Regional EPF Commissioner, Varanasi and report that the funds, if any with the Regional EPF Commissioner, Varanasi, with regard to distribution of the amount available with him after adjusting the amount towards the pension fund. The report will be submitted within a month.

The applications of the secretaries and employees of the EPF Trusts will be decided from march 2009 to November 14, 2011, after the records are handed over by them to the Official Liquidator.

Order Date :- 21.10.2011/Jaideep/-

Case :- MISC. COMPANY APPLICATION No. - 4 of 1997

Petitioner :- In The Matter Of M/S U.P.State Cement Corporation Ltd.

Petitioner Counsel :- O.L.B.K.L.Srivastava,A.K. Pandey,Anil Mehrotra,Ashok Kumar Chaubey,Ashok Mehta,O.L.U.S.Patole,S.K. Singh,Saral Srivastava,Vipalav Sharma

Respondent Counsel :- Shiv Nath Singh,A.K. Gupta,A.K.

Srivastava,A.K.Mehrotra,A.P. Singh,Achal Singh Vats,Ajal Krishna,Ajay Kumar Pandey,Amit Chaudhary,Amit Saxena,Anil Mehrotra,Anurag Khanna,Ashok Kumar Chaubey,Ashok Mehta,Ashutosh Pandey,B.D.Mandhyan,B.K. Mishra,B.N. Singh,Brijesh Kumar,C.B. Srivastava,C.B.Gupta,C.L. Pandey,C.S.C.,D.K. Srivastava,Devendra Singh,Govind Saran,H.N. Sharma,H.P. Dubey,I.S.Tomar,J. Nagar,J.N. Pandey,J.P.Mathur,Jayant Bannerji,K.C. Vishwakarma,K.K. Srivastava,Kush Saxena,L.K.Tiwari,L.P.Tiwari,Lalji Pandey,Manoj Kumar,Manoj Srivastava,N.K. Gupta,N.K. Verma,Narendra Mohan,Navin Sinha,O.P.Misra,P.K. Dalmiya (In Person),P.N.Tripathi,R.P. Agarwal,R.P. Srivastava,R.P. Tiwari,Rajendra Chaubey,Rajesh Kumar Pathak,Rajesh Kumar Singh,Ram Yash Pandey,S.C.,S.D.N.Singh,S.F. Ahmad,S.K. Yadav,S.M. Dayal,S.N. Singh,S.P. Shukla,S.R. Yadav,S.S. Chauhan,S.S.Srivastava,Sandeep Agarwal,Sanjai Srivastava,Sanjay Om,Saumitra Singh,Somesh Khare,Subhash Chandra Yadav,Sudhir Agarwal,U.N. Sharma,U.P. Singh,Udai Chandani,V.K.S. Chaudhary,Vinod Misra,Vivek Singh,W.A. Siddiqui,Yashwant Verma,Yogesh Agarwal,Z.K. Hasan

Hon'ble Sunil Ambwani,J.

(i) Sri Ashok Mehta, appearing for the Official Liquidator states that in compliance to the order dated 21.10.2011, the entire records of both the trusts, namely, Employees' Provident Fund Trust, Churk and Employees' Provident Fund Trust, Dala have been handed over to the Official Liquidator. He submits that the Regional Provident Fund Commissioner, Varanasi has not given details of the account, with regard to the income from the interest on securities of the trust.

Sri Narendra Mohan, appearing for the Secretaries of the EPF Trusts states that an amount of Rs.5.56 crores of EPF Trust Dala and Rs.6.83 crores of EPF Trust Churk is available, with the Regional Provident Fund Commissioner,Varanasi, and which is to be distributed to the workmen.

Sri Ashok Mehta informs the Court that in pursuance to the orders passed by the Court, the employer's share of Rs.18,62,25,911/- was paid to the Regional Provident Fund Commissioner on 14.12.2007. The Commissioner has not yet disclosed, nor given the accounts, as to how much amount from this remittance has been paid to the workmen

Sri Dhananjai Awasthi, appearing for the Regional Provident

Fund Commissioner has sent illness slip.

Let notices be given by Sri Ashok Mehta and Sri Narendra Mohan in writing to Sri Dhananjai Awasthi to be present on the next date of listing, along with details of the account.

The Court was also informed that the appeal filed by the Regional Provident Fund Commissioner, with regard to interest and penalty, which was denied to the Commissioner by the Court, is still pending.

We are informed that more than 5,000 workmen to whom the dividends have been settled are agitating over the income on the investment and the employer's share and non-furnishing of accounts by the Provident Fund Commissioner, and disbursement of employer's share.

List on 20.1.2012

Sri Dhananjai Awasthi will ensure that the accounts are presented to the Court. The matter will not be adjourned on that date.

(ii) Learned standing has not filed reply to the application filed by Sri Anand Kumar Kushwaha and others (application No. 99385 of 2011).

Sri M.S. Pipersenia, learned standing counsel, who has appeared in the matter, is granted time upto 20.1.2012, to file counter affidavit.

Order Date :- 23.12.2011

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Case :- MISC. COMPANY APPLICATION No. - 4 of 1997

Petitioner :- In The Matter Of M/S U.P.State Cement Corporation Ltd.

Petitioner Counsel :- O.L.B.K.L.Srivastava,A.K. Pandey,Anil Mehrotra,Ashok Kumar Chaubey,Ashok Mehta,O.L.U.S.Patole,S.K. Singh,Saral Srivastava,Vipalav Sharma

Respondent Counsel :- Shiv Nath Singh,A.K. Gupta,A.K.

Srivastava,A.K.Mehrotra,A.P. Singh,Achal Singh Vats,Ajal Krishna,Ajay Kumar Pandey,Amit Chaudhary,Amit Saxena,Anil Mehrotra,Anurag Khanna,Ashok Kumar Chaubey,Ashok Mehta,Ashutosh Pandey,B.D.Mandhyan,B.K. Mishra,B.N. Singh,Brijesh Kumar,C.B. Srivastava,C.B.Gupta,C.L. Pandey,C.S.C.,D.K. Srivastava,Devendra Singh,Govind Saran,H.N. Sharma,H.P. Dubey,I.S.Tomar,J. Nagar,J.N. Pandey,J.P.Mathur,Jayant Bannerji,K.C. Vishwakarma,K.K. Srivastava,Kush Saxena,L.K.Tiwari,L.P.Tiwari,Lalji Pandey,Manoj Kumar,Manoj Srivastava,N.K. Gupta,N.K. Verma,Narendra Mohan,Navin Sinha,O.P.Misra,P.K. Dalmiya (In Person),P.N.Tripathi,R.P. Agarwal,R.P. Srivastava,R.P. Tiwari,Rajendra Chaubey,Rajesh Kumar Pathak,Rajesh Kumar Singh,Ram Yash Pandey,S.C.,S.D.N.Singh,S.F. Ahmad,S.K. Yadav,S.M. Dayal,S.N. Singh,S.P. Shukla,S.R. Yadav,S.S. Chauhan,S.S.Srivastava,Sandeep Agarwal,Sanjai Srivastava,Sanjay Om,Saumitra Singh,Somesh Khare,Subhash Chandra Yadav,Sudhir Agarwal,U.N. Sharma,U.P. Singh,Udai Chandani,V.K.S. Chaudhary,Vinod Misra,Vivek Singh,W.A. Siddiqui,Yashwant Verma,Yogesh Agarwal,Z.K. Hasan

Hon'ble Sunil Ambwani,J.

(i) Order on the Official Liquidator's Report No. (Admin) 3 of 2012.

Sri U.S. Patole, Official Liquidator has submitted a report No. (Admin) 3 of 2012 stating that he has taken over possession of the books of accounts of EPF Trusts of U.P. Cement Corporation (in liquidation) and the records have been shifted from Dalla and Churk to the old office of the Official Liquidator situated at Tashkand Marg, Allahabad. The records contain personal files and service books of the employees/officers of the Company which are kept in about 50 gunny bags, and further records of workers of Dalla unit were shifted in 700 gunny bags to the godown at Lukerganj, Allahabad. Proper inventory and arrange in almiras is required to be made for these records, to facilitate the Official Liquidator to verify the address of the employees/officers and to counter sign their PF Forms, Pension Forms and also to furnish relevant information sought by the workers/employees.

The Official Liquidator has requested for permission to engage 10 clerical staff and 2 casual labours for performing the work.

There are more than 50 person employed in the clerical cadre of the Official Liquidator. He can easily take work for sorting and cataloging the records received bu him.

Permission is however granted for engaging two causal workers on daily wage basis at the rate of Rs.200/- per day for the work performed by them, initially for a period of thee months. If the work of daily labour is still required, permission may be sought for extending their services.

(ii) On joint request made by the learned cousnel appearing for the State, Sri Ashok Mehta for the Official Liquidator and Sri Dhananjay Awasthi for the EPF Commissioner, Varanasi in presence of other counsels, who are awaiting decision on their applications, the matter is adjourned to 16.3.2011.

List on 16.3.2012 at 2.00 P.M.

Order Date :- 20.1.2012

nethra

Case :- MISC. COMPANY APPLICATION No. - 4 of 1997

Petitioner :- In The Matter Of M/S U.P.State Cement Corporation Ltd.

Petitioner Counsel :- O.L.B.K.L.Srivastava,A.K. Pandey,Anil Mehrotra,Ashok Kumar Chaubey,Ashok Mehta,O.L.U.S.Patole,S.K. Singh,Saral Srivastava,Vipalav Sharma

Respondent Counsel :- Shiv Nath Singh,A.K. Gupta,A.K.

Srivastava,A.K.Mehrotra,A.P. Singh,Achal Singh Vats,Ajal Krishna,Ajay Kumar Pandey,Amit Chaudhary,Amit Saxena,Anil Mehrotra,Anurag Khanna,Ashok Kumar Chaubey,Ashok Mehta,Ashutosh Pandey,B.D.Mandhyan,B.K. Mishra,B.N. Singh,Brijesh Kumar,C.B. Srivastava,C.B.Gupta,C.L. Pandey,C.S.C.,D.K. Srivastava,Devendra Singh,Govind Saran,H.N. Sharma,H.P. Dubey,I.S.Tomar,J. Nagar,J.N. Pandey,J.P.Mathur,Jayant Bannerji,K.C. Vishwakarma,K.K. Srivastava,Kush Saxena,L.K.Tiwari,L.P.Tiwari,Lalji Pandey,Manoj Kumar,Manoj Srivastava,N.K. Gupta,N.K. Verma,Narendra Mohan,Navin Sinha,O.P.Misra,P.K. Dalmiya (In Person),P.N.Tripathi,R.P. Agarwal,R.P. Srivastava,R.P. Tiwari,Rajendra Chaubey,Rajesh Kumar Pathak,Rajesh Kumar Singh,Ram Yash Pandey,S.C.,S.D.N.Singh,S.F. Ahmad,S.K. Yadav,S.M. Dayal,S.N. Singh,S.P. Shukla,S.R. Yadav,S.S. Chauhan,S.S.Srivastava,Sandeep Agarwal,Sanjai Srivastava,Sanjay Om,Saumitra Singh,Somesh Khare,Subhash Chandra Yadav,Sudhir Agarwal,U.N. Sharma,U.P. Singh,Udai Chandani,V.K.S. Chaudhary,Vinod Misra,Vivek Singh,W.A. Siddiqui,Yashwant Verma,Yogesh Agarwal,Z.K. Hasan

Hon'ble Sunil Ambwani,J.

(i) Orders on Civil Misc. Application Nos. 18317 of 2010, 99385 of 2011 and 328392 of 2010

There are two applications pending, namely, Application No. 18317 of 2010, filed by Sri Ajay Kumar and 250 others, and the Application No. 99385 of 1997, Sri Anand Kumar Kushwaha and 254 others.

The dispute relates to Plot Nos. 113 and 119, opposite to factory gate of Dala Cement, which was the asset of the Company (in liquidation), and which was sold to M/s. Jai Prakash Associates Ltd (JAL) in the year 2007, in proceeding for liquidation. The secured creditors, and 5900 employees were settled their claims, from out of the sale proceeds, in the proceedings.

On 19.11.2010, detailed orders were passed, after calling for the reports from the district authorities, to rehabilitate 251 persons, who were squatting over the plots. Out of these, 77 have received compensation, and they were not entitled to occupy any property in accordance with the undertaking given by them, for settlement of their claims.

We are informed that 81, out of 251 applicants in Application No. 18317 of 2010, have accepted rehabilitation plan of the

State authorities by allotment of plots of Gaon Sabha, and that each of such claimant has been paid Rs. one lac, for which M/s. JAL has given bank guarantee. M/s. JAL has given its willingness, to pay Rs. one lacs to the remaining 158 persons.

Out of 255 applicants in Application No. 99385 of 2011, 11 are common in the list of applicants in Application No. 18317 of 2010.

On 25.01.2010, an interim order was passed in Application No. 18317 of 2010, not to dispossess the applicants, except those, who have been allotted Gaon Sabha land, and in whose favour Rs. 1 lacs has been deposited by the Company (JAL) for constructing the house.

It appears that more persons are coming forward, for claiming compensation or for allotment of land, with their ration cards and photo identity cards as mark of their identification and possession over the land in question.

The Court was also informed that a Special Appeal No. 1194 of 2011 have been filed against the order dated 19.11.2010 by 251 persons, who are parties in the application No. 18317 of 2010, and the Special Appeal is still pending. There is no interim order in the Special Appeal.

Sri J.K. Tiwari, learned standing counsel has filed a compliance affidavit of Sri Ram Abhilash, Sub Divisional Magistrate, Sonebhadra stating in paragraph Nos. 2, 3, 4 & 5 as follows:-

"2. That the above noted application was taken up by the Hon'ble Court on 19.11.2010 and the Hon'ble Court was pleased to direct for filing of compliance report by the District Magistrate, Sonebhadra. The photostat copy of the order dated 19.11.2010 passed by the Hon'ble Court is being filed herewith and is marked as Annexure No. A-I to this compliance affidavit and the contents of which form the part of present affidavit.

3. That for ensuring compliance of order dated 19.11.2010 of the Hon'ble Court (Annexure A-1) the families residing on plot Nos. 113 and 179 over plot in question were identified and Gram Sabha concerned has allotted the land for residence to 268 families. It is further submitted that 81 families has vacated their possession over the land in question and payment of Rs. one lakh per family has been made. The photostat copy of the list of beneficiaries is being filed herewith and is marked as Annexure No.A-2 to this compliance

affidavit. It is relevant to mention here that for eviction of 77 employees of U.P. Cement Corporation and other occupants the public notice dated 2.12.2010 and 22.12.2010 were issued. The photostat copy of the said Public Notices dated 2.12.2010 and 22.12.2010 are being filed herewith and marked collectively as Annexure No. A--A-3 to this compliance affidavit.

4. That for ensuring compliance of said order dated 19.11.2010 of the Hon'ble Court the appropriate efforts are being made for getting vacated the plot Nos. 113 and 179 in question.

5. That in view of facts and circumstances stated in the preceding paragraphs it is just and expedient in the interest of justice that this Hon'ble Court may kindly be pleased to accept the present compliance affidavit and the same may be taken on record of the present proceedings AND/OR may pass such other and further orders, which this Hon'ble Court may deem fit and proper in the facts and circumstances of the present case."

Learned counsel appearing for the 255 applicants in Application No. 99385 of 2011 prays for and is granted a week's time, to file rejoinder affidavit.

List on 30.03.2012 for final orders.

(ii) In PF matter.

Sri Dhananjai Awasti, learned counsel appearing for the Regional provident Commissioner. Varanasi has submitted an uncertified and unsigned statement of account. A copy of the statement has been given to Sri Ashok Mehta, learned counsel for the Official Liquidator, and Sri Narendra Mohan, appearing for the Ex-Trusts

Let the final statement be discussed and reconciled by the officials of the Regional Provident Commissioner along with the officers and representatives of the Official Liquidator and the Managers of ex-trusts of Churk and Dala.

The reconciliation will be done on mutually agreed dates, within a month, and thereafter objections, if any, will be filed in the Court.

After reconciliation, the issues raised by Trusts, as well as Official Liquidator regarding disbursement of surplus, interest and the interest on securities will be decided by the Court

List on 20.04.2012.

(iii) Orders on Civil Misc. Application Nos. 208808 of 2009 and 243922 of 2008:

The applications filed by Sri Mahavir Tiwari; Sri Dwijendra Nath Mishra and others, and Sri Bhola Ojha, claiming salary from 8.12.1999 to 02.08.2001, on the basis that they were engaged as visiting teachers in the intermediate college.

Though they were not included in the grant- in-list, but under orders of the Court, by which essential services were directed to be continued to the families of the ex-employees of the Corporation, the applications will be considered on the next date.

Learned standing counsels will seek instructions from the Office of the District Inspector of Schools, regarding status of the teachers, and the source from them they were paid salary.

Sri Ashok Mehta, learned counsel for the Official Liquidator, informed that the College was under the Management of the Administrator appointed by the Joint Director.

List on 30.3.2012.

Order Date :- 16.3.2012

nethra

Court No. - 37

Case :- MISC. COMPANY APPLICATION No. - 4 of 1997

Petitioner :- In The Matter Of M/S U.P.State Cement Corporation Ltd.

Petitioner Counsel :- O.L.B.K.L.Srivastava,A.K. Pandey,Anil Mehrotra,Ashok Kumar Chaubey,Ashok Mehta,O.L.U.S.Patole,S.K. Singh,Saral Srivastava,Vipalav Sharma

Respondent Counsel :- Shiv Nath Singh,A.K. Gupta,A.K. Srivastava,A.K.Mehrotra,A.P. Singh,Achal Singh Vats,Ajal Krishna,Ajay Kumar Pandey,Amit Chaudhary,Amit Saxena,Anil Mehrotra,Anurag Khanna,Ashok Kumar Chaubey,Ashok Mehta,Ashutosh Pandey,B.D.Mandhyan,B.K. Mishra,B.N. Singh,Brijesh Kumar,C.B. Srivastava,C.B.Gupta,C.L. Pandey,C.S.C.,D.K. Srivastava,Devendra Singh,Govind Saran,H.N. Sharma,H.P. Dubey,I.S.Tomar,J. Nagar,J.N. Pandey,J.P.Mathur,Jayant Bannerji,K.C. Vishwakarma,K.K. Srivastava,Kush Saxena,L.K.Tiwari,L.P.Tiwari,Lalji Pandey,Manoj Kumar,Manoj Srivastava,N.K. Gupta,N.K. Verma,Narendra Mohan,Navin Sinha,O.P.Misra,P.K. Dalmiya (In Person),P.N.Tripathi,R.P. Agarwal,R.P. Srivastava,R.P. Tiwari,Rajendra Chaubey,Rajesh Kumar Pathak,Rajesh Kumar Singh,Ram Yash Pandey,S.C.,S.D.N.Singh,S.F. Ahmad,S.K. Yadav,S.M. Dayal,S.N. Singh,S.P. Shukla,S.R. Yadav,S.S. Chauhan,S.S.Srivastava,Sandeep Agarwal,Sanjai Srivastava,Sanjay Om,Saumitra Singh,Somesh Khare,Subhash Chandra Yadav,Sudhir Agarwal,U.N. Sharma,U.P. Singh,Udai Chandani,V.K.S. Chaudhary,Vinod Misra,Vivek Singh,W.A. Siddiqui,Yashwant Verma,Yogesh Agarwal,Z.K. Hasan

Hon'ble Sunil Ambwani,J.

List on 6th April, 2012.

Order Date :- 30.3.2012

RKP

Court No. - 37

Case :- MISC. COMPANY APPLICATION No. - 4 of 1997

Petitioner :- In The Matter Of M/S U.P.State Cement Corporation Ltd.

Petitioner Counsel :- O.L.B.K.L.Srivastava,A.K. Pandey,Anil Mehrotra,Ashok Kumar Chaubey,Ashok Mehta,O.L.U.S.Patole,S.K. Singh,Saral Srivastava,Vipalav Sharma

Respondent Counsel :- Shiv Nath Singh,A.K. Gupta,A.K.

Srivastava,A.K.Mehrotra,A.P. Singh,Achal Singh Vats,Ajal Krishna,Ajay Kumar Pandey,Amit Chaudhary,Amit Saxena,Anil Mehrotra,Anurag Khanna,Ashok Kumar Chaubey,Ashok Mehta,Ashutosh Pandey,B.D.Mandhyan,B.K. Mishra,B.N. Singh,Brijesh Kumar,C.B. Srivastava,C.B.Gupta,C.L. Pandey,C.S.C.,D.K. Srivastava,Devendra Singh,Govind Saran,H.N. Sharma,H.P. Dubey,I.S.Tomar,J. Nagar,J.N. Pandey,J.P.Mathur,Jayant Bannerji,K.C. Vishwakarma,K.K. Srivastava,Kush Saxena,L.K.Tiwari,L.P.Tiwari,Lalji Pandey,Manoj Kumar,Manoj Srivastava,N.K. Gupta,N.K. Verma,Narendra Mohan,Navin Sinha,O.P.Misra,P.K. Dalmiya (In Person),P.N.Tripathi,R.P. Agarwal,R.P. Srivastava,R.P. Tiwari,Rajendra Chaubey,Rajesh Kumar Pathak,Rajesh Kumar Singh,Ram Yash Pandey,S.C.,S.D.N.Singh,S.F. Ahmad,S.K. Yadav,S.M. Dayal,S.N. Singh,S.P. Shukla,S.R. Yadav,S.S. Chauhan,S.S.Srivastava,Sandeep Agarwal,Sanjai Srivastava,Sanjay Om,Saumitra Singh,Somesh Khare,Subhash Chandra Yadav,Sudhir Agarwal,U.N. Sharma,U.P. Singh,Udai Chandani,V.K.S. Chaudhary,Vinod Misra,Vivek Singh,W.A. Siddiqui,Yashwant Verma,Yogesh Agarwal,Z.K. Hasan

Hon'ble Sunil Ambwani,J.

(i) Order on the application No. 110276 of 2012 of the U.P. Power Corporation:-

Heard Sri Pankaj Dube, learned counsel holding brief for Sri H.P. Dube for the applicant. Sri Ahok Mehta along with Official Liquidator appears for the Company (in liquidation).

The U.P. Power Corporation has prayed for directions to the Official Liquidator, to make payment of Rs.2,84,92,939/- as the principal amount of arrears of electricity charges, for the period 8.12.1999 to 31.1.2007, excluding late payment surcharges.

It is stated that this amount was found due from the Company for the relevant period.

Sri Ahok Mehta submits that the Power Corporation has filed an appeal claiming interest and late payment surcharge, which was not accepted by the Court.

The Power Corporation should make its stand clear as to whether Rs.2,84,92,939/- is included in the appeal, and whether consideration of this amount by the Court will affect

their rights, for which they have filed the appeal.

Let the Official Liquidator will also verify the claim and submit his report.

List on 20.04.2012.

(ii) Sri J.K. Tiwari, learned standing counsel has submitted a report dated 4.4.2012 of the District Inspector of Schools Sonebharda. The report, however, does not verify whether the applicants had actually worked as officiating lecturers

List the matter on 20.04.2012, to enable Sri J.K. Tiwari, to complete the instructions.

Order Date :- 6.4.2012

nethra

Case :- MISC. COMPANY APPLICATION No. - 4 of 1997

Petitioner :- In The Matter Of M/S U.P.State Cement Corporation Ltd.

Petitioner Counsel :- O.L.B.K.L.Srivastava,A.K. Pandey,Anil Mehrotra,Ashok Kumar Chaubey,Ashok Mehta,O.L.U.S.Patole,S.K. Singh,Saral Srivastava,Vipalav Sharma

Respondent Counsel :- Shiv Nath Singh,A.K. Gupta,A.K.

Srivastava,A.K.Mehrotra,A.P. Singh,Achal Singh Vats,Ajal Krishna,Ajay Kumar Pandey,Amit Chaudhary,Amit Saxena,Anil Mehrotra,Anurag Khanna,Ashok Kumar Chaubey,Ashok Mehta,Ashutosh Pandey,B.D.Mandhyan,B.K. Mishra,B.N. Singh,Brijesh Kumar,C.B. Srivastava,C.B.Gupta,C.L. Pandey,C.S.C.,D.K. Srivastava,Devendra Singh,Govind Saran,H.N. Sharma,H.P. Dubey,I.S.Tomar,J. Nagar,J.N. Pandey,J.P.Mathur,Jayant Bannerji,K.C. Vishwakarma,K.K. Srivastava,Kush Saxena,L.K.Tiwari,L.P.Tiwari,Lalji Pandey,Manoj Kumar,Manoj Srivastava,N.K. Gupta,N.K. Verma,Narendra Mohan,Navin Sinha,O.P.Misra,P.K. Dalmiya (In Person),P.N.Tripathi,R.P. Agarwal,R.P. Srivastava,R.P. Tiwari,Rajendra Chaubey,Rajesh Kumar Pathak,Rajesh Kumar Singh,Ram Yash Pandey,S.C.,S.D.N.Singh,S.F. Ahmad,S.K. Yadav,S.M. Dayal,S.N. Singh,S.P. Shukla,S.R. Yadav,S.S. Chauhan,S.S.Srivastava,Sandeep Agarwal,Sanjai Srivastava,Sanjay Om,Saumitra Singh,Somesh Khare,Subhash Chandra Yadav,Sudhir Agarwal,U.N. Sharma,U.P. Singh,Udai Chandani,V.K.S. Chaudhary,Vinod Misra,Vivek Singh,W.A. Siddiqui,Yashwant Verma,Yogesh Agarwal,Z.K. Hasan

Hon'ble Sunil Ambwani,J.

(i) Order on the Application No. 208808 of 2009 of Sri Mahavir Tiwari:

I have heard Sri Yogesh Agarwal, for the applicant. Sri Ashok Mehta appears for the Official Liquidator.

On 16.3.2007, an order was passed, directing that Sri Mahavir Tiwari, who was working as Visiting Lecturer in Physics in Cement Factory Intermediate College, Churk Sonebhadra be paid Rs. 3,000/- per month from the date of winding up, till the date of declaration of final dividend i.e. upto 22.7.2007, from out of the liquidation expenses excluding two months salary in May and June every years, as he was working, even after the winding up orders were passed, to provide his services to the students, who were Wards of ex-employees of the U.P. Cement Corporation.

It is stated that the claim of the applicant, prior to the date of winding up order, was worked out by the Official Liquidator as Rs. 76,276/-, but he has been paid Rs.53,389/- only, and the salary for the period ,after the winding up order till the date of final declaration of dividend, has also not been paid.

Sri Ashok Mehta, admits that the amount from the date of winding up, till the date of final declaration of dividend,

was not paid.

I do not find any justification, to deprive Sri Mahavir from payment, for the period from the date of winding up order till the date of declaration of final dividend. The order dated 16.3.2007, is very clear in that record.

The Official Liquidator will pay over the remaining amount to the applicant Sri Mahavir Tiwari.

The application stand disposed of.

(ii) Order on the Application No. 243922 of 2008 of Sri Dwjendra Nath Mishra and six others:

Sri J.K. Tiwari, learned standing counsel has filed proof of working of only Sri Dwijendra Nath Mishra - applicant No.1 as Visiting Assistant Teacher in Cement Inter College, Dala, District Sonbhadra for the period from August 1994 to February 1998.

In this application, we are concerned with the payment of Rs.3,000/- per month, to the teachers working in the institution even after the date of winding up.

It is admitted by Sri Yogesh Agarwal, learned counsel appearing for the applicants that Sri Surendra Kumar, Smt. Pushpa Yadav and Sri Vijay Kumar - applicant Nos. 2 , 3 and 4 had worked only upto 31.7.2004.

Sri J.K. Tiwari, standing counsel will submit verification report by the office of District Inspector of Schools, with regard to working of these seven teachers in the College after the date of winding up.

List on 25.5.2012.

(iii) Order on the Application No. 110276 of 2012 of U.P. Power Corporation:

Sri H.P. Dubey appearing for the U.P. Power Corporation has filed this application claiming an amount of Rs.2,84,92,939/-, towards arrears of electricity dues in respect of Gurma, Dalla and Churk Colonies, for the period 9.12.1999 to 31.1.2007 i.e. the date of winding up, and taking over possession of the unit by the purchaser M/s. Jai Prakash Associates Ltd (JAL) , which was not included in

the bill filed by the U.P. Power Corporation against the order dated 27.4.2007.

Sri H.P. Dubey, learned counsel appearing for the U.P. Power Corporation and Ashok Mehta appearing for the Official Liquidator has made a statement that this amount has been worked out after conciliation of the dues for the aforesaid period.

I do not find that there is any report of the Official Liquidator, confirming the amount, which has been worked out, after conciliation in the meeting dated 28.03.2012.

Let the Official Liquidator report in this regard.

List on 11.05.2012.

(iv) Order on the Application No. Nil of 2012 of U.P. Power Corporation:

Sri H.P. Dubey appearing for the U.P. Power Corporation has filed this application claiming an amount of Rs.5,44,248/-, towards arrears of electricity dues in respect of Chunar Colony, for the period 9.12.1999 to 31.1.2007 i.e. the date of winding up, and taking over possession of the unit by the purchaser M/s. Jai Prakash Associates Ltd (JAL), which was not included in the bill filed by the U.P. Power Corporation against the order dated 27.4.2007.

Sri H.P. Dubey, learned counsel appearing for the U.P. Power Corporation and Ashok Mehta appearing for the Official Liquidator has made a statement that this amount has been worked out after conciliation of the dues for the aforesaid period.

I do not find that there is any report of the Official Liquidator, confirming the amount, which has been worked out, after conciliation in the meeting dated 28.03.2012.

Let the Official Liquidator report in this regard.

List on 11.05.2012

Order Date :- 20.4.2012
nethra

Court No. - 37

Case :- MISC. COMPANY APPLICATION No. - 4 of 1997

Petitioner :- In The Matter Of M/S U.P.State Cement Corporation Ltd.

Petitioner Counsel :- O.L.B.K.L.Srivastava,A.K. Pandey,Anil Mehrotra,Ashok Kumar Chaubey,Ashok Mehta,O.L.U.S.Patole,S.K. Singh,Saral Srivastava,Vipalav Sharma

Respondent Counsel :- Shiv Nath Singh,A.K. Gupta,A.K. Srivastava,A.K.Mehrotra,A.P. Singh,Achal Singh Vats,Ajal Krishna,Ajay Kumar Pandey,Amit Chaudhary,Amit Saxena,Anil Mehrotra,Anurag Khanna,Ashok Kumar Chaubey,Ashok Mehta,Ashutosh Pandey,B.D.Mandhyan,B.K. Mishra,B.N. Singh,Brijesh Kumar,C.B. Srivastava,C.B.Gupta,C.L. Pandey,C.S.C.,D.K. Srivastava,Devendra Singh,Govind Saran,H.N. Sharma,H.P. Dubey,I.S.Tomar,J. Nagar,J.N. Pandey,J.P.Mathur,Jayant Bannerji,K.C. Vishwakarma,K.K. Srivastava,Kush Saxena,L.K.Tiwari,L.P.Tiwari,Lalji Pandey,Manoj Kumar,Manoj Srivastava,N.K. Gupta,N.K. Verma,Narendra Mohan,Navin Sinha,O.P.Misra,P.K. Dalmiya (In Person),P.N.Tripathi,R.P. Agarwal,R.P. Srivastava,R.P. Tiwari,Rajendra Chaubey,Rajesh Kumar Pathak,Rajesh Kumar Singh,Ram Yash Pandey,S.C.,S.D.N.Singh,S.F. Ahmad,S.K. Yadav,S.M. Dayal,S.N. Singh,S.P. Shukla,S.R. Yadav,S.S. Chauhan,S.S.Srivastava,Sandeep Agarwal,Sanjai Srivastava,Sanjay Om,Saumitra Singh,Somesh Khare,Subhash Chandra Yadav,Sudhir Agarwal,U.N. Sharma,U.P. Singh,Udai Chandani,V.K.S. Chaudhary,Vinod Misra,Vivek Singh,W.A. Siddiqui,Yashwant Verma,Yogesh Agarwal,Z.K. Hasan

Hon'ble Sunil Ambwani,J.

List on 17.05.2012 at 2.00 P.M..

Order Date :- 11.5.2012

nethra

Court No. - 37**Case :- MISC. COMPANY APPLICATION No. - 4 of 1997**

Petitioner :- In The Matter Of M/S U.P.State Cement Corporation Ltd.

Petitioner Counsel :- O.L.B.K.L.Srivastava,A.K. Pandey,Anil Mehrotra,Ashok Kumar Chaubey,Ashok Mehta,O.L.U.S.Patole,S.K. Singh,Saral Srivastava,Vipalav Sharma

Respondent Counsel :- Shiv Nath Singh,A.K. Gupta,A.K.

Srivastava,A.K.Mehrotra,A.P. Singh,Achal Singh Vats,Ajal Krishna,Ajay Kumar Pandey,Amit Chaudhary,Amit Saxena,Anil Mehrotra,Anurag Khanna,Ashok Kumar Chaubey,Ashok Mehta,Ashutosh Pandey,B.D.Mandhyan,B.K.

Mishra,B.N. Singh,Brijesh Kumar,C.B. Srivastava,C.B.Gupta,C.L.

Pandey,C.S.C.,D.K. Srivastava,Devendra Singh,Govind Saran,H.N.

Sharma,H.P. Dubey,I.S.Tomar,J. Nagar,J.N. Pandey,J.P.Mathur,Jayant

Bannerji,K.C. Vishwakarma,K.K. Srivastava,Kush

Saxena,L.K.Tiwari,L.P.Tiwari,Lalji Pandey,Manoj Kumar,Manoj Srivastava,N.K.

Gupta,N.K. Verma,Narendra Mohan,Navin Sinha,O.P.Misra,P.K. Dalmiya (In Person),P.N.Tripathi,R.P. Agarwal,R.P. Srivastava,R.P. Tiwari,Rajendra

Chaubey,Rajesh Kumar Pathak,Rajesh Kumar Singh,Ram Yash

Pandey,S.C.,S.D.N.Singh,S.F. Ahmad,S.K. Yadav,S.M. Dayal,S.N. Singh,S.P.

Shukla,S.R. Yadav,S.S. Chauhan,S.S.Srivastava,Sandeep Agarwal,Sanjai

Srivastava,Sanjay Om,Saumitra Singh,Somesh Khare,Subhash Chandra

Yadav,Sudhir Agarwal,U.N. Sharma,U.P. Singh,Udai Chandani,V.K.S.

Chaudhary,Vinod Misra,Vivek Singh,W.A. Siddiqui,Yashwant Verma,Yogesh

Agarwal,Z.K. Hasan

Hon'ble Sunil Ambwani,J.**(i) Orders on the application No. 110276 of 2012 dated 30.3.2012, application No. Nil dated 20.04.2012:-**

In pursuance to the earlier orders, the Official Liquidator has filed a report No. 128 (Jud.) of 2012, stating that he has verified the statement of pending bills with the copies of electricity bills submitted in the office of Official Liquidator. The statement has been drawn by the officials of the Official Liquidator attending accounts work. The statement disclosed an amount of Rs.2,84,92,939/- payable towards arrears of electricity dues in respect of Gurma, Dalla and Churk Units from the period from 9.12.1999 to 31.1.2007 i.e. from after the date of winding up and upto the date of taking over possession by the purchaser - M/s. Jai Prakash Associates Ltd (JAL).

The Court is informed that a reconciled and verified statement has been prepared after checking up of the bills, which were filed in the office of the Official Liquidator.

Prima facie, I am not satisfied with the report, as it does not give details of the bills which have already paid, the excess bills, the short amount and the amount liable to be paid.

Let the Official Liquidator submits a detailed statement, giving the

reasons as to why these bills were not verified earlier, and the reasons for non payment. The detailed method of calculation with regard to bills, which could not be considered for payment in the earlier orders will be placed on record.

Let this matter come up on **13.07.2012**.

(ii) Orders on EPF Matter:

The report submitted by Sri P.B. Bhattacharya, Assistant Provident Fund Commissioner EPFO, Varanasi produced by Sri Dhanajai Awasthi, learned counsel, annexing there with the statement of receipts and payments in respect of EPF Trusts Churk on Annexure-A and EPF Trust Dala on Annexure-B was filed 19.04.2012.

Let the report be filed on affidavit.

Sri Dhananjay Awasthi will file the report along with its annexures on affidavit, within a month.

The Statement of Accounts of 'receipts and payments' of EPF, Churk on Annexure-A and EPF Trust, Dala on Annexure-B shows that 364 and 387 employees respectively in the trusts have not been paid provident fund amount.

Sri Narendra Mohan appearing for the Secretary of the Dala Trust informs that all the document and forms of applications were forwarded to the Official Liquidator

Sr Ashok Mehta, learned counsel appearing for the Official Liquidator informs that some of the claims were received later. They were forwarded to the Provident Fund Commissioner, EPFO, Varanasi. He states that the Official Liquidator will find out whether any claim is still pending, and will forward the same, within a month along with verification, to the EPFO, Varanasi.

Sri Dhananjay Awasthi states that the office of EPFO, Varanasi may not have the names of the employees, who are still unpaid but if the names are available, a list of these employees will be forwarded to the Official Liquidator within 15 days.

There is handwritten note appended to Annexure-A and B as follows.

Annexure-A - in respect of EPF Trust, Churk

"Note: Bal. of 6/3 months PF benefits to be paid to the members".

Annexure-B - in respect of EPF Trust, Dalla

"Note: Bal. 10 months PF benefits to be paid to the members".

The details of the balance PF benefits to be paid to the members has not been given.

Let the details and the amount be given and that office of EPFO, Varanasi will pay these benefits to the employees of ex-workmen of the company (in liquidation). The entire remittance of the balance amount shall be made in the accounts of employees/ex-workmen/members of the trust within a month.

After some discussion, it was admitted that there are some accruals on the securities on the amount invested by these exempted trusts. Sri Dhananjai Awasthi requested that the Secretary of the Trusts may provide the details of accruals on the dates when the accounts were transferred to EPFO Varanasi.

The Ex-Secretaries of EPF Trust, Dala and the Ex- Secretary of EPF Trust Churk will give these details, if it is possible, to the Office of EPFO.

It is admitted by Sri Dhananjai Awasthi that there may be some accruals, subsequent to the transfer of the records in the office of EPFO, Varanasi. He will calculate these accruals and submit the details to the Court.

The question as to whether these accruals have to be paid to the members of the exempted trust, or entire accruals are to be remitted to EPF Trust at New Delhi will be considered after hearing of the concerned parties.

The Official Liquidator has filed a Report no. 82 (Jud.) of 2012 requesting for assistance of the employees of the Trusts, Churk and Dala for verification of the claims which are being received and which are still unpaid. There is no objection to the names of Ram Lal Singh, member EPF Trust Churk and Sri Matambar Patel, member EPF Trust Dala to be appointed for a period of two months to sit in the office of the Official Liquidator to assist him to search, verify and forward the unpaid claims of workmen to the office of EPFO Varanasi. They will be paid Rs.10,000/- each per month which will be charged to fund of the company in liquidation.

List on 13.07.2012.

(iii) Orders on the Application Nos. 18317 of 2010 and 99385 of 2011.

Sri J.K. Tiwari, learned standing counsel represents the State including the District Magistrate, Sonbhadra. Sri Ashok Mehta appears for the Official Liquidator. Sri U.S. Patole, Official Liquidator is present. Sri Yashwant Verma

appears for M/s. Jai Prakash Associates Ltd (JAL)

The U.P. Cement Corporation Ltd (in liquidation) was wind up on 8.12.1999. The assets of the Company were sold, and that dividend was declared after deciding the appeals by order dated 27.04.2007. The liquidation proceedings are still pending, on account of pendency of some applications relating to teachers, squatters on plot Nos. 113 and 179 in malin basti, Kota (Dala), Pargana Angori, Tehsil Robertsganj, District Sonbhadra, and for settlement of PF matters. There are some other matters, relating to liquidation expenses, in which claims have been made by the U.P. Power Corporation and others.

Almost all the secured creditors and ex-workmen have been paid their dues, from out of sale proceeds, in proceedings, which have lasted for several years.

Ghata Nos. 113 and 179, Village Kota (Dala), Pargana Angori, Tehsil Robertsganj, District Sonbhadra is in the front of factory gate. We are informed that raw material is passing through these Ghatas by over head rope way trolleys coming inside the factory, and thus there is an urgency for vacating the plots.

The application No. 18317 of 2010 was filed by Ajay Kumar and 250 others who had put their tin-sheds, jhuggi-joparis on these plots.

In order to identify the occupants of Ghata Nos. 113 and 179 and to rehabilitate them, a committee was formed with the Collector, Sonbhadra, Official Liquidator and representative of M/s. JAL, and that an equitable solution was worked out in which 268 families were offered Rs. one lac each by M/s. JAL and one biswa land to each of the families to be allotted by the District Magistrate from the Gaon Sabha land.

M/s. JAL gave bank guarantee for Rs.2.68 crores and the Collector, Sonbhadra filed a report of allotting Gaon Sabha land to each of these 268 families. A detailed order was passed on 19.11.2010, giving reasonable time to each of the family to accept Rs. One lac and the land, and to vacate the Ghatas.

After the exercise was over, an application No. 339019 of 2009 was filed by 117 persons claiming that they have been left out from identification and application No. 99385 of 2011 was filed by 255 persons, for the same relief. They have alleged that they have been left out from identification by the committee. On these applications, once again enquiries were made by the

office of District Magistrate, Official Liquidator and M/s. JAL to find out if there is any one left from identification, and an interim order was passed that the persons should not be displaced until the applications are decided.

After hearing learned counsel for the parties, I find that 78 ex-employees were included in 268 families who were identified by State agencies. These persons have accepted compensation under Section 529-A of the Companies Act 1956, on the condition that they will vacate the Government accommodation or the properties occupied by them. In the order dated 19.11.2010, a finding was recorded that these ex- employees have no right to receive any allotment or ex-gratia payment for illegally squatting on the company property. A further finding was recorded that 81 squatters have accepted the compensation, and have left.

In order to identify these persons, the Court required the Collector, Official Liquidator and M/s. JAL to provide a detailed list of persons, who are relatives of the same persons who are included in the application Nos. 18317 of 2010 and 99385 of 2011. Sri Yashwant Verma has provided these details in the application filed in May 2012. A consolidated list of these persons included in the application and those who are relatives of the applicants and those whose names are not appearing in the list of district administration is quoted hereunder:-

Status of relatives appearing with respect to list of 268 persons identified by the District Administration.

Application No. (with total no. of applicants)	No. of applicants covered in the district administration list	No. of relatives	No. of applicants whose names are not appearing in the list of District Administration
339010 of 09 (179)	66	39	74
18317 of 10 (251)	116	22	123
99385 of 11 (255)	13	114	128
Total No. of applicants 685	195	175	315

The detailed list, giving names and relations of the applicants and their status in the affidavit of Sri K.M. Abraham, Senior Officer, JAL would clearly demonstrate that having obtained the relief, which was given out of compassion, these persons have turned ambitious and have filed applications

through relatives, claiming them to be occupants who have been left out and also bringing fresh names who were not included in the list of district administration.

Having regard to the facts and hearing of the parties, I am of the view that now a firm date must be fixed for vacating the squatters from these plots. The 66 applicants in application No. 339019 of 2009; 116 applicants in application No. 18317 of 2010 and 13 applicants in the application No. 99385 of 2011 are already identified and included in the list of district administration. The 39 applicants in application No. 339019 of 2009; 22 applicants in application No. 18317 of 2010 and 114 applicants in the application No. 99385 of 2011 are relatives of persons who were also identified and are included in the list of the district administration. The remaining persons are subsequent squatters who may have occupied portions of these plots, subsequent to the exercise of identification carried out with help of Collector Sonebhadra.

The Court thus fixes 30.06.2012, as the date, on which the district administration shall remove the squatters from Ghata No. 113 and 179. Those who are placed in the original list of district administration and have not been paid compensation of rupees one lac and one biswa land, will apply to the District Magistrate and collect the amount. The district administration shall handover possession of one biswa land allotted to them before 30.6.2012, to construct their houses. No further time will be allowed to the squatters to vacate the Ghatas. The interim order passed in the application No. 18317 of 2010 on 25.1.2010 is discharged.

(iv) Order on the Application No. 158254 of 2008

The Official Liquidator will submit report by the next date.

List on 13.07.2012 for hearing

Let a copy of this order be supplied to Sri J.K. Tiwari, learned standing counsel free of costs.

Order Date :- 17.5.2012
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Court No. - 32

Case :- MISC. COMPANY APPLICATION No. - 4 of 1997

Petitioner :- In The Matter Of M/S U.P.State Cement Corporation Ltd.

Petitioner Counsel :- O.L.B.K.L.Srivastava,A.K. Pandey,Anil Mehrotra,Ashok Kumar Chaubey,Ashok Mehta,O.L.U.S.Patole,S.K. Singh,Saral Srivastava,Vipalav Sharma

Respondent Counsel :- Shiv Nath Singh,A.K. Gupta,A.K. Srivastava,A.K.Mehrotra,A.P. Singh,Achal Singh Vats,Ajal Krishna,Ajay Kumar Pandey,Amit Chaudhary,Amit Saxena,Anil Mehrotra,Anurag Khanna,Ashok Kumar Chaubey,Ashok Mehta,Ashutosh Pandey,B.D.Mandhyan,B.K. Mishra,B.N. Singh,Brijesh Kumar,C.B. Srivastava,C.B.Gupta,C.L. Pandey,C.S.C.,D.K. Srivastava,Devendra Singh,Govind Saran,H.N. Sharma,H.P. Dubey,I.S.Tomar,J. Nagar,J.N. Pandey,J.P.Mathur,Jayant Bannerji,K.C. Vishwakarma,K.K. Srivastava,Kush Saxena,L.K.Tiwari,L.P.Tiwari,Lalji Pandey,Manoj Kumar,Manoj Srivastava,N.K. Gupta,N.K. Verma,Narendra Mohan,Navin Sinha,O.P.Misra,P.K. Dalmiya (In Person),P.N.Tripathi,R.P. Agarwal,R.P. Srivastava,R.P. Tiwari,Rajendra Chaubey,Rajesh Kumar Pathak,Rajesh Kumar Singh,Ram Yash Pandey,S.C.,S.D.N.Singh,S.F. Ahmad,S.K. Yadav,S.M. Dayal,S.N. Singh,S.P. Shukla,S.R. Yadav,S.S. Chauhan,S.S.Srivastava,Sandeep Agarwal,Sanjai Srivastava,Sanjay Om,Saumitra Singh,Smt. Archana Singh,Somesh Khare,Subhash Chandra Yadav,Sudhir Agarwal,U.N. Sharma,U.P. Singh,Udai Chandani,V.K.S. Chaudhary,Vinod Misra,Vivek Singh,W.A. Siddiqui,Yashwant Verma,Yogesh Agarwal,Z.K. Hasan

Hon'ble Sunil Ambwani,J.

1) Order on Civil Misc. Recall Application Nos. 245711 & 14 of 2007, 245765 & 245766 of 2007, 245770 & 245771 of 2007, 245767 & 245769 of 2007, 109778 of 2008, 109774 of 2008, 109774 of 2008, and 109755 of 2008.

Shri Pankaj Bhatia, Advocate, appearing for the applicants states that the applicants pray to withdraw these applications filed on 12.10.2007 and 6.5.2008. The prayer is allowed. The applications are rejected as withdrawn.

2) Order on Civil Misc. Application No. 245698 of 2008 filed by Shri G.S. Rai on 12.10.2007

The application is adjourned to be heard on the next date.

3) Order on Civil Misc. Application No.232143 of 2007

This application has been filed by State Bank of India through Shri Jayant Banerji, Advocate on 27.9.2007 to correct the error apparent on the face of record in the Official Liquidator's Report No. 236 of 2007 filed on 24.9.2007.

Shri Ashok Mehta, appearing for Official Liquidator informs the Court, that the prayer made in the application has already been considered by this Court, and that the Court did not find any error in the orders. In substance, the prayer made in the application was rejected on 28.9.2007.

The application is consequently rejected.

4) Order on Civil Misc. Application No. Nil of 2007 (C-11)

This is an application filed by Shri Ashok Kumar Gaur and eight others through Shri Amit Saxena, Advocate for notifying the recalculation of the claims made by the Liquidation Claims Committee. This application was filed on 9.10.2007. The Official Liquidator informs that all the pending applications were rejected on 9.9.2008.

The application stands disposed of by order dated 9.8.2008.

5) Order on Civil Misc. Application No. Nil of 2006 (C-12)

This application was filed by Nagar Panchayat Churk-Gurma, Churk, District Sonebhadra through its Chairman.

No one appears to press the application.

List this application again, whenever the case is listed.

6) Order on Civil Misc. Application No.98704 of 2008.

This is an application filed by Shri Shyam Narain Dev Pandey through Shri Chandra Bhan Gupta.

The Official Liquidator informs that all the pending applications were rejected on 9.9.2008.

The application stands disposed of by order dated 9.9.2008.

7) Order on Civil Misc. Application No.192126 of 2008.

This is an application filed by Shri Siddh Raj Shukla and others through Shri S.R. Yadav.

The Official Liquidator informs that all the pending applications were rejected on 9.9.2008.

The application stands disposed of by order dated 9.9.2008.

8) Order on Civil Misc. Application Nos. 231033 of 2008, 231035 of 2008, 231032 of 2008 and 231030 of 2008.

These applications were filed on 7.8.2009 and 7.9.2008 for extension of time to file the claims. On 13.5.2008, 15 days' time was granted to file the claims. These applications have been filed more than a year after the extension was given for a further extension. There is no justification for grant of any extension.

The applications are rejected.

9) Order on Civil Misc. Application No.172559 of 2008.

By this application filed on 28.7.2008, the application has prayed for directing the Official Liquidator to prepare the correct claim regarding payment of gratuity of the applicant, and other retiral benefits with 18% interest.

A no dues certificate has been filed along with the rejoinder affidavit by which it is sought to be shown that there were no dues against him, which have been recovered by the Official Liquidator.

Since no dues certificate has been granted, the entire amount deducted by the Official Liquidator may be returned to the petitioner. The Official Liquidator will return the amount within six weeks.

The application is disposed of.

10) Order on Civil Misc. Application Nos.117861 of 2008 & 117865 of 2008.

By these applications, the applicants have prayed for increase of length of service of late Matru Ram-husband of the applicant and Shri Siddh Nath-the applicant from 14 years to 27 years.

All the applications for rectification of the claims were rejected by the Court on 9.9.2009. The prayers made in these applications cannot be considered at this stage.

The applications are rejected.

11) Order on Civil Misc. Application No.102249 of 2008.

This application was filed on 26.4.2008 by 22 ex-workmen with a prayer to up-date the provident fund pass book.

The provident fund claim has been settled with the help of the then Secretary and staff of the Trust after verification by the Regional Employees Provident Fund Commissioner, Varanasi.

The application, therefore, has become infructuous and is accordingly rejected.

12) Order on Civil Misc. Application Nos.141101 of 2009 & 117857 of 2008.

By these applications the applicants have prayed for allowing them to increase the length of service from 14 years to 27 years.

All the applications for rectification of the claims were rejected by the Court on 9.9.2009. The prayers made in these applications cannot be considered at this stage.

The applications are rejected.

13) Order on Civil Misc. Application No. 114242 of 2008

Let the application be listed on the next date, whenever the case is listed.

14) Order on Misc. Company Appeal No. 234094 of 2008

Let this appeal be listed on the next date fixed in the matter showing the name of Shri B.K.S. Raghuvansi as counsel for applicant.

15) Order on Civil Misc. Application No. 251221 of 2008

Let the application be listed on the next date fixed in the matter showing the name of Shri S.P. Shukla as counsel for applicant.

16) Order on Civil Misc. Application No. 243915 of 2008

The application was on 14.10.2008 by Shri T.N. Pandey for allowing him to occupy the quarter, until claims of EPF, Gratuity etc. are settled.

The claims of EPF, gratuity and other claims have already been settled and thus the reliefs claimed in the application have become infructuous.

The application is accordingly rejected.

17) Order on Civil Misc. Application No.227848 of 2008

This application was filed for submitting a fresh claim based on the award in Adjudication Case No. 119 of 1986 to be released in her bank account.

This application has been filed much after the last date for submitting the claims or the extended period was expired.

The application is accordingly rejected.

18) Order on Civil Misc. Application No. 305169 of 2008

Let the application be listed on the next date fixed in the matter showing the name of Shri Navin Srivastava as counsel for applicant.

19) Order on Civil Misc. Application No. 243922 of 2008

Let the application be listed on the next date fixed in the matter.

20) Order on Civil Misc. Application No. 158254 of 2008

This is an application for settlement of the claims by some persons claiming to be ex-workmen of the company (in liquidation).

Shri Ashok Mehta, appearing for Official Liquidator submits that the applicants (65 in number) were engaged by contractors. They were not workmen of the company (in liquidation).

During the course of arguments, it was stated that the provident fund of these persons was deducted and was deposited. If these persons have been assigned any numbers by the Provident Fund Trust, the Court may consider to investigate their claims.

Let the application come up for orders on the next date.

List on 27.7.2012 at 02.PM.

21) Order on Official Liquidator's Report No. Jud/141 of 2012

A report has been submitted by the Official Liquidator on the consolidated claims of the U.P. Power Corporation.

The matter will be taken up on the next date.

Order Date :- 13.7.2012

RKP

Court No. - 32

Case :- MISC. COMPANY APPLICATION No. - 4 of 1997

Petitioner :- In The Matter Of M/S U.P.State Cement Corporation Ltd.

Petitioner Counsel :- O.L.B.K.L.Srivastava,A.K. Pandey,Anil Mehrotra,Ashok Kumar Chaubey,Ashok Mehta,O.L.U.S.Patole,S.K. Singh,Saral Srivastava,Vipalav Sharma

Respondent Counsel :- Shiv Nath Singh,A.K. Gupta,A.K.

Srivastava,A.K.Mehrotra,A.P. Singh,Achal Singh Vats,Ajal Krishna,Ajay Kumar Pandey,Amit Chaudhary,Amit Saxena,Anil Mehrotra,Anurag Khanna,Ashok Kumar Chaubey,Ashok Mehta,Ashutosh Pandey,B.D.Mandhyan,B.K. Mishra,B.N. Singh,Brijesh Kumar,C.B. Srivastava,C.B.Gupta,C.L. Pandey,C.S.C.,D.K. Srivastava,Devendra Singh,Govind Saran,H.N. Sharma,H.P. Dubey,I.S.Tomar,J. Nagar,J.N. Pandey,J.P.Mathur,Jayant Bannerji,K.C. Vishwakarma,K.K. Srivastava,Kush Saxena,L.K.Tiwari,L.P.Tiwari,Lalji Pandey,Manoj Kumar,Manoj Srivastava,N.K. Gupta,N.K. Verma,Narendra Mohan,Navin Sinha,O.P.Misra,P.K. Dalmiya (In Person),P.N.Tripathi,R.P. Agarwal,R.P. Srivastava,R.P. Tiwari,Rajendra Chaubey,Rajesh Kumar Pathak,Rajesh Kumar Singh,Ram Yash Pandey,S.C.,S.D.N.Singh,S.F. Ahmad,S.K. Yadav,S.M. Dayal,S.N. Singh,S.P. Shukla,S.R. Yadav,S.S. Chauhan,S.S.Srivastava,Sandeep Agarwal,Sanjai Srivastava,Sanjay Om,Saumitra Singh,Smt. Archana Singh,Somesh Khare,Subhash Chandra Yadav,Sudhir Agarwal,U.N. Sharma,U.P. Singh,Udai Chandani,V.K.S. Chaudhary,Vinod Misra,Vivek Singh,W.A. Siddiqui,Yashwant Verma,Yogesh Agarwal,Z.K. Hasan

Hon'ble Sunil Ambwani,J.

(i) Order on the Applications C-31, C-45 to 57, C-70 to C-94, C-96 to C-102:

Case was called out.

Sri Ashok Mehta, appearing for the Official Liquidator submits that all the pending applications of the workmen filed till 09.09.2008, were considered by the Court, and on the same day, an order was passed, directing the Official Liquidator, to carry out advertisement notifying that no further applications will be entertained. On 18.09.2008, it was found that the advertisement was not correctly made out, and a fresh advertisement was required to be made out stating that any person who wishes to seek clarification or modification of his claim, may make the application by 15.10.2008. A final report was submitted by the Official Liquidator on these applications, which was accepted.

In view of above, these applications stand **disposed of**.

(ii) Order on the Application C-33:

Case was called out. None appears for the applicant.

Sri Ashok Mehta, appearing for the Official Liquidator

submits that there is no explanation for the delay in entertaining the claim.

The application is **rejected**.

(iii) Order on the Application C-34:

Case was called out.

None appears for the applicant.

Sri Ashok Mehta, appears for the Official Liquidator.

By this application, the applicant Smt. Prabhawati has prayed for a direction to the Official Liquidator, to release the amount of General Insurance Scheme.

The GIS Policy was issued by the Life Insurance Corporation (LIC), Varanasi.

The application has been wrongly addressed to the Official Liquidator.

It will be open to the applicant to pursue her claim with LIC.

The application is accordingly **dismissed**.

(iv) Order on the Applications C-35 and C-68:

Case was called out.

None appears for the applicant.

Sri Ashok Mehta, appears for the Official Liquidator.

By this application, the applicants have prayed for directions, not to disconnect the water and electricity connection from the quarters occupied by them.

Almost all the workmen have handed over possession of the company's property, after receiving compensation. The applications have become infructuous.

It is accordingly **dismissed**.

(v) Order on the Applications C-36, C-42 and C-62:

Case was called out.

None appears for the applicant.

Sri Ashok Mehta, appears for the Official Liquidator.

By this application, the applicants have prayed for directions not to dispossess them from the company's quarters.

The compensation has been deposited in the accounts of the ex-workers, and almost all the workmen have handed over possession of the company property, after receiving compensation. The applications have become infructuous.

It is accordingly **rejected**.

(vi) Order on the Applications C-37, 38, 39, 40, 41 and C-43:

Case was called out.

None appears for the applicant.

Sri Ashok Mehta, appears for the Official Liquidator.

These applications have been filed for modification/reconsideration of the claim of the applicants who are ex-employees of the Company (in liquidation).

Sri Ashok Mehta, appearing for the Official Liquidator submits that all the pending applications of the workmen filed till 09.09.2008, were considered by the Court, and on the same day an order was passed, directing the Official Liquidator to carry out advertisement that no further applications will be entertained. On 18.09.2008, it was found that the advertisement was not correctly made out, and a fresh advertisement was required to be made that any person who wishes to seek clarification or modification of his claim, may make the application by 15.10.2008.

A final report was submitted by the Official Liquidator on these applications, which was accepted. No modification/clarification was accepted after the extended date. The dividend has also been paid to the workers.

The applications are **rejected**.

(vii) Order on the Application C-44:

Heard Sri Indrasen Singh Tomar for the applicant. Sri Ashok Mehta, appears for the Official Liquidator.

The applicant claims to be material building contractor. He submitted a claim for Rs.1,84,00,070/-. The Official Liquidator vide letter dated 08.12.2006 (Form No.69) admitted the claim of the applicant to the extent of Rs.1,14,671/- being unpaid bill and Rs.6,50,955/- being security deposit, without any interest. The Official Liquidator found that there was no proof for further balance claim.

The petitioner ranks as unsecured creditor. After the declaration of the final dividends by order dated 27.04.2007, no amount was available in the account of the Company in the liquidation proceedings, for settlement of the claim of unsecured creditor. All the applications of unsecured creditor were considered and all the claims were rejected. on 27.04.2007.

This application is accordingly **rejected**.

(viii) Order on the Application C-58:

Heard Sri Indrasen Singh Tomar for the applicant. Sri Ashok Mehta, appears for the Official Liquidator.

The applicant claims to be wife of Late Ramvraksha Yadav (ex employee of the U.P. Cement Corporation (under liquidation)). The claim of the applicant has not been settled by the Official Liquidator on account of objection filed by the second wife of Late Ramvraksha Yadav.

Let the applicant impleads the second wife of Late Ramvraksha Yadav as party to this application.

List this application whenever the matter is listed again.

In the meantime, it will be open to the applicant, to apply for succession certificate under the Indian Succession Act before the competent court.

(ix) Order on the Applications C-59 and 61:

List these applications whenever the matter is listed again.

(x) Order on the Application C-60:

This application was filed on 21.05.2009 by 4 workmen with a prayer to update the provident fund pass book.

The provident fund claim has been settled with the help of the then Secretary and Staff of the Trust after verification by the Regional Employees Provident Fund Commissioner, Varanasi.

The application, therefore, has become infructuous and is accordingly **rejected**.

(xi) Order on the Application C-63:

This appeal, against part rejection of the claim of the appellant, which is in the nature of unsecured debt being deposited with the Company (under liquidation), was heard in part.

List for further hearing whenever the matter is listed again

(xii) Order on the Application C-64:

We have Sri Yogesh Agarwal for the applicant. Sri J.K. Tiwari, learned standing counsel appears for the respondents. Sri Ashok Mehta appears for the Official Liquidator. The applicants are claiming to be visiting teachers, and are seeking parity with Mahavir Tiwari for payment of Rs.3,000/-, as directed by the Court ,from 8.12.999 upto the date they worked in the institution.

The District Inspector of Schools has verified from Sri Deveksh Kumar Sharma, the Principal of the College and has informed the Chief Standing Counsel vide letter dated 9.5.2012, that the applicants were engaged as visiting teachers in the college, however, they did not work after 8.12.1999.

Sri Yogesh Agarwal has filed an affidavit denying the allegations that the applicants had not worked after 8.12.1999.

I find that the report of the District Inspector of Schools is incomplete. It is only based on the letter of Sri Devesh Kumar Sharma, the Principal of the College dated 4.12.2011. The District Inspector of Schools has not relied upon his own records about the sanction of posts, number of teachers working in the institution, manner of appointment of the applicants and the period they had actually worked in the institution. Let an affidavit be filed by responsible officer in the Office of District Inspector of Schools, Sonbhadra, based on the records maintained in his office.

List the application, whenever matter is listed again.

Let a copy of this order be supplied to the learned standing counsel, free of cost, for compliance.

(xiii) Order on the Application C-136:

Heard learned counsel for the applicant. Sri Ashok Mehta appears for the Official Liquidator.

This application has been filed by 65 persons, who were engaged by contractors.

Learned counsel for the applicants states that he will give EPF Numbers of these workmen, if their accounts were opened, to the Official Liquidator.

Once the EPF Numbers are given by the applicants, the Official Liquidator will verify, and submit his report.

(xiv) Order on Application C-95

Heard Shri Achal Singh Vats, learned counsel for the applicant. Shri Ashok Mehta appears for the Official Liquidator.

This is an application for condonation of delay under Rule 177 of the Companies (Court) Rules, 1959 for making a claim in respect of late Shri Balwant Singh Negi, as ex-workman (peon in the administrative office of the Company (In Liq.) at Lucknow) in liquidation proceedings of the U.P. State Cement Corporation Ltd. It is stated that late Shri Balwant Singh Negi and one Shri Rang Bahadur were appointed as peon and chowkidar respectively in the office of the U.P. Cement Corporation at Lucknow in mid 1970s in

the fixed pay scale of Rs.165-250/-. They were given regular appointment on 30.10.1979. Their services were terminated on 18.11.1985. Both of them filed writ petitions. The writ petition of Shri Rang Bahadur was allowed, following the same order holding that the petitioner's services were terminated without following any procedure in law, and giving any notice, with three month's pay as provided under rule 23 of the U.P. State Cement Corporation Employees Services Rules.

The Lucknow Bench of this Court allowed the Writ Petition No.6393 of 1985, Balwant Singh Negi v. U.P. State Cement Corporation connected with Writ Petition No.6395 of 1985, Rang Bahadur v. U.P. State Cement Corporation on 3.4.1997.

It is alleged that Rang Bahadur lodged his claim, which was adjudicated and that he has been paid compensation. Shri Balwant Singh died on 2nd March, 1998 after which his widow with her small children migrated to Uttarakhand, where she is living at Haldwani. She had no knowledge of the advertisement made by the Official Liquidator, which was concentrated in District Sonbhadra and at Lucknow. She is very poor and is somehow looking after her two small children working as domestic help. It is only when she visited Lucknow that she came to know from Shri Rang Bahadur, the colleague of her husband, that he had made a claim as ex-workmen on the strength of the High Court's order in Writ Petition No.6395 of 1985 dated 3.4.1997, against which special appeal was dismissed on 10.10.2006.

I find the grounds for condonation of delay to be good and sufficient. Although by order dated 9.9.2008 and 18.9.2008 an advertisement was directed to be made that no further claims will be accepted, this case appears to be a genuine case, which is an exception in which claim of applicant's husband was adjudicated by the Lucknow Bench of this Court, and that she was living in Uttarakhand in abject poverty and did not have the knowledge of proceedings of filing the claim.

The delay is condoned. Let appropriate claim be filed within a month, which will be adjudicated by the Official Liquidator. The Official Liquidator will give the claim the same treatment as in the case of Shri Rang Bahadur. This order shall not be treated as precedent in other cases for condonation of delay

in filing claims.

The application is accordingly **disposed of**.

(xv) Order on Order Sheet

List this matter on 03.08.2012.

Order Date :- 27.7.2012

nethra/SP

Court No. - 32

Case :- MISC. COMPANY APPLICATION No. - 4 of 1997

Petitioner :- In The Matter Of M/S U.P.State Cement Corporation Ltd.

Petitioner Counsel :- O.L.B.K.L.Srivastava,A.K. Pandey,Anil Mehrotra,Ashok Kumar Chaubey,Ashok Mehta,O.L.U.S.Patole,S.K. Singh,Saral Srivastava,Vipalav Sharma

Respondent Counsel :- Shiv Nath Singh,A.K. Gupta,A.K.

Srivastava,A.K.Mehrotra,A.P. Singh,Achal Singh Vats,Ajal Krishna,Ajay Kumar Pandey,Amit Chaudhary,Amit Saxena,Anil Mehrotra,Anurag Khanna,Ashok Kumar Chaubey,Ashok Mehta,Ashutosh Pandey,B.D.Mandhyan,B.K. Mishra,B.N. Singh,Brijesh Kumar,C.B. Srivastava,C.B.Gupta,C.L. Pandey,C.S.C.,D.K. Srivastava,Devendra Singh,Govind Saran,H.N. Sharma,H.P. Dubey,I.S.Tomar,J. Nagar,J.N. Pandey,J.P.Mathur,Jayant Bannerji,K.C. Vishwakarma,K.K. Srivastava,Kush Saxena,L.K.Tiwari,L.P.Tiwari,Lalji Pandey,Manoj Kumar,Manoj Srivastava,N.K. Gupta,N.K. Verma,Narendra Mohan,Navin Sinha,O.P.Misra,P.K. Dalmiya (In Person),P.N.Tripathi,R.P. Agarwal,R.P. Srivastava,R.P. Tiwari,Rajendra Chaubey,Rajesh Kumar Pathak,Rajesh Kumar Singh,Ram Yash Pandey,S.C.,S.D.N.Singh,S.F. Ahmad,S.K. Yadav,S.M. Dayal,S.N. Singh,S.P. Shukla,S.R. Yadav,S.S. Chauhan,S.S.Srivastava,Sandeep Agarwal,Sanjai Srivastava,Sanjay Om,Saumitra Singh,Smt. Archana Singh,Somesh Khare,Subhash Chandra Yadav,Sudhir Agarwal,U.N. Sharma,U.P. Singh,Udai Chandani,V.K.S. Chaudhary,Vinod Misra,Vivek Singh,W.A. Siddiqui,Yashwant Verma,Yogesh Agarwal,Z.K. Hasan

Hon'ble Sunil Ambwani,J.

(i) Order on the Application C-64:

Learned standing counsel prays for and is granted three weeks further time to file affidavit verifying the service period of the applicants.

(ii) Order on the Application C-103:

The applicants have served as clerk/peon in the schools run by the U.P. Cement Corporation (in liquidation). They are claiming parity with the teachers, for payment of salary from the year 2006 to till date.

The Company was wound up on 8.12.1999. The dividend was declared on 31.07.2006. By order dated 27.04.2007, all the claims of employees were considered and decided.

This application was filed on 9.9.2009. There is absolutely no justification for the claim.

The application is rejected.

(iii) Order on the Application C-104:

The applicant claims to be son of Late Sri Ram Khelawan - an ex-workman of the U.P. Cement Corporation (in liquidation).

It is alleged that Sri Ram Khelawan died on 16.6.2007, and the amount settled released in favour of Sri Ram Khelawan, is still lying in his account. The applicant prays for a direction to release the amount, which is lying in Ram Khelawan's Account, to his account.

This court has already settled the claim of the ex-workman. The Court is not adjudicating the succession, in these proceedings. It will be open to the applicant to produce the succession certificate to the bank, for claiming the amount.

The application is accordingly rejected.

(iv) Order on the Application C-105:

Heard Sri Bhoopendra Nath Singh for the applicant. Sri Ashok Mehta appears for the Official Liquidator.

The applicant is son of Late Sri Kanhaiya - an ex-workman who raised an industrial dispute, and in his favour an award was declared on 5.1.1991. The Company was wound up on 8.12.1999. The dividend was declared on 31.07.2006. By order dated 27.04.2007, all the claims of employees were considered and decided.

This application has been filed on 3.5.2009. It is stated that the father of the applicant died on 5.6.2002, and the applicant, living in the village, was not aware of the order dated 27.04.2007.

The applicant claims to be resident of village Parshauti, Tehsil Rabortsganj, District Sonbhadra. The Company (in liquidation) is situate in the same district. It is difficult to believe that the applicant aged about 42 years had no knowledge of the proceeding. After declaration of final dividend, it is not appropriate to entertain any further claim.

There is no good ground, to condone the delay.

The delay condonaiton application and the claim application are rejected.

(v) Order on the Application C-106:

This application has been filed on 28.08.2009, for a direction to the Official Liquidator to calculate claim of the applicant in accordance with paras 42 and 60 of the order of the Court dated 27.4.2007 and GO dated 3.8.1999.

Sri Ashok Mehta appearing for the Official Liquidator submits that all the pending applications of the workmen filed till 9.9.2008 were considered. In pursuance to the direction of the Court, an advertisement was issued inviting objection/modification or clarification of claim by 15.10.2008, and all the rectification applications were decided on 3.3.2009.

This application, filed on 28.08.2009, is unreasonably delayed, for which no cause has been shown.

This application is rejected.

(vi) Order on the Application C-107:

This application has been filed on 22.07.2009, to recall the order dated 18.09.2008, on the ground that the counsel could not mark the case.

Sri Ashok Mehta appearing for the Official Liquidator submits that all the pending applications of the workmen filed till 9.9.2008 were considered. In pursuance to the direction of the Court, an advertisement was issued inviting objection/modification or clarification of claim by 15.10.2008, and all the rectification applications were decided on 3.3.2009.

No good and sufficient cause has been shown, to recall the order.

The application is rejected.

(vii) Order on the Application C-108:

This application has been filed for a direction to the Official Liquidator to transfer the settled amount deposited in the bank account of applicant's (deceased) father to his bank account.

This court has already settled the claim of the ex-workman. The Court is not adjudicating the succession, in these proceedings. It will be open to the applicant, to produce the

succession certificate to the bank, for claiming the amount.

The application is accordingly disposed of.

(viii) Order on the Application C-109:

This application has been filed by Smt. Sundari wife of Late Sri Manbodh on 20.12.2010, for condonation of delay in submitting the claim on behalf of her late husband who was working as casual worker in the Company (under liquidation) and retired on 30.06.1995.

The Company was wound up on 8.12.1999. The dividend was declared on 31.07.2006. By order dated 27.04.2007, all the claims of employees were considered and decided. All the pending applications, as on 9.9.2008, were also decided. The claim is highly delayed. In any case, the husband of the applicant was a casual labour, and was not in employment after 30.06.1995.

The application is rejected.

(ix) Order on the Applications C-110 and C-111:

These applications have been filed by the persons, engaged for the essential services in the colonies of the Company (in liquidation).

A direction was already issued on 26.05.09, for payment of wages to the employees engaged in essential service from 27.07.2001 to 1.2.2008.

It is stated in the applications that the applicants were paid their remuneration from 27.07.2001 to 01.02.2008. By these applications, they are claiming wages from December 1999 to 27.07.2011.

The Company was wound up on 8.12.1999. After the winding up of the Company (in liquidation) the workers were not entitled to be paid. The Court had passed the orders to maintain the essential services in the colonies on humanitarian ground and the persons engaged for that purpose had already been paid remuneration. The orders were applicable from the date when the Official Liquidator had taken over charge, and not prior to that date.

The applications are accordingly rejected.

(x) Order on the Application C-112:

Sri B.N. Singh prays for and is granted a month's time to file copy of the award on the basis of which this application has been filed and list along with Application No. 272167 of 2008.

(xi) Order on the Application C-113:

This application has been filed on 26.10.2009 for accepting the claim of the applicants. They are all residents of District Sonbhadra.

The Company was wound up on 8.12.1999. The dividend was declared on 31.07.2006. By order dated 27.04.2007, all the claims of employees were considered and decided. All the pending applications, as on 9.9.2008, were also decided.

The claim is reasonably delayed, for which no cause has been shown.

This application is rejected.

(xii) Order on the Application C-114:

This application has been filed on 13.7.2009. No one appears for the applicant.

Sri Ashok Mehta appearing for the Official Liquidator submits that all the pending applications of the workmen filed till 9.9.2008 were considered. In pursuance to the direction of the Court, an advertisement was issued inviting objection/modification or clarification of claim by 15.10.2008, and all the rectification applications were also decided on 3.3.2009.

The application is rejected.

(xiii) Order on the Application C-116:

This application has been filed on 13.7.2009. No one appears for the applicant.

Sri Ashok Mehta appearing for the Official Liquidator submits that all the pending applications of the workmen filed till 9.9.2008 were considered. In pursuance to the direction of the Court, an advertisement was issued inviting

objection/modification or clarification of claim by 15.10.2008, and all the rectification applications were also decided on 3.3.2009.

The application is rejected.

(xiv) Order on the Application C-117:

This application has been filed by Smt. Munni Devi and Smt. Geeta Devi daughters of Late Sri Badri on 24.08.2009, for accepting the claim on behalf of their late father Badri who was working as casual worker in the Company (under liquidation) and died on 15.12.1988.

The Company was wound up on 8.12.1999. The dividend was declared on 31.07.2006. By order dated 27.04.2007, all the claims of employees were considered and decided. All the pending applications, as on 9.9.2008, were also decided. The claim is highly delayed.

The application is rejected.

(xv) Order on the Application C-118:

The applicant claims to be Electrical Engineer, and claims Rs.5,000/- per month in terms of the order passed by the Court for allowing those persons to look after the essential services in the colony.

The petitioner, whose qualification are not disclosed in the application, was engaged as Electrician, to look after the public services in the colony during the period when the possession of the Company (under liquidation) was under the Official Liquidator, and was accordingly paid Rs. 3,000/- per month. His claim for Rs.5,000/- per month is not justified.

The application is rejected.

(xvi) Order on the Application C-119:

This application has been filed by Smt. Lilawati Devi wife of Late Siya Ram Singh on 23.1.2011, for a direction to the Official Liquidator to send original service documents of the applicant's husband to General Manager District Industrial Centre, Sonbhadra from which pensionary benefit may be

provided to her.

The applicant's husband, claiming to be served in the company (under liquidation) was retired on 31.01.1993.

The petitioner has not annexed certificate from the Official Liquidator regarding service of her husband Late Siya Ram Singh - ex employee of the State Government for the purposes of claiming pension.

It is stated by Sri Ashok Mehta, learned counsel appearing for the Official Liquidator that every person has been issued the certificate after verification.

The Official Liquidator is directed to verify the record, and issue the certificate to the applicant, within four weeks.

The application is disposed of.

(xvii) Order on the Application C-120:

This application has been filed on 11.5.2012, for accepting the claim of the applicant.

The Company was wound up on 8.12.1999. The dividend was declared on 31.07.2006. By order dated 27.04.2007, all the claims of employees were considered and decided. All the pending applications, as on 9.9.2008, were also decided. The claim is highly delayed.

The application is rejected.

(xviii) Order on the Application C-121:

This application has been filed on 6.7.2010, for accepting the claim of the applicant. The applicant is resident of District Sonbhadra.

The Company was wound up on 8.12.1999. The dividend was declared on 31.07.2006. By order dated 27.04.2007, all the claims of employees were considered and decided. All the pending applications, as on 9.9.2008, were also decided.

The claim, is highly delayed, for which no good ground has been shown, to condone the delay.

This application is rejected.

(xix) Order on the Application C-122:

This application has been filed on 22.04.2010.

Sri Ashok Mehta appearing for the Official Liquidator submits that all the pending applications of the workmen filed till 9.9.2008 were considered. In pursuance to the direction of the Court, an advertisement was issued inviting objection/modification or clarification of claim by 15.10.2008, and all the rectification applications were also decided on 3.3.2009.

The application is rejected.

(xx) Order on the Applications C-123, 124, 125, 125-A and 126:

Sri Ashok Mehta appearing for the Official Liquidator submits that the claims of all the squatters from Ghata Nos. 113 and 179 was considered by the Court in detail, and covered by the order dated 17.05.2012.

The applications are rejected.

(xxi) Order on the Application No. 289969 of 2010 [C-127]:

We have heard Sri Narendra Mohan for the applicant. Sri Ashok Mehta appears for the Official Liquidator.

By this application, the applicant Sri Prabhu Narain and Dinesh have prayed for a direction to Official Liquidator to pay salary of Rs.2,000/- per month to them from 1.8.2001. It is alleged that the applicants have been appointed by the Secretary of the GPF Trust, Dala for assisting them.

The applicants relied upon an order of this Court dated 12.07.2006, by which it was provided that in case the Secretaries of the Trusts, require any secretarial assistance or any financial help, they may claim it from the Official Liquidator. The order dated 12.07.2006, did not authorize the Secretaries of the Trusts, to appoint any person. The Secretaries of the Trusts and their staff maintaining the Trust Accounts and documents were sitting idle and were asked to maintain the Trust Accounts. There was no occasion nor any necessity to appoint peon on adhoc basis to assist them.

They also did not take consent of the Official Liquidator in making such appointment.

The claim of the applicants is wholly misconceived and is accordingly rejected.

(xxii) Order on the Application No. 112950 of 2011 [C-128]:

We have heard Sri Narendra Mohan for the applicant. Sri Ashok Mehta appears for the Official Liquidator.

The applicant No. 1 Suhail Sultan was the Secretary of the Employees Provident Fund Trust, Dala with Registration No. 4427. The applicant Nos. 2 to 6 were providing clerical assistance to the trust documents and accounts. The trust was exempted from EPF Miscellaneous Provisions Act 1957.

The Accounts of the Trusts were handed over and were got audited by the EPF Commissioner, Varanasi.

In the proceedings of liquidation, the following order as passed on 26.05.2009.

"The Court thus find that the employees of the EPF trust accounts of Churk and Dala of the company (in liq.) will be entitled and shall be paid for their services w.e.f 27.07.2001. In para 148 at page 84 of the order dated 27.04.2007, the Court had taken notice and directed that the Secretaries of these two trust shall be paid at the rate of Rs.5000/- and the remaining clerical staff (5 in Dala and 2 in Churk) shall be paid at the rate of Rs.3000 w.e.. 27.7.2001 to the date when the trusts are finally wound up by the Court.

Both these Secretaries are directed to close their accounts w.e.. 31st March, 2009. They will be entitled to payments at the rates given above only upto 31st Mach, 2009. The accounts will be audited by the Employees Provident Fund Commissioner. The payment shall be made to them only after the accounts are audited to the satisfaction of the Official Liquidator. The EPF Commissioner will be entitled to credit the amount of the cost of the audit to the remaining fund in the EPF Trust.

The application is accordingly disposed of."

The applicants have been paid their wages for the period they worked i.e. upto 31.3.2009.

It is submitted that though the accounts of the trust were handed over to the EPF Commissioner, but the work of verification continued after 31.3.2009. The applicants were verifying the claims and were handling the records, which were finally handed over to the Official Liquidator on 31.3.2011.

By means of this application, the applicants have claimed payment from 1.4.2009 to 31.3.2011, for the work performed by them for the trust, which was the work performed by the Official Liquidator, and for which an order was passed on 26.5.2009.

It is admitted by the Official Liquidator that the work continued upto 31.3.2011 and that thereafter the entire documents were handed to the office of Official Liquidator, and since thereafter the work of verification is being looked after by the office of Official Liquidator.

Having regard to the special facts and circumstances in which the applicants continued to perform the duty assigned to them by the Court or by the Official Liquidator, I direct that the applicant No.1 will be paid @ Rs.5000/- per month and applicant Nos. 2 to 6 @ Rs.2,000/- per month each from 1.4.2009 to 31.3.2011

Let the Official Liquidator will make the payment after submission of claim along with certified copy of this order from the funds of the accounts.

The application is rejected.

(xxiii) Order on the Application No. 57575 of 2011 [C-129]:

This is an application, to recall the order dated 19.11.2010.

The applicants were working in the accounts department. Even if they are working after the date of winding up, their claim cannot be accepted as the Official Liquidator has taken over charge of the assets of the Company (under liquidation) on 27.07.2001, and thereafter persons required for essential service and those who were permitted to look after the trust records and accounts were directed to be paid. The applicants were not allowed to work by the Official Liquidator, nor they were part of the team of the Secretary,

for which orders were separately passed for their payment.

The application for recall is rejected.

(xxiv) Order on the Application No. 158254 of 2008 [C-136]:

The applicants claim to be contract labour. They were working with the Company (under liquidation) through contractors. They are not entitled to claim wages of the workmen of the Company (under liquidation).

In order to verify their claim for EPF, the Court directs that in case the applicants make appropriate application with the EPF Commissioner, Varanasi, the EPF Commissioner will verify within four weeks, whether the contractors engaged by the company in liquidation was registered and whether the share of the applicants was deducted and deposited along with the contribution of the contractor in their EPF Account.

Let the application will come after the report of the EPF Commissioner.

Order Date :- 7.9.2012

nethra

Case :- MISC. COMPANY APPLICATION No. - 4 of 1997

Applicant :- In The Matter Of M/S U.P.State Cement Corporation Ltd.

Counsel for Applicant :- O.L.B.K.L.Srivastava,A.K. Pandey,Anil Mehrotra,Ashok Kumar Chaubey,Ashok Mehta,O.L.U.S.Patole,S. Niranjan,S.K. Singh,Saral Srivastava,Vipalav Sharma

Counsel for Opposite Party :- Shiv Nath Singh,A.K. Gupta,A.K. Srivastava,A.K.Mehrotra,A.P. Singh,Achal Singh Vats,Ajal Krishna,Ajay Kumar Pandey,Amit Chaudhary,Amit Saxena,Anil Mehrotra,Anurag Khanna,Ashok Kumar Chaubey,Ashok Mehta,Ashutosh Pandey,B.D.Mandhyan,B.K. Mishra,B.N. Singh,Brijesh Kumar,C.B. Srivastava,C.B.Gupta,C.L. Pandey,C.S.C.,D.K. Srivastava,Devendra Singh,Govind Saran,H.N. Sharma,H.P. Dubey,I.S.Tomar,J. Nagar,J.N. Pandey,J.P.Mathur,Jayant Bannerji,K.C. Vishwakarma,K.K. Srivastava,Kush Saxena,L.K.Tiwari,L.P.Tiwari,Lalji Pandey,Manoj Kumar,Manoj Srivastava,N.K. Gupta,N.K. Verma,Narendra Mohan,Navin Sinha,O.L. O.P. Sharma,O.P.Misra,P.K. Dalmiya (In Person),P.N.Tripathi,R.P. Agarwal,R.P. Srivastava,R.P. Tiwari,Rajendra Chaubey,Rajesh Kumar Pathak,Rajesh Kumar Singh,Ram Yash Pandey,S.C.,S.D.N.Singh,S.F. Ahmad,S.K. Yadav,S.M. Dayal,S.N. Singh,S.P. Shukla,S.R. Yadav,S.S. Chauhan,S.S.Srivastava,Sandeep Agarwal,Sanjai Srivastava,Sanjay Om,Saumitra Singh,Smt. Archana Singh,Somesh Khare,Subhash Chandra Yadav,Sudhir Agarwal,U.N. Sharma,U.P. Singh,Udai Chandani,V.K.S. Chaudhary,Vinod Misra,Vivek Singh,W.A. Siddiqui,Yashwant Verma,Yogesh Agarwal,Z.K. Hasan

Hon'ble Pankaj Mithal,J.

Several applications are pending consideration.

Some of them are on behalf of M/s Jaiprakash Associates Ltd. and other on behalf of Jirva Devi wife of late Tulsi Ram.

Since Sri Ashok Mehta, who is appearing on behalf of Official Liquidator, is not present today, list these applications in the next cause list by which time Official Liquidator may file response if not already filed.

Order Date :- 27.1.2016

Piyush

Court No. - 38

Case :- MISC. COMPANY APPLICATION No. - 4 of 1997

Applicant :- In The Matter Of M/S U.P.State Cement Corporation Ltd.

Counsel for Applicant :- O.L.B.K.L.Srivastava,A.K. Pandey,Anil Mehrotra,Ashok Kumar Chaubey,Ashok Mehta,O.L.U.S.Patole,S. Niranjan,S.K. Singh,Saral Srivastava,Vipalav Sharma

Counsel for Opposite Party :- Shiv Nath Singh,A.K. Gupta,A.K. Srivastava,A.K.Mehrotra,A.P. Singh,Achal Singh Vats,Ajal Krishna,Ajay Kumar Pandey,Amit Chaudhary,Amit Saxena,Anil Mehrotra,Anurag Khanna,Ashok Kumar Chaubey,Ashok Mehta,Ashutosh Pandey,B.D.Mandhyan,B.K. Mishra,B.N. Singh,Brijesh Kumar,C.B. Srivastava,C.B.Gupta,C.L. Pandey,C.S.C.,D.K. Srivastava,Devendra Singh,Govind Saran,H.N. Sharma,H.P. Dubey,I.S.Tomar,J. Nagar,J.N. Pandey,J.P.Mathur,Jayant Bannerji,K.C. Vishwakarma,K.K. Srivastava,Kush Saxena,L.K.Tiwari,L.P.Tiwari,Lalji Pandey,Manoj Kumar,Manoj Srivastava,N.K. Gupta,N.K. Verma,Narendra Mohan,Navin Sinha,O.L. O.P. Sharma,O.P.Misra,P.K. Dalmiya (In Person),P.N.Tripathi,R.P. Agarwal,R.P. Srivastava,R.P. Tiwari,Rajendra Chaubey,Rajesh Kumar Pathak,Rajesh Kumar Singh,Ram Yash Pandey,S.C.,S.D.N.Singh,S.F. Ahmad,S.K. Yadav,S.M. Dayal,S.N. Singh,S.P. Shukla,S.R. Yadav,S.S. Chauhan,S.S.Srivastava,Sandeep Agarwal,Sanjai Srivastava,Sanjay Om,Saumitra Singh,Smt. Archana Singh,Somesh Khare,Subhash Chandra Yadav,Sudhir Agarwal,U.N. Sharma,U.P. Singh,Udai Chandani,V.K.S. Chaudhary,Vinod Misra,Vivek Singh,W.A. Siddiqui,Yashwant Verma,Yogesh Agarwal,Z.K. Hasan

Hon'ble Pankaj Mithal,J.

On the pointing out of Sri Ashok Mehta, Senior Counsel, appearing for the Official Liquidator in this matter, let Standing Counsel may obtain instructions and file report with regard to the action taken by the State Government pursuant to the order dated 11.05.2012.

Standing Counsel, if necessary, may collect the copy of the aforesaid order either from the office of the Official Liquidator or from the Company Section.

List on 23rd February, 2016.

In the meantime, Official Liquidator may prepare his up-to-date reports in all pending applications and file them.

Order Date :- 4.2.2016

v.k.updh.

Court No. - 38

Case :- MISC. COMPANY APPLICATION No. - 4 of 1997

Applicant :- In The Matter Of M/S U.P.State Cement Corporation Ltd.

Counsel for Applicant :- O.L.B.K.L.Srivastava,A.K. Pandey,Anil Mehrotra,Ashok Kumar Chaubey,Ashok Mehta,O.L.U.S.Patole,S. Niranjan,S.K. Singh,Saral Srivastava,Vipalav Sharma

Counsel for Opposite Party :- Shiv Nath Singh,A.K. Gupta,A.K. Srivastava,A.K.Mehrotra,A.P. Singh,Achal Singh Vats,Ajal Krishna,Ajay Kumar Pandey,Amit Chaudhary,Amit Saxena,Anil Mehrotra,Anurag Khanna,Ashok Kumar Chaubey,Ashok Mehta,Ashutosh Pandey,B.D.Mandhyan,B.K. Mishra,B.N. Singh,Brijesh Kumar,C.B. Srivastava,C.B.Gupta,C.L. Pandey,C.S.C.,D.K. Srivastava,Devendra Singh,Govind Saran,H.N. Sharma,H.P. Dubey,I.S.Tomar,J. Nagar,J.N. Pandey,J.P.Mathur,Jayant Bannerji,K.C. Vishwakarma,K.K. Srivastava,Kush Saxena,L.K.Tiwari,L.P.Tiwari,Lalji Pandey,Manoj Kumar,Manoj Srivastava,N.K. Gupta,N.K. Verma,Narendra Mohan,Navin Sinha,O.L. O.P. Sharma,O.P.Misra,P.K. Dalmiya (In Person),P.N.Tripathi,R.P. Agarwal,R.P. Srivastava,R.P. Tiwari,Rajendra Chaubey,Rajesh Kumar Pathak,Rajesh Kumar Singh,Ram Yash Pandey,S.C.,S.D.N.Singh,S.F. Ahmad,S.K. Yadav,S.M. Dayal,S.N. Singh,S.P. Shukla,S.R. Yadav,S.S. Chauhan,S.S.Srivastava,Sandeep Agarwal,Sanjai Srivastava,Sanjay Om,Saumitra Singh,Smt. Archana Singh,Somesh Khare,Subhash Chandra Yadav,Sudhir Agarwal,U.N. Sharma,U.P. Singh,Udai Chandani,V.K.S. Chaudhary,Vinod Misra,Vivek Singh,W.A. Siddiqui,Yashwant Verma,Yogesh Agarwal,Z.K. Hasan

Hon'ble Pankaj Mithal,J.

The wife of the ex-worker of the company (in liquidation) has applied for the payment of the dues of the ex-workers and had submitted succession certificate but despite it payment of claim has not been made as the Official Liquidator has remitted the proceeds to the Regional Director, Northern Region, Company Affairs, New Delhi. The representation to the Regional Director, Northern Region, has failed to receive any response.

Issue notice to him to submit reply.

List this Application No. 375553 of 2015 immediately on return of notice.

The applications of Jai Prakash Associates Ltd. be listed in the next cause list.

In the meantime, all concerned parties shall complete there instructions in regard to it.

Order Date :- 14.3.2016

v.k.updh.

Court No. - 2

Case :- MISC. COMPANY APPLICATION No. - 4 of 1997

Applicant :- In The Matter Of M/S U.P.State Cement Corporation Ltd.

Counsel for Applicant :- O.L.B.K.L.Srivastava,A.K. Pandey,Anil Mehrotra,Ashok Kumar Chaubey,Ashok Mehta,O.L.U.S.Patole,S. Niranjan,S.K. Singh,Saral Srivastava,Vipalav Sharma

Counsel for Opposite Party :- Shiv Nath Singh,A.K. Gupta,A.K. Srivastava,A.K.Mehrotra,A.P. Singh,Achal Singh Vats,Ajal Krishna,Ajay Kumar Pandey,Amit Chaudhary,Amit Saxena,Anil Mehrotra,Anurag Khanna,Ashok Kumar Chaubey,Ashok Mehta,Ashutosh Pandey,B.D.Mandhyan,B.K. Mishra,B.N. Singh,Brijesh Kumar,C.B. Srivastava,C.B.Gupta,C.L. Pandey,C.S.C.,D.K. Srivastava,Devendra Singh,Govind Saran,H.N. Sharma,H.P. Dubey,I.S.Tomar,J. Nagar,J.N. Pandey,J.P.Mathur,Jayant Bannerji,K.C. Vishwakarma,K.K. Srivastava,Kush Saxena,L.K.Tiwari,L.P.Tiwari,Lalji Pandey,Manoj Kumar,Manoj Srivastava,N.K. Gupta,N.K. Verma,Narendra Mohan,Navin Sinha,O.L. O.P. Sharma,O.P.Misra,P.K. Dalmiya (In Person),P.N.Tripathi,R.P. Agarwal,R.P. Srivastava,R.P. Tiwari,Rajendra Chaubey,Rajesh Kumar Pathak,Rajesh Kumar Singh,Ram Yash Pandey,S.C.,S.D.N.Singh,S.F. Ahmad,S.K. Yadav,S.M. Dayal,S.N. Singh,S.P. Shukla,S.R. Yadav,S.S. Chauhan,S.S.Srivastava,Sandeep Agarwal,Sanjai Srivastava,Sanjay Om,Saumitra Singh,Smt. Archana Singh,Somesh Khare,Subhash Chandra Yadav,Sudhir Agarwal,U.N. Sharma,U.P. Singh,Udai Chandani,V.K.S. Chaudhary,Vinod Misra,Vivek Singh,W.A. Siddiqui,Yashwant Verma,Yogesh Agarwal,Z.K. Hasan

Hon'ble Pankaj Mithal,J.

As prayed by Sri Ashok Mehta, Advocate list on 11th April 2016.

Order Date :- 28.3.2016
SKS

Court No. - 32

Case :- MISC. COMPANY APPLICATION No. - 4 of 1997

Applicant :- In The Matter Of M/S U.P.State Cement Corporation Ltd.

Counsel for Applicant :- O.L.B.K.L.Srivastava,A.K. Pandey,Anil Mehrotra,Ashok Kumar Chaubey,Ashok Mehta,O.L.U.S.Patole,S. Niranjan,S.K. Singh,Saral Srivastava,Vipalav Sharma

Counsel for Opposite Party :- Shiv Nath Singh,A.K. Gupta,A.K. Srivastava,A.K.Mehrotra,A.P. Singh,Achal Singh Vats,Ajal Krishna,Ajay Kumar Pandey,Amit Chaudhary,Amit Saxena,Anil Mehrotra,Anurag Khanna,Ashok Kumar Chaubey,Ashok Mehta,Ashutosh Pandey,B.D.Mandhyan,B.K. Mishra,B.N. Singh,Brijesh Kumar,C.B. Srivastava,C.B.Gupta,C.L. Pandey,C.S.C.,D.K. Srivastava,Devendra Singh,Govind Saran,H.N. Sharma,H.P. Dubey,I.S.Tomar,J. Nagar,J.N. Pandey,J.P.Mathur,Jayant Bannerji,K.C. Vishwakarma,K.K. Srivastava,Kush Saxena,L.K.Tiwari,L.P.Tiwari,Lalji Pandey,Manoj Kumar,Manoj Srivastava,N.K. Gupta,N.K. Verma,Narendra Mohan,Navin Sinha,O.L. O.P. Sharma,O.P.Misra,P.K. Dalmiya (In Person),P.N.Tripathi,R.P. Agarwal,R.P. Srivastava,R.P. Tiwari,Rajendra Chaubey,Rajesh Kumar Pathak,Rajesh Kumar Singh,Ram Yash Pandey,S.C.,S.D.N.Singh,S.F. Ahmad,S.K. Yadav,S.M. Dayal,S.N. Singh,S.P. Shukla,S.R. Yadav,S.S. Chauhan,S.S.Srivastava,Sandeep Agarwal,Sanjai Srivastava,Sanjay Om,Saumitra Singh,Smt. Archana Singh,Somesh Khare,Subhash Chandra Yadav,Sudhir Agarwal,U.N. Sharma,U.P. Singh,Udai Chandani,V.K.S. Chaudhary,Vinod Misra,Vivek Singh,W.A. Siddiqui,Yashwant Verma,Yogesh Agarwal,Z.K. Hasan

Hon'ble Yashwant Varma, J.

Sri Ashok Mehta, learned Senior Counsel appearing for the Official Liquidator states urgency in respect of proceedings taken against the Official Liquidator by the Human Rights Commission.

Accordingly and on his request, include this matter in the additional cause list of appropriate Court on 5 September 2016.

None has appeared to press the application seeking directions in terms of the order of the Supreme Court dated 11 April 2016.

Order Date :- 1.9.2016

Arun K. Singh

Court No. - 5

Case :- MISC. COMPANY APPLICATION No. - 4 of 1997

Applicant :- In The Matter Of M/S U.P.State Cement Corporation Ltd.

Counsel for Applicant :- O.L.B.K.L.Srivastava,A.K. Pandey,Anil Mehrotra,Ashok Kumar Chaubey,Ashok Mehta,O.L.U.S.Patole,S. Niranjan,S.K. Singh,Saral Srivastava,Vipalav Sharma

Counsel for Opposite Party :- Shiv Nath Singh,A.K. Gupta,A.K. Srivastava,A.K.Mehrotra,A.P. Singh,Achal Singh Vats,Ajal Krishna,Ajay Kumar Pandey,Amit Chaudhary,Amit Saxena,Anil Mehrotra,Anurag Khanna,Ashok Kumar Chaubey,Ashok Mehta,Ashutosh Pandey,B.D.Mandhyan,B.K. Mishra,B.N. Singh,Brijesh Kumar,C.B. Srivastava,C.B.Gupta,C.L. Pandey,C.S.C.,D.K. Srivastava,Devendra Singh,Govind Saran,H.N. Sharma,H.P. Dubey,I.S.Tomar,J. Nagar,J.N. Pandey,J.P.Mathur,Jayant Bannerji,K.C. Vishwakarma,K.K. Srivastava,Kush Saxena,L.K.Tiwari,L.P.Tiwari,Lalji Pandey,Manoj Kumar,Manoj Srivastava,N.K. Gupta,N.K. Verma,Narendra Mohan,Navin Sinha,O.L. O.P. Sharma,O.P.Misra,P.K. Dalmiya (In Person),P.N.Tripathi,R.P. Agarwal,R.P. Srivastava,R.P. Tiwari,Rajendra Chaubey,Rajesh Kumar Pathak,Rajesh Kumar Singh,Ram Yash Pandey,S.C.,S.D.N.Singh,S.F. Ahmad,S.K. Yadav,S.M. Dayal,S.N. Singh,S.P. Shukla,S.R. Yadav,S.S. Chauhan,S.S.Srivastava,Sandeep Agarwal,Sanjai Srivastava,Sanjay Om,Saumitra Singh,Smt. Archana Singh,Somesh Khare,Subhash Chandra Yadav,Sudhir Agarwal,U.N. Sharma,U.P. Singh,Udai Chandani,V.K.S. Chaudhary,Vinod Misra,Vivek Singh,W.A. Siddiqui,Yashwant Verma,Yogesh Agarwal,Z.K. Hasan

Hon'ble Anjani Kumar Mishra,J.

Put up on 7th of September, 2016.

Order Date :- 5.9.2016

Mayank

Court No. - 2

Case :- MISC. COMPANY APPLICATION No. - 4 of 1997

Applicant :- In The Matter Of M/S U.P.State Cement Corporation Ltd.

Counsel for Applicant :- O.L.B.K.L.Srivastava,A.K. Pandey,Anil Mehrotra,Ashok Kumar Chaubey,Ashok Mehta,O.L.U.S.Patole,S. Niranjan,S.K. Singh,Saral Srivastava,Vipalav Sharma

Counsel for Opposite Party :- Shiv Nath Singh,A.K. Gupta,A.K. Srivastava,A.K.Mehrotra,A.P. Singh,Achal Singh Vats,Ajal Krishna,Ajay Kumar Pandey,Amit Chaudhary,Amit Saxena,Anil Mehrotra,Anurag Khanna,Ashok Kumar Chaubey,Ashok Mehta,Ashutosh Pandey,B.D.Mandhyan,B.K. Mishra,B.N. Singh,Brijesh Kumar,C.B. Srivastava,C.B.Gupta,C.L. Pandey,C.S.C.,D.K. Srivastava,Devendra Singh,Govind Saran,H.N. Sharma,H.P. Dubey,I.S.Tomar,J. Nagar,J.N. Pandey,J.P.Mathur,Jayant Bannerji,K.C. Vishwakarma,K.K. Srivastava,Kush Saxena,L.K.Tiwari,L.P.Tiwari,Lalji Pandey,Manoj Kumar,Manoj Srivastava,N.K. Gupta,N.K. Verma,Narendra Mohan,Navin Sinha,O.L. O.P. Sharma,O.P.Misra,P.K. Dalmiya (In Person),P.N.Tripathi,R.P. Agarwal,R.P. Srivastava,R.P. Tiwari,Rajendra Chaubey,Rajesh Kumar Pathak,Rajesh Kumar Singh,Ram Yash Pandey,S.C.,S.D.N.Singh,S.F. Ahmad,S.K. Yadav,S.M. Dayal,S.N. Singh,S.P. Shukla,S.R. Yadav,S.S. Chauhan,S.S.Srivastava,Sandeep Agarwal,Sanjai Srivastava,Sanjay Om,Saumitra Singh,Smt. Archana Singh,Somesh Khare,Subhash Chandra Yadav,Sudhir Agarwal,U.N. Sharma,U.P. Singh,Udai Chandani,V.K.S. Chaudhary,Vinod Misra,Vivek Singh,W.A. Siddiqui,Yashwant Verma,Yogesh Agarwal,Z.K. Hasan

Hon'ble Pankaj Mithal,J.

The Official Liquidator has moved an application aggrieved by the order dated 19.07.2016 passed by Member, U.P. Human Rights Commission, Lucknow in respect to the company in liquidation.

The impugned order directs the Official Liquidator to pay gratuity and other dues of the complainant Dharendra Kumar Pandey within six weeks from the date of the order. It also provides that in case the amount is not paid by 14th September, 2016, the Official Liquidator shall appear in person before the Commission.

The submission of Sri Ashish Agarwal, learned counsel appearing for the Official Liquidator is that the entire proceedings before the Commission were barred by Section 446 of the Companies Act, 1956 as the company has been ordered to be wound up and the Official Liquidator attached to the Court has been appointed as the Liquidator.

On the recommendation of the BIFR under Section 20 of the Sick Industrial Companies (Special Provisions) Act, 1985 for the winding up of the company in liquidation, this Court accepting the recommendations vide order dated 08.12.1999

directed for the winding up of the company.

The Court thereafter directed the Official Liquidator to invite claims fixing 31.07.2006 as the last date for the submissions of the claims.

The complainant had not raised any claim at any point before the Official Liquidator with regard to his gratuity and other dues and such cannot possible have any grievance against non-payment of any dues as claimed by him.

Section 446 of the Act clearly states that when a winding up order has been passed or the Official Liquidator has been appointed, no suit or other legal proceeding shall be commenced or proceeded with against the company without the leave of the company Court.

The relevant part of Section 446 of the Act is reproduced herein below:

Suit stayed on winding up order- (1) When a winding up order has been made or the Official Liquidator has been appointed as provisional liquidator, no suit or other legal proceeding shall be commenced, or if pending at the date of the winding up order, shall be proceeded with, against the company, except by leave of the [Tribunal] and subject to such terms as the [Tribunal] may impose.

(2)

.....

(4)

In view of the above provision, the order impugned is prima facie without jurisdiction.

Issue notice to the complainant Dhirendra Kumar Pandey returnable at an early date.

List this application on the return of notice.

Until further orders of this Court, the effect and operation of the impugned order dated 19.07.2016 passed by the Member, U.P. Human Rights Commission, Lucknow, shall remain in abeyance.

However, it will be open for the claimant-respondent to raise the claim regarding his dues before the Official Liquidator, which may be proceeded with in accordance with law.

The office of the Court has received an application from one P.K. Dalmia. The said application was placed before the Court and the Court vide order dated 01.09.2016 records that no one appears to press the application.

The application is by the applicant in person.

Since no counsel is appearing for the applicant, the office may intimate him of the date fixed.

Let his application be listed for consideration on 17th October, 2016. The applicant on the said date may appear in person or through counsel.

Order Date :- 7.9.2016

v.k.updh.

Court No. - 16

Case :- MISC. COMPANY APPLICATION No. - 4 of 1997

Applicant :- In The Matter Of M/S U.P.State Cement Corporation Ltd.

Counsel for Applicant :- O.L.B.K.L.Srivastava,A.K. Pandey,Anil Mehrotra,Anita Srivastava,Ashok Kumar Chaubey,Ashok Mehta,Navin Kumar Sharma,O.L. M.K. Bagri,O.L.U.S.Patole,S. Niranjan,S.K. Singh,Sanjay Kumar,Saral Srivastava,Satya Prakash Shukla,Vipalav Sharma,Yogendra Kumar Srivastava

Counsel for Opposite Party :- Shiv Nath Singh,A.K. Gupta,A.K. Srivastava,A.K.Mehrotra,A.P. Singh,Achal Singh Vats,Ajal Krishna,Ajay Kumar Pandey,Amit Chaudhary,Amit Saxena,Anil Mehrotra,Anurag Khanna,Ashok Kumar Chaubey,Ashok Mehta,Ashutosh Pandey,B.D. Mandhyan,B.D.Mandhyan,B.K. Mishra,B.N. Singh,Brijesh Kumar,C.B. Srivastava,C.B.Gupta,C.L. Pandey,C.S.C.,D.K. Srivastava,Devendra Singh,Govind Saran,H.N. Sharma,H.P. Dubey,I.S.Tomar,J. Nagar,J.N. Pandey,J.P.Mathur,Jayant Banerji,K.C. Vishwakarma,K.K. Srivastava,Kush Saxena,L.K.Tiwari,L.P.Tiwari,Lalji Pandey,Manoj Kumar,Manoj Srivastava,N.K. Gupta,N.K. Verma,Narendra Mohan,Navin Sinha,O.L. M.K. Bagri,O.L. O.P. Sharma,O.P.Misra,P.K. Dalmiya (In Person),P.K. Upadhyay,P.N.Tripathi,R.P. Agarwal,R.P. Srivastava,R.P. Tiwari,Rajendra Chaubey,Rajesh Kumar Pathak,Rajesh Kumar Singh,Ram Yash Pandey,S.C.,S.D.N.Singh,S.F. Ahmad,S.K. Yadav,S.M. Dayal,S.N. Singh,S.P. Shukla,S.R. Yadav,S.S. Chauhan,S.S.Srivastava,Sandeep Agarwal,Sanjai Srivastava,Sanjay Om,Saumitra Singh,Smt. Archana Singh,Somesh Khare,Subhash Chandra Yadav,Sudhir Agarwal,U.N. Sharma,U.P. Singh,Udai Chandani,V.K.S. Chaudhary,Vinod Misra,Vivek Singh,W.A. Siddiqui,Yashwant Verma,Yogesh Agarwal,Z.K. Hasan

Hon'ble Anjani Kumar Mishra,J.

All pending applications be put up for consideration on 09.03.2017.

It is made clear that the matter shall not be adjourned on that date.

Order Date :- 6.3.2017

Mayank

Court No. - 16

Case :- MISC. COMPANY APPLICATION No. - 4 of 1997

Applicant :- In The Matter Of M/S U.P.State Cement Corporation Ltd.

Counsel for Applicant :- O.L.B.K.L.Srivastava,A.K. Pandey,Anil Mehrotra,Anita Srivastava,Ashok Kumar Chaubey,Ashok Mehta,Navin Kumar Sharma,O.L. M.K. Bagri,O.L.U.S.Patole,S. Niranjan,S.K. Singh,Sanjay Kumar,Saral Srivastava,Satya Prakash Shukla,Vipalav Sharma,Yogendra Kumar Srivastava

Counsel for Opposite Party :- Shiv Nath Singh,A.K. Gupta,A.K. Srivastava,A.K.Mehrotra,A.P. Singh,Achal Singh Vats,Ajal Krishna,Ajay Kumar Pandey,Amit Chaudhary,Amit Saxena,Anil Mehrotra,Anurag Khanna,Ashok Kumar Chaubey,Ashok Mehta,Ashutosh Pandey,B.D. Mandhyan,B.D.Mandhyan,B.K. Mishra,B.N. Singh,Brijesh Kumar,C.B. Srivastava,C.B.Gupta,C.L. Pandey,C.S.C.,D.K. Srivastava,Devendra Singh,Govind Saran,H.N. Sharma,H.P. Dubey,I.S.Tomar,J. Nagar,J.N. Pandey,J.P.Mathur,Jayant Banerji,K.C. Vishwakarma,K.K. Srivastava,Kush Saxena,L.K.Tiwari,L.P.Tiwari,Lalji Pandey,Manoj Kumar,Manoj Srivastava,N.K. Gupta,N.K. Verma,Narendra Mohan,Navin Sinha,O.L. M.K. Bagri,O.L. O.P. Sharma,O.P.Misra,P.K. Dalmiya (In Person),P.K. Upadhyay,P.N.Tripathi,R.P. Agarwal,R.P. Srivastava,R.P. Tiwari,Rajendra Chaubey,Rajesh Kumar Pathak,Rajesh Kumar Singh,Ram Yash Pandey,S.C.,S.D.N.Singh,S.F. Ahmad,S.K. Yadav,S.M. Dayal,S.N. Singh,S.P. Shukla,S.R. Yadav,S.S. Chauhan,S.S.Srivastava,Sandeep Agarwal,Sanjai Srivastava,Sanjay Om,Saumitra Singh,Smt. Archana Singh,Somesh Khare,Subhash Chandra Yadav,Sudhir Agarwal,U.N. Sharma,U.P. Singh,Udai Chandani,V.K.S. Chaudhary,Vinod Misra,Vivek Singh,W.A. Siddiqui,Yashwant Verma,Yogesh Agarwal,Z.K. Hasan

Hon'ble Anjani Kumar Mishra,J.

On the matter being called out, the applicant P.K. Dalmia, who appears in person has not appeared. A report of the Official Liquidator in this matter is taken on record.

Office is directed to send notice to Shri P.K. Dalmia by Registered Post and dasti summons fixing 22.03.2017.

Official Liquidator shall take steps for personal service upon Shri P.K. Dalmia within 24 hours.

An affidavit of service be filed on the next date fixed.

Order Date :- 9.3.2017

Mayank

Court No. - 16

Civil Misc. Application No. 135689 of 2016

IN

Case :- MISC. COMPANY APPLICATION No. - 4 of 1997

Applicant :- In The Matter Of M/S U.P.State Cement Corporation Ltd.

Counsel for Applicant :- O.L.B.K.L.Srivastava,A.K. Pandey,Anil Mehrotra,Anita Srivastava,Ashok Kumar Chaubey,Ashok Mehta,Navin Kumar Sharma,O.L. M.K. Bagri,O.L.U.S.Patole,S. Niranjan,S.K. Singh,Sanjay Kumar,Saral Srivastava,Satya Prakash Shukla,Vipalav Sharma,Yogendra Kumar Srivastava

Counsel for Opposite Party :- Shiv Nath Singh,A.K. Gupta,A.K. Srivastava,A.K.Mehrotra,A.P. Singh,Achal Singh Vats,Ajal Krishna,Ajay Kumar Pandey,Amit Chaudhary,Amit Saxena,Anil Mehrotra,Anurag Khanna,Ashok Kumar Chaubey,Ashok Mehta,Ashutosh Pandey,B.D. Mandhyan,B.D.Mandhyan,B.K. Mishra,B.N. Singh,Brijesh Kumar,C.B. Srivastava,C.B.Gupta,C.L. Pandey,C.S.C.,D.K. Srivastava,Devendra Singh,Govind Saran,H.N. Sharma,H.P. Dubey,I.S.Tomar,J. Nagar,J.N. Pandey,J.P.Mathur,Jayant Banerji,K.C. Vishwakarma,K.K. Srivastava,Kush Saxena,L.K.Tiwari,L.P.Tiwari,Lalji Pandey,Manoj Kumar,Manoj Srivastava,N.K. Gupta,N.K. Verma,Narendra Mohan,Navin Sinha,O.L. M.K. Bagri,O.L. O.P. Sharma,O.P.Misra,P.K. Dalmiya (In Person),P.K. Upadhyay,P.N.Tripathi,R.P. Agarwal,R.P. Srivastava,R.P. Tiwari,Rajendra Chaubey,Rajesh Kumar Pathak,Rajesh Kumar Singh,Ram Yash Pandey,S.C.,S.D.N.Singh,S.F. Ahmad,S.K. Yadav,S.M. Dayal,S.N. Singh,S.P. Shukla,S.R. Yadav,S.S. Chauhan,S.S.Srivastava,Sandeep Agarwal,Sanjai Srivastava,Sanjay Om,Saumitra Singh,Smt. Archana Singh,Somesh Khare,Subhash Chandra Yadav,Sudhir Agarwal,U.N. Sharma,U.P. Singh,Udai Chandani,V.K.S. Chaudhary,Vinod Misra,Vivek Singh,W.A. Siddiqui,Yashwant Verma,Yogesh Agarwal,Z.K. Hasan

Hon'ble Anjani Kumar Mishra,J.

None has appeared to press this application on behalf of the applicant.

The application is, therefore, dismissed for want of prosecution.

Order Date :- 9.3.2017

Mayank

Court No. - 16

Civil Misc. Application No. 177201 of 2014

IN

Case :- MISC. COMPANY APPLICATION No. - 4 of 1997

Applicant :- In The Matter Of M/S U.P.State Cement Corporation Ltd.

Counsel for Applicant :- O.L.B.K.L.Srivastava,A.K. Pandey,Anil Mehrotra,Anita Srivastava,Ashok Kumar Chaubey,Ashok Mehta,Navin Kumar Sharma,O.L. M.K. Bagri,O.L.U.S.Patole,S. Niranjan,S.K. Singh,Sanjay Kumar,Saral Srivastava,Satya Prakash Shukla,Vipalav Sharma,Yogendra Kumar Srivastava

Counsel for Opposite Party :- Shiv Nath Singh,A.K. Gupta,A.K. Srivastava,A.K.Mehrotra,A.P. Singh,Achal Singh Vats,Ajal Krishna,Ajay Kumar Pandey,Amit Chaudhary,Amit Saxena,Anil Mehrotra,Anurag Khanna,Ashok Kumar Chaubey,Ashok Mehta,Ashutosh Pandey,B.D. Mandhyan,B.D.Mandhyan,B.K. Mishra,B.N. Singh,Brijesh Kumar,C.B. Srivastava,C.B.Gupta,C.L. Pandey,C.S.C.,D.K. Srivastava,Devendra Singh,Govind Saran,H.N. Sharma,H.P. Dubey,I.S.Tomar,J. Nagar,J.N. Pandey,J.P.Mathur,Jayant Banerji,K.C. Vishwakarma,K.K. Srivastava,Kush Saxena,L.K.Tiwari,L.P.Tiwari,Lalji Pandey,Manoj Kumar,Manoj Srivastava,N.K. Gupta,N.K. Verma,Narendra Mohan,Navin Sinha,O.L. M.K. Bagri,O.L. O.P. Sharma,O.P.Misra,P.K. Dalmiya (In Person),P.K. Upadhyay,P.N.Tripathi,R.P. Agarwal,R.P. Srivastava,R.P. Tiwari,Rajendra Chaubey,Rajesh Kumar Pathak,Rajesh Kumar Singh,Ram Yash Pandey,S.C.,S.D.N.Singh,S.F. Ahmad,S.K. Yadav,S.M. Dayal,S.N. Singh,S.P. Shukla,S.R. Yadav,S.S. Chauhan,S.S.Srivastava,Sandeep Agarwal,Sanjai Srivastava,Sanjay Om,Saumitra Singh,Smt. Archana Singh,Somesh Khare,Subhash Chandra Yadav,Sudhir Agarwal,U.N. Sharma,U.P. Singh,Udai Chandani,V.K.S. Chaudhary,Vinod Misra,Vivek Singh,W.A. Siddiqui,Yashwant Verma,Yogesh Agarwal,Z.K. Hasan

Hon'ble Anjani Kumar Mishra,J.

None has appeared to press this application on behalf of the applicant.

The application is, therefore, dismissed for want of prosecution.

Order Date :- 9.3.2017

Mayank

Court No. - 16

Civil Misc. Application No. 177207 of 2014

IN

Case :- MISC. COMPANY APPLICATION No. - 4 of 1997

Applicant :- In The Matter Of M/S U.P.State Cement Corporation Ltd.

Counsel for Applicant :- O.L.B.K.L.Srivastava,A.K. Pandey,Anil Mehrotra,Anita Srivastava,Ashok Kumar Chaubey,Ashok Mehta,Navin Kumar Sharma,O.L. M.K. Bagri,O.L.U.S.Patole,S. Niranjan,S.K. Singh,Sanjay Kumar,Saral Srivastava,Satya Prakash Shukla,Vipalav Sharma,Yogendra Kumar Srivastava

Counsel for Opposite Party :- Shiv Nath Singh,A.K. Gupta,A.K. Srivastava,A.K.Mehrotra,A.P. Singh,Achal Singh Vats,Ajal Krishna,Ajay Kumar Pandey,Amit Chaudhary,Amit Saxena,Anil Mehrotra,Anurag Khanna,Ashok Kumar Chaubey,Ashok Mehta,Ashutosh Pandey,B.D. Mandhyan,B.D.Mandhyan,B.K. Mishra,B.N. Singh,Brijesh Kumar,C.B. Srivastava,C.B.Gupta,C.L. Pandey,C.S.C.,D.K. Srivastava,Devendra Singh,Govind Saran,H.N. Sharma,H.P. Dubey,I.S.Tomar,J. Nagar,J.N. Pandey,J.P.Mathur,Jayant Banerji,K.C. Vishwakarma,K.K. Srivastava,Kush Saxena,L.K.Tiwari,L.P.Tiwari,Lalji Pandey,Manoj Kumar,Manoj Srivastava,N.K. Gupta,N.K. Verma,Narendra Mohan,Navin Sinha,O.L. M.K. Bagri,O.L. O.P. Sharma,O.P.Misra,P.K. Dalmiya (In Person),P.K. Upadhyay,P.N.Tripathi,R.P. Agarwal,R.P. Srivastava,R.P. Tiwari,Rajendra Chaubey,Rajesh Kumar Pathak,Rajesh Kumar Singh,Ram Yash Pandey,S.C.,S.D.N.Singh,S.F. Ahmad,S.K. Yadav,S.M. Dayal,S.N. Singh,S.P. Shukla,S.R. Yadav,S.S. Chauhan,S.S.Srivastava,Sandeep Agarwal,Sanjai Srivastava,Sanjay Om,Saumitra Singh,Smt. Archana Singh,Somesh Khare,Subhash Chandra Yadav,Sudhir Agarwal,U.N. Sharma,U.P. Singh,Udai Chandani,V.K.S. Chaudhary,Vinod Misra,Vivek Singh,W.A. Siddiqui,Yashwant Verma,Yogesh Agarwal,Z.K. Hasan

Hon'ble Anjani Kumar Mishra,J.

None has appeared to press this application on behalf of the applicant.

The application is, therefore, dismissed for want of prosecution.

Order Date :- 9.3.2017

Mayank

Court No. - 16

Civil Misc. Application No. 212033 of 2013

IN

Case :- MISC. COMPANY APPLICATION No. - 4 of 1997

Applicant :- In The Matter Of M/S U.P.State Cement Corporation Ltd.

Counsel for Applicant :- O.L.B.K.L.Srivastava,A.K. Pandey,Anil Mehrotra,Anita Srivastava,Ashok Kumar Chaubey,Ashok Mehta,Navin Kumar Sharma,O.L. M.K. Bagri,O.L.U.S.Patole,S. Niranjan,S.K. Singh,Sanjay Kumar,Saral Srivastava,Satya Prakash Shukla,Vipalav Sharma,Yogendra Kumar Srivastava

Counsel for Opposite Party :- Shiv Nath Singh,A.K. Gupta,A.K. Srivastava,A.K.Mehrotra,A.P. Singh,Achal Singh Vats,Ajal Krishna,Ajay Kumar Pandey,Amit Chaudhary,Amit Saxena,Anil Mehrotra,Anurag Khanna,Ashok Kumar Chaubey,Ashok Mehta,Ashutosh Pandey,B.D. Mandhyan,B.D.Mandhyan,B.K. Mishra,B.N. Singh,Brijesh Kumar,C.B. Srivastava,C.B.Gupta,C.L. Pandey,C.S.C.,D.K. Srivastava,Devendra Singh,Govind Saran,H.N. Sharma,H.P. Dubey,I.S.Tomar,J. Nagar,J.N. Pandey,J.P.Mathur,Jayant Banerji,K.C. Vishwakarma,K.K. Srivastava,Kush Saxena,L.K.Tiwari,L.P.Tiwari,Lalji Pandey,Manoj Kumar,Manoj Srivastava,N.K. Gupta,N.K. Verma,Narendra Mohan,Navin Sinha,O.L. M.K. Bagri,O.L. O.P. Sharma,O.P.Misra,P.K. Dalmiya (In Person),P.K. Upadhyay,P.N.Tripathi,R.P. Agarwal,R.P. Srivastava,R.P. Tiwari,Rajendra Chaubey,Rajesh Kumar Pathak,Rajesh Kumar Singh,Ram Yash Pandey,S.C.,S.D.N.Singh,S.F. Ahmad,S.K. Yadav,S.M. Dayal,S.N. Singh,S.P. Shukla,S.R. Yadav,S.S. Chauhan,S.S.Srivastava,Sandeep Agarwal,Sanjai Srivastava,Sanjay Om,Saumitra Singh,Smt. Archana Singh,Somesh Khare,Subhash Chandra Yadav,Sudhir Agarwal,U.N. Sharma,U.P. Singh,Udai Chandani,V.K.S. Chaudhary,Vinod Misra,Vivek Singh,W.A. Siddiqui,Yashwant Verma,Yogesh Agarwal,Z.K. Hasan

Hon'ble Anjani Kumar Mishra,J.

Let notices be issued to the applicant to engage another counsel.

Notice shall indicate that the matter shall be listed before the Court on 28.03.2017.

Order Date :- 9.3.2017

Mayank

Court No. - 16

Case :- MISC. COMPANY APPLICATION No. - 4 of 1997

Applicant :- In The Matter Of M/S U.P.State Cement Corporation Ltd.

Counsel for Applicant :- O.L.B.K.L.Srivastava,A.K. Pandey,Anil Mehrotra,Anita Srivastava,Ashok Kumar Chaubey,Ashok Mehta,Navin Kumar Sharma,O.L. M.K. Bagri,O.L.U.S.Patole,S. Niranjan,S.K. Singh,Sanjay Kumar,Saral Srivastava,Satya Prakash Shukla,Vipalav Sharma,Yogendra Kumar Srivastava

Counsel for Opposite Party :- Shiv Nath Singh,A.K. Gupta,A.K. Srivastava,A.K.Mehrotra,A.P. Singh,Achal Singh Vats,Ajal Krishna,Ajay Kumar Pandey,Amit Chaudhary,Amit Saxena,Anil Mehrotra,Anurag Khanna,Ashok Kumar Chaubey,Ashok Mehta,Ashutosh Pandey,B.D. Mandhyan,B.D.Mandhyan,B.K. Mishra,B.N. Singh,Brijesh Kumar,C.B. Srivastava,C.B.Gupta,C.L. Pandey,C.S.C.,D.K. Srivastava,Devendra Singh,Govind Saran,H.N. Sharma,H.P. Dubey,I.S.Tomar,J. Nagar,J.N. Pandey,J.P.Mathur,Jayant Banerji,K.C. Vishwakarma,K.K. Srivastava,Kush Saxena,L.K.Tiwari,L.P.Tiwari,Lalji Pandey,Manoj Kumar,Manoj Srivastava,N.K. Gupta,N.K. Verma,Narendra Mohan,Navin Sinha,O.L. M.K. Bagri,O.L. O.P. Sharma,O.P.Misra,P.K. Dalmiya (In Person),P.K. Upadhyay,P.N.Tripathi,R.P. Agarwal,R.P. Srivastava,R.P. Tiwari,Rajendra Chaubey,Rajesh Kumar Pathak,Rajesh Kumar Singh,Ram Yash Pandey,S.C.,S.D.N.Singh,S.F. Ahmad,S.K. Yadav,S.M. Dayal,S.N. Singh,S.P. Shukla,S.R. Yadav,S.S. Chauhan,S.S.Srivastava,Sandeep Agarwal,Sanjai Srivastava,Sanjay Om,Saumitra Singh,Smt. Archana Singh,Somesh Khare,Subhash Chandra Yadav,Sudhir Agarwal,U.N. Sharma,U.P. Singh,Udai Chandani,V.K.S. Chaudhary,Vinod Misra,Vivek Singh,W.A. Siddiqui,Yashwant Verma,Yogesh Agarwal,Z.K. Hasan

Hon'ble Anjani Kumar Mishra,J.

Registered notices had been directed to be issued to Shri P.K. Dalmia, who appears in person. No service report has been submitted by the office. The office report only indicates that the notices were sent.

This report in my considered opinion is entirely incomplete. The office was required to report as to whether the notices, sent by registered post have been served. In the absence of this report, there appears no justification for the Court to proceed with the matter, especially since the person to whom the notices, had been sent, appears in person.

An affidavit of service has been filed on behalf of Official Liquidator through his counsel Shri Ashish Agarwal, wherein it has been stated that the dasti notice has been accepted by Shri P.K. Dalmia.

The approach of the office is extremely casual due to which the matter has to be adjourned wasting valuable time of the Court. It shall further necessitate issuing a fresh notice to the applicant, P.K. Dalmia intimating him of the next date in the matter.

The office may do the needful and list the matter on the date fixed in the fresh notice to be sent to Shri P.K. Dalmia.

Order Date :- 22.3.2017

Mayank

Court No. - 16

Case :- MISC. COMPANY APPLICATION No. - 4 of 1997

Applicant :- In The Matter Of M/S U.P.State Cement Corporation Ltd.

Counsel for Applicant :- O.L.B.K.L.Srivastava,A.K. Pandey,Anil Mehrotra,Anita Srivastava,Ashok Kumar Chaubey,Ashok Mehta,Navin Kumar Sharma,O.L. M.K. Bagri,O.L.U.S.Patole,S. Niranjana,S.K. Singh,Sanjay Kumar,Saral Srivastava,Satya Prakash Shukla,Vipalav Sharma,Yogendra Kumar Srivastava

Counsel for Opposite Party :- Shiv Nath Singh,A.K. Gupta,A.K. Srivastava,A.K.Mehrotra,A.P. Singh,Achal Singh Vats,Ajal Krishna,Ajay Kumar Pandey,Amit Chaudhary,Amit Saxena,Anil Mehrotra,Anurag Khanna,Ashok Kumar Chaubey,Ashok Mehta,Ashutosh Pandey,B.D. Mandhyan,B.D.Mandhyan,B.K. Mishra,B.N. Singh,Brijesh Kumar,C.B. Srivastava,C.B.Gupta,C.L. Pandey,C.S.C.,D.K. Srivastava,Devendra Singh,Govind Saran,H.N. Sharma,H.P. Dubey,I.S.Tomar,J. Nagar,J.N. Pandey,J.P.Mathur,Jayant Banerji,K.C. Vishwakarma,K.K. Srivastava,Kush Saxena,L.K.Tiwari,L.P.Tiwari,Lalji Pandey,Manoj Kumar,Manoj Srivastava,N.K. Gupta,N.K. Verma,Narendra Mohan,Navin Sinha,O.L. M.K. Bagri,O.L. O.P. Sharma,O.P.Misra,P.K. Dalmiya (In Person),P.K. Upadhyay,P.N.Tripathi,R.P. Agarwal,R.P. Srivastava,R.P. Tiwari,Rajendra Chaubey,Rajesh Kumar Pathak,Rajesh Kumar Singh,Ram Yash Pandey,S.C.,S.D.N.Singh,S.F. Ahmad,S.K. Yadav,S.M. Dayal,S.N. Singh,S.P. Shukla,S.R. Yadav,S.S. Chauhan,S.S.Srivastava,Sandeep Agarwal,Sanjai Srivastava,Sanjay Om,Saumitra Singh,Smt. Archana Singh,Somesh Khare,Subhash Chandra Yadav,Sudhir Agarwal,U.N. Sharma,U.P. Singh,Udai Chandani,V.K.S. Chaudhary,Vinod Misra,Vivek Singh,W.A. Siddiqui,Yashwant Verma,Yogesh Agarwal,Z.K. Hasan

Hon'ble Suneet Kumar,J.

Pursuant to order dated 17 April 2017 passed by Hon'ble Supreme Court in Contempt Petition (C) No. 927 of 2016. Contempt Petition (C) No. 378 of 2015 in SLP (C) No. 16659 of 2011, application filed by Shri P.K. Dalmia is being taken up for disposal on priority.

Sri J.N. Pandey, learned counsel has put in appearance on behalf of the applicant Sri P.K. Dalmia. Sri Pradeep Singh Sisodia, learned counsel has put in appearance on behalf of the Official Liquidator.

Sri P.K. Dalmia by means of the instant application seeks the following reliefs :

- i) That according to the orders of Hon'ble Supreme Court, Interest calculations in claim petition may please be checked;

- ii) The respondent too may please be directed to file its calculation of interest for delay of 45 years in payment of dues of your petitioner;
- iii) That petitioner is entitled for payment of interest part of claim not only as per Company Court Rules, but also as per Sec.34 of CPC & Sec.80 of Negotiable Instrument Act;
- iv) The petitioner may please be allowed to a chance of hearing to put his point of view before this Hon'ble Court and a date for the same may please be fixed with intimation to the petitioner by Speed Post;
- v) Order for quick payment of interest part of the claim;

It is urged by learned counsel for the applicant that applicant is entitled to interest on the sum due which was duly admitted and paid by the Official Liquidator. Contesting the application, Official Liquidator has filed report No. Jud/34/2017, inter alia, denying the claim and would submit that the applicant is not entitled to any interest, including the admitted sum of Rs.3,88,464/- released in favour of the applicant in compliance of order dated 3 September 2014 passed by the Supreme Court. Sri P.K. Dalmia has filed objection to the report.

Before adverting to the claim for interest, I have perused the record and the orders passed in the liquidation proceedings with the assistance of the learned counsel for the parties. The record would reveal that U.P. State Cement Corporation Limited (in-liquidation), a Government Company under Section 617 of the Companies Act, 1956 was wound-up, on recommendation of the Board of Industrial and Financial Reconstruction (BIFR). The Company Court was called upon to decide the applications/objections/appeals under Rule 164 of the Companies (Court) Rule 1959, adjudicating on the 'proof of debts' and proposing to distribute the sale proceeds of the assets of the Corporation (in liquidation). Total sum of Rs.459 crores received by

the Official Liquidator from the sale of assets of the Corporation (in liquidation) was considered. Claim of the unsecured creditors was rejected by the order and judgment dated 27 April 2007. Paragraph 140 is extracted :

The appeals/objections O-13 (Executive Engineer, PWD, Auraiya and O-23 to 27, O-28 (Parash Nath Cement Pvt. Ltd), O-29 to 34, O-44 and by the Forest Department, O-61 to 63, O-81 & 82, O-88 have been filed by the Government departments unsecured creditors, who had completed works or made advanced for supply of cement. Some of these unsecured creditors are dump/depot holders/transporters with their claims against the company (in liquidation). These persons falling in the category of unsecured creditors. Having partly admitted the appeals/objections of the secured creditors and workmen and having separated the amounts detailed in the order as liquidation expenses, there will be no amount left to be paid to the Government departments and unsecured creditors under Section 530 of the Act. The considerations of the appeals/objections of secured creditors and workmen has not left amount to be paid in full to the secured creditors and workmen and that a pari-passu deduction has to be made of their admitted claims under Section 529-A of the Companies Act 1956. In the circumstances, the determination of admittance of proofs of their claims of the State Government departments and unsecured creditors as well as their appeals/objections are dismissed. Some of these appeals by Government departments and unsecured creditors were decided separately and that all were dismissed.

The Court partly admitted the appeals/objections of the secured creditors and workmen and on having separated liquidation expenses, there was no amount left to be paid to the Government Department and unsecured creditors. Therefore, the determination of admittance of proof of the claim of State Government Department and the unsecured creditors, as well as, their appeals and objections were dismissed.

It is not being disputed that Sri P.K. Dalmia is unsecured creditor being supplier of coal and granulated slag delivered to the Corporation (in liquidation) from 1956 to 1987. The Official Liquidator admitted the claim of Sri P.K. Dalmia for Rs.3,88,464/- against his total claim of Rs.1,72,15,360/-, however, no dividend

was paid as he was in the category of unsecured creditor.

The Court upon hearing the objections/appeal for admitting the 'proofs of debts', dismissed or allowed by the Official Liquidator, dismissed the claim/objection of the unsecured creditors. The Official Liquidator was, thereafter, directed to proceed to recalculate the amount for distribution as per the order.

Para 190 is extracted :

With this judgment, the Court has concluded the hearing on the objections/appeals for admitting the 'proofs of debts', dismissed or allowed by the OL in part. All the applications/objections/appeals are consequently partly allowed except those, which have been rejected by the Court. The OL will proceed to recalculate the amount for distribution, taking into account the directions given by the Court. He will first separate liquidation expenses and the amount for taxation and audit and then work out the overriding preferential claims and apply the pari passu rule under Section 529-A. It is only, if some amount is left over and above the liquidation expenses then the preferential claimants will be entitled to the interest. The applications/objections/appeals of the officers and unsecured creditors are accordingly dismissed."

The appeal/objection of Sri P.K. Dalmia filed on 7 December 2006 for the same claim, as set up in the present application, was considered and decided on 7 March 2007. The order is extracted :

Shri Ashok Mehta appears for the Official Liquidator.

The application is filed on 07.12.2006 by Shri P.K. Dalmia S/o Bhoj Ram Dalmia, argued by Shri J.N. Pandey, Advocate for condonation of delay in filing the claim for Rs.1,72,15,360.33 on the basis of an arbitration award. The Arbitrator did not award any amount to the applicant. Shri V.K. Tandon. IAS was appointed as sole Arbitrator to decide the claims based on contract of M/s Bhojraj Dalmia with the company as coal handling agent. The matter was pending with Shri V.K. Tandon for several years. Shri Bhojraj Dalmia filed an application in Dhanbad Court for extension of time which was rejected. He, thereafter, sought several years. Shri Bhojraj Dalmia filed an application in Dhanbad Court for extension of time, which was rejected. He, thereafter, sought several adjournment from Shri Tandon for extension of time, which was not possible and thus the claim was rejected. The second claim of Shri Bhojraj Dalmia was an handling agent of Bokaro Steel Plant. He made a claim before the Managing Director of the Corporation. Shri Bhojraj

Dalmia did not take any interest in continuing with the proceedings before Shri G. Patnaik, the Arbitrator and remained absent throughout. Consequently, on 31.5.1998 the claim was rejected.

The order of the Official Liquidator rejecting the claim of the applicant does not suffer from any illegality. The appeal which is numbered as O-1 is accordingly, rejected.

Sri P.K. Dalmia again approached the Company Judge by filing an application which was registered being Misc. Application No. 243611 of 2007, reiterating his claim of Rs.3,88,464/- due from the Corporation (in liquidation) and on adding interest and compounded, he would claim Rs.1,72,15,360/-. The contention raised primarily was two fold :

- (i) his service to the Corporation is comparable to the workmen, though acting under a contract of the Corporation, therefore, would step into shoes of a Government Company;
- (ii) Official Liquidator committed error in calculating the amount due to the secured creditors, therefore, prayed that the matter be referred to Controller Auditor General of India for verification.

The Court placing reliance on the earlier order dated 7 March 2007 rejected the contention of Sri Dalmia vide order dated 11 October 2007. It was noted that no calculation sheet showing any irregularity/anomaly was annexed with the affidavit. Further, it was not verified by any Chartered Accountant. The Court on the reasoning that the calculations were made and revised three times by the Liquidation Claims Committee, including a reputed Chartered Accountant, consequently, rejected the application.

Thereafter, order dated 11 October 2007 was subjected to challenge in appeal which was dismissed on 23 November 2010. Aggrieved, applicant approached the Hon'ble Supreme Court in Special Leave to Appeal (Civil) No. 16659 of 2011, which was

dismissed on 29 August 2013, the order is extracted :

"A perusal of the document dated 27th November, 1986 clearly shows that the petitioner was appointed as a Handling Agent of the respondent-Company. Therefore, he cannot be equated with or given the status of a regular employee of the respondent. Learned counsel for the respondent also points out that the Company is in liquidation and the entire amounts due have been paid to him.

The special leave petition is dismissed."

In the backdrop of above noted facts and orders, learned counsel appearing for Sri P.K. Dalmia would make the following submissions :

- (i) No further calculation in support of the claim, on behalf of the applicant, is being filed;
- (ii) The admitted sum of Rs. 3,88,464/- released by the Official Liquidator pursuant to the statement made on his behalf before the Supreme Court, the interest, thereon, be released;
- (iii) The applicant is confining the petition only to the balance sum due, after deducting Rs.3,88,464/- from the sum claimed i.e. Rs. 1,72,15,360/-;
- (iv) The applicant is not raising any new claim nor disputing the computation in respect of secured creditors accepted by the Official Liquidator.

Learned counsel appearing for the Official Liquidator would submit that the claim of interest on the admitted sum of Rs.3,88,464/- has already been rejected by the Company Judge. Thereafter, appeal was rejected by the Division Bench and Special Leave to Appeal was dismissed on 29 August 2013, therefore, no sum is due and payable to Sri Dalmia. Further, it is urged that the applicant being an unsecured creditor was not entitled to Rs.3,88,464/- admitted by the Official Liquidator for the reason that

the claim of unsecured creditors would not override the claim of secured creditors and workmen who are preferential claimants under Section 529 and 529A of the Companies Act, 1956, as nothing was left for the unsecured creditors after adjusting the claim of the secured creditors. He would further submit that none of the unsecured creditors has been paid till date. The application is misconceived as the sum of Rs.3,88,464/- was released by the Official Liquidator to purge himself of the contempt proceeding pending before the Hon'ble Supreme Court, wherein, on a wrong statement of the counsel i.e. " Learned counsel for the respondent also points out that the Company is in liquidation and the entire amounts due have been paid to him" (Sri P.K. Dalmia), the Official Liquidator submitted Administrative Report No. 141/2015 for issuance of order or direction to release the amount in compliance of the statement recorded in order dated 29 August 2013. The application was allowed on 24 August 2013. The relevant portion of the order is extracted :

"Accordingly, the Official Liquidator, Allahabad is directed to apply for modification of the order dated 29.8.2013 passed by the Supreme Court as has been advised to him by the panel lawyers and simultaneously in due respect to the directions of the Supreme Court must make the payment of the necessary amount of Rs.3,88,464/- to the claimant so as to ensure compliance of the directions of the Supreme Court forthwith subject to decision on the proposed modification application and to submit report in this regard by 2nd of September 2015.

The above payment is permitted in the special circumstances of the case arising due to the proceedings of contempt and would not be a precedent for payment of any dividend to the other unsecured creditors otherwise than in accordance with the provisions of the Companies Act, 1956.

Put up on 2nd September 2015."

Learned counsel for the Official Liquidator would submit that a modification application was filed before the Hon'ble Supreme

Court which was adjudicated on 11 January 2016 directing Sri P.K. Dalmia to approach the Company Judge.

Be that as it may, the Official Liquidator has submitted summary of the claims (amount in crore) in respect of secured creditors and workmen as on 31 March 2017, is as follows :

Particular	Claim Admitted	Claim Paid @ 0.797434 (Pari Passu)	Balance
Secured Creditors	383.2773	305.6382	77.6391
Workers	145.9567	116.3908	29.5659
on 18.10.2007 (Sub Total)	529.2340	422.0290	107.2050
on 30.04.2009	2.2794	1.8177	0.4617
on 23.02.2010	0.6280	0.5008	0.1272
Grand Total on 31.03.2017	532.1415	424.3475	107.7940

It is sought to be urged by learned counsel appearing on behalf of the Official Liquidator that the claim of secured creditors including workmen for approximately Rs.107,79,40,000/- is still pending, however, presently the Official Liquidator has Rs.10,62,40,405/- lying in the account which would not satisfy the secured creditors after deducting liquidation expenses, therefore, claim of the applicant for release of interest being admittedly an unsecured creditor cannot be considered in the backdrop of the orders already passed by Company Judge rejecting the claim of unsecured creditors.

Sri P.K. Dalmia has not submitted any fresh claim by making calculation of his entitlement but has confined his application claiming interest on the sum already released to him by the Official Liquidator. The claim of Sri P.K. Dalmia cannot be accepted for the reason that upon admitting the appeals/objections of the secured creditors and workmen and on having separated the amounts towards liquidation expenses, no amount is left to be paid to the unsecured creditors under Section 530 of the Act.

Having due regard to the facts and circumstances of the case, I find no merit in the submissions advanced by learned counsel for the applicant.

The application of Sri P.K. Dalima is, accordingly, rejected.

Order Date :- 28.4.2017
Mukesh Kr.

Court No. - 9

Case :- MISC. COMPANY APPLICATION No. - 4 of 1997

Applicant :- In The Matter Of M/S U.P.State Cement Corporation Ltd.

Counsel for Applicant :- O.L.B.K.L.Srivastava,A.K. Pandey,Anil Mehrotra,Anita Srivastava,Ashok Kumar Chaubey,Ashok Mehta,Navin Kumar Sharma,O.L. M.K. Bagri,O.L.U.S.Patole,S. Niranjan,S.K. Singh,Sanjay Kumar,Saral Srivastava,Satya Prakash Shukla,Vipalav Sharma,Yogendra Kumar Srivastava

Counsel for Opposite Party :- Shiv Nath Singh,A.K. Gupta,A.K. Srivastava,A.K.Mehrotra,A.P. Singh,Achal Singh Vats,Ajal Krishna,Ajay Kumar Pandey,Amit Chaudhary,Amit Saxena,Anil Mehrotra,Anurag Khanna,Ashok Kumar Chaubey,Ashok Mehta,Ashutosh Pandey,B.D. Mandhyan,B.D.Mandhyan,B.K. Mishra,B.N. Singh,Brijesh Kumar,C.B. Srivastava,C.B.Gupta,C.L. Pandey,C.S.C.,D.K. Srivastava,Devendra Singh,Govind Saran,H.N. Sharma,H.P. Dubey,I.S.Tomar,J. Nagar,J.N. Pandey,J.P.Mathur,Jayant Banerji,K.C. Vishwakarma,K.K. Srivastava,Kush Saxena,L.K.Tiwari,L.P.Tiwari,Lalji Pandey,Manoj Kumar,Manoj Srivastava,N.K. Gupta,N.K. Verma,Narendra Mohan,Navin Sinha,O.L. M.K. Bagri,O.L. O.P. Sharma,O.P.Misra,P.K. Dalmiya (In Person),P.K. Upadhyay,P.N.Tripathi,R.P. Agarwal,R.P. Srivastava,R.P. Tiwari,Rajendra Chaubey,Rajesh Kumar Pathak,Rajesh Kumar Singh,Ram Yash Pandey,S.C.,S.D.N.Singh,S.F. Ahmad,S.K. Yadav,S.M. Dayal,S.N. Singh,S.P. Shukla,S.R. Yadav,S.S. Chauhan,S.S.Srivastava,Sandeep Agarwal,Sanjai Srivastava,Sanjay Om,Saumitra Singh,Smt. Archana Singh,Somesh Khare,Subhash Chandra Yadav,Sudhir Agarwal,U.N. Sharma,U.P. Singh,Udai Chandani,V.K.S. Chaudhary,Vinod Misra,Vivek Singh,W.A. Siddiqui,Yashwant Verma,Yogesh Agarwal,Z.K. Hasan

Hon'ble Anjani Kumar Mishra,J.

Put up tomorrow, i.e. on 15.12.2017 at 10 A.M.

Order Date :- 14.12.2017

RKM

Court No. - 9

Case :- MISC. COMPANY APPLICATION No. - 4 of 1997

Applicant :- In The Matter Of M/S U.P.State Cement Corporation Ltd.

Counsel for Applicant :- O.L.B.K.L.Srivastava,A.K. Pandey,Anil Mehrotra,Anita Srivastava,Ashok Kumar Chaubey,Ashok Mehta,Navin Kumar Sharma,O.L. M.K. Bagri,O.L.U.S.Patole,S. Niranjan,S.K. Singh,Sanjay Kumar,Saral Srivastava,Satya Prakash Shukla,Vipalav Sharma,Yogendra Kumar Srivastava

Counsel for Opposite Party :- Shiv Nath Singh,A.K. Gupta,A.K. Srivastava,A.K.Mehrotra,A.P. Singh,Achal Singh Vats,Ajal Krishna,Ajay Kumar Pandey,Amit Chaudhary,Amit Saxena,Anil Mehrotra,Anurag Khanna,Ashok Kumar Chaubey,Ashok Mehta,Ashutosh Pandey,B.D. Mandhyan,B.D.Mandhyan,B.K. Mishra,B.N. Singh,Brijesh Kumar,C.B. Srivastava,C.B.Gupta,C.L. Pandey,C.S.C.,D.K. Srivastava,Devendra Singh,Govind Saran,H.N. Sharma,H.P. Dubey,I.S.Tomar,J. Nagar,J.N. Pandey,J.P.Mathur,Jayant Banerji,K.C. Vishwakarma,K.K. Srivastava,Kush Saxena,L.K.Tiwari,L.P.Tiwari,Lalji Pandey,Manoj Kumar,Manoj Srivastava,N.K. Gupta,N.K. Verma,Narendra Mohan,Navin Sinha,O.L. M.K. Bagri,O.L. O.P. Sharma,O.P.Misra,P.K. Dalmiya (In Person),P.K. Upadhyay,P.N.Tripathi,R.P. Agarwal,R.P. Srivastava,R.P. Tiwari,Rajendra Chaubey,Rajesh Kumar Pathak,Rajesh Kumar Singh,Ram Yash Pandey,S.C.,S.D.N.Singh,S.F. Ahmad,S.K. Yadav,S.M. Dayal,S.N. Singh,S.P. Shukla,S.R. Yadav,S.S. Chauhan,S.S.Srivastava,Sandeep Agarwal,Sanjai Srivastava,Sanjay Om,Saumitra Singh,Smt. Archana Singh,Somesh Khare,Subhash Chandra Yadav,Sudhir Agarwal,U.N. Sharma,U.P. Singh,Udai Chandani,V.K.S. Chaudhary,Vinod Misra,Vivek Singh,W.A. Siddiqui,Yashwant Verma,Yogesh Agarwal,Z.K. Hasan

Hon'ble Anjani Kumar Mishra,J.

Application No.243922 of 2008 is up for consideration.

Shri Rajnath N Shukla appearing for the Official Liquidator submits that the learned Standing Counsel had been directed to verify the averments as also the documents appended to this application, vide order dated 20.04.2012. No report has been furnished by learned Standing Counsel.

The learned Standing Counsel may obtain instructions and to file a reply, if any, by the next date fixed.

List this matter on 11.01.2018.

Order Date :- 15.12.2017

RKM

Court No. - 9

Case :- MISC. COMPANY APPLICATION No. - 4 of 1997

Applicant :- In The Matter Of M/S U.P.State Cement Corporation Ltd.

Counsel for Applicant :- O.L.B.K.L.Srivastava,A.K. Pandey,Anil Mehrotra,Anita Srivastava,Ashok Kumar Chaubey,Ashok Mehta,Navin Kumar Sharma,O.L. M.K. Bagri,O.L.U.S.Patole,S. Niranjan,S.K. Singh,Sanjay Kumar,Saral Srivastava,Satya Prakash Shukla,Vipalav Sharma,Yogendra Kumar Srivastava

Counsel for Opposite Party :- Shiv Nath Singh,A.K. Gupta,A.K. Srivastava,A.K.Mehrotra,A.P. Singh,Achal Singh Vats,Ajal Krishna,Ajay Kumar Pandey,Amit Chaudhary,Amit Saxena,Anil Mehrotra,Anurag Khanna,Ashok Kumar Chaubey,Ashok Mehta,Ashutosh Pandey,B.D. Mandhyan,B.D.Mandhyan,B.K. Mishra,B.N. Singh,Brijesh Kumar,C.B. Srivastava,C.B.Gupta,C.L. Pandey,C.S.C.,D.K. Srivastava,Devendra Singh,Govind Saran,H.N. Sharma,H.P. Dubey,I.S.Tomar,J. Nagar,J.N. Pandey,J.P.Mathur,Jayant Banerji,K.C. Vishwakarma,K.K. Srivastava,Kush Saxena,L.K.Tiwari,L.P.Tiwari,Lalji Pandey,Manoj Kumar,Manoj Srivastava,N.K. Gupta,N.K. Verma,Narendra Mohan,Navin Sinha,O.L. M.K. Bagri,O.L. O.P. Sharma,O.P.Misra,P.K. Dalmiya (In Person),P.K. Upadhyay,P.N.Tripathi,R.P. Agarwal,R.P. Srivastava,R.P. Tiwari,Rajendra Chaubey,Rajesh Kumar Pathak,Rajesh Kumar Singh,Ram Yash Pandey,S.C.,S.D.N.Singh,S.F. Ahmad,S.K. Yadav,S.M. Dayal,S.N. Singh,S.P. Shukla,S.R. Yadav,S.S. Chauhan,S.S.Srivastava,Sandeep Agarwal,Sanjai Srivastava,Sanjay Om,Saumitra Singh,Smt. Archana Singh,Somesh Khare,Subhash Chandra Yadav,Sudhir Agarwal,U.N. Sharma,U.P. Singh,Udai Chandani,V.K.S. Chaudhary,Vinod Misra,Vivek Singh,W.A. Siddiqui,Yashwant Verma,Yogesh Agarwal,Z.K. Hasan

Hon'ble Anjani Kumar Mishra,J.

List this matter in the next cause list.

By the next listing, in case learned Standing Counsel does not have instructions, this Court may be constrained to summon the DIOS, Sonbhadra.

When the case is listed next, the name of Shri Ashish Agarwal be shown as counsel for the Official Liquidator.

Order Date :- 6.2.2018

Mayank

Court No. - 9

Case :- MISC. COMPANY APPLICATION No. - 4 of 1997

Applicant :- In The Matter Of M/S U.P.State Cement Corporation Ltd.

Counsel for Applicant :- O.L.B.K.L.Srivastava,A.K. Pandey,Anil Mehrotra,Anita Srivastava,Ashok Kumar Chaubey,Ashok Mehta,Navin Kumar Sharma,O.L. M.K. Bagri,O.L.U.S.Patole,S. Niranjan,S.K. Singh,Sanjay Kumar,Saral Srivastava,Satya Prakash Shukla,Vipalav Sharma,Yogendra Kumar Srivastava

Counsel for Opposite Party :- Shiv Nath Singh,A.K. Gupta,A.K. Srivastava,A.K.Mehrotra,A.P. Singh,Achal Singh Vats,Ajal Krishna,Ajay Kumar Pandey,Amit Chaudhary,Amit Saxena,Anil Mehrotra,Anurag Khanna,Ashok Kumar Chaubey,Ashok Mehta,Ashutosh Pandey,B.D. Mandhyan,B.D.Mandhyan,B.K. Mishra,B.N. Singh,Brijesh Kumar,C.B. Srivastava,C.B.Gupta,C.L. Pandey,C.S.C.,D.K. Srivastava,Devendra Singh,Govind Saran,H.N. Sharma,H.P. Dubey,I.S.Tomar,J. Nagar,J.N. Pandey,J.P.Mathur,Jayant Banerji,K.C. Vishwakarma,K.K. Srivastava,Kush Saxena,L.K.Tiwari,L.P.Tiwari,Lalji Pandey,Manoj Kumar,Manoj Srivastava,N.K. Gupta,N.K. Verma,Narendra Mohan,Navin Sinha,O.L. M.K. Bagri,O.L. O.P. Sharma,O.P.Misra,P.K. Dalmiya (In Person),P.K. Upadhyay,P.N.Tripathi,R.P. Agarwal,R.P. Srivastava,R.P. Tiwari,Rajendra Chaubey,Rajesh Kumar Pathak,Rajesh Kumar Singh,Ram Yash Pandey,S.C.,S.D.N.Singh,S.F. Ahmad,S.K. Yadav,S.M. Dayal,S.N. Singh,S.P. Shukla,S.R. Yadav,S.S. Chauhan,S.S.Srivastava,Sandeep Agarwal,Sanjai Srivastava,Sanjay Om,Saumitra Singh,Smt. Archana Singh,Somesh Khare,Subhash Chandra Yadav,Sudhir Agarwal,U.N. Sharma,U.P. Singh,Udai Chandani,V.K.S. Chaudhary,Vinod Misra,Vivek Singh,W.A. Siddiqui,Yashwant Verma,Yogesh Agarwal,Z.K. Hasan

Hon'ble Anjani Kumar Mishra,J.

Application No.420449 of 2017, which is accompanied by a letter dated 8.08.11.2017 by Shri P.K. Dalmia is up for consideration.

This application appears to have been received in the registry on 16.11.2017 and thereafter the same has been numbered.

The Court has been informed that earlier Shri J.N. Pandey, Advocate, had appeared for the applicant. His name is also shown in the cause list but he has not appeared.

Office is directed to intimate the applicant, Shri P.K. Dalmia, that he shall come up before the Court on 26.02.2018. The intimation may be sent to Speed Post as also by Registered Post A.D.

Further Shri Ashok Mehta had informed the Court that in proceedings before the Apex Court, a statement has been made by Shri P.K. Dalmia that despite his Counsel appearing on several occasions, the matter could not be taken up on account of the fact that the Official Liquidator was not present.

Under the circumstances, let a notice be served along with a copy of this order upon Shri J.N. Pandey requiring him to appear and/ or make a statement before the Court, in case, he does not have any instructions in the matter.

These directions are being issued as this Court has been directed to dispose of the applications filed by Shri P.K. Dalmia by the end of February, 2018.

Shri Yogesh Agrawal has pressed his application. In this regard, learned Standing Counsel had been directed to obtain instructions from the District Inspector of Schools, Sonebhadra.

It is, stated that despite Fax messages having been sent to the District Inspector of Schools, Sonebhadra on 07.02.2018 and 03.01.2018, no instructions has been received.

Let the District Inspector of Schools, Sonebhadra appear in person on 26.02.2018.

Learned Standing Counsel to communicate this order, to him, forthwith.

Order Date :- 13.2.2018

RKM

Court No. - 9

Case :- MISC. COMPANY APPLICATION No. - 4 of 1997

Applicant :- In The Matter Of M/S U.P.State Cement Corporation Ltd.

Counsel for Applicant :- O.L.B.K.L.Srivastava,A.K. Pandey,Anil Mehrotra,Anita Srivastava,Ashok Kumar Chaubey,Ashok Mehta,Navin Kumar Sharma,O.L. M.K. Bagri,O.L.U.S.Patole,S. Niranjan,S.K. Singh,Sanjay Kumar,Saral Srivastava,Satya Prakash Shukla,Vipalav Sharma,Yogendra Kumar Srivastava

Counsel for Opposite Party :- Shiv Nath Singh,A.K. Gupta,A.K. Srivastava,A.K.Mehrotra,A.P. Singh,Achal Singh Vats,Ajal Krishna,Ajay Kumar Pandey,Amit Chaudhary,Amit Saxena,Anil Mehrotra,Anurag Khanna,Ashok Kumar Chaubey,Ashok Mehta,Ashutosh Pandey,B.D.

Mandhyan,B.D.Mandhyan,B.K. Mishra,B.N. Singh,Brijesh Kumar,C.B. Srivastava,C.B.Gupta,C.L. Pandey,C.S.C.,D.K. Srivastava,Devendra Singh,Govind Saran,H.N. Sharma,H.P.

Dubey,I.S.Tomar,J. Nagar,J.N. Pandey,J.P.Mathur,Jayant Banerji,K.C. Vishwakarma,K.K. Srivastava,Kush Saxena,L.K.Tiwari,L.P.Tiwari,Lalji Pandey,Manoj Kumar,Manoj Srivastava,N.K. Gupta,N.K. Verma,Narendra Mohan,Navin Sinha,O.L. M.K. Bagri,O.L. O.P. Sharma,O.P.Misra,P.K. Dalmiya (In Person),P.K. Upadhyay,P.N.Tripathi,R.P. Agarwal,R.P. Srivastava,R.P. Tiwari,Rajendra Chaubey,Rajesh Kumar Pathak,Rajesh Kumar Singh,Ram Yash Pandey,S.C.,S.D.N.Singh,S.F. Ahmad,S.K. Yadav,S.M. Dayal,S.N. Singh,S.P. Shukla,S.R. Yadav,S.S. Chauhan,S.S.Srivastava,Sandeep Agarwal,Sanjai Srivastava,Sanjay Om,Saumitra Singh,Smt. Archana Singh,Somesh Khare,Subhash Chandra Yadav,Sudhir Agarwal,U.N. Sharma,U.P. Singh,Udai Chandani,V.K.S. Chaudhary,Vinod Misra,Vivek Singh,W.A. Siddiqui,Yashwant Verma,Yogesh Agarwal,Z.K. Hasan

Hon'ble Anjani Kumar Mishra,J.

Put up this case on 12.03.2018, peremptorily.

The DIOS, Sonbhadra is present in person in pursuance of the order dated 03.01.2018. He shall file his personal affidavit explaining as to why despite orders of this Court, instructions were not furnished by him.

Order Date :- 6.3.2018
Priyanka

Case :- MISC. COMPANY APPLICATION No. - 4 of 1997

Applicant :- In The Matter Of M/S U.P.State Cement Corporation Ltd.

Counsel for Applicant :- O.L.B.K.L.Srivastava,A.K. Pandey,Anil Mehrotra,Anita Srivastava,Ashok Kumar Chaubey,Ashok Mehta,Navin Kumar Sharma,O.L. M.K. Bagri,O.L.U.S.Patole,S. Niranjan,S.K. Singh,Sanjay Kumar,Saral Srivastava,Satya Prakash Shukla,Vipalav Sharma,Yogendra Kumar Srivastava

Counsel for Opposite Party :- Shiv Nath Singh,A.K. Gupta,A.K. Srivastava,A.K.Mehrotra,A.P. Singh,Achal Singh Vats,Ajal Krishna,Ajay Kumar Pandey,Amit Chaudhary,Amit Saxena,Anil Mehrotra,Anurag Khanna,Ashok Kumar Chaubey,Ashok Mehta,Ashutosh Pandey,B.D.

Mandhyan,B.D.Mandhyan,B.K. Mishra,B.N. Singh,Brijesh Kumar,C.B. Srivastava,C.B.Gupta,C.L. Pandey,C.S.C.,D.K. Srivastava,Devendra Singh,Govind Saran,H.N. Sharma,H.P.

Dubey,I.S.Tomar,J. Nagar,J.N. Pandey,J.P.Mathur,Jayant Banerji,K.C. Vishwakarma,K.K. Srivastava,Kush Saxena,L.K.Tiwari,L.P.Tiwari,Lalji Pandey,Manoj Kumar,Manoj Srivastava,N.K. Gupta,N.K. Verma,Narendra Mohan,Navin Sinha,O.L. M.K. Bagri,O.L. O.P. Sharma,O.P.Misra,P.K. Dalmiya (In Person),P.K. Upadhyay,P.N.Tripathi,R.P. Agarwal,R.P. Srivastava,R.P. Tiwari,Rajendra Chaubey,Rajesh Kumar Pathak,Rajesh Kumar Singh,Ram Yash Pandey,S.C.,S.D.N.Singh,S.F. Ahmad,S.K. Yadav,S.M. Dayal,S.N. Singh,S.P. Shukla,S.R. Yadav,S.S. Chauhan,S.S.Srivastava,Sandeep Agarwal,Sanjai Srivastava,Sanjay Om,Saumitra Singh,Smt. Archana Singh,Somesh Khare,Subhash Chandra Yadav,Sudhir Agarwal,U.N. Sharma,U.P. Singh,Udai Chandani,V.K.S. Chaudhary,Vinod Misra,Vivek Singh,W.A. Siddiqui,Yashwant Verma,Yogesh Agarwal,Z.K. Hasan

Hon'ble Anjani Kumar Mishra,J.

Shri Jitendra Nath Pandey, has appeared on behalf of P.K. Dalmiya. He states that a counter affidavit, filed by the Official Liquidator, has been served upon him on 28.02.2018.

He prays for and is granted two weeks time to file his rejoinder affidavit.

Put up this matter on 29.03.2018.

The counter affidavit that has been filed on behalf of DIOS, Sonbhadra is, as per the counsel for the applicant, Shri Yogesh Agarwal, incomplete

as all relevant aspects of the matter have not been addressed therein.

On the next date fixed, the DIOS, Sonbhadra, shall file a complete counter affidavit and also appear in person.

The question of default on his part in not responding to the intimations sent from this Court seeking instructions shall also be considered on that date.

He shall also bring on record, copy of his leave application whereon he had been granted leave to appear before the Court on 26.02.2018.

Order Date :- 12.3.2018
Priyanka

Court No. - 9

Case :- MISC. COMPANY APPLICATION No. - 4 of 1997

Applicant :- In The Matter Of M/S U.P.State Cement Corporation Ltd.

Counsel for Applicant :- O.L.B.K.L.Srivastava,A.K. Pandey,Anil Mehrotra,Anita Srivastava,Ashok Kumar Chaubey,Ashok Mehta,Navin Kumar Sharma,O.L. M.K. Bagri,O.L.U.S.Patole,S. Niranjan,S.K. Singh,Sanjay Kumar,Saral Srivastava,Satya Prakash Shukla,Vipalav Sharma,Yogendra Kumar Srivastava

Counsel for Opposite Party :- Shiv Nath Singh,A.K. Gupta,A.K. Srivastava,A.K.Mehrotra,A.P. Singh,Achal Singh Vats,Ajal Krishna,Ajay Kumar Pandey,Amit Chaudhary,Amit Saxena,Anil Mehrotra,Anurag Khanna,Ashok Kumar Chaubey,Ashok Mehta,Ashutosh Pandey,B.D. Mandhyan,B.D.Mandhyan,B.K. Mishra,B.N. Singh,Brijesh Kumar,C.B. Srivastava,C.B.Gupta,C.L. Pandey,C.S.C.,D.K. Srivastava,Devendra Singh,Govind Saran,H.N. Sharma,H.P. Dubey,I.S.Tomar,J. Nagar,J.N. Pandey,J.P.Mathur,Jayant Banerji,K.C. Vishwakarma,K.K. Srivastava,Kush Saxena,L.K.Tiwari,L.P.Tiwari,Lalji Pandey,Manoj Kumar,Manoj Srivastava,N.K. Gupta,N.K. Verma,Narendra Mohan,Navin Sinha,O.L. M.K. Bagri,O.L. O.P. Sharma,O.P.Misra,P.K. Dalmiya (In Person),P.K. Upadhyay,P.N.Tripathi,R.P. Agarwal,R.P. Srivastava,R.P. Tiwari,Rajendra Chaubey,Rajesh Kumar Pathak,Rajesh Kumar Singh,Ram Yash Pandey,S.C.,S.D.N.Singh,S.F. Ahmad,S.K. Yadav,S.M. Dayal,S.N. Singh,S.P. Shukla,S.R. Yadav,S.S. Chauhan,S.S.Srivastava,Sandeep Agarwal,Sanjai Srivastava,Sanjay Om,Saumitra Singh,Smt. Archana Singh,Somesh Khare,Subhash Chandra Yadav,Sudhir Agarwal,U.N. Sharma,U.P. Singh,Udai Chandani,V.K.S. Chaudhary,Vinod Misra,Vivek Singh,W.A. Siddiqui,Yashwant Verma,Yogesh Agarwal,Z.K. Hasan

Hon'ble Anjani Kumar Mishra,J.

On the request made by counsel appearing for Shri P.K. Dalmia, the case is adjourned for today to enable him to examine the various provisions of law as regards which specific queries have been raised by the Court.

Further, prima facie , it appears that the claim lodged by Shri P.K. Dalmia in Form 66 before the Official Liquidator is based on certain awards of the Arbitrator.

Counsel for the applicant shall also point out these awards and /or the awards be brought on record, if not already available on record.

Put up for tomorrow i.e., on 30.03.2018 for further hearing.

Order Date :- 29.3.2018

RKM

Court No. - 9

Case :- MISC. COMPANY APPLICATION No. - 4 of 1997

Applicant :- In The Matter Of M/S U.P.State Cement Corporation Ltd.

Counsel for Applicant :- O.L.B.K.L.Srivastava,A.K. Pandey,Anil Mehrotra,Anita Srivastava,Ashok Kumar Chaubey,Ashok Mehta,Navin Kumar Sharma,O.L. M.K. Bagri,O.L.U.S.Patole,S. Niranjan,S.K. Singh,Sanjay Kumar,Saral Srivastava,Satya Prakash Shukla,Vipalav Sharma,Yogendra Kumar Srivastava

Counsel for Opposite Party :- Shiv Nath Singh,A.K. Gupta,A.K. Srivastava,A.K.Mehrotra,A.P. Singh,Achal Singh Vats,Ajal Krishna,Ajay Kumar Pandey,Amit Chaudhary,Amit Saxena,Anil Mehrotra,Anurag Khanna,Ashok Kumar Chaubey,Ashok Mehta,Ashutosh Pandey,B.D. Mandhyan,B.D.Mandhyan,B.K. Mishra,B.N. Singh,Brijesh Kumar,C.B. Srivastava,C.B.Gupta,C.L. Pandey,C.S.C.,D.K. Srivastava,Devendra Singh,Govind Saran,H.N. Sharma,H.P. Dubey,I.S.Tomar,J. Nagar,J.N. Pandey,J.P.Mathur,Jayant Banerji,K.C. Vishwakarma,K.K. Srivastava,Kush Saxena,L.K.Tiwari,L.P.Tiwari,Lalji Pandey,Manoj Kumar,Manoj Srivastava,N.K. Gupta,N.K. Verma,Narendra Mohan,Navin Sinha,O.L. M.K. Bagri,O.L. O.P. Sharma,O.P.Misra,P.K. Dalmiya (In Person),P.K. Upadhyay,P.N.Tripathi,R.P. Agarwal,R.P. Srivastava,R.P. Tiwari,Rajendra Chaubey,Rajesh Kumar Pathak,Rajesh Kumar Singh,Ram Yash Pandey,S.C.,S.D.N.Singh,S.F. Ahmad,S.K. Yadav,S.M. Dayal,S.N. Singh,S.P. Shukla,S.R. Yadav,S.S. Chauhan,S.S.Srivastava,Sandeep Agarwal,Sanjai Srivastava,Sanjay Om,Saumitra Singh,Smt. Archana Singh,Somesh Khare,Subhash Chandra Yadav,Sudhir Agarwal,U.N. Sharma,U.P. Singh,Udai Chandani,V.K.S. Chaudhary,Vinod Misra,Vivek Singh,W.A. Siddiqui,Yashwant Verma,Yogesh Agarwal,Z.K. Hasan

Hon'ble Anjani Kumar Mishra,J.

Put up this matter on 02.04.2018 for consideration of the matter pertaining to the District Inspector of Schools, Sonebhadra. He shall appear in person again, on that date as the matter requires to be considered in the light of his counter affidavit stated to have been e-filed but is not available on record.

Civil Misc. Application No.420449 of 2017 is up for consideration.

Heard Shri J.N.Pandey, counsel for Shri P.K. Dalmia and Shri Ashok Mehta, Senior Advocate for the Official Liquidator.

The hearing has been concluded.

However, looking into the voluminous record that has to be dealt with while deciding the application, this Court directs that the matter be listed for further hearing on 09.04.2018 to enable the Court to make additional queries from counsel for the parties, in case so required.

Order Date :- 30.3.2018

RKM

Case :- MISC. COMPANY APPLICATION No. - 4 of 1997

Applicant :- In The Matter Of M/S U.P.State Cement Corporation Ltd.

Counsel for Applicant :- O.L.B.K.L.Srivastava,A.K. Pandey,Anil Mehrotra,Anita Srivastava,Ashok Kumar Chaubey,Ashok Mehta,Navin Kumar Sharma,O.L. M.K. Bagri,O.L.U.S.Patole,S. Niranjan,S.K. Singh,Sanjay Kumar,Saral Srivastava,Satya Prakash Shukla,Vipalav Sharma,Yogendra Kumar Srivastava

Counsel for Opposite Party :- Shiv Nath Singh,A.K. Gupta,A.K. Srivastava,A.K.Mehrotra,A.P. Singh,Achal Singh Vats,Ajal Krishna,Ajay Kumar Pandey,Amit Chaudhary,Amit Saxena,Anil Mehrotra,Anurag Khanna,Ashok Kumar Chaubey,Ashok Mehta,Ashutosh Pandey,B.D. Mandhyan,B.D.Mandhyan,B.K. Mishra,B.N. Singh,Brijesh Kumar,C.B. Srivastava,C.B.Gupta,C.L. Pandey,C.S.C.,D.K. Srivastava,Devendra Singh,Govind Saran,H.N. Sharma,H.P. Dubey,I.S.Tomar,J. Nagar,J.N. Pandey,J.P.Mathur,Jayant Banerji,K.C. Vishwakarma,K.K. Srivastava,Kush Saxena,L.K.Tiwari,L.P.Tiwari,Lalji Pandey,Manoj Kumar,Manoj Srivastava,N.K. Gupta,N.K. Verma,Narendra Mohan,Navin Sinha,O.L. M.K. Bagri,O.L. O.P. Sharma,O.P.Misra,P.K. Dalmiya (In Person),P.K. Upadhyay,P.N.Tripathi,R.P. Agarwal,R.P. Srivastava,R.P. Tiwari,Rajendra Chaubey,Rajesh Kumar Pathak,Rajesh Kumar Singh,Ram Yash Pandey,S.C.,S.D.N.Singh,S.F. Ahmad,S.K. Yadav,S.M. Dayal,S.N. Singh,S.P. Shukla,S.R. Yadav,S.S. Chauhan,S.S.Srivastava,Sandeep Agarwal,Sanjai Srivastava,Sanjay Om,Saumitra Singh,Smt. Archana Singh,Somesh Khare,Subhash Chandra Yadav,Sudhir Agarwal,U.N. Sharma,U.P. Singh,Udai Chandani,V.K.S. Chaudhary,Vinod Misra,Vivek Singh,W.A. Siddiqui,Yashwant Verma,Yogesh Agarwal,Z.K. Hasan

Hon'ble Anjani Kumar Mishra,J.

Perused the counter affidavit filed by the DIOS, Sonbhadra, namely, Shri Raj Shekhar Singh.

The exemption application is allowed.

However he is directed to be careful in future because any recurrence of such a situation shall necessarily invite strict action against him.

Counsel for the applicant prays for and is granted three weeks time to file his rejoinder affidavit.

List thereafter.

Order Date :- 2.4.2018
Priyanka

Court No. - 9

Case :- MISC. COMPANY APPLICATION No. - 4 of 1997

Applicant :- In The Matter Of M/S U.P.State Cement Corporation Ltd.

Counsel for Applicant :- O.L.B.K.L.Srivastava,A.K. Pandey,Anil Mehrotra,Anita Srivastava,Ashok Kumar Chaubey,Ashok Mehta,Navin Kumar Sharma,O.L. M.K. Bagri,O.L.U.S.Patole,S. Niranjan,S.K. Singh,Sanjay Kumar,Saral Srivastava,Satya Prakash Shukla,Vipalav Sharma,Yogendra Kumar Srivastava

Counsel for Opposite Party :- Shiv Nath Singh,A.K. Gupta,A.K. Srivastava,A.K.Mehrotra,A.P. Singh,Achal Singh Vats,Ajal Krishna,Ajay Kumar Pandey,Amit Chaudhary,Amit Saxena,Anil Mehrotra,Anurag Khanna,Ashok Kumar Chaubey,Ashok Mehta,Ashutosh Pandey,B.D.

Mandhyan,B.D.Mandhyan,B.K. Mishra,B.N. Singh,Brijesh Kumar,C.B. Srivastava,C.B.Gupta,C.L. Pandey,C.S.C.,D.K. Srivastava,Devendra Singh,Govind Saran,H.N. Sharma,H.P.

Dubey,I.S.Tomar,J. Nagar,J.N. Pandey,J.P.Mathur,Jayant Banerji,K.C. Vishwakarma,K.K. Srivastava,Kush Saxena,L.K.Tiwari,L.P.Tiwari,Lalji Pandey,Manoj Kumar,Manoj Srivastava,N.K. Gupta,N.K. Verma,Narendra Mohan,Navin Sinha,O.L. M.K. Bagri,O.L. O.P. Sharma,O.P.Misra,P.K. Dalmiya (In Person),P.K. Upadhyay,P.N.Tripathi,R.P. Agarwal,R.P. Srivastava,R.P. Tiwari,Rajendra Chaubey,Rajesh Kumar Pathak,Rajesh Kumar Singh,Ram Yash Pandey,S.C.,S.D.N.Singh,S.F. Ahmad,S.K. Yadav,S.M. Dayal,S.N. Singh,S.P. Shukla,S.R. Yadav,S.S. Chauhan,S.S.Srivastava,Sandeep Agarwal,Sanjai Srivastava,Sanjay Om,Saumitra Singh,Smt. Archana Singh,Somesh Khare,Subhash Chandra Yadav,Sudhir Agarwal,U.N. Sharma,U.P. Singh,Udai Chandani,V.K.S. Chaudhary,Vinod Misra,Vivek Singh,W.A. Siddiqui,Yashwant Verma,Yogesh Agarwal,Z.K. Hasan

Hon'ble Anjani Kumar Mishra,J.

Order on Listing Application

List in its turn.

Order Date :- 13.4.2018

Priyanka

Court No. - 9

Case :- MISC. COMPANY APPLICATION No. - 4 of 1997

Applicant :- In The Matter Of M/S U.P.State Cement Corporation Ltd.

Counsel for Applicant :- O.L.B.K.L.Srivastava,A.K. Pandey,Anil Mehrotra,Anita Srivastava,Ashok Kumar Chaubey,Ashok Mehta,Navin Kumar Sharma,O.L. M.K. Bagri,O.L.U.S.Patole,S. Niranjan,S.K. Singh,Sanjay Kumar,Saral Srivastava,Satya Prakash Shukla,Vipalav Sharma,Yogendra Kumar Srivastava

Counsel for Opposite Party :- Shiv Nath Singh,A.K. Gupta,A.K. Srivastava,A.K.Mehrotra,A.P. Singh,Achal Singh Vats,Ajal Krishna,Ajay Kumar Pandey,Amit Chaudhary,Amit Saxena,Anil Mehrotra,Anurag Khanna,Ashok Kumar Chaubey,Ashok Mehta,Ashutosh Pandey,B.D. Mandhyan,B.D.Mandhyan,B.K. Mishra,B.N. Singh,Brijesh Kumar,C.B. Srivastava,C.B.Gupta,C.L. Pandey,C.S.C.,D.K. Srivastava,Devendra Singh,Govind Saran,H.N. Sharma,H.P. Dubey,I.S.Tomar,J. Nagar,J.N. Pandey,J.P.Mathur,Jayant Banerji,K.C. Vishwakarma,K.K. Srivastava,Kush Saxena,L.K.Tiwari,L.P.Tiwari,Lalji Pandey,Manoj Kumar,Manoj Srivastava,N.K. Gupta,N.K. Verma,Narendra Mohan,Navin Sinha,O.L. M.K. Bagri,O.L. O.P. Sharma,O.P.Misra,P.K. Dalmiya (In Person),P.K. Upadhyay,P.N.Tripathi,R.P. Agarwal,R.P. Srivastava,R.P. Tiwari,Rajendra Chaubey,Rajesh Kumar Pathak,Rajesh Kumar Singh,Ram Yash Pandey,S.C.,S.D.N.Singh,S.F. Ahmad,S.K. Yadav,S.M. Dayal,S.N. Singh,S.P. Shukla,S.R. Yadav,S.S. Chauhan,S.S.Srivastava,Sandeep Agarwal,Sanjai Srivastava,Sanjay Om,Saumitra Singh,Smt. Archana Singh,Somesh Khare,Subhash Chandra Yadav,Sudhir Agarwal,U.N. Sharma,U.P. Singh,Udai Chandani,V.K.S. Chaudhary,Vinod Misra,Vivek Singh,W.A. Siddiqui,Yashwant Verma,Yogesh Agarwal,Z.K. Hasan

Hon'ble Anjani Kumar Mishra,J.

List in its turn.

Order Date :- 2.5.2018

Mayank

Court No. - 9

Case :- MISC. COMPANY APPLICATION No. - 4 of 1997

Applicant :- In The Matter Of M/S U.P.State Cement Corporation Ltd.

Counsel for Applicant :- O.L.B.K.L.Srivastava,A.K. Pandey,Anil Mehrotra,Anita Srivastava,Ashok Kumar Chaubey,Ashok Mehta,Navin Kumar Sharma,O.L. M.K. Bagri,O.L.U.S.Patole,S. Niranjan,S.K. Singh,Sanjay Kumar,Saral Srivastava,Satya Prakash Shukla,Vipalav Sharma,Yogendra Kumar Srivastava

Counsel for Opposite Party :- Shiv Nath Singh,A.K. Gupta,A.K. Srivastava,A.K.Mehrotra,A.P. Singh,Achal Singh Vats,Ajal Krishna,Ajay Kumar Pandey,Amit Chaudhary,Amit Saxena,Anil Mehrotra,Anurag Khanna,Ashok Kumar Chaubey,Ashok Mehta,Ashutosh Pandey,B.D. Mandhyan,B.D.Mandhyan,B.K. Mishra,B.N. Singh,Brijesh Kumar,C.B. Srivastava,C.B.Gupta,C.L. Pandey,C.S.C.,D.K. Srivastava,Devendra Singh,Govind Saran,H.N. Sharma,H.P. Dubey,I.S.Tomar,J. Nagar,J.N. Pandey,J.P.Mathur,Jayant Banerji,K.C. Vishwakarma,K.K. Srivastava,Kush Saxena,L.K.Tiwari,L.P.Tiwari,Lalji Pandey,Manoj Kumar,Manoj Srivastava,N.K. Gupta,N.K. Verma,Narendra Mohan,Navin Sinha,O.L. M.K. Bagri,O.L. O.P. Sharma,O.P.Misra,P.K. Dalmiya (In Person),P.K. Upadhyay,P.N.Tripathi,R.P. Agarwal,R.P. Srivastava,R.P. Tiwari,Rajendra Chaubey,Rajesh Kumar Pathak,Rajesh Kumar Singh,Ram Yash Pandey,S.C.,S.D.N.Singh,S.F. Ahmad,S.K. Yadav,S.M. Dayal,S.N. Singh,S.P. Shukla,S.R. Yadav,S.S. Chauhan,S.S.Srivastava,Sandeep Agarwal,Sanjai Srivastava,Sanjay Om,Saumitra Singh,Smt. Archana Singh,Somesh Khare,Subhash Chandra Yadav,Sudhir Agarwal,U.N. Sharma,U.P. Singh,Udai Chandani,V.K.S. Chaudhary,Vinod Misra,Vivek Singh,W.A. Siddiqui,Yashwant Verma,Yogesh Agarwal,Z.K. Hasan

Hon'ble Anjani Kumar Mishra,J.

List for further hearing on 30.10.2018.

Order Date :- 22.10.2018

Jitendra

Court No. - 9

Case :- MISC. COMPANY APPLICATION No. - 4 of 1997

Applicant :- In The Matter Of M/S U.P.State Cement Corporation Ltd.

Counsel for Applicant :- O.L.B.K.L.Srivastava,A.K. Pandey,Anil Mehrotra,Anita Srivastava,Ashok Kumar Chaubey,Ashok Mehta,Navin Kumar Sharma,O.L. M.K. Bagri,O.L.U.S.Patole,S. Niranjan,S.K. Singh,Sanjay Kumar,Saral Srivastava,Satya Prakash Shukla,Vipalav Sharma,Yogendra Kumar Srivastava

Counsel for Opposite Party :- Shiv Nath Singh,A.K. Gupta,A.K. Srivastava,A.K.Mehrotra,A.P. Singh,Achal Singh Vats,Ajal Krishna,Ajay Kumar Pandey,Amit Chaudhary,Amit Saxena,Anil Mehrotra,Anurag Khanna,Ashok Kumar Chaubey,Ashok Mehta,Ashutosh Pandey,B.D. Mandhyan,B.D.Mandhyan,B.K. Mishra,B.N. Singh,Brijesh Kumar,C.B. Srivastava,C.B.Gupta,C.L. Pandey,C.S.C.,D.K. Srivastava,Devendra Singh,Govind Saran,H.N. Sharma,H.P. Dubey,I.S.Tomar,J. Nagar,J.N. Pandey,J.P.Mathur,Jayant Banerji,K.C. Vishwakarma,K.K. Srivastava,Kush Saxena,L.K.Tiwari,L.P.Tiwari,Lalji Pandey,Manoj Kumar,Manoj Srivastava,N.K. Gupta,N.K. Verma,Narendra Mohan,Navin Sinha,O.L. M.K. Bagri,O.L. O.P. Sharma,O.P.Misra,P.K. Dalmiya (In Person),P.K. Upadhyay,P.N.Tripathi,R.P. Agarwal,R.P. Srivastava,R.P. Tiwari,Rajendra Chaubey,Rajesh Kumar Pathak,Rajesh Kumar Singh,Ram Yash Pandey,S.C.,S.D.N.Singh,S.F. Ahmad,S.K. Yadav,S.M. Dayal,S.N. Singh,S.P. Shukla,S.R. Yadav,S.S. Chauhan,S.S.Srivastava,Sandeep Agarwal,Sanjai Srivastava,Sanjay Om,Saumitra Singh,Smt. Archana Singh,Somesh Khare,Subhash Chandra Yadav,Sudhir Agarwal,U.N. Sharma,U.P. Singh,Udai Chandani,V.K.S. Chaudhary,Vinod Misra,Vivek Singh,W.A. Siddiqui,Yashwant Verma,Yogesh Agarwal,Z.K. Hasan

Hon'ble Anjani Kumar Mishra,J.

Ref:- Civil Misc. Application No. 293104 of 2014

Put up tomorrow i.e. 31.10.2018 along with the report no. 69 of 2017.

Order Date :- 30.10.2018

Mayank

Case :- MISC. COMPANY APPLICATION No. - 4 of 1997

Applicant :- In The Matter Of M/S U.P.State Cement Corporation Ltd.

Counsel for Applicant :- O.L.B.K.L.Srivastava,A.K. Pandey,Anil Mehrotra,Anita Srivastava,Ashok Kumar Chaubey,Ashok Mehta,Navin Kumar Sharma,O.L. M.K. Bagri,O.L.U.S.Patole,S. Niranjan,S.K. Singh,Sanjay Kumar,Saral Srivastava,Satya Prakash Shukla,Vipalav Sharma,Yogendra Kumar Srivastava

Counsel for Opposite Party :- Shiv Nath Singh,A.K. Gupta,A.K. Srivastava,A.K.Mehrotra,A.P. Singh,Achal Singh Vats,Ajal Krishna,Ajay Kumar Pandey,Amit Chaudhary,Amit Saxena,Anil Mehrotra,Anurag Khanna,Ashok Kumar Chaubey,Ashok Mehta,Ashutosh Pandey,B.D. Mandhyan,B.D.Mandhyan,B.K. Mishra,B.N. Singh,Brijesh Kumar,C.B. Srivastava,C.B.Gupta,C.L. Pandey,C.S.C.,D.K. Srivastava,Devendra Singh,Govind Saran,H.N. Sharma,H.P. Dubey,I.S.Tomar,J. Nagar,J.N. Pandey,J.P.Mathur,Jayant Banerji,K.C. Vishwakarma,K.K. Srivastava,Kush Saxena,L.K.Tiwari,L.P.Tiwari,Lalji Pandey,Manoj Kumar,Manoj Srivastava,N.K. Gupta,N.K. Verma,Narendra Mohan,Navin Sinha,O.L. M.K. Bagri,O.L. O.P. Sharma,O.P.Misra,P.K. Dalmiya (In Person),P.K. Upadhyay,P.N.Tripathi,R.P. Agarwal,R.P. Srivastava,R.P. Tiwari,Rajendra Chaubey,Rajesh Kumar Pathak,Rajesh Kumar Singh,Ram Yash Pandey,S.C.,S.D.N.Singh,S.F. Ahmad,S.K. Yadav,S.M. Dayal,S.N. Singh,S.P. Shukla,S.R. Yadav,S.S. Chauhan,S.S.Srivastava,Sandeep Agarwal,Sanjai Srivastava,Sanjay Om,Saumitra Singh,Smt. Archana Singh,Somesh Khare,Subhash Chandra Yadav,Sudhir Agarwal,U.N. Sharma,U.P. Singh,Udai Chandani,V.K.S. Chaudhary,Vinod Misra,Vivek Singh,W.A. Siddiqui,Yashwant Verma,Yogesh Agarwal,Z.K. Hasan

Hon'ble Anjani Kumar Mishra,J.

The application filed by Shri P.K. Dalmiya had been heard and ordered has been reserved.

Upon examining the record while dictating the order it transpires that the Apex Court as also issued a direction that the help of an auditor/ chartered Accountant may also be taken.

Under the circumstances the Official Liquidator had directed to make the record which has been filed by Shri P.K. Dalmiya available to Shri Vinayak Tandon CA to examine the same and to submit his report.

The CA may take into account Official Liquidators Report (Judicial) No. 44 of 2013, 35 of 2018 and 34 of 2017.

The report be furnished expeditiously preferably within a period of six weeks from today.

Order Date :- 30.10.2018
Priyanka

Case :- MISC. COMPANY APPLICATION No. - 4 of 1997

Applicant :- In The Matter Of M/S U.P.State Cement Corporation Ltd.

Counsel for Applicant :- O.L.B.K.L.Srivastava,A.K. Pandey,Anil Mehrotra,Anita Srivastava,Ashok Kumar Chaubey,Ashok Mehta,Navin Kumar Sharma,O.L. M.K. Bagri,O.L.U.S.Patole,S. Niranjan,S.K. Singh,Sanjay Kumar,Saral Srivastava,Satya Prakash Shukla,Vipalav Sharma,Yogendra Kumar Srivastava

Counsel for Opposite Party :- Shiv Nath Singh,A.K. Gupta,A.K. Srivastava,A.K.Mehrotra,A.P. Singh,Achal Singh Vats,Ajal Krishna,Ajay Kumar Pandey,Amit Chaudhary,Amit Saxena,Anil Mehrotra,Anurag Khanna,Ashok Kumar Chaubey,Ashok Mehta,Ashutosh Pandey,B.D.

Mandhyan,B.D.Mandhyan,B.K. Mishra,B.N. Singh,Brijesh Kumar,C.B. Srivastava,C.B.Gupta,C.L. Pandey,C.S.C.,D.K. Srivastava,Devendra Singh,Govind Saran,H.N. Sharma,H.P.

Dubey,I.S.Tomar,J. Nagar,J.N.

Pandey,J.P.Mathur,Jayant Banerji,K.C.

Vishwakarma,K.K. Srivastava,Kush

Saxena,L.K.Tiwari,L.P.Tiwari,Lalji Pandey,Manoj Kumar,Manoj Srivastava,N.K. Gupta,N.K.

Verma,Narendra Mohan,Navin Sinha,O.L. M.K.

Bagri,O.L. O.P. Sharma,O.P.Misra,P.K. Dalmiya (In Person),P.K. Upadhyay,P.N.Tripathi,R.P.

Agarwal,R.P. Srivastava,R.P. Tiwari,Rajendra

Chaubey,Rajesh Kumar Pathak,Rajesh Kumar Singh,Ram Yash Pandey,S.C.,S.D.N.Singh,S.F. Ahmad,S.K.

Yadav,S.M. Dayal,S.N. Singh,S.P. Shukla,S.R.

Yadav,S.S. Chauhan,S.S.Srivastava,Sandeep

Agarwal,Sanjai Srivastava,Sanjay Om,Saumitra

Singh,Smt. Archana Singh,Somesh Khare,Subhash

Chandra Yadav,Sudhir Agarwal,U.N. Sharma,U.P.

Singh,Udai Chandani,V.K.S. Chaudhary,Vinod

Misra,Vivek Singh,W.A. Siddiqui,Yashwant

Verma,Yogesh Agarwal,Z.K. Hasan

Hon'ble Anjani Kumar Mishra,J.

Heard Shri D.C. Mishra, counsel for the applicant, V.K. Pandey on Application No. 293104 of 2014 and Shri Ashok Mehta for the Official Liquidator.

The instant application has been filed on 31.08.2014 alleging that the applicant was appointed as Manager C & P R, (Manager Marketing) in UP State Cement Corporation, on 01.04.1974. On the Company becoming sick,the employees were given an option for voluntary retirement which option was exercised by the applicant, which option was duly accepted on 21.01.1996 by the Managing Director, UP State Cement Corporation.

The applicant claimed his gratuity from the UP State Cement Corporation and this application was received on 24.09.1997. It has also contented that the petitioner is entitled to other post retiral benefits and had raised a demand for the same. He is, therefore, entitled to the aforementioned dues.

The Company was wound up, vide order dated 08.12.1999 and thereafter Official Liquidator had invited claims. The last date for filing the claim was 31.07.2006, but no claim was ever lodged by the applicant before the Official Liquidator on account of circumstances, enumeration in the application and the affidavit in its support.

Shri Ashok Mehta, Senior Advocate, appearing for the Official Liquidator has submitted that earlier an application being Application No. 204514 of 2010 had been filed by the applicant on identical grounds. This application, filed along with a delay condonation application, came to be rejected by the order dated 02.09.2011. This order has not been challenged by the applicant any further and has become final.

It is also submitted that a complaint was lodged before the Human Right Commission where upon notices were issued to the Official Liquidator to submit his reply.

In pursuance of the notice, an objection was filed by the Official Liquidator stating that it is the Company Court alone which has jurisdiction in the matter in accordance with the provision contained in Section 446 of the Companies Act.

Thereafter, vide order dated 19.07.2016, the Official Liquidator was directed to pay gratuity and other dues of the applicant, within six weeks, failing which the Official Liquidator was directed to appear in person before the Commission on 14.09.2016.

The Company Court on an application filed by the Official Liquidator, stayed the effect and operation of the order dated 19.07.2016 passed by the Member, Human Rights Commission, Lucknow.

From the facts noticed above, it is clear that the earlier application filed by the applicant has been rejected by the Company Court and the said order of rejection has attained finality.

It is the settled position in law, that once a Company is ordered to be wound up, all claims of the creditors and workmen are received and decided

in accordance with the provisions contained in Section 529 and 529-A and Chapter V of the Companies Act, 1956. No payment of a claim, not lodged by a claimant can be made, even by the Company Court. Therefore, the direction issued by the Member, Human rights Commission was sans any authority of law and wholly without jurisdiction in view of Section 446 of the Act. The direction could not have been issued also because the application for condonation of delay is lodging the claim, made by the applicant had already been rejected by Company Court vide order dated 02.09.2011 which order has attained finality.

The instant application is a second application on identical allegations. The first, as noticed above, has been dismissed in the year 2011. This second application, therefore, is not maintainable and is, dismissed as such.

The directions issued by the Human Rights Commission are also without jurisdiction and are, therefore, set aside.

Order Date :- 31.10.2018
Priyanka

Court No. - 9

Case :- MISC. COMPANY APPLICATION No. - 4 of 1997

Applicant :- In The Matter Of M/S U.P.State Cement Corporation Ltd.

Counsel for Applicant :- O.L.B.K.L.Srivastava,A.K. Pandey,Anil Mehrotra,Anita Srivastava,Ashok Kumar Chaubey,Ashok Mehta,Navin Kumar Sharma,O.L. M.K. Bagri,O.L.U.S.Patole,S. Niranjana,S.K. Singh,Sanjay Kumar,Saral Srivastava,Satya Prakash Shukla,Vipalav Sharma,Yogendra Kumar Srivastava

Counsel for Opposite Party :- Shiv Nath Singh,A.K. Gupta,A.K. Srivastava,A.K.Mehrotra,A.P. Singh,Achal Singh Vats,Ajal Krishna,Ajay Kumar Pandey,Amit Chaudhary,Amit Saxena,Anil Mehrotra,Anurag Khanna,Ashok Kumar Chaubey,Ashok Mehta,Ashutosh Pandey,B.D. Mandhyan,B.D.Mandhyan,B.K. Mishra,B.N. Singh,Brijesh Kumar,C.B. Srivastava,C.B.Gupta,C.L. Pandey,C.S.C.,D.K. Srivastava,Devendra Singh,Govind Saran,H.N. Sharma,H.P. Dubey,I.S.Tomar,J. Nagar,J.N. Pandey,J.P.Mathur,Jayant Banerji,K.C. Vishwakarma,K.K. Srivastava,Kush Saxena,L.K.Tiwari,L.P.Tiwari,Lalji Pandey,Manoj Kumar,Manoj Srivastava,N.K. Gupta,N.K. Verma,Narendra Mohan,Navin Sinha,O.L. M.K. Bagri,O.L. O.P. Sharma,O.P.Misra,P.K. Dalmiya (In Person),P.K. Upadhyay,P.N.Tripathi,R.P. Agarwal,R.P. Srivastava,R.P. Tiwari,Rajendra Chaubey,Rajesh Kumar Pathak,Rajesh Kumar Singh,Ram Yash Pandey,S.C.,S.D.N.Singh,S.F. Ahmad,S.K. Yadav,S.M. Dayal,S.N. Singh,S.P. Shukla,S.R. Yadav,S.S. Chauhan,S.S.Srivastava,Sandeep Agarwal,Sanjai Srivastava,Sanjay Om,Saumitra Singh,Smt. Archana Singh,Somesh Khare,Subhash Chandra Yadav,Sudhir Agarwal,U.N. Sharma,U.P. Singh,Udai Chandani,V.K.S. Chaudhary,Vinod Misra,Vivek Singh,W.A. Siddiqui,Yashwant Verma,Yogesh Agarwal,Z.K. Hasan

Hon'ble Anjani Kumar Mishra,J.

Heard.

The name of Sri "V.K. Pandey" occurring in the second line of the first paragraph of the order dated 31.10.2018 be read as Sri "D.K. Pandey".

This order be read in continuation with the order dated 31.10.2018.

The Correction Application accordingly stands disposed of.

Order Date :- 15.11.2018

Kamar

Court No. - 9

Civil Misc. Application No. 564 and 565 of 2018

IN

Case :- MISC. COMPANY APPLICATION No. - 4 of 1997

Applicant :- In The Matter Of M/S U.P.State Cement Corporation Ltd.

Counsel for Applicant :- O.L.B.K.L.Srivastava,A.K. Pandey,Anil Mehrotra,Anita Srivastava,Ashok Kumar Chaubey,Ashok Mehta,Navin Kumar Sharma,O.L. M.K. Bagri,O.L.U.S.Patole,S. Niranjan,S.K. Singh,Sanjay Kumar,Saral Srivastava,Satya Prakash Shukla,Vipalav Sharma,Yogendra Kumar Srivastava

Counsel for Opposite Party :- Shiv Nath Singh,A.K. Gupta,A.K. Srivastava,A.K.Mehrotra,A.P. Singh,Achal Singh Vats,Ajal Krishna,Ajay Kumar Pandey,Amit Chaudhary,Amit Saxena,Anil Mehrotra,Anurag Khanna,Ashok Kumar Chaubey,Ashok Mehta,Ashutosh Pandey,B.D. Mandhyan,B.D.Mandhyan,B.K. Mishra,B.N. Singh,Brijesh Kumar,C.B. Srivastava,C.B.Gupta,C.L. Pandey,C.S.C.,D.K. Srivastava,Devendra Singh,Govind Saran,H.N. Sharma,H.P. Dubey,I.S.Tomar,J. Nagar,J.N. Pandey,J.P.Mathur,Jayant Banerji,K.C. Vishwakarma,K.K. Srivastava,Kush Saxena,L.K.Tiwari,L.P.Tiwari,Lalji Pandey,Manoj Kumar,Manoj Srivastava,N.K. Gupta,N.K. Verma,Narendra Mohan,Navin Sinha,O.L. M.K. Bagri,O.L. O.P. Sharma,O.P.Misra,P.K. Dalmiya (In Person),P.K. Upadhyay,P.N.Tripathi,R.P. Agarwal,R.P. Srivastava,R.P. Tiwari,Rajendra Chaubey,Rajesh Kumar Pathak,Rajesh Kumar Singh,Ram Yash Pandey,S.C.,S.D.N.Singh,S.F. Ahmad,S.K. Yadav,S.M. Dayal,S.N. Singh,S.P. Shukla,S.R. Yadav,S.S. Chauhan,S.S.Srivastava,Sandeep Agarwal,Sanjai Srivastava,Sanjay Om,Saumitra Singh,Smt. Archana Singh,Somesh Khare,Subhash Chandra Yadav,Sudhir Agarwal,U.N. Sharma,U.P. Singh,Udai Chandani,V.K.S. Chaudhary,Vinod Misra,Vivek Singh,W.A. Siddiqui,Yashwant Verma,Yogesh Agarwal,Z.K. Hasan

Hon'ble Anjani Kumar Mishra,J.

List in its turn.

Order Date :- 26.11.2018

Mayank

Court No. - 9

Case :- MISC. COMPANY APPLICATION No. - 4 of 1997

Applicant :- In The Matter Of M/S U.P.State Cement Corporation Ltd.

Counsel for Applicant :- O.L.B.K.L.Srivastava,A.K. Pandey,Anil Mehrotra,Anita Srivastava,Ashok Kumar Chaubey,Ashok Mehta,Navin Kumar Sharma,O.L. M.K. Bagri,O.L.U.S.Patole,S. Niranjan,S.K. Singh,Sanjay Kumar,Saral Srivastava,Satya Prakash Shukla,Vipalav Sharma,Yogendra Kumar Srivastava

Counsel for Opposite Party :- Shiv Nath Singh,A.K. Gupta,A.K. Srivastava,A.K.Mehrotra,A.P. Singh,Achal Singh Vats,Ajal Krishna,Ajay Kumar Pandey,Amit Chaudhary,Amit Saxena,Anil Mehrotra,Anurag Khanna,Ashok Kumar Chaubey,Ashok Mehta,Ashutosh Pandey,B.D. Mandhyan,B.D.Mandhyan,B.K. Mishra,B.N. Singh,Brijesh Kumar,C.B. Srivastava,C.B.Gupta,C.L. Pandey,C.S.C.,D.K. Srivastava,Devendra Singh,Govind Saran,H.N. Sharma,H.P. Dubey,I.S.Tomar,J. Nagar,J.N. Pandey,J.P.Mathur,Jayant Banerji,K.C. Vishwakarma,K.K. Srivastava,Kush Saxena,L.K.Tiwari,L.P.Tiwari,Lalji Pandey,Manoj Kumar,Manoj Srivastava,N.K. Gupta,N.K. Verma,Narendra Mohan,Navin Sinha,O.L. M.K. Bagri,O.L. O.P. Sharma,O.P.Misra,P.K. Dalmiya (In Person),P.K. Upadhyay,P.N.Tripathi,R.P. Agarwal,R.P. Srivastava,R.P. Tiwari,Rajendra Chaubey,Rajesh Kumar Pathak,Rajesh Kumar Singh,Ram Yash Pandey,S.C.,S.D.N.Singh,S.F. Ahmad,S.K. Yadav,S.M. Dayal,S.N. Singh,S.R. Yadav,S.S. Chauhan,S.S.Srivastava,Sandeep Agarwal,Sanjai Srivastava,Sanjay Om,Satya Prakash Shukla,Saumitra Singh,Smt. Archana Singh,Somesh Khare,Subhash Chandra Yadav,Sudhir Agarwal,U.N. Sharma,U.P. Singh,Udai Chandani,V.K.S. Chaudhary,Vinod Misra,Vivek Singh,W.A. Siddiqui,Yashwant Verma,Yogesh Agarwal,Z.K. Hasan

Hon'ble Anjani Kumar Mishra,J.

Counsel appearing on behalf of Shri .P.K. Dalmia seeks six weeks time to reply to the report of the Chartered Accountant, which has been obtained by this Court, consequent to the directions of the Apex Court, contained in the order dated 09.10.2017.

List after six weeks.

Order Date :- 23.1.2019

RKM

Court No. - 9

Case :- MISC. COMPANY APPLICATION No. - 4 of 1997

Applicant :- In The Matter Of M/S U.P.State Cement Corporation Ltd.

Counsel for Applicant :- O.L.B.K.L.Srivastava,A.K. Pandey,Anil Mehrotra,Anita Srivastava,Ashok Kumar Chaubey,Ashok Mehta,Navin Kumar Sharma,O.L. M.K. Bagri,O.L.U.S.Patole,S. Niranjan,S.K. Singh,Sanjay Kumar,Saral Srivastava,Satya Prakash Shukla,Vipalav Sharma,Yogendra Kumar Srivastava

Counsel for Opposite Party :- Shiv Nath Singh,A.K. Gupta,A.K. Srivastava,A.K.Mehrotra,A.P. Singh,Achal Singh Vats,Ajal Krishna,Ajay Kumar Pandey,Amit Chaudhary,Amit Saxena,Anil Mehrotra,Anurag Khanna,Ashok Kumar Chaubey,Ashok Mehta,Ashutosh Pandey,B.D. Mandhyan,B.D.Mandhyan,B.K. Mishra,B.N. Singh,Brijesh Kumar,C.B. Srivastava,C.B.Gupta,C.L. Pandey,C.S.C.,D.K. Srivastava,Devendra Singh,Govind Saran,H.N. Sharma,H.P. Dubey,I.S.Tomar,J. Nagar,J.N. Pandey,J.P.Mathur,Jayant Banerji,K.C. Vishwakarma,K.K. Srivastava,Kush Saxena,L.K.Tiwari,L.P.Tiwari,Lalji Pandey,Manoj Kumar,Manoj Srivastava,N.K. Gupta,N.K. Verma,Narendra Mohan,Navin Sinha,O.L. M.K. Bagri,O.L. O.P. Sharma,O.P.Misra,P.K. Dalmiya (In Person),P.K. Upadhyay,P.N.Tripathi,R.P. Agarwal,R.P. Srivastava,R.P. Tiwari,Rajendra Chaubey,Rajesh Kumar Pathak,Rajesh Kumar Singh,Ram Yash Pandey,S.C.,S.D.N.Singh,S.F. Ahmad,S.K. Yadav,S.M. Dayal,S.N. Singh,S.R. Yadav,S.S. Chauhan,S.S.Srivastava,Sandeep Agarwal,Sanjai Srivastava,Sanjay Om,Satya Prakash Shukla,Saumitra Singh,Smt. Archana Singh,Somesh Khare,Subhash Chandra Yadav,Sudhir Agarwal,U.N. Sharma,U.P. Singh,Udai Chandani,V.K.S. Chaudhary,Vinod Misra,Vivek Singh,W.A. Siddiqui,Yashwant Verma,Yogesh Agarwal,Z.K. Hasan

Hon'ble Jayant Banerji,J.

Misc. Application.

List with previous papers.

Order Date :- 12.12.2019

sfa/

Court No. - 9

Case :- MISC. COMPANY APPLICATION No. - 4 of 1997

Applicant :- In The Matter Of M/S U.P.State Cement Corporation Ltd.

Counsel for Applicant :- O.L.B.K.L.Srivastava,A.K. Pandey,Anil Mehrotra,Anita Srivastava,Ashok Kumar Chaubey,Ashok Mehta,Navin Kumar Sharma,O.L. M.K. Bagri,O.L.U.S.Patole,S. Niranjan,S.K. Singh,Sanjay Kumar,Saral Srivastava,Satya Prakash Shukla,Vipalav Sharma,Yogendra Kumar Srivastava

Counsel for Opposite Party :- Shiv Nath Singh,A.K. Gupta,A.K. Srivastava,A.K.Mehrotra,A.P. Singh,Achal Singh Vats,Ajal Krishna,Ajay Kumar Pandey,Amit Chaudhary,Amit Saxena,Anil Mehrotra,Anurag Khanna,Ashok Kumar Chaubey,Ashok Mehta,Ashutosh Pandey,B.D. Mandhyan,B.D.Mandhyan,B.K. Mishra,B.N. Singh,Brijesh Kumar,C.B. Srivastava,C.B.Gupta,C.L. Pandey,C.S.C.,D.K. Srivastava,Devendra Singh,Govind Saran,H.N. Sharma,H.P. Dubey,I.S.Tomar,J. Nagar,J.N. Pandey,J.P.Mathur,Jayant Banerji,K.C. Vishwakarma,K.K. Srivastava,Kush Saxena,L.K.Tiwari,L.P.Tiwari,Lalji Pandey,Manoj Kumar,Manoj Srivastava,N.K. Gupta,N.K. Verma,Narendra Mohan,Navin Sinha,O.L. M.K. Bagri,O.L. O.P. Sharma,O.P.Misra,P.K. Dalmiya (In Person),P.K. Upadhyay,P.N.Tripathi,R.P. Agarwal,R.P. Srivastava,R.P. Tiwari,Rajendra Chaubey,Rajesh Kumar Pathak,Rajesh Kumar Singh,Ram Yash Pandey,S.C.,S.D.N.Singh,S.F. Ahmad,S.K. Yadav,S.M. Dayal,S.N. Singh,S.R. Yadav,S.S. Chauhan,S.S.Srivastava,Sandeep Agarwal,Sanjai Srivastava,Sanjay Om,Satya Prakash Shukla,Saumitra Singh,Smt. Archana Singh,Somesh Khare,Subhash Chandra Yadav,Sudhir Agarwal,U.N. Sharma,U.P. Singh,Udai Chandani,V.K.S. Chaudhary,Vinod Misra,Vivek Singh,W.A. Siddiqui,Yashwant Verma,Yogesh Agarwal,Z.K. Hasan

Hon'ble Jayant Banerji,J.

List this matter before another Bench after obtaining nomination from the Chief Justice.

Order Date :- 6.1.2020

Ishan

Court No. - 9

Case :- MISC. COMPANY APPLICATION No. - 4 of 1997

Applicant :- In The Matter Of M/S U.P.State Cement Corporation Ltd.

Counsel for Applicant :- O.L.B.K.L.Srivastava,A.K. Pandey,Anil Mehrotra,Anita Srivastava,Ashok Kumar Chaubey,Ashok Mehta,Navin Kumar Sharma,O.L. M.K. Bagri,O.L.U.S.Patole,S. Niranjan,S.K. Singh,Sanjay Kumar,Saral Srivastava,Satya Prakash Shukla,Vipalav Sharma,Yogendra Kumar Srivastava

Counsel for Opposite Party :- Shiv Nath Singh,A.K. Gupta,A.K. Srivastava,A.K.Mehrotra,A.P. Singh,Achal Singh Vats,Ajal Krishna,Ajay Kumar Pandey,Amit Chaudhary,Amit Saxena,Anil Mehrotra,Anurag Khanna,Ashok Kumar Chaubey,Ashok Mehta,Ashutosh Pandey,B.D. Mandhyan,B.D.Mandhyan,B.K. Mishra,B.N. Singh,Brijesh Kumar,C.B. Srivastava,C.B.Gupta,C.L. Pandey,C.S.C.,D.K. Srivastava,Devendra Singh,Govind Saran,H.N. Sharma,H.P. Dubey,I.S.Tomar,J. Nagar,J.N. Pandey,J.P.Mathur,Jayant Banerji,K.C. Vishwakarma,K.K. Srivastava,Kush Saxena,L.K.Tiwari,L.P.Tiwari,Lalji Pandey,Manoj Kumar,Manoj Srivastava,N.K. Gupta,N.K. Verma,Narendra Mohan,Navin Sinha,O.L. M.K. Bagri,O.L. O.P. Sharma,O.P.Misra,P.K. Dalmiya (In Person),P.K. Upadhyay,P.N.Tripathi,R.P. Agarwal,R.P. Srivastava,R.P. Tiwari,Rajendra Chaubey,Rajesh Kumar Pathak,Rajesh Kumar Singh,Ram Yash Pandey,S.C.,S.D.N.Singh,S.F. Ahmad,S.K. Yadav,S.M. Dayal,S.N. Singh,S.R. Yadav,S.S. Chauhan,S.S.Srivastava,Sandeep Agarwal,Sanjai Srivastava,Sanjay Om,Satya Prakash Shukla,Saumitra Singh,Smt. Archana Singh,Somesh Khare,Subhash Chandra Yadav,Sudhir Agarwal,U.N. Sharma,U.P. Singh,Udai Chandani,V.K.S. Chaudhary,Vinod Misra,Vivek Singh,W.A. Siddiqui,Yashwant Verma,Yogesh Agarwal,Z.K. Hasan

Hon'ble Anjani Kumar Mishra,J.

Two separate and independent cases appear to have been listed together. The matter which requires consideration pertains to the U.P. State Cement Corporation Limited.

Under the circumstances, office is directed to list this case with full, proper and correct particulars in the next cause list.

Order Date :- 27.1.2020

Mayank

Court No. - 9

Case :- MISC. COMPANY APPLICATION No. - 4 of 1997

Applicant :- In The Matter Of M/S U.P.State Cement Corporation Ltd.

Counsel for Applicant :- O.L.B.K.L.Srivastava,A.K. Pandey,Anil Mehrotra,Anita Srivastava,Ashok Kumar Chaubey,Ashok Mehta,Navin Kumar Sharma,O.L. M.K. Bagri,O.L.U.S.Patole,S. Niranjan,S.K. Singh,Sanjay Kumar,Saral Srivastava,Satya Prakash Shukla,Vipalav Sharma,Yogendra Kumar Srivastava

Counsel for Opposite Party :- Shiv Nath Singh,A.K. Gupta,A.K. Srivastava,A.K.Mehrotra,A.P. Singh,Achal Singh Vats,Ajal Krishna,Ajay Kumar Pandey,Amit Chaudhary,Amit Saxena,Anil Mehrotra,Anurag Khanna,Ashok Kumar Chaubey,Ashok Mehta,Ashutosh Pandey,B.D. Mandhyan,B.D.Mandhyan,B.K. Mishra,B.N. Singh,Brijesh Kumar,C.B. Srivastava,C.B.Gupta,C.L. Pandey,C.S.C.,D.K. Srivastava,Devendra Singh,Govind Saran,H.N. Sharma,H.P. Dubey,I.S.Tomar,J. Nagar,J.N. Pandey,J.P.Mathur,Jayant Banerji,K.C. Vishwakarma,K.K. Srivastava,Kush Saxena,L.K.Tiwari,L.P.Tiwari,Lalji Pandey,Manoj Kumar,Manoj Srivastava,N.K. Gupta,N.K. Verma,Narendra Mohan,Navin Sinha,O.L. M.K. Bagri,O.L. O.P. Sharma,O.P.Misra,P.K. Dalmiya (In Person),P.K. Upadhyay,P.N.Tripathi,R.P. Agarwal,R.P. Srivastava,R.P. Tiwari,Rajendra Chaubey,Rajesh Kumar Pathak,Rajesh Kumar Singh,Ram Yash Pandey,S.C.,S.D.N.Singh,S.F. Ahmad,S.K. Yadav,S.M. Dayal,S.N. Singh,S.R. Yadav,S.S. Chauhan,S.S.Srivastava,Sandeep Agarwal,Sanjai Srivastava,Sanjay Om,Satya Prakash Shukla,Saumitra Singh,Smt. Archana Singh,Somesh Khare,Subhash Chandra Yadav,Sudhir Agarwal,U.N. Sharma,U.P. Singh,Udai Chandani,V.K.S. Chaudhary,Vinod Misra,Vivek Singh,W.A. Siddiqui,Yashwant Verma,Yogesh Agarwal,Z.K. Hasan

Hon'ble Anjani Kumar Mishra,J.

The prayer for adjournment has been made on behalf of Sri Ashok Mehta who appears for the Official Liquidator on the ground that he is out of station.

The case is therefore passed over.

List in the next cause list.

Order Date :- 4.2.2020

AKT

Court No. - 9

Case :- MISC. COMPANY APPLICATION No. - 4 of 1997

Applicant :- In The Matter Of M/S U.P.State Cement Corporation Ltd.

Counsel for Applicant :- O.L.B.K.L.Srivastava,A.K. Pandey,Anil Mehrotra,Anita Srivastava,Ashok Kumar Chaubey,Ashok Mehta,Navin Kumar Sharma,O.L. M.K. Bagri,O.L.U.S.Patole,S. Niranjan,S.K. Singh,Sanjay Kumar,Saral Srivastava,Satya Prakash Shukla,Vipalav Sharma,Yogendra Kumar Srivastava

Counsel for Opposite Party :- Shiv Nath Singh,A.K. Gupta,A.K. Srivastava,A.K.Mehrotra,A.P. Singh,Achal Singh Vats,Ajal Krishna,Ajay Kumar Pandey,Amit Chaudhary,Amit Saxena,Anil Mehrotra,Anurag Khanna,Ashok Kumar Chaubey,Ashok Mehta,Ashutosh Pandey,B.D. Mandhyan,B.D.Mandhyan,B.K. Mishra,B.N. Singh,Brijesh Kumar,C.B. Srivastava,C.B.Gupta,C.L. Pandey,C.S.C.,D.K. Srivastava,Devendra Singh,Govind Saran,H.N. Sharma,H.P. Dubey,I.S.Tomar,J. Nagar,J.N. Pandey,J.P.Mathur,Jayant Banerji,K.C. Vishwakarma,K.K. Srivastava,Kush Saxena,L.K.Tiwari,L.P.Tiwari,Lalji Pandey,Manoj Kumar,Manoj Srivastava,N.K. Gupta,N.K. Verma,Narendra Mohan,Navin Sinha,O.L. M.K. Bagri,O.L. O.P. Sharma,O.P.Misra,P.K. Dalmiya (In Person),P.K. Upadhyay,P.N.Tripathi,R.P. Agarwal,R.P. Srivastava,R.P. Tiwari,Rajendra Chaubey,Rajesh Kumar Pathak,Rajesh Kumar Singh,Ram Yash Pandey,S.C.,S.D.N.Singh,S.F. Ahmad,S.K. Yadav,S.M. Dayal,S.N. Singh,S.R. Yadav,S.S. Chauhan,S.S.Srivastava,Sandeep Agarwal,Sanjai Srivastava,Sanjay Om,Satya Prakash Shukla,Saumitra Singh,Smt. Archana Singh,Somesh Khare,Subhash Chandra Yadav,Sudhir Agarwal,U.N. Sharma,U.P. Singh,Udai Chandani,V.K.S. Chaudhary,Vinod Misra,Vivek Singh,W.A. Siddiqui,Yashwant Verma,Yogesh Agarwal,Z.K. Hasan

Hon'ble Anjani Kumar Mishra,J.

Put up this case in the additional cause list on 19.02.2020 as the first case at 10:00 A.M.

Order Date :- 12.2.2020

Mayank

Court No. - 9

Case :- MISC. COMPANY APPLICATION No. - 4 of 1997

Applicant :- In The Matter Of M/S U.P.State Cement Corporation Ltd.

Counsel for Applicant :- O.L.B.K.L.Srivastava,A.K. Pandey,Anil Mehrotra,Anita Srivastava,Ashok Kumar Chaubey,Ashok Mehta,Navin Kumar Sharma,O.L. M.K. Bagri,O.L.U.S.Patole,S. Niranjan,S.K. Singh,Sanjay Kumar,Saral Srivastava,Satya Prakash Shukla,Vipalav Sharma,Yogendra Kumar Srivastava

Counsel for Opposite Party :- Shiv Nath Singh,A.K. Gupta,A.K. Srivastava,A.K.Mehrotra,A.P. Singh,Achal Singh Vats,Ajal Krishna,Ajay Kumar Pandey,Amit Chaudhary,Amit Saxena,Anil Mehrotra,Anurag Khanna,Ashok Kumar Chaubey,Ashok Mehta,Ashutosh Pandey,B.D. Mandhyan,B.D.Mandhyan,B.K. Mishra,B.N. Singh,Brijesh Kumar,C.B. Srivastava,C.B.Gupta,C.L. Pandey,C.S.C.,D.K. Srivastava,Devendra Singh,Govind Saran,H.N. Sharma,H.P. Dubey,I.S.Tomar,J. Nagar,J.N. Pandey,J.P.Mathur,Jayant Banerji,K.C. Vishwakarma,K.K. Srivastava,Kush Saxena,L.K.Tiwari,L.P.Tiwari,Lalji Pandey,Manoj Kumar,Manoj Srivastava,N.K. Gupta,N.K. Verma,Narendra Mohan,Navin Sinha,O.L. M.K. Bagri,O.L. O.P. Sharma,O.P.Misra,P.K. Dalmiya (In Person),P.K. Upadhyay,P.N.Tripathi,R.P. Agarwal,R.P. Srivastava,R.P. Tiwari,Rajendra Chaubey,Rajesh Kumar Pathak,Rajesh Kumar Singh,Ram Yash Pandey,S.C.,S.D.N.Singh,S.F. Ahmad,S.K. Yadav,S.M. Dayal,S.N. Singh,S.R. Yadav,S.S. Chauhan,S.S.Srivastava,Sandeep Agarwal,Sanjai Srivastava,Sanjay Om,Satya Prakash Shukla,Saumitra Singh,Smt. Archana Singh,Somesh Khare,Subhash Chandra Yadav,Sudhir Agarwal,U.N. Sharma,U.P. Singh,Udai Chandani,V.K.S. Chaudhary,Vinod Misra,Vivek Singh,W.A. Siddiqui,Yashwant Verma,Yogesh Agarwal,Z.K. Hasan

Hon'ble Anjani Kumar Mishra,J.

Heard Shri J.N. Pandey, counsel appearing for the applicant P.K. Dalmiya and Shri Ashok Mehta, learned Senior Advocate assisted by Shri Ashish Agarwal for the Official Liquidator.

The arguments are yet incomplete.

Put up for further hearing on 26.02.2020 on application no. 420449 of 2017.

Counsel appearing for the State Bank Of India, MNNIT Branch, Teliarganj, Allahabad prays for time for getting the conciliation of the actual payments made by the Bank from the funds deposited, which it by the Official Liquidator.

This reconciliation has been pending since a very long period of time and, therefore, this Court is not granting the four weeks time prayed for.

The matter shall again come up on 26.02.2020, on which date, counsel appearing for the Bank shall inform the Court as to the extent to which reconciliation has been done till then.

Order Date :- 19.2.2020

Mayank

Court No. - 9

Case :- MISC. COMPANY APPLICATION No. - 4 of 1997

Applicant :- In The Matter Of M/S U.P.State Cement Corporation Ltd.

Counsel for Applicant :- O.L.B.K.L.Srivastava,A.K. Pandey,Anil Mehrotra,Anita Srivastava,Ashok Kumar Chaubey,Ashok Mehta,Navin Kumar Sharma,O.L. M.K. Bagri,O.L.U.S.Patole,S. Niranjan,S.K. Singh,Sanjay Kumar,Saral Srivastava,Satya Prakash Shukla,Vipalav Sharma,Yogendra Kumar Srivastava

Counsel for Opposite Party :- Shiv Nath Singh,A.K. Gupta,A.K. Srivastava,A.K.Mehrotra,A.P. Singh,Achal Singh Vats,Ajal Krishna,Ajay Kumar Pandey,Amit Chaudhary,Amit Saxena,Anil Mehrotra,Anurag Khanna,Ashok Kumar Chaubey,Ashok Mehta,Ashutosh Pandey,B.D. Mandhyan,B.D.Mandhyan,B.K. Mishra,B.N. Singh,Brijesh Kumar,C.B. Srivastava,C.B.Gupta,C.L. Pandey,C.S.C.,D.K. Srivastava,Devendra Singh,Govind Saran,H.N. Sharma,H.P. Dubey,I.S.Tomar,J. Nagar,J.N. Pandey,J.P.Mathur,Jayant Banerji,K.C. Vishwakarma,K.K. Srivastava,Kush Saxena,L.K.Tiwari,L.P.Tiwari,Lalji Pandey,Manoj Kumar,Manoj Srivastava,N.K. Gupta,N.K. Verma,Narendra Mohan,Navin Sinha,O.L. M.K. Bagri,O.L. O.P. Sharma,O.P.Misra,P.K. Dalmiya (In Person),P.K. Upadhyay,P.N.Tripathi,R.P. Agarwal,R.P. Srivastava,R.P. Tiwari,Rajendra Chaubey,Rajesh Kumar Pathak,Rajesh Kumar Singh,Ram Yash Pandey,S.C.,S.D.N.Singh,S.F. Ahmad,S.K. Yadav,S.M. Dayal,S.N. Singh,S.R. Yadav,S.S. Chauhan,S.S.Srivastava,Sandeep Agarwal,Sanjai Srivastava,Sanjay Om,Satya Prakash Shukla,Saumitra Singh,Smt. Archana Singh,Somesh Khare,Subhash Chandra Yadav,Sudhir Agarwal,U.N. Sharma,U.P. Singh,Udai Chandani,V.K.S. Chaudhary,Vinod Misra,Vivek Singh,W.A. Siddiqui,Yashwant Verma,Yogesh Agarwal,Z.K. Hasan

Hon'ble Anjani Kumar Mishra,J.

Put up for further hearing on 04.03.2020.

Order Date :- 26.2.2020

AKT

Court No. - 9

Case :- MISC. COMPANY APPLICATION No. - 4 of 1997

Applicant :- In The Matter Of M/S U.P.State Cement Corporation Ltd.

Counsel for Applicant :- O.L.B.K.L.Srivastava,A.K. Pandey,Anil Mehrotra,Anita Srivastava,Ashok Kumar Chaubey,Ashok Mehta,Navin Kumar Sharma,O.L. M.K. Bagri,O.L.U.S.Patole,S. Niranjan,S.K. Singh,Sanjay Kumar,Saral Srivastava,Satya Prakash Shukla,Vipalav Sharma,Yogendra Kumar Srivastava

Counsel for Opposite Party :- Shiv Nath Singh,A.K. Gupta,A.K. Srivastava,A.K.Mehrotra,A.P. Singh,Achal Singh Vats,Ajal Krishna,Ajay Kumar Pandey,Amit Chaudhary,Amit Saxena,Anil Mehrotra,Anurag Khanna,Ashok Kumar Chaubey,Ashok Mehta,Ashutosh Pandey,B.D. Mandhyan,B.D.Mandhyan,B.K. Mishra,B.N. Singh,Brijesh Kumar,C.B. Srivastava,C.B.Gupta,C.L. Pandey,C.S.C.,D.K. Srivastava,Devendra Singh,Govind Saran,H.N. Sharma,H.P. Dubey,I.S.Tomar,J. Nagar,J.N. Pandey,J.P.Mathur,Jayant Banerji,K.C. Vishwakarma,K.K. Srivastava,Kush Saxena,L.K.Tiwari,L.P.Tiwari,Lalji Pandey,Manoj Kumar,Manoj Srivastava,N.K. Gupta,N.K. Verma,Narendra Mohan,Navin Sinha,O.L. M.K. Bagri,O.L. O.P. Sharma,O.P.Misra,P.K. Dalmiya (In Person),P.K. Upadhyay,P.N.Tripathi,R.P. Agarwal,R.P. Srivastava,R.P. Tiwari,Rajendra Chaubey,Rajesh Kumar Pathak,Rajesh Kumar Singh,Ram Yash Pandey,S.C.,S.D.N.Singh,S.F. Ahmad,S.K. Yadav,S.M. Dayal,S.N. Singh,S.R. Yadav,S.S. Chauhan,S.S.Srivastava,Sandeep Agarwal,Sanjai Srivastava,Sanjay Om,Satya Prakash Shukla,Saumitra Singh,Smt. Archana Singh,Somesh Khare,Subhash Chandra Yadav,Sudhir Agarwal,U.N. Sharma,U.P. Singh,Udai Chandani,V.K.S. Chaudhary,Vinod Misra,Vivek Singh,W.A. Siddiqui,Yashwant Verma,Yogesh Agarwal,Z.K. Hasan

Hon'ble Anjani Kumar Mishra,J.

Heard Shri J.P. Pandey, counsel appearing for the applicant P.K. Dalmiya and Shri Ashok Mehta, learned Senior Advocate for the Official Liquidator on Misc. Application No. 420449 of 2017.

Order reserved.

Shri Shyam Sunder Singh, Advocate states that he shall e-filing his power on behalf the State Bank of India, M.N.N.I.T. Branch, Teliarganj, Allahabad, today.

Put up for further consideration of other pending applications on 18.03.2020.

When this case is listed next, the name of Shri Shyam Sunder Singh be shown as counsel for the State Bank of India, M.N.N.I.T. Branch, Teliarganj, Allahabad in the cause list.

Order Date :- 4.3.2020

Mayank

Court No. - 9

Case :- MISC. COMPANY APPLICATION No. - 4 of 1997

Applicant :- In The Matter Of M/S U.P.State Cement Corporation Ltd.

Counsel for Applicant :- O.L.B.K.L.Srivastava,A.K. Pandey,Anil Mehrotra,Anita Srivastava,Ashok Kumar Chaubey,Ashok Mehta,Navin Kumar Sharma,O.L. M.K. Bagri,O.L.U.S.Patole,S. Niranjan,S.K. Singh,Sanjay Kumar,Saral Srivastava,Satya Prakash Shukla,Vipalav Sharma,Yogendra Kumar Srivastava

Counsel for Opposite Party :- Shiv Nath Singh,A.K. Gupta,A.K. Srivastava,A.K.Mehrotra,A.P. Singh,Achal Singh Vats,Ajal Krishna,Ajay Kumar Pandey,Amit Chaudhary,Amit Saxena,Anil Mehrotra,Anurag Khanna,Ashok Kumar Chaubey,Ashok Mehta,Ashutosh Pandey,B.D. Mandhyan,B.D.Mandhyan,B.K. Mishra,B.N. Singh,Brijesh Kumar,C.B. Srivastava,C.B.Gupta,C.L. Pandey,C.S.C.,D.K. Srivastava,Devendra Singh,Govind Saran,H.N. Sharma,H.P. Dubey,I.S.Tomar,J. Nagar,J.N. Pandey,J.P.Mathur,Jayant Banerji,K.C. Vishwakarma,K.K. Srivastava,Kush Saxena,L.K.Tiwari,L.P.Tiwari,Lalji Pandey,Manoj Kumar,Manoj Srivastava,N.K. Gupta,N.K. Verma,Narendra Mohan,Navin Sinha,O.L. M.K. Bagri,O.L. O.P. Sharma,O.P.Misra,P.K. Dalmiya (In Person),P.K. Upadhyay,P.N.Tripathi,R.P. Agarwal,R.P. Srivastava,R.P. Tiwari,Rajendra Chaubey,Rajesh Kumar Pathak,Rajesh Kumar Singh,Ram Yash Pandey,S.C.,S.D.N.Singh,S.F. Ahmad,S.K. Yadav,S.M. Dayal,S.N. Singh,S.R. Yadav,S.S. Chauhan,S.S.Srivastava,Sandeep Agarwal,Sanjai Srivastava,Sanjay Om,Satya Prakash Shukla,Saumitra Singh,Smt. Archana Singh,Somesh Khare,Subhash Chandra Yadav,Sudhir Agarwal,U.N. Sharma,U.P. Singh,Udai Chandani,V.K.S. Chaudhary,Vinod Misra,Vivek Singh,W.A. Siddiqui,Yashwant Verma,Yogesh Agarwal,Z.K. Hasan

Hon'ble Anjani Kumar Mishra,J.

The order to be pronounced today is still under correction.

Put up day after tomorrow, i.e. on 20.11.2020 for delivery of order/ judgement in Chambers at 01.30 p.m.

Order Date :- 18.11.2020

RKM

In Chamber

Case :- MISC. COMPANY APPLICATION No. - 4 of 1997

Applicant :- In The Matter Of M/S U.P.State Cement Corporation Ltd.

Counsel for Applicant :- O.L.B.K.L.Srivastava,A.K. Pandey,Anil Mehrotra,Anita Srivastava,Ashok Kumar Chaubey,Ashok Mehta,Navin Kumar Sharma,O.L. M.K. Bagri,O.L.U.S.Patole,S. Niranjan,S.K. Singh,Sanjay Kumar,Saral Srivastava,Satya Prakash Shukla,Vipalav Sharma,Yogendra Kumar Srivastava

Counsel for Opposite Party :- Shiv Nath Singh,A.K. Gupta,A.K. Srivastava,A.K.Mehrotra,A.P. Singh,Achal Singh Vats,Ajal Krishna,Ajay Kumar Pandey,Amit Chaudhary,Amit Saxena,Anil Mehrotra,Anurag Khanna,Ashok Kumar Chaubey,Ashok Mehta,Ashutosh Pandey,B.D. Mandhyan,B.D.Mandhyan,B.K. Mishra,B.N. Singh,Brijesh Kumar,C.B. Srivastava,C.B.Gupta,C.L. Pandey,C.S.C.,D.K. Srivastava,Devendra Singh,Govind Saran,H.N. Sharma,H.P. Dubey,I.S.Tomar,J. Nagar,J.N. Pandey,J.P.Mathur,Jayant Banerji,K.C. Vishwakarma,K.K. Srivastava,Kush Saxena,L.K.Tiwari,L.P.Tiwari,Lalji Pandey,Manoj Kumar,Manoj Srivastava,N.K. Gupta,N.K. Verma,Narendra Mohan,Navin Sinha,O.L. M.K. Bagri,O.L. O.P. Sharma,O.P.Misra,P.K. Dalmiya (In Person),P.K. Upadhyay,P.N.Tripathi,R.P. Agarwal,R.P. Srivastava,R.P. Tiwari,Rajendra Chaubey,Rajesh Kumar Pathak,Rajesh Kumar Singh,Ram Yash Pandey,S.C.,S.D.N.Singh,S.F. Ahmad,S.K. Yadav,S.M. Dayal,S.N. Singh,S.P. Shukla,S.R. Yadav,S.S. Chauhan,S.S.Srivastava,Sandeep Agarwal,Sanjai Srivastava,Sanjay Om,Saumitra Singh,Smt. Archana Singh,Somesh Khare,Subhash Chandra Yadav,Sudhir Agarwal,U.N. Sharma,U.P. Singh,Udai Chandani,V.K.S. Chaudhary,Vinod Misra,Vivek Singh,W.A. Siddiqui,Yashwant Verma,Yogesh Agarwal,Z.K. Hasan

Hon'ble Anjani Kumar Mishra,J.

Heard Shri J.N.Pandey, counsel for Shri P.K. Dalmia and Shri Ashok Mehta, Senior Advocate for the Official Liquidator.

Application No.420449 of 2017 up for consideration was registered on a letter of Shri P.K. Dalmia accompanied by an order dated 09.10.2017 passed by the Hon'ble Supreme Court in Contempt Petition No.927 of 2016,

The crucial portion of the order passed by the Apex Court reads as follows -

" The learned Company Judge is again requested to decide the claim of the petitioner in accordance with this Court's order dated 11.01.2016. After such determination, the order of the learned Company Judge shall be placed before this Court for passing further orders.

Needless to mention that the learned Company Judge may take assistance of an independent Chartered Accountant, if found necessary."

The relevant portion of the order of the Hon'ble Apex Court dated 11.01.2016, in pursuance whereof, claim of the applicant has to be re-decided by this Court, reads as follows -

" Having heard Mr. Dalmia, petitioner in person and applicant, learned counsel for the Official Liquidator, we find that there is a serious dispute as to what was the correct amount which was payable while considering the alleged statement said to have been made on behalf of the Official Liquidator as has been noted by us in our order dated 28th September, 2015. The petitioner was paid Rs.3,88,000/- (Rupees Three lakhs eighty eight thousand), as the amount due. According to the petitioner, he was entitled for more than a Crore of rupees as the amount fell due long before. We cannot go into the disputed question now sought to be raised at the instance of the petitioner which is disputed by the Official Liquidator. We, therefore, permit the petitioner to move the learned Company Judge by making calculation of his entitlement with advance copy to the Official Liquidator and also direct the Official Liquidator to file its counter to the said claim. We only request the learned Company Judge to hear the petitioner and the Official Liquidator and determine whether or not the petitioner is entitled for anything more than what has already been paid to him. After making such determination the petitioner is permitted to move this Court for passing further orders."

Although, from the perusal of the orders passed by the Apex Court, relevant portions whereof have been extracted herein-above, it appears that this Court is required only to calculate entitlement of the applicant, Mr. P.K. Dalmia to interest. However, this Court considers it expedient to consider the claim of the applicant right from its inception so that a complete and correct picture is available, primarily because right from the very inception,

the amount claimed by the applicant through his claim lodged in Form 66 is, in its major part, comprised of interest alone.

The claim in Form 66 under Rule 161 of the Rules was lodged by P.K Dalmiya, partner of Bhoj Raj Dalmiya and Sons, a partnership firm on 21/27.07.2006 consequent to the winding up of M/s Cement Corporation Ltd. on 08.12.1999 and on the Official Liquidator, inviting claims. The firm was erstwhile Coal Supplier and Handling Agent of M/s Cement Corporation (In Liquidation).

The facts of the case are as follows -

A claim was lodged by the applicant along with letters dated 21.06.2006 and 21.07.2006. This claim was in two parts. The first was for a sum of Rs.1,56,099.76/- and comprised of bills towards arranging supply of Coal as Det Creder Agents, for supplies of coal as Handling Agent; for coal supplies as Joint Sampling Agent and for arranging iron slag from Bokaro Steel Plant. These bills for the period from 1956 to 1978.

The second set of bills was for the year 1987 and was for a sum of Rs.2,32,365.74/- for supplies of granulated iron slag from Bokaro Steel Plant as Joint Sampling and handling agent. The total of the aforesaid two sets of claim came to Rs.3,88,465.50/-. On the aforesaid amount, a sum of Rs.1,42,84,197.65/- was claimed as interest. A sum of Rs.1,50,000/- was claimed as expenses for pursuing the matters at different stages. A sum of Rs.13,67,255.70/- was claimed towards loss of profit and a sum of Rs.10,25,441.48/- was claimed towards loss of business turn over. The total all the aforesaid amounts claimed including interest, was Rs.1,72,15,660.50/-.

There is material on record to show that as regards, the first amount of Rs.1,56,099.76/- Shri V.K. Tandon (Retd IAS) was appointed sole arbitrator on 27.03.1989 to decide the claim on the basis of the contract between the Company (In Liquidation) and M/s Bhojraj Dalmia and Sons as Coal Handling Agent.

It appears that an application was filed for extending the term of the arbitrator, Shri V.K. Tandon. This application was rejected by the Dhanbad Court and ultimately the claim was rejected, without any award being passed as the term of the arbitrators' appointment had, expired.

In so far as, the claim of Rs.2,32,365.74/- is concerned, Shri G.V.Patnaik was appointed as arbitrator on 31.03.1994. The arbitration proceedings came to be dismissed for default on 31.05.1995.

Long after failure of the aforesaid two arbitration proceedings, the same claim has been raised before the Official Liquidator.

The claim adjudication committee assisting the Official Liquidator, admitted the claim only to the extent of the principal amount, namely, these Rs.3,88,464/-. The balance to the tune of Rs.1,68,26,896.33/- was rejected as not payable. A notice in Form 69 was issued to the applicant admitting his claim to the extent of Rs.3,88,444/- and rejecting the remainder as no proof of the expenses etc. claimed by the applicant, was furnished.

Thereafter, on 07.12.2006, an application for condonation of delay in filing a claim was filed being Application No.264863 of 2006. Along with a prayer for consideration of the claim of Rs.1,72,15,360.33/- as one on behalf of a workman.

However, the said plea was specifically rejected vide order dated 07.03.2007 passed by the Company Judge.

After this order was passed, an application no.243611 of 2007 was filed by the applicant with the prayer that his claim for Rs.1,72,15,360.33/- be treated as claim of workman as he has been appointed as an authorized representative of the Company (In Liquidation).

The Company Court passed another order dated 27.04.2007 rejecting all the claims by the unsecured creditors on the ground that after payment of preferential claims under Section 529 and 529A of the Companies Act, no amount remained for payment to the unsecured creditors, including the applicant who was appointed as "authorized representative of the Company (In Liquidation) for arranging coal supplies, as a coal handling agent and joint sampling agent and rendered these services on contract." This application was again rejected vide order dated 11.10.2007.

Against the order dated 11.10.2007, a special appeal was filed before the Division Bench, which was dismissed by the order dated 23.11.2010 without entering into the merits of the case observing that the applicant, appellant

was free to seek appropriate remedy in accordance with law.

The applicant thereafter, approached the Apex Court by means of Special Leave Petition No.16659 of 2011, which came to be dismissed on 29.08.2013 specifically holding that the applicant having been appointed a handling agent of the respondent company, he could not be given the status of a regular employee. In this order, it was also recorded as follows- "Learned counsel for the respondents also points out that the company is in liquidation and the entire amounts due have been paid to him".

Relying upon the underlined observation above, the applicant filed contempt petition no.378 of 2015 in Special Leave Petition No.16659 of 2011, wherein by order dated 10.08.2015, the Official Liquidator was required to comply with the order dated 29.08.2013 within six weeks.

An application was filed by the Official Liquidator seeking modification of the order dated 29.08.2013 on the plea that the statement recorded in the order, the basis of the contempt proceedings, had been so recorded on a misconception of fact. However, the amount of Rs.3,88,464/- was paid to the applicant, subject to the decision of the modification application, as was directed by the Company Court.

The Supreme Court on 11.01.2015 dropped the contempt proceedings on the ground that the amount had been paid to the applicant, granting liberty to him to file an application before the Company Court, with detailed calculations etc, which application was required to be heard and decided.

However, no calculation chart etc. was filed by the applicant and he confined his submissions only to the claim of interest on the sum of Rs.3,88,464/-

The Company Court vide order dated 24.04.2017, rejected the plea of payment of interest on the ground that after payment of preferential claims under Section 529 and 529A of the Companies Act, no amount was left to be paid to the unsecured creditors including the applicant.

This order of the Company Judge dated 24.04.2017 was set aside by the Apex Court on 29.10.2017 holding as follows -

" It is obvious that the aforesaid order of a learned Company Judge falls short of comply with the order dated 11.01.2016 of this Court, whereby this Court had specifically sought determination of the amount, if any, due to the petitioner Shri P.K. Dalmia that not having been done, we are constrained to set aside the order dated 28.04.2017 passed by the learned Company Judge. The order, accordingly, the matter is remitted back to the learned company Judge for determination of the petitioner's claim."

The instant matter is being considered in the light of what has been observed in the order of the Apex Court dated 28.04.2017 aforesaid.

I have considered the submissions made by counsel for the parties and perused the record. I have also perused the report of the Chartered Accountant, which has been obtained in the light of the observations made by the Apex Court.

From the facts narrated in the preceding paragraphs of this order, it emerges that the initial claim lodged by the applicant was admitted only to the extent of Rs.3,88,464/-. All the remaining amounts claimed were rejected. The appeal under Rule 164 of the Company Court Rules against the rejection of the claim was also dismissed vide order dated 07.03.2007. This order was never challenged by the applicant. Instead, he filed an application praying that the initial claim be treated as a claim on behalf of a workmen and accordingly, an application for condonation of delay in lodging the claim was filed. This application was rejected as was the consequential special appeal.

However, a sum of Rs.3,88,464/- has been paid to the applicant on account of the observations made in the order of the Apex Court, which according to the Official Liquidator was so recorded on a mis-conception of facts. Nothing had been paid to the applicant nor could have been paid to him as he was an unsecured creditors and the Official Liquidator had no funds for paying claims falling under Section 530 of the Act.

It has been repeatedly observed in the orders passed by the Company Judge that all the claims by unsecured creditors stand rejected as no amount is available for payment to such unsecured creditors after making payments of the preferential claims under Section 529 and 529A of the Companies Act.

After having received the principal amount, which in fact, the applicant was not entitled, the matter has been remitted back by the Supreme Court for consideration as to whether the applicant is entitled to any further payment as interest.

Against the claim raised, a sum of Rs.3,88,000/- has been paid to the applicant under orders of the Apex Court in contempt proceedings.

From the facts noticed above, it emerges that this Court is required to consider whether any interest is liable to be paid to the applicant on the amount of Rs.3,88,000/- already paid to him, and if so, at what rate.

Counsel for the applicant has repeatedly reiterated that this is the precise scope of the order of remand passed by the Apex Court on 11.01.2016. He has submitted that in accordance with Chapter 28 Rule 100 of the High Court Rules, the applicant is entitled to 6% interest on the amount claimed and paid to him. It would however be relevant to note that in the claim filed, interest at the market rate has been claimed and calculated by the applicant in his claim.

He has relied upon **2001(104) Company Cases 596 John Paterson Vs. True Star Soya Products Ltd.**, especially paragraph 8 thereon, wherein it has been held that 9% interest is payable before the winding up order.

Shri Ashok Mehta appearing for the Official Liquidator referring to Rule 156 and 179 of the Company Court Rules, submits that the applicant can at best be entitled to 4% interest. An admitted claim to 6% interest is payable only up to the date of the winding up order. He also submits that the cases cited applies only to a Banking Company. The Company (In Liquidation) was not a Banking Company.

He has also submitted that as per the claim filed by the applicant, the first amount claimed is of 1956-1958. The last amount claimed by the applicant is of 31.11.1987. The winding up petition was filed in the year 1987 on a reference made by the BIFR. The winding up order was passed on 08.12.1999. Prior to 01.04.1997, the Company (In Liquidation) was a Government Company. The amounts mentioned in the claim were raised for the first time on 09.11.2006 before the Official Liquidator. However. in the first claim filed by the applicant on

11.07.2006, one principal amount claimed was Rs.1,56,099.76/-. The second principal amount claimed was a sum of Rs.2,32,365.74/-. The principal amount in the aforesaid two parts added together came to Rs.3,88,465/-. The remainder of the claim which is in excess of Rs.1 crore is of interest on the said principal amount.

Admittedly, the applicant was partner of a partnership firm for handling coal. According to Mr. Mehta, the applicant was designated a joint sampling agent, namely, a supervisor of a coal handling partnership firm. Therefore, he was a mere handling agency and not at par with secured creditors. This submission has been made relying upon OLR Report (Judicial) No.443 of 2018 especially paragraph 7 thereof, wherein portion of the order dated 29.08.2013 of the Apex Court in SLP NO.16659 of 2011 has been quoted.

He has submitted that the order dated 07.03.2007 passed on Application No.26486 of 2006 states that no award of the arbitrator was ever passed. This order also rejects the appeal under Rule 164 filed by the applicant, which order has become final.

He has reiterated that the claims of the petitioner had been referred for arbitration. However, no award was ever passed, as is clear from the order dated 11.10.2007. Therefore, the claims of the applicant stood rejected, finally. His claim therefore, was rightly rejected by the Official Liquidator and the Company Court as the arbitrators did not pass any award in favour of the applicant and the notice of rejection was sent on 08.12.2006.

However, before the Apex Court a fact came to be recorded, namely that Counsel for the Official Liquidator had stated that the entire amount due to the applicant had been paid to him. This statement was on account of misconception of facts. On the strength of the statement a contempt petition was filed and in consequence of the orders passed therein, a sum of Rs. 3, 88,469/- was paid to the applicant.

He reiterates that in Official Liquidators' Report No. (Judicial) NO.35 of 2018, it has been stated that the Apex Court had vide order dated 29.08.2013, passed while dismissing the Special Leave Petition filed by the applicant, P.K. Dalmia, returned a specific finding that he

cannot be equated with or given the status of a regular employee of the Company (In Liquidation) and that the Statement of Affairs filed by the Ex-Director of the Company (In Liquidation) does not contain the claim raised by Shri P.K. Dalmia.

It is next submitted that for the first claim for the period between 1956-1977, Shri B.K. Tandon (Retd IAS) had been appointed Arbitrator on 27.08.2019 but he did not pass an award as his term as arbitrator expired and was not extended. As regards, the second claim of the year 1987, Shri G.V.Patnaik has been appointed as Arbitrator on 31.03.1984. This claim was dismissed for default / non prosecution on 31.05.1995. Thus, both the arbitration proceedings did not culminate in any award in favour of the applicant.

It is rightly contended by Shri Ashok Mehta that the claims for the period of 1956-1977 as also the claim for the year 1987 were time barred on the date of the winding up order, namely, 08.12.1999.

The applicant is not entitled to any expenses or of any amount towards loss of profit etc as there is no provision in the Company Court Rules for making or admitting such a claim.

The purpose for deciding the controversy, it is relevant to refer to Rule 156 ad 179 of the Company Court Rules, which are extracted below -

“Rule 156. Interest - On any debt or certain sum, payable at a certain time or otherwise whereon interest is not reserved or agreed for, and which is overdue at the date of the winding-up order, or the resolution as the case may be, the creditor may prove for interest at a rate not exceeding 4% per annum up to that date from the time when the debt or sum was payable, if the debt or sum is payable by virtue of a written instrument at a certain time, and if payable otherwise, then from the time when a demand in writing has been made, giving notice that interest will be claimed from the date of demand until the time of payment.

Rule 179. Payment of subsequent interest. In the event of there being a surplus after payment in full of all the claims admitted to proof, creditors whose proofs have been admitted shall be paid interest from the date of the winding-up order or of the resolution as the case may be, up to the date of declaration of the final dividend, at a rate not exceeding 4% per annum, on the admitted amount of the claim, after adjusting against the said amount the dividends declared as

on the date of the declaration of each dividend.”

In view of Rules 156 of the Company Court Rules 1956, no interest is payable on any sum, which is over due on the date of the winding up order, unless, it is so reserved or agreed upon. The applicant must prove his claim for interest at the rate not exceeding 4% per annum from the date, the debt or the amount claimed was payable, till the date of the winding up order. In absence of a written instrument, specifying the interest on a delayed payment, the interest would be calculated from the date of a demand in writing being made, giving notice that interest would be claimed. None of these conditions have been satisfied with by the applicant.

The Court has been taken through OLR No.34 of 2017, wherein annexure 4 is the order passed by the High Court in an appeal against an order dated 11.12.2007 passed by the Company Judge. A Special Appeal No.1991 of 2008 was filed by the applicant, P.K. Dalmia against order dated 11.12.2007, which was dismissed as not maintainable.

By the order dated 11.10.2007, the appeal under Rule 164 of the Company Rules 1959 had been rejected by the Company Judge. It is after dismissal of the Special Appeal that notice dated 06.12.2006 was sent to Shri P.K. Dalmia, regarding rejection of his claim.

It has also submitted that by another order dated 27.04.2007 all the appeals under Rule 164 were dismissed by the Company Court. This order was not under challenge in Special Appeal No.1911 of 2008.

The report of the Chartered Accountant, dated 20.12.2018, as regards the claim of the applicant has been filed on 05.01.2019 along with OLR No.8 of 2019. Attention of the Court has been drawn to paragraphs 17,20, 24, 27, 31, 33, and 34 of the report. In case, it is accepted that the applicant is entitled to interest, the same according to the report of the Chartered Accountant comes to Rs.2,88,563.64/- only.

During the course of arguments, another issue which has arisen for consideration is the effect of deletion of Rule 100 of Chapter 28 of the High Court Rules, relied upon by counsel for the applicant.

It has been submitted that the said Rule has been deleted

with effect from 26.05.2005 while the claim itself was filed on 21/28.07.2006.

It is also submitted that the issue of payment of pre-litigation interest is substantive law and is governed by one of two conditions

- i. an agreement in writing between the parties specifying the rate of interest which is payable.

This condition does not apply to the case at hand as there exists no written agreement as to the rate of interest due on an outstanding amount. None has been filed or relied upon during arguments.

- ii. a statutory provision.

Thus, in the absence of any written contract or agreement, any interest payable to the applicant can only be in accordance with Rule 156 of the Company Court Rules.

Counsel for the applicant has relied upon Chapter 28 Rule 100 of the High Court Rules 1952, in support of his contention. The said provisions reads as follows -

100. Interest. *On any debt or certain sum, payable at a certain time or otherwise whereon interest is not reserved or agreed for, and which is overdue at the date of the winding up order or resolution, the creditor may prove for interest at a rate not exceeding six percent per annum to that date from the date when the debt or sum was payable, if the debt or sum was payable by virtue of a written instrument at a certain date; and if payable otherwise, then from the date when a demand in writing has been made giving notice that interest would be claimed from the date of the demand until the date of payment.*

It would be relevant to note that Chapter 28 Rule 100 of the High Court Rules has been deleted with effect from 26.05.2005. However, Rule 156 of the Company Court Rules is identically worded except the rate of interest provided therein is up to 9 maximum of 4% as against maximum of 6% provided in the deleted Chapter 28 Rule 100.

This interest is payable on delayed payment if interest was stipulated in a written instrument. In case, there is no written instrument, the interest is payable from the date a demand in writing has been made giving notice that interest would be claimed. Even this interest, upon a

perusal of the relevant provision extracted above, is payable from the date of the demand, till the date of the winding up order.

No instrument in writing has been filed or relied upon by counsel for the applicant Shri P.K. Dalmia. The payment of interest, if any, would therefore, have to be computed in accordance with last part of Rule 156 of the Company Court Rules.

Thus, it is necessary to hold that since interest was claimed for the first time in Form 66 filed by the applicant before the Official Liquidator and interest is payable only till the date of the winding up order was passed, the applicant is not entitled to any interest.

Having said so it is relevant to state that the applicant's claim was rejected due to paucity of funds. There was no money left with the Official Liquidator to pay any of the unsecured creditors including the applicant, falling within the ambit of Section 530 of the Companies Act.

The special appeal/ Company appeal directed against the order of the Company Judge rejecting applicant's appeal under Rule 164 of the Company Court Rules has already been dismissed.

The applicant under the circumstances, was not entitled to any amount and the amount actually paid to the petitioner, has been so paid on account of the observation made in the order of the Apex Court, which led to filing of a contempt petition before the Apex Court.

It would however, be relevant to record that since the applicant's claim was rejected as was his appeal under Rule 164 and his special appeal was dismissed as not maintainable, the applicant was in my considered opinion, was not entitled to the payment made to him and the same appears liable to be recovered from him. Moreover, since, the payment made to the applicant appears to be unjustified, there is another reason why the applicant, is not entitled to any interest.

It is therefore, held that the applicant is not entitled to any interest; for the reasons already given above. For the same reason there is no necessity of determining the rate at which the interest needs to be calculated.

It is also held that the applicant was not entitled for the payment of Rs.3,88,464/- paid over to him during pendency of his contempt petition before the Apex Court.

It is, however, in the domain of the Apex Court to determine whether the same deserves to be refunded by the applicant or not.

The application stands disposed of accordingly.

Order Date :- 20.11.2020

RKM

Court No. - 9

Case :- MISC. COMPANY APPLICATION No. - 4 of 1997

Applicant :- In The Matter Of M/S U.P.State Cement Corporation Ltd.

Counsel for Applicant :- O.L.B.K.L.Srivastava,A.K. Pandey,Anil Mehrotra,Anita Srivastava,Ashok Kumar Chaubey,Ashok Mehta,Navin Kumar Sharma,O.L. M.K. Bagri,O.L.U.S.Patole,S. Niranjan,S.K. Singh,Sanjay Kumar,Saral Srivastava,Satya Prakash Shukla,Vipalav Sharma,Yogendra Kumar Srivastava

Counsel for Opposite Party :- Shiv Nath Singh,A.K. Gupta,A.K. Srivastava,A.K.Mehrotra,A.P. Singh,Achal Singh Vats,Ajal Krishna,Ajay Kumar Pandey,Amit Chaudhary,Amit Saxena,Anil Mehrotra,Anurag Khanna,Ashok Kumar Chaubey,Ashok Mehta,Ashutosh Pandey,B.D. Mandhyan,B.D.Mandhyan,B.K. Mishra,B.N. Singh,Brijesh Kumar,C.B. Srivastava,C.B.Gupta,C.L. Pandey,C.S.C.,D.K. Srivastava,Devendra Singh,Govind Saran,H.N. Sharma,H.P. Dubey,I.S.Tomar,J. Nagar,J.N. Pandey,J.P.Mathur,Jayant Banerji,K.C. Vishwakarma,K.K. Srivastava,Kush Saxena,L.K.Tiwari,L.P.Tiwari,Lalji Pandey,Manoj Kumar,Manoj Srivastava,N.K. Gupta,N.K. Verma,Narendra Mohan,Navin Sinha,O.L. M.K. Bagri,O.L. O.P. Sharma,O.P.Misra,P.K. Dalmiya (In Person),P.K. Upadhyay,P.N.Tripathi,R.P. Agarwal,R.P. Srivastava,R.P. Tiwari,Rajendra Chaubey,Rajesh Kumar Pathak,Rajesh Kumar Singh,Ram Yash Pandey,S.C.,S.D.N.Singh,S.F. Ahmad,S.K. Yadav,S.M. Dayal,S.N. Singh,S.R. Yadav,S.S. Chauhan,S.S.Srivastava,Sandeep Agarwal,Sanjai Srivastava,Sanjay Om,Satya Prakash Shukla,Saumitra Singh,Smt. Archana Singh,Somesh Khare,Subhash Chandra Yadav,Sudhir Agarwal,U.N. Sharma,U.P. Singh,Udai Chandani,V.K.S. Chaudhary,Vinod Misra,Vivek Singh,W.A. Siddiqui,Yashwant Verma,Yogesh Agarwal,Z.K. Hasan

Hon'ble Anjani Kumar Mishra,J.

Heard Shri Ashish Agrawal, counsel for the Official Liquidator.

A correction application has been filed for corrections in the judgement and order dated 20.11.2020. The corrections that have been sought are primarily in figures that occur in the aforesaid order. Almost 20 plus corrections have been sought in dates and the amounts mentioned in the order at various places.

Under the circumstances, the order dated 20.11.2020 is hereby ordered to be deleted and a fresh order incorporating the corrections prayed for, showing the corrections in red font, shall be uploaded below this

order on the correction application and shall be treated as the order dated 20.11.2020.

. **Hon'ble Anjani Kumar Mishra, J.**

-x--

Heard Shri J.N.Pandey, counsel for Shri P.K. Dalmia and Shri Ashok Mehta, Senior Advocate for the Official Liquidator.

Application No.420449 of 2017 up for consideration was registered on a letter of Shri P.K. Dalmia accompanied by an order dated 09.10.2017 passed by the Hon'ble Supreme Court in Contempt Petition No.927 of 2016, Contempt Petition No.378 of 2015 and SLP (Civil) No.16659 of 2011.

The crucial portion of the order passed by the Apex Court reads as follows:-

" The learned Company Judge is again requested to decide the claim of the petitioner in accordance with this Court's order dated 11.01.2016. After such determination, the order of the learned Company Judge shall be placed before this Court for passing further orders.

Needless to mention that the learned Company Judge may take assistance of an independent Chartered Accountant, if found necessary."

The relevant portion of the order of the Hon'ble Apex Court dated 11.01.2016, in pursuance whereof, claim of the applicant has to be re-decided by this Court, reads as follows: -

" Having heard Mr. Dalmia, petitioner in person and applicant, learned counsel for the Official Liquidator, we find that there is a serious dispute as to what was the correct amount which was payable while considering the alleged statement said to have been made on behalf of the Official Liquidator as has been noted by us in our order dated 28th September, 2015. The petitioner was paid Rs.3,88,000/- (Rupees Three lakhs eighty eight thousand), as the amount due. According to the petitioner, he was entitled for more than a Crore of rupees as the amount fell due long before. We cannot go into the disputed question now sought to be raised at the instance of the petitioner which is disputed by the Official Liquidator. We, therefore, permit the petitioner to move the learned Company Judge by making calculation of his entitlement with advance copy to the Official Liquidator and also direct the Official Liquidator to file its counter to the said claim. We only request the learned Company Judge to hear the petitioner and the Official Liquidator and determine whether or not the

petitioner is entitled for anything more than what has already been paid to him. After making such determination the petitioner is permitted to move this Court for passing further orders."

Although, from the perusal of the orders passed by the Apex Court, relevant portions whereof have been extracted herein-above, it appears that this Court is required only to calculate entitlement of the applicant, Mr. P.K. Dalmia to interest. However, this Court considers it expedient to consider the claim of the applicant right from its inception so that a complete and correct picture is available, primarily because right from the very inception, the amount claimed by the applicant through his claim lodged in Form 66 is, in its major part, comprised of interest alone.

The claim in Form 66 under Rule 161 of the Rules was lodged by P.K Dalmiya, partner of Bhoj Raj Dalmiya and Sons, a partnership firm on **21/28.07.2006** consequent to the winding up of **M/s UP State Cement Corporation Ltd.** on 08.12.1999 and on the Official Liquidator, inviting claims. The firm was erstwhile Coal Supplier and Handling Agent of **M/s UP State Cement Corporation Ltd. (In Liquidation).**

The facts of the case are as follows:-

A claim was lodged by the applicant along with letters dated **12.06.2006** and 21.07.2006. This claim was in two parts. The first was for a sum of Rs.1,56,099.76/- and comprised of bills towards arranging supply of Coal as Det Creditor Agents, for supplies of coal as Handling Agent; for coal supplies as Joint Sampling Agent and for arranging iron slag from Bokaro Steel Plant. These bills for the period from **1956 to 1977.**

The second set of bills was for the year 1987 and was for a sum of Rs.2,32,365.74/- for supplies of granulated iron slag from Bokaro Steel Plant as Joint Sampling and handling agent. The total of the aforesaid two sets of claim came to Rs.3,88,465.50/-. On the aforesaid amount, a sum of Rs.1,42,84,197.65/- was claimed as interest. A sum of Rs.1,50,000/- was claimed as expenses for pursuing the matters at different stages. A sum of Rs.13,67,255.70/- was claimed towards loss of profit and a sum of Rs.10,25,441.48/- was claimed towards loss of business turn over. The total all the aforesaid amounts claimed including interest, was Rs.**1,72,15,360.33/-**.

There is material on record to show that as regards, the first amount of Rs.1,56,099.76/- Shri V.K. Tandon (Retd IAS) was appointed sole arbitrator on 27.03.1989 to decide the claim on the basis of the contract between the Company (In Liquidation) and M/s Bhojraj Dalmia and Sons as Coal Handling Agent.

It appears that an application was filed for extending the term of the arbitrator, Shri V.K. Tandon. This application was rejected by the Dhanbad Court and ultimately the claim was rejected, without any award being passed as the term of the arbitrators' appointment had, expired.

In so far as, the claim of Rs.2,32,365.74/- is concerned, Shri G.V.Patnaik was appointed as arbitrator on 31.03.1994. The arbitration proceedings came to be dismissed for default on 31.05.1995.

Long after failure of the aforesaid two arbitration proceedings, the same claim has been raised before the Official Liquidator.

The claim adjudication committee assisting the Official Liquidator, admitted the claim only to the extent of the principal amount, namely, these Rs.3,88,464/-. The balance to the tune of Rs.1,68,26,896.33/- was rejected as not payable. A notice in Form 69 was issued to the applicant admitting his claim to the extent of **Rs.3,88,464/-** and rejecting the remainder as no proof of the expenses etc. claimed by the applicant, was furnished.

Thereafter, on 07.12.2006, an application for condonation of delay in filing a claim was filed being Application No.264863 of 2006. Along with a prayer for consideration of the claim of Rs.1,72,15,360.33/- as one on behalf of a workman.

However, the said plea was specifically rejected vide order dated 07.03.2007 passed by the Company Judge.

After this order was passed, an application no.243611 of 2007 was filed by the applicant with the prayer that his claim for Rs.1,72,15,360.33/- be treated as claim of workman as he has been appointed as an authorized representative of the Company (In Liquidation).

The Company Court passed another order dated 27.04.2007 rejecting all the claims by the unsecured creditors on the ground that after payment of preferential claims under Section 529 and 529A of the Companies Act, no amount remained for payment to the unsecured creditors, including the applicant who was appointed as "authorized representative of the Company (In Liquidation) for arranging coal supplies, as a coal handling agent and joint sampling agent and rendered these services on contract." This application was again rejected vide order dated 11.10.2007.

Against the order dated 11.10.2007, a special appeal was filed before the Division Bench, which was dismissed by the order dated 23.11.2010 without entering into the merits of the case observing that the

applicant, appellant was free to seek appropriate remedy in accordance with law.

The applicant thereafter, approached the Apex Court by means of Special Leave Petition No.16659 of 2011, which came to be dismissed on 29.08.2013 specifically holding that the applicant having been appointed a handling agent of the respondent company, he could not be given the status of a regular employee. In this order, it was also recorded as follows- "Learned counsel for the respondents also points out that the company is in liquidation and the entire amounts due have been paid to him".

Relying upon the underlined observation above, the applicant filed contempt petition no.378 of 2015 in Special Leave Petition No.16659 of 2011, wherein by order dated 10.08.2015, the Official Liquidator was required to comply with the order dated 29.08.2013 within six weeks.

An application was filed by the Official Liquidator seeking modification of the order dated 29.08.2013 on the plea that the statement recorded in the order, the basis of the contempt proceedings, had been so recorded on a mis-conception of fact. However, the amount of Rs.3,88,464/- was paid to the applicant, subject to the decision of the modification application, as was directed by the Company Court.

The Supreme Court on 11.01.2015 dropped the contempt proceedings on the ground that the amount had been paid to the applicant, granting liberty to him to file an application before the Company Court, with detailed calculations etc, which application was required to be heard and decided.

However, no calculation chart etc. was filed by the applicant and he confined his submissions only to the claim of interest on the sum of Rs.3,88,464/-

The Company Court vide order dated **28.04.2017**, rejected the plea of payment of interest on the ground that after payment of preferential claims under Section 529 and 529A of the Companies Act, no amount was left to be paid to the unsecured creditors including the applicant.

This order of the Company Judge dated **28.04.2017** was set aside by the Apex Court on **09.10.2017** holding as follows -

" It is obvious that the aforesaid order of a learned Company Judge falls short of comply with the order dated 11.01.2016 of this Court, whereby this Court had specifically sought determination of the amount, if any, due to the petitioner Shri P.K. Dalmia that not having

been done, we are constrained to set aside the order dated 28.04.2017 passed by the learned Company Judge. The order, accordingly, the matter is remitted back to the learned company Judge for determination of the petitioner's claim."

The instant matter is being considered in the light of what has been observed in the order of the Apex Court dated **09.10.2017** aforesaid.

I have considered the submissions made by counsel for the parties and perused the record. I have also perused the report of the Chartered Accountant, which has been obtained in the light of the observations made by the Apex Court.

From the facts narrated in the preceding paragraphs of this order, it emerges that the initial claim lodged by the applicant was admitted only to the extent of Rs.3,88,464/-. All the remaining amounts claimed were rejected. The appeal under Rule 164 of the Company Court Rules against the rejection of the claim was also dismissed vide order dated 07.03.2007. This order was never challenged by the applicant. Instead, he filed an application praying that the initial claim be treated as a claim on behalf of a workmen and accordingly, an application for condonation of delay in lodging the claim was filed. This application was rejected as was the consequential special appeal.

However, a sum of Rs.3,88,464/- has been paid to the applicant on account of the observations made in the order of the Apex Court, which according to the Official Liquidator was so recorded on a mis-conception of facts. Nothing had been paid to the applicant nor could have been paid to him as he was an unsecured creditors and the Official Liquidator had no funds for paying claims falling under Section 530 of the Act.

It has been repeatedly observed in the orders passed by the Company Judge that all the claims by unsecured creditors stand rejected as no amount is available for payment to such unsecured creditors after making payments of the preferential claims under Section 529 and 529A of the Companies Act.

After having received the principal amount, which in fact, the applicant was not entitled, the matter has been remitted back by the Supreme Court for consideration as to whether the applicant is entitled to any further payment as interest.

Against the claim raised, a sum of **Rs.3,88,464/-** has been paid to the applicant under orders of the Apex Court in contempt proceedings.

From the facts noticed above, it emerges that this

Court is required to consider whether any interest is liable to be paid to the applicant on the amount of **Rs.3,88,464/-** already paid to him, and if so, at what rate.

Counsel for the applicant has repeatedly reiterated that this is the precise scope of the order of remand passed by the Apex Court on 11.01.2016. He has submitted that in accordance with Chapter 28 Rule 100 of the High Court Rules, the applicant is entitled to 6% interest on the amount claimed and paid to him. It would however be relevant to note that in the claim filed, interest at the market rate has been claimed and calculated by the applicant in his claim.

He has relied upon 2001(104) Company Cases 596 John Paterson Vs. True Star Soya Products Ltd., especially paragraph 8 thereon, wherein it has been held that 9% interest is payable before the winding up order.

Shri Ashok Mehta appearing for the Official Liquidator referring to Rule 156 and 179 of the Company Court Rules, submits that the applicant can at best be entitled to 4% interest. An admitted claim to 6% interest is payable only up to the date of the winding up order. He also submits that the cases cited applies only to a Banking Company. The Company (In Liquidation) was not a Banking Company.

He has also submitted that as per the claim filed by the applicant, the first amount claimed is of **1956-1977**. The last amount claimed by the applicant is of **30.11.1987**. The winding up petition was filed in the year **1997** on a reference made by the BIFR. The winding up order was passed on 08.12.1999. Prior to 01.04.1997, the Company (In Liquidation) was a Government Company. The amounts mentioned in the claim were raised for the first time on 09.11.2006 before the Official Liquidator. However, in the first claim filed by the applicant on 11.07.2006, one principal amount claimed was Rs.1,56,099.76/-. The second principal amount claimed was a sum of Rs.2,32,365.74/-. The principal amount in the aforesaid two parts added together came to **Rs.3,88,464/-**. The remainder of the claim which is in excess of Rs.1 crore is of interest on the said principal amount.

Admittedly, the applicant was partner of a partnership firm for handling coal. According to Mr. Mehta, the applicant was designated a joint sampling agent, namely, a supervisor of a coal handling partnership firm. Therefore, he was a mere handling agency and not at par with secured creditors. This submission has been made relying upon OLR Report (Judicial) No.443 of 2018 especially paragraph 7 thereof, wherein portion of the order dated 29.08.2013 of the Apex Court in SLP NO.16659 of 2011 has been quoted.

He has submitted that the order dated 07.03.2007 passed on Application No. **264863 of 2006** states that no award of the arbitrator was ever passed. This order also rejects the appeal under Rule 164 filed by the applicant, which order has become final.

He has reiterated that the claims of the petitioner had been referred for arbitration. However, no award was ever passed, as is clear from the order dated 11.10.2007. Therefore, the claims of the applicant stood rejected, finally. His claim therefore, was rightly rejected by the Official Liquidator and the Company Court as the arbitrators did not pass any award in favour of the applicant and the notice of rejection was sent on 08.12.2006.

However, before the Apex Court a fact came to be recorded, namely that Counsel for the Official Liquidator had stated that the entire amount due to the applicant had been paid to him. This statement was on account of misconception of facts. On the strength of the statement a contempt petition was filed and in consequence of the orders passed therein, a sum of **Rs. 3,88,464/-** was paid to the applicant.

He reiterates that in Official Liquidators' Report No. (Judicial) NO.35 of 2018, it has been stated that the Apex Court had vide order dated 29.08.2013, passed while dismissing the Special Leave Petition filed by the applicant, P.K. Dalmia, returned a specific finding that he cannot be equated with or given the status of a regular employee of the Company (In Liquidation) and that the Statement of Affairs filed by the Ex-Director of the Company (In Liquidation) does not contain the claim raised by Shri P.K. Dalmia.

It is next submitted that for the first claim for the period between 1956-1977, Shri B.K. Tandon (Retd IAS) had been appointed Arbitrator on **27.03.1989** but he did not pass an award as his term as arbitrator expired and was not extended. As regards, the second claim of the year 1987, Shri G.V.Patnaik has been appointed as Arbitrator on **31.03.1994**. This claim was dismissed for default / non prosecution on 31.05.1995. Thus, both the arbitration proceedings did not culminate in any award in favour of the applicant.

It is rightly contended by Shri Ashok Mehta that the claims for the period of 1956-1977 as also the claim for the year 1987 were time barred on the date of the winding up order, namely, 08.12.1999.

The applicant is not entitled to any expenses or of any amount towards loss of profit etc as there is no provision in the Company Court Rules for making or admitting such a claim.

The purpose for deciding the controversy, it is relevant to refer to Rule 156 ad 179 of the Company Court Rules, which are extracted below -

"Rule 156. Interest - On any debt or certain sum, payable at a certain time or otherwise whereon interest is not reserved or agreed for, and which is overdue at the date of the winding-up order, or the resolution as the case may be, the creditor may prove for interest at a rate not exceeding 4% per annum up to that date from the time when the debt or sum was payable, if the debt or sum is payable by virtue of a written instrument at a certain time, and if payable otherwise, then from the time when a demand in writing has been made, giving notice that interest will be claimed from the date of demand until the time of payment.

Rule 179. Payment of subsequent interest. In the event of there being a surplus after payment in full of all the claims admitted to proof, creditors whose proofs have been admitted shall be paid interest from the date of the winding-up order or of the resolution as the case may be, up to the date of declaration of the final dividend, at a rate not exceeding 4% per annum, on the admitted amount of the claim, after adjusting against the said amount the dividends declared as on the date of the declaration of each dividend."

In view of Rules 156 of the Company Court Rules 1956, no interest is payable on any sum, which is over due on the date of the winding up order, unless, it is so reserved or agreed upon. The applicant must prove his claim for interest at the rate not exceeding 4% per annum from the date, the debt or the amount claimed was payable, till the date of the winding up order. In absence of a written instrument, specifying the interest on a delayed payment, the interest would be calculated from the date of a demand in writing being made, giving notice that interest would be claimed. None of these conditions have been satisfied with by the applicant.

The Court has been taken through OLR No.34 of 2017, wherein annexure 4 is the order passed by the High Court in an appeal against an order dated 11.12.2007 passed by the Company Judge. A Special Appeal No.1991 of 2008 was filed by the applicant, P.K. Dalmia against order dated 11.12.2007, which was dismissed as not maintainable.

By the order dated 11.10.2007, the appeal under Rule 164 of the Company Rules 1959 had been rejected by the Company Judge. It is after dismissal of the Special Appeal that notice dated 06.12.2006 was sent to Shri P.K. Dalmia, regarding rejection of his claim.

It has also submitted that by another order dated 27.04.2007 all the appeals under Rule 164 were dismissed by the Company Court. This order was not under challenge in Special Appeal No.1911 of 2008.

The report of the Chartered Accountant, dated 20.12.2018, as regards the claim of the applicant has been filed on 05.01.2019 along with OLR No.8 of 2019. Attention of the Court has been drawn to paragraphs 17,20, 24, 27, 31, 33, and 34 of the report. In case, it is accepted that the applicant is entitled to interest, the same according to the report of the Chartered Accountant comes to Rs.2,88,563.64/- only.

During the course of arguments, another issue which has arisen for consideration is the effect of deletion of Rule 100 of Chapter 28 of the High Court Rules, relied upon by counsel for the applicant.

It has been submitted that the said Rule has been deleted with effect from 26.05.2005 while the claim itself was filed on 21/28.07.2006.

It is also submitted that the issue of payment of pre-litigation interest is substantive law and is governed by one of two conditions:-

i. an agreement in writing between the parties specifying the rate of interest which is payable.

This condition does not apply to the case at hand as there exists no written agreement as to the rate of interest due on an outstanding amount. None has been filed or relied upon during arguments.

ii. a statutory provision.

Thus, in the absence of any written contract or agreement, any interest payable to the applicant can only be in accordance with Rule 156 of the Company Court Rules.

Counsel for the applicant has relied upon Chapter 28 Rule 100 of the High Court Rules 1952, in support of his contention. The said provisions reads as follows -

***"100. Interest.** On any debt or certain sum, payable at a certain time or otherwise whereon interest is not reserved or agreed for, and which is overdue at the date of the winding up order or resolution, the creditor may prove for interest at a rate not exceeding six percent per annum to that date from the date when the debt or sum was payable, if the debt or sum was payable by virtue of a written instrument at a*

certain date; and if payable otherwise, then from the date when a demand in writing has been made giving notice that interest would be claimed from the date of the demand until the date of payment."

It would be relevant to note that Chapter 28 Rule 100 of the High Court Rules has been deleted with effect from 26.05.2005. However, Rule 156 of the Company Court Rules is identically worded except the rate of interest provided therein is up to 9 maximum of 4% as against maximum of 6% provided in the deleted Chapter 28 Rule 100.

This interest is payable on delayed payment if interest was stipulated in a written instrument. In case, there is no written instrument, the interest is payable from the date a demand in writing has been made giving notice that interest would be claimed. Even this interest, upon a perusal of the relevant provision extracted above, is payable from the date of the demand, till the date of the winding up order.

No instrument in writing has been filed or relied upon by counsel for the applicant Shri P.K. Dalmia. The payment of interest, if any, would therefore, have to be computed in accordance with last part of Rule 156 of the Company Court Rules.

Thus, it is necessary to hold that since interest was claimed for the first time in Form 66 filed by the applicant before the Official Liquidator and interest is payable only till the date of the winding up order was passed, the applicant is not entitled to any interest.

Having said so it is relevant to state that the applicant's claim was rejected due to paucity of funds. There was no money left with the Official Liquidator to pay any of the unsecured creditors including the applicant, falling within the ambit of Section 530 of the Companies Act.

The special appeal/ Company appeal directed against the order of the Company Judge rejecting applicant's appeal under Rule 164 of the Company Court Rules has already been dismissed.

The applicant under the circumstances, was not entitled to any amount and the amount actually paid to the petitioner, has been so paid on account of the observation made in the order of the Apex Court, which led to filing of a contempt petition before the Apex Court.

It would however, be relevant to record that since the applicant's claim was rejected as was his appeal under Rule 164 and his special appeal was dismissed as not

maintainable, the applicant was in my considered opinion, was not entitled to the payment made to him and the same appears liable to be recovered from him. Moreover, since, the payment made to the applicant appears to be unjustified, there is another reason why the applicant, is not entitled to any interest.

It is therefore, held that the applicant is not entitled to any interest; for the reasons already given above. For the same reason there is no necessity of determining the rate at which the interest needs to be calculated.

It is also held that the applicant was not entitled for the payment of Rs.3,88,464/- paid over to him during pendency of his contempt petition before the Apex Court. It is, however, in the domain of the Apex Court to determine whether the same deserves to be refunded by the applicant or not.

The application stands disposed of accordingly.

Order Date :- 10.12.2020
Priyanka

Court No. - 10

Case :- MISC. COMPANY APPLICATION No. - 4 of 1997

Applicant :- In The Matter Of M/S U.P.State Cement Corporation Ltd.

Counsel for Applicant :- O.L.B.K.L.Srivastava,A.K. Pandey,Anil Mehrotra,Anita Srivastava,Ashok Kumar Chaubey,Ashok Mehta,Navin Kumar Sharma,O.L. M.K. Bagri,O.L.U.S.Patole,S. Niranjan,S.K. Singh,Sanjay Kumar,Saral Srivastava,Satya Prakash Shukla,Shyam Sunder Singh,Vipalav Sharma,Yogendra Kumar Srivastava

Counsel for Opposite Party :- Shiv Nath Singh,A.K. Gupta,A.K. Srivastava,A.K.Mehrotra,A.P. Singh,Achal Singh Vats,Ajal Krishna,Ajay Kumar Pandey,Amit Chaudhary,Amit Saxena,Anil Mehrotra,Anurag Khanna,Ashok Kumar Chaubey,Ashok Mehta,Ashutosh Pandey,B.D. Mandhyan,B.D.Mandhyan,B.K. Mishra,B.N. Singh,Brijesh Kumar,C.B. Srivastava,C.B.Gupta,C.L. Pandey,C.S.C.,D.K. Srivastava,Devendra Singh,Govind Saran,H.N. Sharma,H.P. Dubey,I.S.Tomar,J. Nagar,J.N. Pandey,J.P.Mathur,Jayant Banerji,K.C. Vishwakarma,K.K. Srivastava,Kush Saxena,L.K.Tiwari,L.P.Tiwari,Lalji Pandey,Manoj Kumar,Manoj Srivastava,N.K. Gupta,N.K. Verma,Narendra Mohan,Navin Sinha,O.L. M.K. Bagri,O.L. O.P. Sharma,O.P.Misra,P.K. Dalmiya (In Person),P.K. Upadhyay,P.N.Tripathi,R.P. Agarwal,R.P. Srivastava,R.P. Tiwari,Rajendra Chaubey,Rajesh Kumar Pathak,Rajesh Kumar Singh,Ram Yash Pandey,S.C.,S.D.N.Singh,S.F. Ahmad,S.K. Yadav,S.M. Dayal,S.N. Singh,S.R. Yadav,S.S. Chauhan,S.S.Srivastava,Sandeep Agarwal,Sanjai Srivastava,Sanjay Om,Satya Prakash Shukla,Saumitra Singh,Smt. Archana Singh,Somesh Khare,Subhash Chandra Yadav,Sudhir Agarwal,U.N. Sharma,U.P. Singh,Udai Chandani,V.K.S. Chaudhary,Vinod Misra,Vivek Singh,W.A. Siddiqui,Yashwant Verma,Yogesh Agarwal,Z.K. Hasan

Hon'ble Rohit Ranjan Agarwal,J.

In Re: Civil Misc. Listing Application No. 575 of 2022

List with previous papers at an early date.

The application stands disposed of.

Order Date :- 3.3.2022

V.S.Singh

Court No. - 10

Case :- MISC. COMPANY APPLICATION No. - 4 of 1997

Applicant :- In The Matter Of M/S U.P.State Cement Corporation Ltd.

Counsel for Applicant :- O.L.B.K.L.Srivastava,A.K. Pandey,Anil Mehrotra,Anita Srivastava,Ashok Kumar Chaubey,Ashok Mehta,Navin Kumar Sharma,O.L. M.K. Bagri,O.L.U.S.Patole,S. Niranjan,S.K. Singh,Sanjay Kumar,Saral Srivastava,Satya Prakash Shukla,Shyam Sunder Singh,Vipalav Sharma,Yogendra Kumar Srivastava

Counsel for Opposite Party :- Shiv Nath Singh,A.K. Gupta,A.K. Srivastava,A.K.Mehrotra,A.P. Singh,Achal Singh Vats,Ajal Krishna,Ajay Kumar Pandey,Amit Chaudhary,Amit Saxena,Anil Mehrotra,Anurag Khanna,Ashok Kumar Chaubey,Ashok Mehta,Ashutosh Pandey,B.D. Mandhyan,B.D.Mandhyan,B.K. Mishra,B.N. Singh,Brijesh Kumar,C.B. Srivastava,C.B.Gupta,C.L. Pandey,C.S.C.,D.K. Srivastava,Devendra Singh,Govind Saran,H.N. Sharma,H.P. Dubey,I.S.Tomar,J. Nagar,J.N. Pandey,J.P.Mathur,Jayant Banerji,K.C. Vishwakarma,K.K. Srivastava,Kush Saxena,L.K.Tiwari,L.P.Tiwari,Lalji Pandey,Manoj Kumar,Manoj Srivastava,N.K. Gupta,N.K. Verma,Narendra Mohan,Navin Sinha,O.L. M.K. Bagri,O.L. O.P. Sharma,O.P.Misra,P.K. Dalmiya (In Person),P.K. Upadhyay,P.N.Tripathi,R.P. Agarwal,R.P. Srivastava,R.P. Tiwari,Rajendra Chaubey,Rajesh Kumar Pathak,Rajesh Kumar Singh,Ram Yash Pandey,S.C.,S.D.N.Singh,S.F. Ahmad,S.K. Yadav,S.M. Dayal,S.N. Singh,S.R. Yadav,S.S. Chauhan,S.S.Srivastava,Sandeep Agarwal,Sanjai Srivastava,Sanjay Om,Satya Prakash Shukla,Saumitra Singh,Smt. Archana Singh,Somesh Khare,Subhash Chandra Yadav,Sudhir Agarwal,U.N. Sharma,U.P. Singh,Udai Chandani,V.K.S. Chaudhary,Vinod Misra,Vivek Singh,W.A. Siddiqui,Yashwant Verma,Yogesh Agarwal,Z.K. Hasan

Hon'ble Rohit Ranjan Agarwal,J.

In Re: Civil Misc. Listing Application No. 576 of 2022

List with previous papers at an early date.

The application stands disposed of.

Order Date :- 11.3.2022

V.S.Singh

Court No. - 7

Case :- MISC. COMPANY APPLICATION No. - 4 of 1997

Applicant :- In The Matter Of M/S U.P.State Cement Corporation Ltd.

Counsel for Applicant :- O.L.B.K.L.Srivastava,A.K. Pandey,Anil Mehrotra,Anita Srivastava,Ashok Kumar Chaubey,Ashok Mehta,Navin Kumar Sharma,O.L. M.K. Bagri,O.L.U.S.Patole,S. Niranjan,S.K. Singh,Sanjay Kumar,Saral Srivastava,Satya Prakash Shukla,Shyam Sunder Singh,Udai Prakash Deo Pandey,Vipalav Sharma,Yogendra Kumar Srivastava

Counsel for Opposite Party :- Shiv Nath Singh,A.K. Gupta,A.K. Srivastava,A.K.Mehrotra,A.P. Singh,Achal Singh Vats,Ajal Krishna,Ajay Kumar Pandey,Amit Chaudhary,Amit Saxena,Anil Mehrotra,Anurag Khanna,Ashok Kumar Chaubey,Ashok Mehta,Ashutosh Pandey,B.D. Mandhyan,B.D.Mandhyan,B.K. Mishra,B.N. Singh,Brijesh Kumar,C.B. Srivastava,C.B.Gupta,C.L. Pandey,C.S.C.,Chitranshu Srivastav,D.K. Srivastava,Devendra Singh,Govind Saran,H.N. Sharma,H.P. Dubey,I.S.Tomar,J. Nagar,J.N. Pandey,J.P.Mathur,Jayant Banerji,K.C. Vishwakarma,K.K. Srivastava,Kush Saxena,L.K.Tiwari,L.P.Tiwari,Lalji Pandey,Manoj Kumar,Manoj Srivastava,N.K. Gupta,N.K. Verma,Narendra Mohan,Navin Sinha,O.L. M.K. Bagri,O.L. O.P. Sharma,O.P.Misra,P.K. Dalmiya (In Person),P.K. Upadhyay,P.N.Tripathi,R.P. Agarwal,R.P. Srivastava,R.P. Tiwari,Rajendra Chaubey,Rajesh Kumar Pathak,Rajesh Kumar Singh,Ram Yash Pandey,S.C.,S.D.N.Singh,S.F. Ahmad,S.K. Yadav,S.M. Dayal,S.N. Singh,S.R. Yadav,S.S. Chauhan,S.S.Srivastava,Sandeep Agarwal,Sanjai Srivastava,Sanjay Om,Satya Prakash Shukla,Saumitra Singh,Smt. Archana Singh,Somesh Khare,Subhash Chandra Yadav,Sudhir Agarwal,U.N. Sharma,U.P. Singh,Udai Chandani,V.K.S. Chaudhary,Vinod Misra,Vivek Singh,W.A. Siddiqui,Yashwant Verma,Yogesh Agarwal,Z.K. Hasan

Hon'ble Rohit Ranjan Agarwal,J.

In Re: C.Misc. Application No.577 of 2023

List with previous papers.

Order Date :- 27.4.2023

SK Goswami

Court No. - 2

Case :- MISC. COMPANY APPLICATION No. - 4 of 1997

Applicant :- In The Matter Of M/S U.P.State Cement Corporation Ltd.

Counsel for Applicant :- O.L.B.K.L.Srivastava,A.K. Pandey,Anil Mehrotra,Anita Srivastava,Ashok Kumar Chaubey,Ashok Mehta,Navin Kumar Sharma,

Counsel for Opposite Party :- Shiv Nath Singh,A.K. Gupta,A.K. Srivastava,A.K.Mehrotra,A.P. Singh,Achal Singh Vats,Ajal Krishna,Ajay Kumar Pandey,Amit Chaudhary,Amit Saxena,Anil Mehrotra,Anurag Khanna,Ashok Kumar Chaubey,Ashok Mehta,Ashutosh Pandey,B.D. Mandhyan,B.D.Mandhyan,B.K. Mishra

Hon'ble Piyush Agrawal,J.

Listing Application No. 579 of 2024

List the matter on 13.9.2024.

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Listing Application No. 580 of 2024

List the matter on 13.9.2024.

Order Date :- 6.9.2024

samz

Court No. - 2

Case :- MISC. COMPANY APPLICATION No. - 4 of 1997

Applicant :- In The Matter Of M/S U.P.State Cement Corporation Ltd.

Counsel for Applicant :- O.L.B.K.L.Srivastava,A.K. Pandey,Anil Mehrotra,Anita Srivastava,Ashok Kumar Chaubey,Ashok Mehta,Navin Kumar Sharma,O.L. M.K. Bagri,O.L.U.S.Patole,S. Niranjan,S.K. Singh,Sanjay Kumar,Saral Srivastava,Satya Prakash Shukla,Shyam Sunder Singh,Udai Prakash Deo Pandey,Vipalav Sharma,Yogendra Kumar Srivastava

Counsel for Opposite Party :- Shiv Nath Singh,A.K. Gupta,A.K. Srivastava,A.K.Mehrotra,A.P. Singh,Achal Singh Vats,Ajal Krishna,Ajay Kumar Pandey,Amit Chaudhary,Amit Saxena,Anil Mehrotra,Anurag Khanna,Ashok Kumar Chaubey,Ashok Mehta,Ashutosh Pandey,B.D. Mandhyan,B.D.Mandhyan,B.K. Mishra,B.N. Singh,Brijesh Kumar,C.B. Srivastava,C.B.Gupta,C.L. Pandey,C.S.C.,Chitranshu Srivastav,D.K. Srivastava,Devendra Singh,Govind Saran,H.N. Sharma,H.P. Dubey,I.S.Tomar,J. Nagar,J.N. Pandey,J.P.Mathur,Jayant Banerji,K.C. Vishwakarma,K.K. Srivastava,Kush Saxena,L.K.Tiwari,L.P.Tiwari,Lalji Pandey,Manoj Kumar,Manoj Srivastava,N.K. Gupta,N.K. Verma,Narendra Mohan,Navin Sinha,O.L. M.K. Bagri,O.L. O.P. Sharma,O.P.Misra,P.K. Dalmiya (In Person),P.K. Upadhyay,P.N.Tripathi,R.P. Agarwal,R.P. Srivastava,R.P. Tiwari,Rajendra Chaubey,Rajesh Kumar Pathak,Rajesh Kumar Singh,Ram Yash Pandey,S.C.,S.D.N.Singh,S.F. Ahmad,S.K. Yadav,S.M. Dayal,S.N. Singh,S.R. Yadav,S.S. Chauhan,S.S.Srivastava,Sandeep Agarwal,Sanjai Srivastava,Sanjay Om,Satya Prakash Shukla,Saumitra Singh,Smt. Archana Singh,Somesh Khare,Subhash Chandra Yadav,Sudhir Agarwal,U.N. Sharma,U.P. Singh,Udai Chandani,V.K.S. Chaudhary,Vinod Misra,Vivek Singh,W.A. Siddiqui,Yashwant Verma,Yogesh Agarwal,Z.K. Hasan

Hon'ble Piyush Agrawal,J.

Mr. Ashish Agarwal, learned counsel for the Official Liquidator prays for and is granted two weeks' time to file objection to the Misc. Application Nos. 564 of 2018, 565 of 2018, 569 of 2019, 448 of 2018 & 447 of 2018.

List on 30.09.2024.

Order Date :- 13.9.2024

Pravesh Mishra

Court No. - 2

Case :- MISC. COMPANY APPLICATION No. - 4 of 1997

Applicant :- In The Matter Of M/S U.P.State Cement Corporation Ltd.

Counsel for Applicant :- O.L.B.K.L.Srivastava,A.K. Pandey,Anil Mehrotra,Anita Srivastava,Ashok Kumar Chaubey,Ashok Mehta,Navin Kumar Sharma,O.L. M.K. Bagri,O.L.U.S.Patole,S. Niranjan,S.K. Singh,Sanjay Kumar,Saral Srivastava,Satya Prakash Shukla,Shyam Sunder Singh,Udai Prakash Deo Pandey,Vipalav Sharma,Yogendra Kumar Srivastava

Counsel for Opposite Party :- Shiv Nath Singh,A.K. Gupta,A.K. Srivastava,A.K.Mehrotra,A.P. Singh,Achal Singh Vats,Ajal Krishna,Ajay Kumar Pandey,Amit Chaudhary,Amit Saxena,Anil Mehrotra,Anurag Khanna,Ashok Kumar Chaubey,Ashok Mehta,Ashutosh Pandey,B.D. Mandhyan,B.D.Mandhyan,B.K. Mishra,B.N. Singh,Brijesh Kumar,C.B. Srivastava,C.B.Gupta,C.L. Pandey,C.S.C.,Chitranshu Srivastav,D.K. Srivastava,Devendra Singh,Govind Saran,H.N. Sharma,H.P. Dubey,I.S.Tomar,J. Nagar,J.N. Pandey,J.P.Mathur,Jayant Banerji,K.C.

Vishwakarma,K.K. Srivastava,Kush Saxena,L.K.Tiwari,L.P.Tiwari,Lalji Pandey,Manoj Kumar,Manoj Srivastava,N.K. Gupta,N.K. Verma,Narendra Mohan,Navin Sinha,O.L. M.K. Bagri,O.L. O.P. Sharma,O.P.Misra,P.K. Dalmiya (In Person),P.K. Upadhyay,P.N.Tripathi,R.P. Agarwal,R.P. Srivastava,R.P. Tiwari,Rajendra Chaubey,Rajesh Kumar Pathak,Rajesh Kumar Singh,Ram Yash Pandey,S.C.,S.D.N.Singh,S.F. Ahmad,S.K. Yadav,S.M. Dayal,S.N. Singh,S.R. Yadav,S.S. Chauhan,S.S.Srivastava,Sandeep Agarwal,Sanjai Srivastava,Sanjay Om,Satya Prakash Shukla,Saumitra Singh,Smt. Archana Singh,Somesh Khare,Subhash Chandra Yadav,Sudhir Agarwal,U.N. Sharma,U.P. Singh,Udai Chandani,V.K.S. Chaudhary,Vinod Misra,Vivek Singh,W.A. Siddiqui,Yashwant Verma,Yogesh Agarwal,Z.K. Hasan

Hon'ble Piyush Agrawal,J.

At the request of learned counsel appearing for the Official Liquidator, list again on 25.10.2024.

Order Date :- 30.9.2024

Pravesh Mishra

Court No. - 2

Case :- MISC. COMPANY APPLICATION No. - 4 of 1997

Applicant :- In The Matter Of M/S U.P.State Cement Corporation Ltd.

Counsel for Applicant :- O.L.B.K.L.Srivastava,A.K. Pandey,Anil Mehrotra,Anita Srivastava,Ashok Kumar Chaubey,Ashok Mehta,Navin Kumar Sharma,O.L. M.K. Bagri,O.L.U.S.Patole,S. Niranjan,S.K. Singh,Sanjay Kumar,Saral Srivastava,Satya Prakash Shukla,Shyam Sunder Singh,Udai Prakash Deo Pandey,Vipalav Sharma,Yogendra Kumar Srivastava

Counsel for Opposite Party :- Shiv Nath Singh,A.K. Gupta,A.K. Srivastava,A.K.Mehrotra,A.P. Singh,Achal Singh Vats,Ajal Krishna,Ajay Kumar Pandey,Amit Chaudhary,Amit Saxena,Anil Mehrotra,Anurag Khanna,Ashok Kumar Chaubey,Ashok Mehta,Ashutosh Pandey,B.D. Mandhyan,B.D.Mandhyan,B.K. Mishra,B.N. Singh,Brijesh Kumar,C.B. Srivastava,C.B.Gupta,C.L. Pandey,C.S.C.,Chitranshu Srivastav,D.K. Srivastava,Devendra Singh,Govind Saran,H.N. Sharma,H.P. Dubey,I.S.Tomar,J. Nagar,J.N. Pandey,J.P.Mathur,Jayant Banerji,K.C. Vishwakarma,K.K. Srivastava,Kush Saxena,L.K.Tiwari,L.P.Tiwari,Lalji Pandey,Manoj Kumar,Manoj Srivastava,N.K. Gupta,N.K. Verma,Narendra Mohan,Navin Sinha,O.L. M.K. Bagri,O.L. O.P. Sharma,O.P.Misra,P.K. Dalmiya (In Person),P.K. Upadhyay,P.N.Tripathi,R.P. Agarwal,R.P. Srivastava,R.P. Tiwari,Rajendra Chaubey,Rajesh Kumar Pathak,Rajesh Kumar Singh,Ram Yash Pandey,S.C.,S.D.N.Singh,S.F. Ahmad,S.K. Yadav,S.M. Dayal,S.N. Singh,S.R. Yadav,S.S. Chauhan,S.S.Srivastava,Sandeep Agarwal,Sanjai Srivastava,Sanjay Om,Satya Prakash Shukla,Saumitra Singh,Smt. Archana Singh,Somesh Khare,Subhash Chandra Yadav,Sudhir Agarwal,U.N. Sharma,U.P. Singh,Udai Chandani,V.K.S. Chaudhary,Vinod Misra,Vivek Singh,W.A. Siddiqui,Yashwant Verma,Yogesh Agarwal,Z.K. Hasan

Hon'ble Piyush Agrawal,J.

Due to paucity of time, case could not be heard today.

List on 08.11.2024.

Order Date :- 25.10.2024

Pravesh Mishra

Court No. - 2

Case :- MISC. COMPANY APPLICATION No. - 4 of 1997

Applicant :- In The Matter Of M/S U.P.State Cement Corporation Ltd.

Counsel for Applicant :- O.L.B.K.L.Srivastava,A.K. Pandey,Anil Mehrotra,Anita Srivastava,Ashok Kumar Chaubey,Ashok Mehta,Navin Kumar Sharma,O.L. M.K. Bagri,O.L.U.S.Patole,S. Niranjan,S.K. Singh,Sanjay Kumar,Saral Srivastava,Satya Prakash Shukla,Shyam Sunder Singh,Udai Prakash Deo Pandey,Vipalav Sharma,Yogendra Kumar Srivastava

Counsel for Opposite Party :-,S.M. Dayal,S.N. Singh,S.R. Yadav,S.S. Chauhan,S.S.Srivastava,Sandeep Agarwal,Sanjai Srivastava,Sanjay Om,Satya Prakash Shukla,Saumitra Singh,Smt. Archana Singh,Somesh Khare,Subhash Chandra Yadav,Sudhir Agarwal,U.N. Sharma,U.P. Singh,Udai Chandani,V.K.S. Chaudhary,Vinod Misra,Vivek Singh,W.A. Siddiqui,Yashwant Verma,Yogesh Agarwal,Z.K. Hasan

Hon'ble Piyush Agrawal,J.

At the request of the counsel for the official liquidator list on 28.11.2024.

Order Date :- 8.11.2024

samz

Court No. - 2

Case :- MISC. COMPANY APPLICATION No. - 4 of 1997

Applicant :- In The Matter Of M/S U.P.State Cement Corporation Ltd.

Counsel for Applicant :- O.L.B.K.L.Srivastava,A.K. Pandey,Anil Mehrotra,Anita Srivastava,Ashok Kumar Chaubey,Ashok Mehta,Navin Kumar Sharma,O.L. M.K. Bagri,O.L.U.S.Patole,S. Niranjan,S.K. Singh,Sanjay Kumar,Saral Srivastava,Satya Prakash Shukla,Shyam Sunder Singh,Udai Prakash Deo Pandey,Vipalav Sharma,Yogendra Kumar Srivastava

Counsel for Opposite Party :- Shiv Nath Singh,A.K. Gupta,A.K. Srivastava,A.K.Mehrotra,A.P. Singh,Achal Singh Vats,Ajal Krishna,Ajay Kumar Pandey,Amit Chaudhary,Amit Saxena,Anil Mehrotra,Anurag Khanna,Ashok Kumar Chaubey,Ashok Mehta,Ashutosh Pandey,B.D. Mandhyan,B.D.Mandhyan,B.K. Mishra,B.N. Singh,Brijesh Kumar,C.B. Srivastava,C.B.Gupta,C.L. Pandey,C.S.C.,Chitranshu Srivastav,D.K. Srivastava,Devendra Singh,Govind Saran,H.N. Sharma,H.P. Dubey,I.S.Tomar,J. Nagar,J.N. Pandey,J.P.Mathur,Jayant Banerji,K.C. Vishwakarma,K.K. Srivastava,Kush Saxena,L.K.Tiwari,L.P.Tiwari,Lalji Pandey,Manoj Kumar,Manoj Srivastava,N.K. Gupta,N.K. Verma,Narendra Mohan,Navin Sinha,O.L. M.K. Bagri,O.L. O.P. Sharma,O.P.Misra,P.K. Dalmiya (In Person),P.K. Upadhyay,P.N.Tripathi,R.P. Agarwal,R.P. Srivastava,R.P. Tiwari,Rajendra Chaubey,Rajesh Kumar Pathak,Rajesh Kumar Singh,Ram Yash Pandey,S.C.,S.D.N.Singh,S.F. Ahmad,S.K. Yadav,S.M. Dayal,S.N. Singh,S.R. Yadav,S.S. Chauhan,S.S.Srivastava,Sandeep Agarwal,Sanjai Srivastava,Sanjay Om,Satya Prakash Shukla,Saumitra Singh,Smt. Archana Singh,Somesh Khare,Subhash Chandra Yadav,Sudhir Agarwal,U.N. Sharma,U.P. Singh,Udai Chandani,V.K.S. Chaudhary,Vinod Misra,Vivek Singh,W.A. Siddiqui,Yashwant Verma,Yogesh Agarwal,Z.K. Hasan

Hon'ble Piyush Agrawal,J.

List again on 18.12.2024.

Order Date :- 28.11.2024

Pravesh Mishra

Court No. - 2

Case :- MISC. COMPANY APPLICATION No. - 4 of 1997

Applicant :- In The Matter Of M/S U.P.State Cement Corporation Ltd.

Counsel for Applicant :- O.L.B.K.L.Srivastava,A.K. Pandey,Anil Mehrotra,Anita Srivastava,Ashok Kumar Chaubey,Ashok Mehta,Navin Kumar Sharma,O.L. M.K. Bagri,O.L.U.S.Patole,S. Niranjan,S.K. Singh,Sanjay Kumar,Saral Srivastava,Satya Prakash Shukla,Shyam Sunder Singh,Udai Prakash Deo Pandey,Vipalav Sharma,Yogendra Kumar Srivastava

Counsel for Opposite Party :- Shiv Nath Singh,A.K. Gupta,A.K. Srivastava,A.K.Mehrotra,A.P. Singh,Achal Singh Vats,Ajal Krishna,Ajay Kumar Pandey,Amit Chaudhary,Amit Saxena,Anil Mehrotra,Anurag Khanna,Ashok Kumar Chaubey,Ashok Mehta,Ashutosh Pandey,B.D. Mandhyan,B.D.Mandhyan,B.K. Mishra,B.N. Singh,Brijesh Kumar,C.B. Srivastava,C.B.Gupta,C.L. Pandey,C.S.C.,Chitranshu Srivastav,D.K. Srivastava,Devendra Singh,Govind Saran,H.N. Sharma,H.P. Dubey,I.S.Tomar,J. Nagar,J.N. Pandey,J.P.Mathur,Jayant Banerji,K.C. Vishwakarma,K.K. Srivastava,Kush Saxena,L.K.Tiwari,L.P.Tiwari,Lalji Pandey,Manoj Kumar,Manoj Srivastava,N.K. Gupta,N.K. Verma,Narendra Mohan,Navin Sinha,O.L. M.K. Bagri,O.L. O.P. Sharma,O.P.Misra,P.K. Dalmiya (In Person),P.K. Upadhyay,P.N.Tripathi,R.P. Agarwal,R.P. Srivastava,R.P. Tiwari,Rajendra Chaubey,Rajesh Kumar Pathak,Rajesh Kumar Singh,Ram Yash Pandey,S.C.,S.D.N.Singh,S.F. Ahmad,S.K. Yadav,S.M. Dayal,S.N. Singh,S.R. Yadav,S.S. Chauhan,S.S.Srivastava,Sandeep Agarwal,Sanjai Srivastava,Sanjay Om,Satya Prakash Shukla,Saumitra Singh,Smt. Archana Singh,Somesh Khare,Subhash Chandra Yadav,Sudhir Agarwal,U.N. Sharma,U.P. Singh,Udai Chandani,V.K.S. Chaudhary,Vinod Misra,Vivek Singh,W.A. Siddiqui,Yashwant Verma,Yogesh Agarwal,Z.K. Hasan

Hon'ble Piyush Agrawal,J.

List again on 20.1.2025.

Order Date :- 18.12.2024

Rahul Dwivedi/-

Court No. - 2

Case :- MISC. COMPANY APPLICATION No. - 4 of 1997

Applicant :- In The Matter Of M/S U.P.State Cement Corporation Ltd.

Counsel for Applicant :- O.L.B.K.L.Srivastava,A.K. Pandey,Anil Mehrotra,Anita Srivastava,Ashok Kumar Chaubey,Ashok Mehta,Navin Kumar Sharma,O.L. M.K. Bagri,O.L.U.S.Patole,S. Niranjan,S.K. Singh,Sanjay Kumar,Saral Srivastava,Satya Prakash Shukla,Shyam Sunder Singh,Udai Prakash Deo Pandey,Vipalav Sharma,Yogendra Kumar Srivastava

Counsel for Opposite Party :- Shiv Nath Singh,A.K. Gupta,A.K. Srivastava,A.K.Mehrotra,A.P. Singh,Achal Singh Vats,Ajal Krishna,Ajay Kumar Pandey,Amit Chaudhary,Amit Saxena,Anil Mehrotra,Anurag Khanna,Ashok Kumar Chaubey,Ashok Mehta,Ashutosh Pandey,B.D. Mandhyan,B.D.Mandhyan,B.K. Mishra,B.N. Singh,Brijesh Kumar,C.B. Srivastava,C.B.Gupta,C.L. Pandey,C.S.C.,Chitranshu Srivastav,D.K. Srivastava,Devendra Singh,Govind Saran,H.N. Sharma,H.P. Dubey,I.S.Tomar,J. Nagar,J.N. Pandey,J.P.Mathur,Jayant Banerji,K.C. Vishwakarma,K.K. Srivastava,Kush Saxena,L.K.Tiwari,L.P.Tiwari,Lalji Pandey,Manoj Kumar,Manoj Srivastava,N.K. Gupta,N.K. Verma,Narendra Mohan,Navin Sinha,O.L. M.K. Bagri,O.L. O.P. Sharma,O.P.Misra,P.K. Dalmiya (In Person),P.K. Upadhyay,P.N.Tripathi,R.P. Agarwal,R.P. Srivastava,R.P. Tiwari,Rajendra Chaubey,Rajesh Kumar Pathak,Rajesh Kumar Singh,Ram Yash Pandey,S.C.,S.D.N.Singh,S.F. Ahmad,S.K. Yadav,S.M. Dayal,S.N. Singh,S.R. Yadav,S.S. Chauhan,S.S.Srivastava,Sandeep Agarwal,Sanjai Srivastava,Sanjay Om,Satya Prakash Shukla,Saumitra Singh,Smt. Archana Singh,Somesh Khare,Subhash Chandra Yadav,Sudhir Agarwal,U.N. Sharma,U.P. Singh,Udai Chandani,V.K.S. Chaudhary,Vinod Misra,Vivek Singh,W.A. Siddiqui,Yashwant Verma,Yogesh Agarwal,Z.K. Hasan

Hon'ble Piyush Agrawal,J.

List on 18.2.2025.

Order Date :- 20.1.2025

samz

Court No. - 2

Case :- MISC. COMPANY APPLICATION No. - 4 of 1997

Applicant :- In The Matter Of M/S U.P.State Cement Corporation Ltd.

Counsel for Applicant :- O.L.B.K.L.Srivastava,A.K. Pandey,Anil Mehrotra,Anita Srivastava,Ashok Kumar Chaubey,Ashok Mehta,Navin Kumar Sharma,O.L. M.K. Bagri,O.L.U.S.Patole,S. Niranjan,S.K. Singh,Sanjay Kumar,Saral Srivastava,Satya Prakash Shukla,Shyam Sunder Singh,Udai Prakash Deo Pandey,Vipalav Sharma,Yogendra Kumar Srivastava

Counsel for Opposite Party :- Shiv Nath Singh,A.K. Gupta,A.K. Srivastava,A.K.Mehrotra,A.P. Singh,Achal Singh Vats,Ajal Krishna,Ajay Kumar Pandey,Amit Chaudhary,Amit Saxena,Anil Mehrotra,Anurag Khanna,Ashok Kumar Chaubey,Ashok Mehta,Ashutosh Pandey,B.D. Mandhyan,B.D.Mandhyan,B.K. Mishra,B.N. Singh,Brijesh Kumar,C.B. Srivastava,C.B.Gupta,C.L. Pandey,C.S.C.,Chitranshu Srivastav,D.K. Srivastava,Devendra Singh,Govind Saran,H.N. Sharma,H.P. Dubey,I.S.Tomar,J. Nagar,J.N. Pandey,J.P.Mathur,Jayant Banerji,K.C. Vishwakarma,K.K. Srivastava,Kush Saxena,L.K.Tiwari,L.P.Tiwari,Lalji Pandey,Manoj Kumar,Manoj Srivastava,N.K. Gupta,N.K. Verma,Narendra Mohan,Navin Sinha,O.L. M.K. Bagri,O.L. O.P. Sharma,O.P.Misra,P.K. Dalmiya (In Person),P.K. Upadhyay,P.N.Tripathi,R.P. Agarwal,R.P. Srivastava,R.P. Tiwari,Rajendra Chaubey,Rajesh Kumar Pathak,Rajesh Kumar Singh,Ram Yash Pandey,S.C.,S.D.N.Singh,S.F. Ahmad,S.K. Yadav,S.M. Dayal,S.N. Singh,S.R. Yadav,S.S. Chauhan,S.S.Srivastava,Sandeep Agarwal,Sanjai Srivastava,Sanjay Om,Satya Prakash Shukla,Saumitra Singh,Smt. Archana Singh,Somesh Khare,Subhash Chandra Yadav,Sudhir Agarwal,U.N. Sharma,U.P. Singh,Udai Chandani,V.K.S. Chaudhary,Vinod Misra,Vivek Singh,W.A. Siddiqui,Yashwant Verma,Yogesh Agarwal,Z.K. Hasan

Hon'ble Piyush Agrawal,J.

At the request of the learned counsel for the official liquidator list on 25.2.2025.

Order Date :- 18.2.2025

samz

Court No. - 2

Case :- MISC. COMPANY APPLICATION No. - 4 of 1997

Applicant :- In The Matter Of M/S U.P.State Cement Corporation Ltd.

Hon'ble Piyush Agrawal,J.

It is informed that lawyers are abstaining from work pursuant to the resolution passed by the Allahabad High Court Bar Association dated 24.2.2025.

In the interest of justice the case is passed over.

List on 5.3.2025.

Order Date :- 25.2.2025

samz

Court No. - 2

Case :- MISC. COMPANY APPLICATION No. - 4 of 1997

Applicant :- In The Matter Of M/S U.P.State Cement Corporation Ltd.

Hon'ble Piyush Agrawal,J.

List again on 27.3.2025.

Order Date :- 5.3.2025

samz

Court No. - 10

Case :- MISC. COMPANY APPLICATION No. - 4 of 1997

Applicant :- In The Matter Of M/S U.P.State Cement Corporation Ltd.

Hon'ble Piyush Agrawal,J.

List again on 21.4.2025.

Order Date :- 27.3.2025

samz

Court No. - 10

Case :- MISC. COMPANY APPLICATION No. - 4 of 1997

Applicant :- In The Matter Of M/S U.P.State Cement Corporation Ltd.

Hon'ble Piyush Agrawal,J.

List the case on 9.5.2025 along with all pending applications.

Order Date :- 21.4.2025

Rahul Dwivedi/-

Court No. - 7

Case :- MISC. COMPANY APPLICATION No. - 4 of 1997

Applicant :- In The Matter Of M/S U.P.State Cement Corporation Ltd.

Hon'ble Piyush Agrawal,J.

List again on 3.7.2025.

Order Date :- 9.5.2025

samz

Court No. - 7

Case :- MISC. COMPANY APPLICATION No. - 4 of 1997

Applicant :- In The Matter Of M/S U.P.State Cement Corporation Ltd.

Hon'ble Piyush Agrawal,J.

Official Liquidator's Report No. Judl. 581 of 2025.

Heard Sri Ashish Agarwal, learned counsel for the official liquidator and perused the report.

Learned counsel for the official liquidator submits that **Misc. Application No. 564 of 2018** has been fled by Sri Rajesh Kumar Sharma whereby prayer has been made for release of arrears of due salary along with consequential benefits to which O.L.R. No. 175 of 2015 has been fled on 7.10.2015. He further submits that Claim Committee has approved the claim of the applicant, a report of the Claim Committee has been annexed along with the report.

In view of the above, the official liquidator is directed to release due payment to the applicant after due process. and file a fresh report.

Learned counsel for the official liquidator submits that **Misc. Application No. 565 of 2018** has been fled by eight applicants whereby prayer has been made for release of arrears of due salary along with consequential benefits to which O.L.R. Nos. 190 of 2012 and 233 of 2010 have been fled on 13.7.2012 and 26.11.2010 respectively.

A **Substitution Application No. 583 of 2025** has been fled by Ms. Tanzila Parveen holding brief of Sri K.C.Vishwakarma, learned counsel of the applicant for substituting the heirs of one Siraj Ahmad, who died on 14.6.2025 and is one of the applicants in Misc. Application No. 565 of 2018, to which learned counsel for the official liquidator has not objection. Death certificate of the applicant is annexed along with the substitution application.

In view of the above the substitution application is allowed.

Learned counsel for the official liquidator further submits that Claim Committee has approved the claim of the applicants, who are eight in number, a report of the Claim Committee has been annexed along with the report.

In view of the above, the official liquidator is directed to release due payment to the applicants after due process. and file a fresh report. Since the substitution application has been allowed for substituting the heirs of one of the applicants Siraj Ahmad, his due payments be released in favour of his heirs as mentioned in the substitution application.

Learned counsel for the official liquidator submits that **Misc. Application No. 448 of 2018** has been filed by Smt. Shanti Devi whereby prayer has been made for release of arrears of due salary along with consequential benefits to which O.L.R. No. 217 of 2013 has been filed on 8.10.2013. He further submits that Claim Committee has approved the claim of the applicant, a report of the Claim Committee has been annexed along with the report.

In view of the above, the official liquidator is directed to release due payment to the applicant after due process. and file a fresh report.

Learned counsel for the official liquidator submits that **Misc. Application No. 569 of 2018** has been filed by Sri Ajmattula whereby prayer has been made for release of arrears of due salary along with consequential benefits to which O.L.R. No. 179 of 2010 has been filed on 29.9.2010. He further submits that Claim Committee has approved the claim of the applicant, a report of the Claim Committee has been annexed along with the report.

In view of the above, the official liquidator is directed to release due payment to the applicant after due process. and file a fresh report.

This report stands disposed of.

List again on 4.8.2025 along with Misc. Application No. 577 of 2023.

Order Date :- 30.7.2025

samz

Court No. - 7

Case :- MISC. COMPANY APPLICATION No. - 4 of 1997

Applicant :- In The Matter Of M/S U.P.State Cement Corporation Ltd.

Hon'ble Piyush Agrawal,J.

Case is called out. None appears on behalf of applicant.

Learned counsel for the official liquidator and learned counsel for M/s Ultratech Cement are present.

List again on 1.9.2025.

Order Date :- 4.8.2025

Rahul Dwivedi/-



HIGH COURT OF JUDICATURE AT ALLAHABAD

MISC. COMPANY APPLICATION No. - 4 of 1997

In The Matter Of M/S U.P.State Cement Corporation Ltd.Applicant(s)

Counsel for Applicant(s) :

Court No. - 7

HON'BLE PIYUSH AGRAWAL, J.

Sri Udai Prakash Deo Pandey, prays for and is granted three weeks time to file reply.

List again on 24.9.2025.

(Piyush Agrawal,J.)

September 1, 2025

samz



HIGH COURT OF JUDICATURE AT ALLAHABAD

MISC. COMPANY APPLICATION No. - 4 of 1997

In The Matter Of M/S U.P.State Cement Corporation Ltd.Applicant(s)

Counsel for Applicant(s) :

Court No. - 7

HON'BLE PIYUSH AGRAWAL, J.

Sri U.P.Pandey, learned counsel for the ex employees prays for and is allowed three weeks no more time to comply the earlier order of this Court.

List again on 4.11.2025.

(Piyush Agrawal,J.)

September 24, 2025

samz



HIGH COURT OF JUDICATURE AT ALLAHABAD

MISC. COMPANY APPLICATION No. - 4 of 1997

In The Matter Of M/S U.P.State Cement Corporation Ltd.Applicant(s)

Counsel for Applicant(s) :

Court No. - 7

HON'BLE PIYUSH AGRAWAL, J.

Learned counsel for the Ultra Tech Cement submits that he has received the rejoinder affidavit today. He prays for accommodation.

List again on 25.11.2025.

(Piyush Agrawal,J.)

November 4, 2025
samz



HIGH COURT OF JUDICATURE AT ALLAHABAD

MISC. COMPANY APPLICATION No. - 4 of 1997

In The Matter Of M/S U.P.State Cement
Corporation Ltd.

.....Applicant(s)

Counsel for Applicant(s)

:

Court No. - 7

HON'BLE PIYUSH AGRAWAL, J.

(Ref:-Misc. Application No. 577/2023 and OL Report No. IA No. 585/2014 and Misc. Application No. 177207/2014)

Heard Shri Uday Prakash Deo Pandey, learned counsel for the applicant, Shri B.K. Pandey, learned ACSC for the State, Shri Ashish Agrawal, learned counsel for the Official Liquidator and Shri Navin Sinha, learned Senior Advocate, assisted by Shri Raghav Naiyar, learned counsel for the JPL.

Learned counsel for the applicant submits that neither any compensation has been paid to the applicant, nor any land has been allotted as directed by this Court vide order dated 17.05.2012.

The said submission has vehemently been opposed by Shri Sinha and learned counsel for the Official Liquidator. Learned Senior Advocate submits that the applicant has no right to claim compensation of the land as he was not identified in the list prepared by the then Collector, Sonbhadra as mentioned in the order dated 17.05.2012. He further submits that the Company has also filed Civil Misc. Company Application No. 177207/2014 bringing on record that despite Bank guarantee being furnished, the land in question has neither been vacated, nor been handed over. He further submits that the District authorities have utterly failed to discharge their duties. He further submits that against the order dated 17.05.2012, two special appeals were preferred, which have been dismissed by the Court and till date, the same has not been challenged before any higher court and therefore, the order has become final.

In view of the aforesaid fact, learned ACSC is directed to seek instruction

from the concerned District Magistrate within a period of 10 days from today.

List again on 11.12.2025.

(Piyush Agrawal,J.)

November 25, 2025
Amit Mishra



HIGH COURT OF JUDICATURE AT ALLAHABAD

MISC. COMPANY APPLICATION No. - 4 of 1997

In The Matter Of M/S U.P.State Cement Corporation Ltd.Applicant(s)

Counsel for Applicant(s) :

Court No. - 7

HON'BLE PIYUSH AGRAWAL, J.

As prayed list on 20.1.2026.

(Piyush Agrawal,J.)

December 11, 2025
samz



HIGH COURT OF JUDICATURE AT ALLAHABAD

MISC. COMPANY APPLICATION No. - 4 of 1997

In The Matter Of M/S U.P.State Cement Corporation Ltd.Applicant(s)

Counsel for Applicant(s) :

Court No. - 7

HON'BLE PIYUSH AGRAWAL, J.

Misc. Application No. 577 of 2023 & Counter affidavit No. 582 of 2025

Misc. Application No. 587 of 2026 & OLR No. 585 of 2014

Misc. Application No. 177207 of 2014.

In pursuance of the earlier order instructions have come. Surprisingly, the District Magistrate concerned has not whispered a word about the action taken for removal of the encroachment over the property in question.

The Court was about to take serious view but Sri B.K.Pandey, learned ACSC seeks accommodation today to get a better instructions mentioning the actual action taken by the District Authorities.

As prayed list again on 13.2.2026.

(Piyush Agrawal,J.)

January 20, 2026

samz



HIGH COURT OF JUDICATURE AT ALLAHABAD

MISC. COMPANY APPLICATION No. - 4 of 1997

In The Matter Of M/S U.P.State Cement Corporation Ltd.Applicant(s)

Counsel for Applicant(s) :

Court No. - 7

HON'BLE PIYUSH AGRAWAL, J.

MA No. 588 of 2026, M.A.No. 577 of 2023 and OLR No. 585 of 2025.

As prayed list again on 16.3.2026.

(Piyush Agrawal,J.)

February 13, 2026

samz



HIGH COURT OF JUDICATURE AT ALLAHABAD

MISC. COMPANY APPLICATION No. - 4 of 1997

In The Matter Of M/S U.P.State Cement Corporation Ltd.Applicant(s)

Counsel for Applicant(s) :

Court No. - 7

HON'BLE PIYUSH AGRAWAL, J.

Stay Application No. 588 of 20; Exemption Application No. 589 of 2026; Condonation of Delay Application No. 590 of 2026 & Recall Application No. 591 of 2026.

List with previous papers.

(Piyush Agrawal,J.)

March 11, 2026

samz



HIGH COURT OF JUDICATURE AT ALLAHABAD

MISC. COMPANY APPLICATION No. - 4 of 1997

In The Matter Of M/S U.P.State Cement
Corporation Ltd.

.....Applicant(s)

Counsel for Applicant(s)

:

Court No. - 7

HON'BLE PIYUSH AGRAWAL, J.

Heard Sri Navin Singh, learned senior counsel assisted by Sri Utkarsh Srivastava, learned counsel for the Ultra Tech. Cement Ltd., Sri Manish Goyal, learned Additional Advocate General, assisted by Sri B.K.Pandey, learned Additional Chief Standing Counsel and learned counsel for the official liquidator.

In pursuance of the earlier order learned Additional Advocate General has obtained instruction on 13.2.2026 of the District Magistrate, Sonbhadra with regard to providing land to the company.

During the course of argument learned Additional Advocate General submits that there is a vacant land available adjacent to the plot of the company which can be allotted to the company for which due approval is required from the higher authorities.

Sri Sinha, learned senior counsel submits that an affidavit in this regard is required to be filed by the District Magistrate concerned so that necessary instructions from his client can be obtained.

List the matter again on 1.4.2026.

An affidavit of the District Magistrate, Sonbhadra shall be filed for providing alternative land to the company on or before 1.4.2026. Failing which the District Magistrate shall remain present before the Court on the date fixed.

Misc. Application No. 382722 of 2012

Sri Satish Dwivedi, learned counsel for the applicant submits that this

application has not been decided so far.

List again on. 1.4.2026.

(Piyush Agrawal,J.)

March 16, 2026
samz



HIGH COURT OF JUDICATURE AT ALLAHABAD

MISC. COMPANY APPLICATION No. - 4 of 1997

In The Matter Of M/S U.P.State Cement
Corporation Ltd.

.....Applicant(s)

Counsel for Applicant(s)

:

Court No. - 7

HON'BLE PIYUSH AGRAWAL, J.

Misc. Application No. 577 of 2023 & Affidavit No. 595 of 2026.

Heard Sri Ashok Kumar Upadhyay, learned counsel for the applicant, Sri Navin Sinha, learned senior counsel assisted by Sri Utkash Srivastava, learned counsel for the Ultra Tech. Cement Ltd Sri Manish Goyal, learned Additional Advocate General, assisted by Sri B.K.Pandey, learned ACSC, Sri Ashish Agarwal, learned counsel for the official liquidator.

Sri Manish Goyal, learned Additional Advocate General submits on instructions that the land which was offered has been marked to which Sri Sinha has raised objection and submits that the land in question is a mining area.

Sri Manish Goyal, learned AAG seek accommodation today to bring on record the objection.

List again on 30.4.2026.

(Piyush Agrawal,J.)

April 1, 2026

samz



HIGH COURT OF JUDICATURE AT ALLAHABAD

MISC. COMPANY APPLICATION No. - 4 of 1997

In The Matter Of M/S U.P.State Cement Corporation Ltd.Applicant(s)

Counsel for Applicant(s) :

Court No. - 7

HON'BLE PIYUSH AGRAWAL, J.

Learned ACSc prays for accommodation today.

List again on 7.5.2026.

(Piyush Agrawal,J.)

April 30, 2026

samz



HIGH COURT OF JUDICATURE AT ALLAHABAD

MISC. COMPANY APPLICATION No. - 4 of 1997

In The Matter Of M/S U.P.State Cement Corporation Ltd.Applicant(s)

Counsel for Applicant(s) :

Court No. - 7

HON'BLE PIYUSH AGRAWAL, J.

Heard Sri Navin Sinha, learned senior counsel assisted by Sri Raghav Nayar, learned counsel for the Ultra Tech Cement Ltd., Sri B.K.Pandey, learned ACSC Sri U.P. Deo Pandey, learned counsel and Sri Rakesh Pathak for the petitioner and learned counsel for the official liquidator.

Learned counsel for the Ultra Tech Cement Ltd. prays for and is granted two weeks time to file reply to the affidavit filed by the District Magistrate concerned.

List again on 2.7.2026

(Piyush Agrawal,J.)

May 7, 2026

samz



HIGH COURT OF JUDICATURE AT ALLAHABAD

MISC. COMPANY APPLICATION No. - 4 of 1997

In The Matter Of M/S U.P.State Cement Corporation Ltd.Applicant(s)

Counsel for Applicant(s) :

Court No. - 7

HON'BLE PIYUSH AGRAWAL, J.

At the request of Shri Manish Goel, learned Additional Advocate General, list again on 10.07.2026.

(Piyush Agrawal,J.)

July 2, 2026
Amit Mishra



HIGH COURT OF JUDICATURE AT ALLAHABAD

MISC. COMPANY APPLICATION No. - 4 of 1997

In The Matter Of M/S U.P.State Cement Corporation Ltd.

.....Applicant(s)

Counsel for Applicant(s)

:

Court No. - 7

HON'BLE PIYUSH AGRAWAL, J.

Heard Sri Navin Sinha, learned Senior Counsel assisted by Sri Raghav Nayar, learned counsel for the Ultra Tech Cement Ltd., Sri B.K.Pandey, learned ACSC, Sri U.P. Deo Pandey and Sri Rakesh Pathak, learned counsel for the petitioner and Sri Ashish Agrawal, learned counsel for the official liquidator.

As jointly prayed, list on 17.7.2026.

July 10, 2026

Vandana

(Piyush Agrawal,J.)



HIGH COURT OF JUDICATURE AT ALLAHABAD

MISC. COMPANY APPLICATION No. - 4 of 1997

In The Matter Of M/S U.P.State Cement Corporation Ltd.Applicant(s)

Counsel for Applicant(s) :

Court No. - 7

HON'BLE PIYUSH AGRAWAL, J.

Pursuant to the earlier order of this Court, a hard copy of the affidavit of the District Magistrate has been filed, which shall be uploaded within 24 hours.

The affidavit indicates that a Committee has been constituted for settling the matter outside the Court.

In view of the above, list this matter on 20.08.2026.

On the date fixed, the District Magistrate file his personal affidavit bringing on record the outcome of the settlement.

(Piyush Agrawal,J.)

July 17, 2026

Amit Mishra



HIGH COURT OF JUDICATURE AT ALLAHABAD

MISC. COMPANY APPLICATION No. - 4 of 1997

In The Matter Of M/S U.P.State Cement
Corporation Ltd.

.....Applicant(s)

Counsel for Applicant(s)

:

Court No. - 7

HON'BLE PIYUSH AGRAWAL, J.

(Re: Affidavit No. 599/2026)

Pursuant to the earlier order of this Court, affidavit has been filed on behalf of the District Magistrate concerned.

On the strength of the affidavit, Shri Kartikeya Saran, learned Additional Advocate General submits that the process is going on, but on the earlier round, 81 persons were identified and they were not only given alternate arrangement, but also money was given, but most of them availed the benefit and still occupying the place.

He seeks further time to identify all other persons.

List again on 22.09.2026.

On the date fixed, the District Magistrate concerned shall file his affidavit bringing on record the current status.

(Piyush Agrawal,J.)

August 20, 2026

Amit Mishra